Exam Notes

Criminal Procedure (BNSS) | Law of Evidence (BSA) | Interpretation of Statutes

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- **LAW OF EVIDENCE — Bharatiya Sakshya Adhiniyam (BSA), 2023 (Exam Answers)**
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LAW OF CRIMINAL PROCEDURE (BNSS, 2023): Module-wise Explanation

> The Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS) came into force on **1 July 2024** and replaced the Code of Criminal Procedure, 1973 (CrPC). It has **531 sections**. Old CrPC numbers are given in brackets because most books and judgments still use them.

MODULE 1: INTRODUCTION TO BNSS, 2023

1. Why we need criminal procedure

Criminal law has two parts:

- **Substantive law** (the Bharatiya Nyaya Sanhita, BNS) says *what* is a crime and *what* the punishment is.
- **Procedural law** (the BNSS) says *how* the law is enforced: how a crime is reported, investigated, how the accused is arrested, tried, sentenced, and how appeals are made.

Without procedure, substantive law is only words on paper. Procedural law must also keep a balance:

- **crime control**: the State must catch and punish offenders efficiently;
- **due process**: the accused must be treated fairly, and the innocent must be protected.

The BNSS tries to balance both, and also gives a new place to the **victim**.

2. Adversarial and inquisitorial systems

There are two broad models of criminal justice.

Adversarial (accusatorial) system (England, USA, India):

- The prosecution and the defence are opponents.
- The judge is a **neutral umpire**.
- The accused is **presumed innocent**, and the prosecution must prove guilt **beyond reasonable doubt**.
- Evidence is collected by the parties and tested by **cross-examination**.

Inquisitorial system (France, Germany):

- The judge actively **investigates** and questions witnesses to find the truth.
- Written dossiers matter more than oral contest.

India follows the adversarial model but has **inquisitorial features**:

- the court can summon any witness (s.348, CrPC 311);
- the judge can ask any question (BSA s.168);
- the court examines the accused (s.351, CrPC 313).

In *Zahira Habibullah Sheikh v. State of Gujarat* (2004) (the Best Bakery case), the Supreme Court said the judge is not a mere spectator but must actively help find the truth. The Malimath Committee (2003) also recommended adding more inquisitorial elements.

3. International norms and constitutional basis

International instruments:

- **UDHR (1948)**: Arts. 9–11, which cover no arbitrary arrest, a fair hearing, and the presumption of innocence.
- **ICCPR (1966)**: Arts. 9, 14 and 15, which cover prompt production before a judge, legal aid, no self-incrimination, no double jeopardy, and no ex post facto law.

The Indian Constitution builds these protections in:

- **Art. 14**: equality; procedure must not be arbitrary.
- **Art. 20**:
  - 20(1): no retrospective criminal law;
  - 20(2): no double jeopardy;
  - 20(3): no self-incrimination (*Nandini Satpathy v. P.L. Dani*, 1978; *Selvi v. State of Karnataka*, 2010, which held narco-analysis cannot be done without consent).
- **Art. 21**: after *Maneka Gandhi v. UOI* (1978), any procedure depriving liberty must be "fair, just and reasonable". From this the courts derived:
  - the right to a speedy trial (*Hussainara Khatoon*, 1979);
  - free legal aid (*M.H. Hoskot*, 1978);
  - protection from custodial torture (*D.K. Basu*, 1997).
- **Art. 22**: the right to know the grounds of arrest, to consult a lawyer, and to be produced before a magistrate within 24 hours.
- **Art. 39A**: free legal aid.

4. Salient features of the BNSS

The BNSS keeps most of the CrPC structure but introduces:

- **Zero FIR and e-FIR** (s.173).
- **Preliminary enquiry** for offences punishable with 3–7 years.
- **Mandatory forensic** examination for offences punishable with 7 years or more (s.176).
- **Videography** of search and seizure (s.105).
- **Trial in absentia** of proclaimed offenders (s.356).
- **Community service** as a punishment for petty offences (s.23).

- **Fixed timelines**:
  - copies of documents in 14 days;
  - charge within 60 days of first hearing;
  - judgment within 30 days of arguments, extendable to 45;
  - the victim told of the progress of investigation within 90 days.
- **Relief for undertrials**: a first-time offender is released after serving one-third of the maximum sentence (s.479).
- **Deemed sanction** to prosecute a public servant if not decided in 120 days (s.218).
- **Directorate of Prosecution** (s.20).
- **Witness Protection Scheme** (s.398).
- **Handcuffing** for certain serious offenders (s.43(3)).
- **Attachment of proceeds of crime** (s.107).
- **Electronic** summons, trials and evidence.
- **Metropolitan Magistrates and Assistant Sessions Judges abolished**.

5. Organisation of functionaries

- **Police**: prevent crime, register FIRs, investigate, arrest, search, file the chargesheet.
- **Prosecution** (ss.18–20):
  - Public Prosecutors (PP) need 7 years of practice; Special PPs need 10 years.
  - Assistant Public Prosecutors (APP) appear in magistrates' courts.
  - The new **Directorate of Prosecution** supervises prosecution work.
  - The PP is a "minister of justice", not a persecutor. They must place all evidence fairly (*Shiv Kumar v. Hukam Chand*, 1999).
  - A victim may engage their own lawyer to assist the PP.
- **Defence**: every accused has the right to a lawyer of choice (s.340) and to legal aid at State expense (s.341).
- **Prison authorities**: keep custody and work towards reform. Prisoners do not lose their fundamental rights (*Sunil Batra v. Delhi Admin.*, 1978).

6. Important definitions (s.2)

- **Bail**: release from custody on conditions, on a bond. This is defined for the first time.
- **Bailable offence**: shown as bailable in the First Schedule. All others are non-bailable.
- **Cognizable offence**: police can arrest without warrant. **Non-cognizable offence**: they cannot.
- **Complaint**: an allegation to a **Magistrate**, oral or written, asking them to take action. It does not include a police report.
- **Investigation**: evidence collection by police.
- **Inquiry**: anything other than a trial done by a Magistrate or court.
- **Trial**: ends in conviction or acquittal.
- **Warrant case**: an offence punishable with death, life imprisonment, or imprisonment **above 2 years**. **Summons case**: all other offences.
- **Victim**: includes the guardian or legal heir.

7. Hierarchy and powers of courts (ss. 6–29)

Section 6 lists the classes of criminal courts:

1. Court of Session
2. Judicial Magistrate First Class (JMFC)
3. Judicial Magistrate Second Class
4. Executive Magistrates

The High Court and Supreme Court sit above them. The Chief Judicial Magistrate (CJM) heads the magistracy in a district and is subordinate to the Sessions Judge (s.13).

Sentencing powers:

Court	Maximum sentence
High Court	Any sentence authorised by law
Sessions Judge	Any sentence; **death needs High Court confirmation**
CJM	Up to 7 years
JMFC	3 years, fine up to ₹50,000, or community service
JM-II	1 year, fine up to ₹10,000, or community service

When there are several sentences in one trial, the aggregate cannot exceed 20 years (s.25).

8. Aid to police and magistrates (ss. 30–34)

- Superior police officers have the same powers as the officer in charge of a police station (s.30).
- Every member of the public is **bound to assist** a magistrate or police officer in arresting an offender, preventing a breach of peace, or protecting public property (s.31).
- The public must report certain serious offences (s.33).
- Village officers must report suspicious deaths and the presence of proclaimed offenders (s.34).

MODULE 2: JURISDICTION OF CRIMINAL COURTS IN INQUIRIES AND TRIALS

1. General principle: local jurisdiction (s.197)

The basic rule is that **every offence is inquired into and tried by the court within whose local jurisdiction it was committed** (s.197, CrPC 177). The reasons are:

- witnesses and evidence are available locally;
- it is convenient for the parties;
- the local community sees justice done.

2. Exceptions and special rules (ss. 198–209)

Crimes do not always happen neatly in one place, so the BNSS gives flexibility:

- **Uncertain or multiple places (s.198)**: where it is uncertain where the offence was committed, or it was committed partly in one area and partly in another, or it is a **continuing offence**, any of those courts can try it.
- **Act or consequence (s.199)**: an offence is triable where the act was done **or** where the consequence followed. For example, if a person is injured in one place and dies in another, either court can try the case.
- **Related offences (s.200)**: abetment or receiving stolen property can be tried where either act happened.
- **Special places (s.201)**:
    - dacoity or murder with dacoity: where committed or where the accused is found;
    - kidnapping: where the person was taken, kept or concealed;
    - theft: where the stolen property is possessed;
    - criminal breach of trust: where the property was received or should have been accounted for.
- **Letters and electronic communication (s.202)**: triable where sent or received. **Bigamy** is triable where the offender or the first spouse resides.
- **Offences during a journey (s.203)**: triable in any area the person or goods passed through.
- **Doubt (s.206)**: the High Court decides.
- **Offences outside India (s.208)**: committed by an Indian citizen anywhere, or on an Indian ship or aircraft. They are triable where the accused is found in India, but need **prior sanction of the Central Government**.

In *Y. Abraham Ajith v. Inspector of Police* (2004), the Supreme Court said the civil concept of "cause of action" does not apply to criminal jurisdiction. In *Dashrath Rupsingh Rathod* (2014), it fixed jurisdiction in cheque bounce cases.

3. Initiation of proceedings: cognizance (ss. 210–214)

"Taking cognizance" means the magistrate **applies their judicial mind** to the facts in order to proceed further (*S.K. Sinha v. Videocon*, 2008). Cognizance is of the **offence**, not the offender.

Under s.210, a magistrate takes cognizance on:

a. a **complaint**;
b. a **police report**; or
c. **information from any other person** or the magistrate's **own knowledge**.

In case (c), the accused can ask for a transfer to another magistrate (s.211).

A **Court of Session cannot take cognizance directly**. The case must be **committed** to it by a magistrate (s.213).

4. Exceptions to the general power of cognizance (ss. 215–222)

For some offences, the law protects certain persons or interests by requiring a **complaint or sanction**:

- **s.215 (CrPC 195)**: offences against public servants' authority, offences against public justice, and forgery of documents produced in court. These need a **written complaint by the public servant or court** concerned (*Iqbal Singh Marwah v. Meenakshi Marwah*, 2005).
- **s.217**: offences against the State and certain conspiracies need **Government sanction**.
- **s.218 (CrPC 197)**: prosecution of judges and public servants for official acts needs **prior sanction**. Under the BNSS, sanction is **deemed granted if not decided in 120 days**.
- **s.219**: offences relating to marriage need a complaint by the **aggrieved person**.
- **s.220**: cruelty by husband or relatives needs a police report or a complaint by the victim or her relatives.
- **s.222**: **defamation** needs a complaint by the person defamed. Where a high constitutional functionary is defamed, the Public Prosecutor files the complaint in a Sessions Court.

5. Complaint to magistrate (ss. 223–226)

When a complaint is filed:

1. The magistrate **examines the complainant and witnesses on oath** (s.223). Under a new BNSS proviso, **the accused must be heard before cognizance is taken**.
2. If in doubt, the magistrate may **postpone process** and inquire personally or order a police investigation (s.225). This is **mandatory if the accused lives outside the magistrate's jurisdiction** (*Vijay Dhanuka*, 2014).
3. If there is no sufficient ground, the complaint is **dismissed** with brief reasons (s.226).

6. Commencement of proceedings (ss. 227–233)

If there is sufficient ground:

- the magistrate issues **summons** (in a summons case) or a **warrant** (in a warrant case) (s.227);
- may exempt the accused from personal appearance (s.228);
- in petty cases, allows a plea of guilty by post (s.229).

The accused must receive **free copies of the police report and documents within 14 days** (s.230). This is part of a fair trial.

Cases exclusively triable by a Sessions Court are **committed** to it, ideally within 90 days (s.232).

Where a complaint case and a police investigation on the same matter are running at the same time, the complaint case is stayed and both are tried together (s.233).

MODULE 3: INFORMATION TO POLICE, INVESTIGATION AND ARREST

1. FIR (s.173)

The **First Information Report** is the information about a **cognizable offence** first given to the police. It sets the criminal law in motion.

- It may be given **orally or electronically**. An e-FIR must be signed within 3 days.
- It can be lodged at **any police station (Zero FIR)**, which transfers it to the right station.
- The informant gets a **free copy**.
- Offences against women are recorded by a **woman officer**.
- For offences punishable with 3–7 years, a **preliminary enquiry of up to 14 days** is allowed.
- If police refuse to register an FIR, the informant can go to the **Superintendent of Police** and then to the **magistrate (s.175(3))**, with an affidavit.

In ***Lalita Kumari v. Govt. of U.P.*** **(2014)**, the Constitution Bench held that registration of an FIR is **mandatory** when the information discloses a cognizable offence.

Evidentiary value:

- An FIR is **not substantive evidence**. It is used to **corroborate** or **contradict** the informant.
- If the informant dies, it can be a **dying declaration**.
- A confession in an FIR given by the accused is **inadmissible** (*Aghnoo Nagesia*, 1966).
- **Delay** in filing is not fatal if explained.

For **non-cognizable offences**, the police only record the information and send the informant to the magistrate. They cannot investigate without the magistrate's order (s.174).

2. Investigation and interrogation (ss. 175–193)

- The officer in charge may investigate a cognizable case **without the magistrate's order** (s.175).
- Police can **summon witnesses** (s.179). Women, children under 15, persons above 60 and disabled persons are questioned **at their homes**.

- Statements of witnesses (s.180) are **not signed** and **cannot be used as evidence** except to **contradict** the witness (s.181, CrPC 162).
- Police must not use threats or inducements (s.182).
- A rape victim is medically examined within 24 hours (s.184).

3. Arrest

Arrest without warrant (s.35, CrPC 41). Police may arrest without a warrant when:

- a cognizable offence is committed **in their presence**;
- for offences punishable with **up to 7 years**, there is credible information **and arrest is necessary**: to prevent further offences, for proper investigation, to stop tampering with evidence or witnesses, or to secure attendance. **Reasons must be recorded**;
- for offences punishable with more than 7 years, there is credible information;
- the person is a proclaimed offender or similar.

Where arrest is not necessary, a **notice of appearance** is issued (old s.41A). Persons who are **infirm or above 60** cannot be arrested for offences below 3 years without a DSP's permission.

***Arnesh Kumar v. State of Bihar* (2014)** and ***Joginder Kumar v. State of U.P.* (1994)** prohibit routine, automatic arrests.

How arrest is made (s.43):

- by touching or confining the person;
- a woman is arrested only by a woman officer, and **not after sunset or before sunrise** except with a magistrate's permission;
- **handcuffs** only for specified serious or habitual offenders;
- **no more restraint than necessary** (s.46).

A **private person** can arrest someone who commits a non-bailable and cognizable offence in their presence, but must hand them to the police within 6 hours (s.40).

Arrest with warrant (ss. 72–83): a warrant is written, signed and sealed, and remains in force until executed or cancelled. It may be **bailable** (s.73). The arrested person must be produced before the court within **24 hours**.

Proclamation and attachment (ss. 84–93): if the accused **absconds**, the court issues a **proclamation** requiring appearance within at least 30 days. The person may be declared a **proclaimed offender** and their **property attached** (s.85). Property abroad may also be attached (s.86).

Police must report all warrantless arrests to the District Magistrate (s.59). An arrested person is released only on bond, bail or a magistrate's order (s.60). Police may **pursue and re-arrest** an escaped person anywhere in India (s.61).

4. Rights of arrested persons

These come from ss.47–58, 340–341 and Art. 22, and from *D.K. Basu*:

1. To know the **grounds of arrest**. Following *Pankaj Bansal* (2023) and *Prabir Purkayastha* (2024), these must be given **in writing**.
2. To be told of the **right to bail** in bailable offences.
3. To have a **relative or friend informed**.
4. To **meet a lawyer** during interrogation (s.38).
5. To be **produced before a magistrate within 24 hours** (ss.57–58).
6. To a **medical examination** (s.53).
7. To a **decent search**, with a woman searched by a woman.
8. To **free legal aid**.
9. To **compensation** for illegal detention (*Rudul Sah*, 1983; *Nilabati Behera*, 1993).

5. Preventive powers of police (ss. 168–172)

Police must try to **prevent** cognizable offences. They may **arrest to prevent** one if there is no other way, but cannot detain for more than 24 hours (s.170). They may prevent injury to public property (s.171). Under the new s.172, they may **detain or remove persons who resist lawful directions**.

6. Search and seizure (ss. 49, 96–110, 185–186)

- Courts issue **search warrants** (ss.96–99).
- A search must be made in the presence of **two independent local witnesses**, and a list of seized items prepared.
- The BNSS requires **audio-video recording** of search and seizure (s.105).
- During investigation, an officer may search **without a warrant** if delay would defeat the purpose. They must **record reasons** and send copies to the magistrate within 48 hours (s.185).
- s.107 allows **attachment of proceeds of crime**.
- Evidence from an illegal search is **not automatically inadmissible** but is weighed with caution (*Radha Kishan v. State of U.P.*, 1963).

7. Confessions and statements before a magistrate (s.183)

A Judicial Magistrate may record a confession or statement during investigation. The safeguards are:

- the magistrate must **warn** the accused that they are not bound to confess and that the confession may be used against them;
- the magistrate must be satisfied it is **voluntary**;
- the accused is given time for reflection;
- if the accused refuses, they must not be sent back to police custody.

The statement may be recorded by audio-video. A woman victim’s statement is recorded by a **woman magistrate** where possible.

8. Remand (s.187)

If investigation cannot be completed in 24 hours, the accused is produced before a magistrate, who may authorise detention.

- **Police custody** is up to 15 days, which may now be taken **in parts during the first 40 or 60 days**. This changes *CBI v. Anupam Kulkarni* (1992), which allowed police custody only in the first 15 days.
- **Total detention** cannot exceed **90 days** (offences punishable with death, life or 10 years or more) or **60 days** (other offences).
- If the chargesheet is not filed in time, the accused gets **default bail** as of right (*Sanjay Dutt*, 1994; *M. Ravindran*, 2021).

9. Police diary and police report (ss. 192–193)

Case diary (s.192): the investigating officer keeps a **day-by-day diary**. The court may use it to aid the trial, but it is **not evidence**. The accused cannot demand it, except when the police officer uses it to refresh memory (*Shamshul Kanwar*, 1995).

Police report (s.193): after investigation, a **chargesheet or closure report** is sent to the magistrate.

- Investigation in rape cases must be finished in 2 months.
- The victim must be told of progress within 90 days.
- **Further investigation** is allowed, but if done during trial, it needs the court's permission and must be completed in 90 days.
- On a closure report, the informant must be **heard** (*Bhagwant Singh*, 1985).

10. Inquest (ss. 194–196)

In cases of suicide, homicide, accidental or suspicious death, police hold an **inquest** in the presence of two respectable persons and report the **apparent cause of death** within 24 hours. A **post-mortem is compulsory** for deaths of women within 7 years of marriage.

A **magistrate's inquiry** is compulsory for deaths or disappearances in **police custody** (s.196).

An inquest only finds the apparent cause of death, not who is guilty (*Pedda Narayana*, 1975).

MODULE 4: BAIL, SECURITY AND MAINTENANCE

1. Bail (ss. 478–496)

Bail protects the **presumption of innocence** and personal liberty under Art. 21. Justice Krishna Iyer put it as "**bail is the rule, jail the exception**" (*State of Rajasthan v. Balchand*, 1977).

(a) Bailable offences (s.478). Bail is a **right**, and police or the court *must* release the accused. If the accused cannot furnish bail within a week, they are presumed **indigent** and released on a personal bond.

(b) Maximum detention of undertrials (s.479). An undertrial who has spent **half** the maximum sentence in custody must be released. A **first-time offender** is released after **one-third**. This does not apply to offences punishable with death or life.

(c) Non-bailable offences (s.480). Bail is **discretionary**. A magistrate should not grant bail where there are reasonable grounds to believe the person committed an offence punishable with death or life, **except** for a woman, a child, or a sick or infirm person. Conditions may be imposed.

(d) Anticipatory bail (s.482). A person who **fears arrest** for a non-bailable offence may apply to the **High Court or Sessions Court** for a direction that they be released on bail if arrested.

- *Gurbaksh Singh Sibbia* (1980) gave courts wide discretion.
- *Sushila Aggarwal* (2020) held anticipatory bail is ordinarily **not time-limited**.
- It is not available for rape or gang rape of minors.

(e) Special powers of the High Court and Sessions Court (s.483). These courts can grant bail in any case and **cancel bail** if the accused misuses liberty, tampers with evidence or threatens witnesses.

Factors courts consider:

- nature and gravity of the offence;
- severity of punishment;
- strength of evidence;
- chance of absconding;
- chance of tampering with evidence;
- criminal record.

***Satender Kumar Antil v. CBI* (2022)** laid down bail guidelines.

2. Security for keeping peace and good behaviour (ss. 125–143)

These are **preventive** provisions. They stop a crime before it happens; they do not punish.

- **After conviction** for breach of peace offences, the court may take a bond for **up to 3 years** (s.125).
- An **Executive Magistrate** may require a person likely to commit a breach of peace to give a bond for **up to 1 year** (s.126).
- Good behaviour bonds may be taken from:
    - persons spreading certain harmful matters (s.127);
    - **suspected persons** hiding to commit offences (s.128);
    - **habitual offenders**, for up to **3 years** (s.129).

Procedure: a written show-cause order setting out the information; an inquiry; then a bond or discharge. Failing to give security leads to imprisonment.

These powers must be used strictly, because they restrict liberty without a crime having been committed (*Madhu Limaye*, 1970).

3. Public order: unlawful assemblies (ss. 148–151)

An Executive Magistrate or police officer may order an **unlawful assembly to disperse**. If it does not, **civil force** may be used. If necessary, the **armed forces** may be used, causing as little injury as possible. Officers acting in good faith are **protected from prosecution** without Government sanction.

4. Public nuisance (ss. 152–163)

Under s.152, a magistrate may pass a **conditional order** to remove a public nuisance, such as:

- an obstruction on a public road;
- an unhealthy trade;
- a dangerous building;
- an unfenced well;
- a dangerous animal.

The person must comply or show cause. The court in *Municipal Council, Ratlam v. Vardichan* (1980) held that a municipality cannot plead lack of funds.

Section 163 (old s.144) allows the magistrate to pass **urgent orders** to prevent danger, riot or disturbance of public peace. The order lasts **2 months** and can be extended by the State to **6 months**.

- *Madhu Limaye* (1970) upheld the power as constitutional.
- *Anuradha Bhasin* (2020) held it must be **proportionate**, reasoned and not used to suppress legitimate expression.

5. Disputes about immovable property (ss. 164–167)

When a land or water dispute is likely to cause a **breach of peace**, the Executive Magistrate decides **who is in actual possession**, not who owns it. A person wrongfully dispossessed within **2 months** is treated as being in possession.

The property can be **attached** in an emergency (s.165). Disputes about **right of use** (such as a right of way) are covered in s.166. **Title is left to the civil court.**

6. Maintenance of wives, children and parents (ss. 144–147)

This is a **quick, secular remedy** to prevent **destitution and vagrancy**. It applies to every religion.

Who can claim (s.144): a person who has **sufficient means** must maintain:

- their **wife**, including a **divorced wife who has not remarried**, if she is unable to maintain herself;
- **minor children**, legitimate or illegitimate;
- **major children** who are unable to maintain themselves because of physical or mental abnormality;
- their **father and mother**.

Amount and procedure:

- The magistrate fixes a monthly allowance. There is **no upper limit**.
- **Interim maintenance** can be granted, and the application should be decided in 60 days.
- A wife loses the right if she lives in **adultery**, refuses to live with her husband **without sufficient reason**, or they live apart by **mutual consent**. A husband marrying again or keeping a mistress is sufficient reason for her to live separately.
- **Alteration** is allowed if circumstances change (s.146).
- **Enforcement** (s.147) is by a warrant to recover the money as a fine, and imprisonment of up to **1 month for each month unpaid**. The claim must be made **within 1 year** of the amount falling due.

Key cases:

- ***Shah Bano* (1985)**: s.125 CrPC applies to Muslim women.
- ***Danial Latifi* (2001)**: upheld the Muslim Women (Protection of Rights on Divorce) Act, 1986. The husband must make a **reasonable and fair provision for her whole future**, paid within the iddat period.
- ***Mohd. Abdul Samad v. State of Telangana* (2024)**: a divorced Muslim woman can **also** claim under s.125 CrPC (now s.144 BNSS).
- ***Rajnesh v. Neha* (2020)**: guidelines. Affidavits of assets are required, and maintenance runs from the date of application.
- ***Chaturbhuj v. Sita Bai* (2008)**: the object of the provision is to prevent vagrancy.
- ***Badshah v. Urmila Badshah Godse* (2014)**: a second wife who did not know of the first marriage was granted maintenance.

The 1986 Act in brief:

- A divorced Muslim woman gets a reasonable provision and maintenance within iddat, her **mahr**, and her property.
- After iddat, if she cannot maintain herself, her **relatives** who would inherit from her pay, and failing them the **State Wakf Board**.

MODULE 5: CHARGE, TRIAL AND RELATED PROCEDURES

1. Fair trial

A fair trial is the heart of criminal justice under Art. 21. Its elements are:

- **Presumption of innocence**, with proof beyond reasonable doubt (*Woolmington v. DPP*, 1935, the "golden thread"; *Kali Ram v. State of H.P.*, 1973).
- **Right to silence**: the accused cannot be compelled to testify, and no adverse comment may be made on silence (Art. 20(3); s.351; s.353).
- **Speedy trial** (*Hussainara Khatoon*; *P. Ramachandra Rao*, 2002).
- An **impartial judge**, an **open court**, a **lawyer** and **legal aid**.
- Evidence taken **in the presence of the accused**.
- The **right to cross-examine**.
- Supply of documents.
- Protection from **double jeopardy**.

Zahira Habibullah Sheikh (2004) explained that a fair trial is fair to the accused, the victim and society.

2. Limitation for taking cognizance (ss. 513–519)

To prevent stale prosecutions, cognizance is barred after:

- **6 months** for offences punishable with fine only;
- **1 year** for offences punishable with up to 1 year;
- **3 years** for offences punishable with 1 to 3 years.

There is **no limitation** for more serious offences.

- Time runs from the date of the offence or the date of knowledge (s.515).
- Certain periods are excluded (s.516).
- A **continuing offence** starts a fresh period every moment (s.518).
- The court may **condone delay** in the interest of justice (s.519).

In *Sarah Mathew* (2014), the Supreme Court held the relevant date is the date of **filing the complaint**, not the date of cognizance.

3. Charge (ss. 234–247)

A **charge** is the written accusation that tells the accused exactly what offence they must answer. Its purpose is **notice**, so that the accused can prepare a defence.

Contents (ss. 234–235): the offence, its name or definition, the section, and the particulars of **time, place, person or thing**. In criminal breach of trust, the gross sum over a period of up to one year may be stated.

Errors and changes:

- An error in the charge is **not fatal** unless the accused was **misled** and there was a **failure of justice** (s.238; *Willie Slaney v. State of M.P.*, 1956).
- The court may **alter or add to the charge** at any time before judgment, and witnesses may be recalled (ss.239–240).

Joinder of charges. The **basic rule** is that every distinct offence needs a **separate charge and a separate trial** (s.241). The exceptions are:

1. Offences of the **same kind within 12 months**, **up to five** of them under the BNSS (s.242).
2. Offences committed in the **same transaction** (s.243). The test is proximity of time, unity of place, unity of purpose, and continuity of action (*State of A.P. v. Cheemalapati Ganeswara Rao*, 1963).
3. **Doubt** about which offence the facts constitute: alternative charges may be framed (s.244).
4. Conviction for a **minor offence** included in the offence charged (s.245).
5. **Joint trial** of several accused involved in the same transaction (s.246).

4. Trial before a Court of Session (ss. 248–260)

The stages are:

1. The **Public Prosecutor opens** the case (ss.248–249).
2. **Discharge**: the accused may apply within 60 days. If there is no sufficient ground, the accused is discharged (s.250). At this stage the test is a **prima facie case / grave suspicion**, not proof (*Union of India v. Prafulla Kumar Samal*, 1979).
3. **Framing of charge** within 60 days of the first hearing (s.251).
4. The accused **pleads**. If they plead guilty, the court may convict (s.252).
5. **Prosecution evidence**: examination-in-chief, cross-examination and re-examination, possibly by video (s.254).
6. **Examination of the accused** under s.351 to explain the circumstances against them.
7. **Acquittal** if there is no evidence against the accused (s.255).
8. **Defence evidence** (s.256).
9. **Arguments** (s.257).
10. **Judgment** within 30 days of arguments, extendable to 45. If the accused is convicted, there is a **separate hearing on sentence** (s.258; *Santa Singh v. State of Punjab*, 1976).

5. Warrant case trials by magistrates (ss. 261–273)

On a police report:

1. Copies of documents are supplied.
2. Discharge if the charge is groundless (s.262).
3. Charge framed within 60 days (s.263).
4. Plea.
5. Prosecution evidence.
6. Defence evidence.

Otherwise than on a police report (complaint cases): the magistrate first takes **pre-charge evidence** (s.267), then discharges or frames the charge, and then the prosecution witnesses are recalled for cross-examination.

Conclusion: acquittal or conviction with a hearing on sentence (s.271). If the complainant is absent, discharge is possible in certain cases (s.272). For a **false accusation**, the court may order compensation (s.273).

6. Summons case trials (ss. 274–282)

- **No formal charge** is framed. The particulars of the offence are simply explained to the accused.
- The procedure is simpler and quicker.
- If the complainant is absent, the accused may be **acquitted** (s.279).
- The complainant may **withdraw** the complaint (s.280).
- The magistrate may **convert** a summons case into a warrant case (s.282).

7. Summary trials (ss. 283–288)

These are for **petty offences**, such as:

- offences punishable with up to 2 years;
- **theft of property worth up to ₹20,000**;
- house trespass;
- insult;
- criminal intimidation.

Under the BNSS, offences punishable with up to 3 years can also be tried summarily after hearing the accused. The procedure is that of summons cases. **Maximum sentence: 3 months.** Only a brief record and brief reasons are kept.

8. Evidence in inquiries and trials and commissions (ss. 307–336)

- Evidence is taken **in the presence of the accused or their lawyer**, now also by **video link** (s.308).
- A child victim of rape must not be confronted by the accused, though cross-examination is still ensured.
- Witnesses who are far away or important dignitaries can be examined on **commission** (ss.319–326).
- Reports of **Government scientific experts** can be used without calling them (s.329).
- Documents whose genuineness is **not disputed** need no formal proof; objection must be raised within 30 days (s.330).
- Under the new s.336, if a public servant, expert or investigating officer is transferred, retires or dies, their **successor** can depose.

9. Plea bargaining (ss. 289–300)

Plea bargaining means the accused **pleads guilty in return for a lighter sentence**. It was introduced in 2005.

- **Applies to** offences punishable with **up to 7 years**.

- **Does not apply** to offences against **women** or **children under 14**, or socio-economic offences.
- The accused must apply **within 30 days of the charge**. The court checks in private that it is **voluntary**.
- The parties work out a **mutually satisfactory disposition**, often with compensation to the victim.

Sentence:

- **half the minimum** sentence if a minimum is prescribed, otherwise **one-fourth** of the maximum;
- for **first-time offenders**, **one-fourth** of the minimum or **one-sixth** of the maximum.

The judgment is **final**, with no appeal except by writ or SLP. Statements made in a plea bargaining application cannot be used for any other purpose. Before 2005, the practice was held illegal (*State of U.P. v. Chandrika*, 2000).

10. Double jeopardy: autrefois acquit and autrefois convict (s.337 and Art. 20(2))

A person **tried and convicted or acquitted** by a competent court **cannot be tried again for the same offence**, or on the same facts for another offence that could have been charged.

Exceptions:

- a **distinct offence**, with State consent;
- **new consequences** that appear later, for example the victim of an assault dies afterwards;
- the first court was **not competent**.

A **discharge is not an acquittal**.

Article 20(2) protects only against **prosecution and punishment** twice. Section 337 is wider and covers acquittal too.

Cases:

- *Maqbool Hussain* (1953): customs proceedings are not “prosecution”.
- *Thomas Dana* (1959): “same offence” means identical ingredients.
- *Kolla Veera Raghav Rao* (2011): a conviction under NI Act s.138 barred a later trial for cheating on the same facts.

11. Compounding and withdrawal (ss. 359, 360)

Compounding (s.359): the victim compromises with the accused.

- **Table 1** offences can be compounded **without the court’s permission**.
- **Table 2** offences need the **court’s permission**.
- Compounding has the effect of an **acquittal**.

Even **non-compoundable** offences can be **quashed by the High Court** on settlement in private disputes, but not in heinous offences (*Gian Singh*, 2012; *Narinder Singh*, 2014).

Withdrawal from prosecution (s.360): the PP may withdraw **with the court's consent** before judgment.

- Before the charge is framed, the effect is **discharge**. After, it is **acquittal**.
- The **victim must now be heard**.
- The PP must act **independently and in good faith**, not as a mouthpiece of the Government. The court checks that the withdrawal is in the public interest (*Sheonandan Paswan*, 1987; *State of Kerala v. K. Ajith*, 2021).

12. Irregular proceedings (ss. 506–512, 525–527)

The principle is that **procedural mistakes do not cancel proceedings unless they cause a failure of justice**.

- s.506 lists irregularities that **do not vitiate** proceedings, such as taking cognizance or issuing a search warrant by a magistrate not empowered, done in good faith.
- s.507 lists those that **do vitiate**, such as trying an offender, passing a sentence or deciding an appeal without power.
- Trial in the **wrong place** (s.508), an **error in the charge** (s.510) or an **error in sanction** (s.511) is not fatal unless justice failed.
- A judge must **not try a case in which they are personally interested** (s.525).

13. Inherent powers of the High Court (s.528, CrPC 482)

The High Court has **inherent powers** to:

- give effect to orders under the BNSS;
- **prevent abuse of the process of court**;
- **secure the ends of justice**.

These powers are used **sparingly**, mainly to **quash FIRs or proceedings**.

***State of Haryana v. Bhajan Lal* (1992)** lists seven categories where quashing is proper:

1. the allegations do not make out an offence;
2. no cognizable offence is disclosed;
3. the uncontroverted allegations disclose no offence;
4. only a non-cognizable offence is disclosed;
5. the allegations are absurd;
6. there is a legal bar to the proceedings;
7. the proceedings are **mala fide**.

Other cases: *R.P. Kapur* (1960) and *Neeharika Infrastructure* (2021), which held the High Court should not pass blanket "no coercive steps" orders.

MODULE 6: JUDGMENT, PROBATION, APPEALS, REVISION, EXECUTION

1. Judgment (ss. 392–406)

- A judgment is pronounced in **open court** and uploaded online within 7 days.
- It must state the **points for determination, the decision and the reasons** (s.393).
- **Special reasons** must be given for awarding **death** instead of life imprisonment.
- The court may order **compensation** to the victim (s.395; *Ankush Shivaji Gaikwad*, 2013, which said courts must consider compensation in every case).
- A **Victim Compensation Scheme** exists (s.396), and a new **Witness Protection Scheme** (s.398).
- Once signed, a judgment **cannot be altered** except to correct clerical or arithmetical errors (s.403).

2. Confirmation of death sentence (ss. 407–412)

A Sessions Court's death sentence **cannot be executed unless confirmed by the High Court**. The High Court may:

- take further evidence;
- confirm the sentence;
- reduce it;
- order a retrial;
- acquit.

A bench of **two judges** must sign the confirmation.

Death is given only in the "**rarest of rare**" cases (*Bachan Singh*, 1980), after weighing aggravating and mitigating circumstances (*Machhi Singh*, 1983). *Manoj v. State of M.P.* (2022) requires a mitigation investigation.

3. Probation and parole

Probation is a **reformative**, non-institutional treatment: the offender is released under supervision instead of being sent to prison. This avoids mixing first offenders with hardened criminals.

Probation of Offenders Act, 1958:

- **s.3**: release after **admonition** for minor offences (punishable with up to 2 years) by first offenders.
- **s.4**: release on **probation of good conduct** on a bond of up to 3 years, for offences not punishable with death or life.
- **s.5**: compensation to the victim.
- **s.6**: offenders **under 21** should not be imprisoned unless the court gives reasons.
- **s.12**: conviction carries **no disqualification**.

- **ss.13–14**: **Probation officers** inquire into the offender's background, report to the court, supervise the probationer, and help with rehabilitation and employment.

The **judiciary** has applied the Act liberally:

- *Rattan Lal v. State of Punjab* (1965): applied it retrospectively as a beneficial law.
- *Ishar Das v. State of Punjab* (1972): applied to a young offender.
- But where a statute fixes a **mandatory minimum**, probation is not possible (*State of M.P. v. Vikram Das*, 2019).

Parole is the **temporary or early release of a convict** who is already serving a sentence. It is granted by the **executive** under prison rules, for reasons such as family needs or good conduct. **Furlough** is a periodic release as an incentive for good conduct (*Asfaq v. State of Rajasthan*, 2017).

Probation	Parole
Given **instead of** prison	Given **after** serving part of the sentence
By the **court**	By the **executive**
Under the Probation of Offenders Act / s.401 BNSS	Under prison rules
Judicial function	Administrative function

4. Appeals (ss. 413–435)

- **No appeal lies unless the law provides one** (s.413). However, the **victim** can appeal against an acquittal, a conviction for a lesser offence, or inadequate compensation (*Mallikarjun Kodagali*, 2018).
- **Appeals against conviction** go:
  - from a Magistrate to the Sessions Court;
  - from a Sessions Court, or a Magistrate's sentence of more than 7 years, to the High Court;
  - from the High Court's original jurisdiction to the Supreme Court.
- There is **no appeal** if the accused **pleaded guilty** (except on the sentence), or in **petty cases** with very small sentences or fines.
- The State may appeal against an **inadequate sentence** (s.418).
- An appeal against **acquittal** needs the **High Court's leave** (s.419). A complainant needs **special leave** within 6 months (public servant) or 60 days (others).
- An acquittal strengthens the presumption of innocence, so it is reversed only if **perverse** (*Chandrappa v. State of Karnataka*, 2007).
- The appellate court may **suspend the sentence and grant bail** pending appeal (s.430).

5. Reference and revision (ss. 436–445)

Reference (s.436): when a subordinate court doubts the **validity of a law** on which the case depends, it must **refer** the question to the High Court.

Revision (ss. 438, 442): the High Court or Sessions Judge can **call for the record** to check the **correctness, legality or propriety** of an order.

- There is no revision against **interlocutory orders** (*Madhu Limaye v. State of Maharashtra*, 1977, explained intermediate orders).
- A party cannot file a **second revision** after one court has decided.
- A revision court **cannot convert an acquittal into a conviction**; it can only order a retrial.
- A revision is **not allowed where an appeal lay** but was not filed.

Appeal	Revision
A **right** given by statute	A **discretion** of the court
Covers both facts and law	Covers legality and propriety only
Can reverse an acquittal	Cannot convert an acquittal into a conviction

6. Transfer of cases (ss. 446–452)

- The **Supreme Court** can transfer cases **between States** for the ends of justice (s.446). In the Best Bakery case, the trial was moved from Gujarat to Maharashtra. The apprehension of an unfair trial must be **reasonable**, not imaginary (*Maneka Sanjay Gandhi v. Rani Jethmalani*, 1979).
- The **High Court** can transfer within the State if a fair trial is not possible, a difficult question of law arises, or for the convenience of parties and witnesses (s.447).
- The **Sessions Judge** can transfer within the sessions division (s.448).

7. Execution, suspension, remission and commutation (ss. 453–477)

- Sentences are executed by **warrants**.
- A **pregnant woman's** death sentence **must be commuted** to life imprisonment (s.455).
- Detention during investigation and trial is **set off** against the sentence (s.468).
- A new **mercy petition** procedure applies to death row convicts (s.472).
- The Government may **suspend or remit** a sentence (s.473) and **commute** it (s.474): death to another punishment, life imprisonment to not less than 7 years, and so on.
- A person serving life for an offence punishable with death **cannot be released before 14 years** (s.475).
- In certain cases the State must act with the Centre's **concurrence** (s.477; *Union of India v. V. Sriharan*, 2016).

These powers are separate from the **constitutional pardon powers** of the President (Art. 72) and Governor (Art. 161), which are subject to limited judicial review (*Epuru Sudhakar*, 2006). Unexplained **delay in deciding a mercy petition** can justify commutation (*Shatrughan Chauhan*, 2014).

8. Tender of pardon (ss. 343–345)

To obtain evidence against the main offenders, a magistrate may **pardon an accomplice** on condition of a **full and true disclosure**. This applies to Sessions-triable offences or offences punishable with 7 years or more.

- The pardoned person becomes an **approver** and is examined as a witness.
- The approver is kept in custody until the trial ends.
- After commitment, the trial court may also tender a pardon (s.344).
- If the approver **breaks the condition**, they can be tried for the offence (s.345).

The approver's evidence needs **corroboration** (*Suresh Chandra Bahri*, 1995).

9. Accused persons of unsound mind (ss. 367–378)

If the accused appears to be of unsound mind and **incapable of making a defence**:

- the court gets a medical opinion;
- **postpones** the inquiry or trial;
- may **release them on security** or send them to a care facility.

The trial resumes when they recover.

If the accused was of unsound mind **at the time of the act** (BNS s.22), they are **acquitted**, but the court must record whether they did the act. They are then kept in **safe custody** or handed to a relative (ss.373–374).

The accused must prove insanity on a **preponderance of probabilities** (*Dahyabhai*, 1964).

MODULE 7: JUVENILE JUSTICE

(The syllabus title mentions the 1986 Act, but the content covers the JJ (Care and Protection of Children) Act, 2015.)

1. Concept and history

Juvenile justice is based on the idea that **children are not small adults**. Their offences come from immaturity and circumstances, so the law aims at **reformation, rehabilitation and the best interests of the child**, not punishment. This rests on the doctrine of ***parens patriae***: the State acts as guardian of the child.

History:

- Apprentices Act, 1850.
- Reformatory Schools Act, 1897.
- Provincial Children Acts (Madras 1920, Bengal 1922, Bombay 1924).
- Children Act, 1960.
- *Sheela Barse v. UOI* (1986) led to the first uniform law, the **JJ Act, 1986** (juvenile age: 16 for boys, 18 for girls).

- India ratified the **UN Convention on the Rights of the Child** in 1992.
- **JJ Act, 2000**: the age was made 18 for all.
- After the **Nirbhaya case (2012)**, the **JJ Act, 2015** allowed **16–18 year-olds accused of heinous offences** to be tried as adults after an assessment.
- **2021 amendment**: gave a bigger role to **District Magistrates**.

International standards: the UNCRC, the **Beijing Rules** (1985), the **Riyadh Guidelines** and the **Havana Rules** (1990).

BNS provisions:

- **s.20**: a child **under 7** cannot commit any offence. This is complete immunity.
- **s.21**: a child **aged 7 to 12** is not liable if they lack the **maturity to understand** the nature and consequences of the act. This is partial immunity.

2. Child in conflict with law vs child in need of care and protection

- A **child in conflict with law (CCL)** is a child under 18 **alleged or found to have committed an offence**.
- A **child in need of care and protection (CNCP)** is a child who is a **victim of circumstances**. Examples:
  - homeless, begging or working illegally;
  - abused or neglected;
  - orphaned, abandoned or surrendered;
  - missing or runaway;
  - trafficked or at risk of child marriage;
  - affected by disaster or conflict;
  - with parents unfit to care for them.

CCL	CNCP
Handled by the **Juvenile Justice Board**	Handled by the **Child Welfare Committee**
Placed in observation or special homes	Placed in children's homes, foster care or adoption
Focus: reformation	Focus: care and protection

3. Juvenile Justice Board and Children's Court

The **JJB** consists of a **Principal Magistrate** (a JMFC) and **two social workers**, one of whom must be a woman.

Key rules:

- A child is **never placed in a police lock-up or jail**, and is produced before the JJB within 24 hours.
- **Bail is the norm** (s.12). It is refused only if release would expose the child to danger or criminals, or defeat the ends of justice.
- The inquiry must finish in **4 months**.

Offences are classed as:

- **petty**: punishable with up to 3 years;
- **serious**: 3 to 7 years;
- **heinous**: a **minimum of 7 years** or more.

Shilpa Mittal (2020) held that an offence with no minimum sentence is "serious", not "heinous".

For a heinous offence by a 16–18 year-old, the JJB makes a **preliminary assessment** within 3 months of the child's mental and physical capacity and understanding. It may then send the case to the **Children's Court** (a Sessions Court) for trial as an adult (s.15).

Orders the JJB can make: admonition, counselling, community service, fine, probation, or placement in a **special home** for up to **3 years**.

No child gets a death sentence or life imprisonment without release.

Cases:

- *Pratap Singh v. State of Jharkhand* (2005): age is determined on the **date of the offence**.
- *Salil Bali* (2013) and *Subramanian Swamy v. Raju* (2014): upheld the scheme.
- *Jitendra Singh* (2013): a claim of juvenility can be raised **at any stage**.

4. Child Welfare Committee, SJPU and Childline

Child Welfare Committee (CWC):

- A **chairperson and four members**, including a woman and a child expert, in every district.
- It has the powers of a magistrate.
- **Functions:**
  - receive children produced before it, within 24 hours;
  - inquire into their situation and order social investigation reports;
  - decide placement (restoring the child to family, children's home, fit person, foster care);
  - declare children **legally free for adoption**;
  - inspect institutions;
  - ensure rehabilitation.
- The inquiry should be completed in 4 months.

Special Juvenile Police Unit (SJPU): each police station has a **Child Welfare Police Officer**. Each district has an SJPU led by a DSP-rank officer with two social workers. They handle children sensitively: in plain clothes, with no handcuffs and no lock-up.

Childline (1098): a 24-hour emergency helpline that rescues children in distress and brings them before the CWC. It is now linked with the 112 emergency system under Mission Vatsalya.

Rehabilitation is done through family-based care where possible:

- **adoption**;
- **foster care** (s.44);
- **sponsorship** (financial support to the family, s.45);
- **after-care** for young people leaving institutions at 18, until age 21 (s.46).

5. Institutions

Institution	For whom
Observation Home (s.47)	CCL, temporarily, during the inquiry
Special Home (s.48)	CCL found to have committed an offence, for rehabilitation
Place of Safety (s.49)	Children aged 16–18 accused or convicted of heinous offences, and persons over 18
Children's Home (s.50)	CNCP, for long-term care, education and training
Open Shelter (s.43)	Short-term support
Fit Facility (s.51)	A recognised organisation that temporarily takes responsibility for a child
Fit Person (s.52)	A recognised person who temporarily takes responsibility for a child

- **Registration** of all child care institutions is compulsory.
- Standards of food, health, education and recreation are fixed by rules.
- **Inspection committees** visit regularly, and there are **social audits**.
- The **NCPCR / SCPCR** monitor implementation.
- *Sampurna Behrua v. UOI* (2018) pushed for proper implementation.

6. Adoption under the JJ Act; CARA; inter-country adoption

The JJ Act provides a **secular adoption law** for orphaned, abandoned and surrendered children. Any person of any religion can adopt (*Shabnam Hashmi v. UOI*, 2014), unlike the Hindu Adoptions and Maintenance Act, which applies only to Hindus.

Steps:

1. The CWC declares the child **legally free for adoption**. Surrendering parents get **60 days** to reconsider.
2. Prospective adoptive parents register on **CARINGS** (the online portal).
3. A **home study** is done.
4. The child is matched and placed in pre-adoption foster care.
5. The **District Magistrate passes the adoption order** (since 2021; earlier this was the court).

Eligibility of adoptive parents:

- physically, mentally and financially fit;
- a couple needs both spouses' consent and **2 years of a stable marriage**;
- a **single woman** may adopt a child of any gender;
- a **single man cannot adopt a girl**;
- the age gap between child and parent must be at least **25 years**.

Effect (s.63): the child becomes the adoptive parents' child **for all purposes, including inheritance**. Ties with the birth family end. Adopting outside this procedure is punishable (s.80).

CARA (Central Adoption Resource Authority, s.68): a statutory body under the Ministry of Women and Child Development. It:

- is India's **Central Authority under the Hague Convention, 1993**;
- **frames adoption regulations** (the Adoption Regulations, 2022);
- promotes in-country adoption;
- regulates inter-country adoption and issues the **NOC** for it;
- supervises the State and specialised adoption agencies;
- runs CARINGS.

Inter-country adoption (s.59):

- Allowed only if no Indian family adopts the child within **60 days**.
- **Preference order:** NRIs, then OCIs, then foreigners.
- Applications come through an **Authorised Foreign Adoption Agency**.
- CARA issues the NOC and the DM passes the order.
- There is **post-adoption follow-up for 2 years**.

Lakshmi Kant Pandey v. UOI **(1984)** laid down the original safeguards against trafficking: priority to Indian families, recognised agencies only, home studies, judicial scrutiny, follow-up reports, and no commercial element. The guiding principle throughout is the **best interests of the child**.

LAW OF EVIDENCE (Bharatiya Sakshya Adhiniyam, 2023): Module-wise Explanation

> The BSA came into force on **1 July 2024** and replaced the Indian Evidence Act, 1872 (IEA). It has **170 sections**. Old IEA numbers are given in brackets.

MODULE 1: INTRODUCTION TO LAW OF EVIDENCE

1. What the law of evidence does

Every case, civil or criminal, turns on **facts**. A judge was not present when the events happened, so they decide on the **material placed before them**. The law of evidence answers three questions:

1. **What facts may be proved?** This is **relevancy** (ss. 3–50).
2. **How must they be proved?** This is **proof**: oral, documentary and electronic evidence (ss. 51–103).
3. **Who must prove them, and how are witnesses examined?** This is **burden of proof and production of evidence** (ss. 104–169).

It is an **adjective (procedural) law** and a **lex fori**, meaning the law of the court where the case is heard.

2. Historical background

- **Ancient India**: Hindu law recognised three means of proof: **documents (lekhya), witnesses (sakshi) and possession (bhukti)**, along with **ordeals** (divine tests).
- **Muslim period**: oral testimony and the oath were central.
- **British period**: the presidency towns followed English law, while the mofussil areas had confusing, non-uniform rules. Several attempts were made to codify.
- **1872**: **Sir James Fitzjames Stephen** drafted the **Indian Evidence Act, 1872**, a clear and logical code that worked well for over 150 years.
- **2023**: the **BSA** replaced it. The structure and most of the language were kept. The main changes were updating the law for the **digital age** and removing colonial expressions.

Objectives: to prevent courts being misled by irrelevant matter, to bring certainty and uniformity, and to ensure fair and speedy trials.

Scope (s.1):

- Applies to **all judicial proceedings in or before any court**, including **courts-martial**, both civil and criminal.
- **Does not apply** to **affidavits** or to **arbitration** proceedings.

3. Structure and key provisions of the BSA

Part	Sections	Content
I: Relevancy	1–50	Preliminary; res gestae; admissions; confessions; statements of persons who cannot be called as witnesses; judgments; expert opinion; character
II: Proof	51–103	Facts that need no proof; oral evidence; documentary and electronic evidence; exclusion of oral by documentary evidence
III: Production and effect	104–169	Burden of proof; estoppel; witnesses; examination of witnesses; improper admission
IV	170	Repeal and savings

Main changes from the IEA:

- A “document” now **includes electronic and digital records** (emails, server logs, smartphones, SMS, websites, cloud data, voicemails, location data).
- “Evidence” includes statements given **electronically**.
- Electronic records can be **primary evidence**.
- **Secondary evidence** is widened to include oral and written admissions, and evidence of a person skilled in examining documents.
- A new **certificate format** for electronic evidence (s.63, in two parts).
- Sections are merged: IEA ss.24, 28, 29 became s.22; ss.25, 26, 27 became s.23.
- A **joint trial** now includes a trial **in absentia**.
- Colonial expressions are removed.

4. Basic definitions (s.2)

Fact (s.2(1)(f)):

- i. anything, state of things or relation of things that can be **perceived by the senses** (a physical fact); and
- ii. any **mental condition** a person is conscious of, such as intention, knowledge, good faith or opinion (a psychological fact).

Fact in issue (s.2(1)(g)): a fact from which the existence or non-existence of a **right, liability or disability** asserted or denied in the case **necessarily follows**.

- In a **criminal** case, the facts in issue are the **ingredients of the offence**. In a murder case, for example: did A cause B’s death, did A intend it, and was there grave and sudden provocation?

- In a **civil** case, they are the **issues framed** from the pleadings.

Relevant fact (s.2(1)(k)): a fact connected with another in any of the ways described in ss.3–50. “Relevant” means **legally relevant**, not just logically connected.

The fact in issue is the **main fact to be proved** (*factum probandum*). Relevant facts are the **evidentiary facts** that help prove it (*factum probans*).

5. Kinds of evidence

Evidence (s.2(1)(e)) covers:

- i. **oral evidence**: statements by witnesses, including those given electronically; and
- ii. **documentary evidence**: documents, including electronic records.

Kind	Meaning
Oral	What a witness says in court. It must be **direct** (s.55).
Documentary	Documents produced for the court’s inspection, including electronic records.
Real / material	Physical objects, such as a knife, clothes or fingerprints. The court can ask for them to be produced (s.55 proviso).
Primary	The original document itself (s.57).
Secondary	Copies and accounts of the document, allowed only in specified situations (s.58).
Direct	Evidence of a witness who personally **saw, heard or perceived** the fact.
Circumstantial	Evidence of other facts from which the fact in issue is **inferred**.
Hearsay	What a witness heard from someone else. It is generally **excluded**.

Circumstantial evidence can be enough to convict, but the chain must be complete. ***Sharad Birdhichand Sarda v. State of Maharashtra*** **(1984)** laid down **five golden principles**:

1. the circumstances must be **fully proved**;
2. they must be **consistent only with guilt**;
3. they must be **conclusive** in nature;
4. they must **exclude every other hypothesis** except guilt;
5. they must form a **complete chain** that leaves no reasonable doubt.

Hearsay is excluded because:

- it is not given on oath;

- it cannot be tested by cross-examination;
- the original speaker's demeanour cannot be seen;
- it can be distorted as it is repeated.

It is admitted only in exceptions such as res gestae, admissions, confessions and dying declarations.

6. Proved, disproved, not proved

- **Proved (s.2(1)(j))**: the court **believes** the fact exists, or thinks its existence so **probable** that a **prudent man** would act on the supposition that it exists.
- **Disproved (s.2(1)(c))**: the same test, applied to the fact's non-existence.
- **Not proved (s.2(1)(i))**: neither proved nor disproved.

The **"prudent man" test** applies to all cases, but the **degree of probability** required differs:

- in civil cases, a **preponderance of probabilities**;
- in criminal cases, **beyond reasonable doubt**.

7. Witness (s.124)

A witness is a person who gives evidence. **Everyone is competent** unless they cannot understand questions or give rational answers because of tender age, extreme old age, or disease of body or mind. (See Module 5.)

8. Presumptions: may presume, shall presume, conclusive proof

A **presumption** is an inference the court draws about a fact from other proved facts.

Type	Meaning	Rebuttable?	Example
May presume (s.2(1)(h))	The court **may** treat the fact as proved unless disproved, **or call for proof**. This is discretionary.	Yes	s.119: a person found with stolen goods soon after a theft may be presumed to be the thief
Shall presume (s.2(1)(l))	The court **must** treat the fact as proved **unless disproved**.	Yes	s.118: dowry death; s.120: absence of consent in rape
Conclusive proof (s.2(1)(b))	On proof of one fact, the other **must** be treated as proved, and **no evidence to the contrary is allowed**.	No	s.116: birth during a valid marriage proves legitimacy; s.35: judgments in rem

Appreciation of evidence: courts **weigh** evidence; they do not count witnesses (s.139). Minor discrepancies do not destroy credibility; what matters is whether the core of the testimony is true (*State of U.P. v. M.K. Anthony*, 1985).

MODULE 2: RELEVANCE AND ADMISSIBILITY

1. Relevance vs admissibility (s.3)

Section 3 says evidence may be given **only of facts in issue and relevant facts, "and of no others"**.

Relevancy	Admissibility
Based on **logic** and connection	Based on **law and policy**
Asks: is the fact connected?	Asks: can it be received in court?
ss. 3–50	Rules of proof and exclusion

A relevant fact may still be inadmissible. For example, a confession to the police is relevant but barred by s.23, and privileged communications are relevant but protected. *Ram Bihari Yadav v. State of Bihar* (1998).

2. Res gestae (ss. 4, 5, 6)

Res gestae means "things done" as part of the **same transaction**.

s.4 (IEA 6): facts that are **so connected with a fact in issue as to form part of the same transaction** are relevant, even if they happened at slightly different times or places. What the accused, the victim or **bystanders said or did** during or **immediately** before or after the incident is admissible, even though it is technically hearsay.

Test: the statement must be **contemporaneous and spontaneous**, leaving **no time to fabricate**.

Cases:

- *R v. Bedingfield* (1879): a woman with her throat cut said "See what Harry has done". It was **rejected** because the act was already over. The decision is widely criticised.
- *Ratten v. R* (1972, Privy Council): the deceased's panicked phone call saying "get me the police" was **admitted**. The test is **spontaneity**.
- *Gentela Vijayavardhan Rao v. State of A.P.* (1996): a statement recorded **hours later** was **not** res gestae.
- *Sukhar v. State of U.P.* (1999): a statement made immediately after a shooting was admitted.

s.5 (IEA 7): facts that are the **occasion, cause or effect** of a fact in issue, or that show the **state of things** or **opportunity** for it. Examples: footprints, wounds, broken locks.

s.6 (IEA 8): motive, preparation and conduct.

- **Motive** explains why a crime was committed.
- **Preparation**, such as buying poison, shows planning.

- **Conduct before or after** the act is relevant if it influenced or was influenced by the fact in issue, for example **absconding**, hiding evidence, or keeping silent when accused.
- **Absconding alone is weak evidence** (*Matru v. State of U.P.*, 1971).

3. Identification: test identification parade (s.7)

Section 7 makes relevant facts that **explain or introduce** a relevant fact, or **establish identity**, time, place or the relationship of parties.

A **Test Identification Parade (TIP)** is held during investigation, usually by a magistrate, so that witnesses can pick out a stranger accused from among similar-looking people.

Value of a TIP:

- The **substantive evidence** is the **identification in court**. The TIP only **corroborates** it.
- A TIP is **not compulsory**, but if one is not held, an in-court identification of a stranger carries less weight.
- It must be held **promptly**, and the accused must **not have been shown** to witnesses beforehand.
- The accused cannot refuse to take part (this does not violate Art. 20(3)).
- TIP statements made before police are hit by s.181 BNSS (*Ramkishan Mithanlal Sharma*, 1955).

Cases: *Kanta Prashad* (1958); *Malkhansingh v. State of M.P.* (2003).

4. Things said or done by conspirators (s.8, IEA 10)

If there is **reasonable ground to believe** that persons conspired, then anything **said, done or written by any one of them in reference to the common intention**, **after the intention was first formed**, is relevant **against all of them**. This is based on the idea that each conspirator is the **agent** of the others.

Limits:

- There must first be **prima facie evidence** of a conspiracy.
- The statement must be made **while the conspiracy was alive**. Statements made **after arrest** or after the conspiracy ended are not covered (*Mirza Akbar v. King Emperor*, 1940).

Other cases: *Badri Rai v. State of Bihar* (1958); *State v. Nalini* (1999); *Navjot Sandhu* (2005).

5. “Otherwise irrelevant” facts (s.9, IEA 11)

Facts that are not otherwise relevant become relevant if they are:

- **inconsistent** with a fact in issue; or

- make it **highly probable or improbable**.

The classic use is the **plea of alibi**: if A was in Kolkata when the murder happened in Delhi, that fact is inconsistent with A being the murderer. The **accused must prove the alibi with certainty** (*Binay Kumar Singh v. State of Bihar*, 1997).

The problem: read literally, s.9 could let in almost anything, including hearsay and remote facts. Courts therefore apply it **narrowly**:

- the inconsistency or probability must be **high**;
- s.9 **cannot override** exclusionary rules such as hearsay or the bar on confessions.

6. Damages and custom (ss. 10, 11)

- **s.10**: in suits for damages, facts that help the court **fix the amount** of damages are relevant.
- **s.11**: when a **right or custom** is in question, the following are relevant:
  - **transactions** by which it was created, recognised or denied;
  - **particular instances** where it was claimed, exercised or disputed.
- A custom must be **ancient, certain, reasonable and continuous**.

7. State of mind and body; accident; course of business (ss. 12–14)

- **s.12 (IEA 14)**: facts showing a **state of mind** (intention, knowledge, good faith, negligence, ill-will) or a **state of body** are relevant when that state is in issue. The state of mind must relate to the **particular matter**. For example, if a person is found with many other stolen articles, this shows **knowledge** that goods were stolen. A previous conviction becomes relevant only where the previous offence itself is relevant.
- **s.13 (IEA 15)**: when the question is whether an act was **accidental or intentional**, a **series of similar occurrences** is relevant. For example, if several insured houses of the accused caught fire, this suggests the fires were not accidents. The same reasoning was used in *Makin v. A-G for New South Wales* (1894), where several babies' bodies were found in a backyard.
- **s.14 (IEA 16)**: the existence of a **course of business** is relevant to show that an act, such as posting a letter, was done.

8. Admissions (ss. 15–21, 25)

Definition (s.15): a statement, **oral, documentary or electronic**, that **suggests an inference** about a fact in issue or relevant fact, made by the persons described in the Act.

Who can make admissions (ss. 16–18):

- a **party** or its **authorised agent**;
- a party suing in a **representative capacity** (such as a trustee);
- persons with a **proprietary or pecuniary interest** in the subject matter;
- **predecessors-in-interest**;

- persons whose **liability must be proved** against a party, such as a debtor whose liability a guarantor has undertaken;
- persons **expressly referred to** by a party for information.

Proof (s.19): admissions may be proved **against** the maker but **not in their favour** (self-serving statements are excluded). The exceptions are statements that would be admissible under s.26 if the maker were dead, statements of **state of mind or body**, and statements relevant otherwise than as admissions.

Other rules:

- **s.20**: oral admissions about the **contents of documents** are not relevant unless secondary evidence is allowed, or the genuineness of the document is in question. The same applies to electronic records.
- **s.21**: admissions made **"without prejudice"** in civil settlement talks are **not relevant**. This encourages compromise.
- **s.25**: admissions are **not conclusive proof**, but they may operate as **estoppels**.

Value:

- An admission is **substantive evidence**, and can be used even if the maker was not confronted with it in the witness box (*Bharat Singh v. Bhagirathi*, 1966).
- **Judicial admissions** (in pleadings or in court) are **binding** (s.53).
- **Extra-judicial admissions** can be explained away.

9. Confessions (ss. 22–24)

"Confession" is **not defined**. It is a type of admission made by an **accused**.

Pakala Narayana Swami v. Emperor (1939): a confession must **admit the offence in terms, or at least substantially all the facts** constituting it. An admission of an incriminating fact, even a very serious one, is not a confession.

Palvinder Kaur v. State of Punjab (1952):

- an **exculpatory** statement is not a confession;
- a confession must be **read as a whole**, not cut into parts the prosecution likes and parts it does not.

Kinds of confession:

- **Judicial**: made before a magistrate under BNSS s.183. It can be the basis of a conviction if voluntary and true.
- **Extra-judicial**: made to private persons. It is **weak evidence**, and its value depends on the trustworthiness of the person who heard it (*Sahadevan v. State of T.N.*, 2012).

s.22: confession caused by inducement, threat, coercion or promise. A confession is **irrelevant** if it was caused by an inducement, threat, coercion or promise that:

- comes from a **person in authority**;

- relates to the **charge**; and
- gave the accused reason to think they would **gain an advantage or avoid an evil**.

If the effect of the inducement has been **fully removed**, the confession becomes relevant. A confession is **not** inadmissible merely because it was made under a promise of secrecy, through a trick, while drunk, or without a warning.

s.23: confession to police.

- **s.23(1)**: **no confession to a police officer** can be proved against the accused. The purpose is to prevent torture.
  - "Police officer" is understood in substance: an officer with police powers counts.
  - *Tofan Singh v. State of T.N.* (2020) held **NDPS officers are police officers**.
  - Customs officers are not (*Barkat Ram*, 1962).
- **s.23(2)**: a confession made **in police custody** to anyone cannot be proved, **unless made in the immediate presence of a magistrate**.
- **Proviso (IEA 27): discovery.** If information from an accused in custody leads to the **discovery of a fact**, then **only that part of the information which distinctly relates to the fact discovered** can be proved.
  - ***Pulukuri Kottaya v. Emperor* (1947)**: the "fact discovered" includes the **place of concealment and the accused's knowledge** of it.
  - So "I will show the knife **hidden under my bed**" is admissible, but "**with which I killed X**" is not.
  - *Deoman Upadhyaya* (1960).

s.24: confession of a co-accused. When persons are **tried jointly for the same offence**, a proved confession by one that affects himself and others **may be taken into consideration** against the others. A trial in absentia counts as a joint trial.

- It is **not substantive evidence**, only **lending assurance** to other evidence.
- *Bhuboni Sahu* (1949): it is the weakest kind of evidence.
- *Kashmira Singh* (1952): first marshal the other evidence, then use the confession.
- *Haricharan Kurmi* (1964).

Retracted confession: a confession later **withdrawn** by the accused, who claims it was forced.

- It is still **admissible**, and a conviction can rest on it if it was **voluntary and true**.
- As a **rule of prudence**, courts look for **corroboration** in material particulars (*Pyare Lal v. State of Rajasthan*, 1963; *Subramania Goundan*, 1958).
- The problem for courts is deciding whether the retraction is genuine or an afterthought.

Admission vs confession:

Admission	Confession
Defined (s.15)	Not defined
Civil and criminal cases	Criminal cases only
Made by a party, agent, predecessor and others	Made by the accused only
Suggests an inference	Directly acknowledges guilt
Not conclusive; may operate as estoppel	If voluntary and true, can be the basis of a conviction
Every confession is an admission	Not every admission is a confession

MODULE 3: STATEMENTS BY PERSONS

1. Statements by persons who cannot be called as witnesses (s.26)

Normally a person must come to court and testify. Section 26 is an **exception to hearsay**. It makes statements relevant when the maker is:

- **dead**;
- **cannot be found**;
- **incapable** of giving evidence; or
- cannot be brought to court **without unreasonable delay or expense**.

It covers eight situations:

- a. a **dying declaration**;
- b. a statement in the **course of business**;
- c. a statement **against the maker's interest**;
- d. an opinion on a **public right or custom**;
- e. a statement about a **relationship**;
- f. a statement in a **family deed or will**;
- g. a statement in a document about a transaction under s.11;
- h. statements of **feelings** of several persons.

2. Dying declaration (s.26(a))

A statement by a person about the **cause of their death** or the **circumstances of the transaction** that resulted in their death, in a case where **the cause of their death is in question**.

Indian law differs from English law:

- the declarant need **not** have been **expecting death**;
- it applies in **civil as well as criminal** cases.

Basis:

- *nemo moriturus praesumitur mentire*: a dying person is presumed not to lie;

- **necessity**: the victim is often the only witness.

Principles:

- ***Khushal Rao v. State of Bombay* (1958)**: a dying declaration can be the **sole basis of conviction** without corroboration if it is true and voluntary. A record made by a magistrate in question-and-answer form is preferred.
- ***Pakala Narayana Swami* (1939)**: "circumstances of the transaction" means circumstances with a **proximate relation** to the death. The deceased's statement that he was going to meet the accused was admitted.
- ***Laxman v. State of Maharashtra* (2002)**: a doctor's **certificate of fitness is not essential**. What matters is that the declarant was mentally fit.
- ***Paniben* (1992)** and ***Atbir* (2010)**: the declaration must not be **tutored** or imagined. If there are multiple declarations, they should be consistent. A declaration with serious infirmities needs corroboration.
- ***Sharad Birdhichand Sarda* (1984)**: the deceased's letters about cruelty, written weeks before her death, were admitted as circumstances of the transaction.
- A declaration by **signs or gestures** is valid.
- If the person **survives**, the statement is **not a dying declaration**. It can only corroborate or contradict their testimony.

3. Statements made under special circumstances (ss. 28–32)

- **s.28: books of account**, including electronic ones, regularly kept in the course of business. They are relevant but **not sufficient alone** to charge anyone with liability. In *CBI v. V.C. Shukla* (1998, the Jain Hawala diaries), loose sheets were not accepted as books of account.
- **s.29: entries in public or official records** made by a public servant in the course of duty, such as birth registers and school records.
- **s.30: maps and charts** published for sale or made under Government authority.
- **s.31: statements of public facts** in Acts and notifications.
- **s.32: statements of law** in law books, including digital ones.

4. How much of a statement to prove (s.33)

When a statement is part of a **longer statement, conversation, document, series of letters or electronic record**, only **so much as is necessary** to understand its nature and effect is proved. This is the **rule of completeness**: a statement should not be taken out of context.

5. Judgments of courts (ss. 34–38)

- **s.34**: an earlier judgment that **bars a second suit or trial** (res judicata or double jeopardy) is relevant.
- **s.35: judgments in rem**. Final judgments in **probate, matrimonial, admiralty and insolvency** matters confer or take away a **legal character**, and are **conclusive proof against the whole world**.
- **s.36**: judgments on matters of a **public nature** are relevant but not conclusive.

- **s.37**: **other judgments are irrelevant**, unless the judgment itself is a fact in issue. A civil judgment is generally not relevant in a criminal case on the same facts (*K.G. Premshanker*, 2002).
- **s.38**: a party may prove that a judgment was obtained by **fraud or collusion**, or delivered by a court **without jurisdiction**.

A judgment **in rem** binds everyone. A judgment **in personam** binds only the parties.

6. Expert opinion (ss. 39–45)

Judges cannot know everything. On matters of **foreign law, science, art, handwriting or fingerprints**, the **opinion of experts**, meaning persons specially skilled by study or experience, is relevant (s.39). The **Examiner of Electronic Evidence** under the IT Act is now expressly treated as an expert.

Related provisions:

- **s.40**: facts that support or contradict the expert's opinion.
- **s.41**: opinion on handwriting by a person **familiar with it**, and opinion of a **Certifying Authority** on electronic signatures.
- **s.42**: opinions on general custom.
- **s.43**: opinions on usages and tenets.
- **s.44**: opinion on relationship, shown by conduct.
- **s.45**: the **grounds** of an opinion are also relevant.

Problems with expert testimony:

- An expert is a **witness of opinion, not of fact**.
- The evidence is **advisory**: the **court decides**.
- Experts may be **biased** because one party pays them.
- Some fields are **inexact sciences**, handwriting in particular.
- Experts may **contradict each other**.

The court should not accept a bare opinion. The **reasons must be given** (*State of H.P. v. Jai Lal*, 1999).

Handwriting evidence can be acted on without corroboration if reliable, but caution is advised, and the court may compare writings itself (*Murari Lal v. State of M.P.*, 1980).

Ocular (eyewitness) evidence prevails over medical evidence unless the medical evidence **completely rules it out** (*Solanki Chimanbhai Ukabhai*, 1983).

7. Evidence of character (ss. 46–50)

"Character" means both **reputation and disposition**. Only **general** reputation and disposition can be proved, not particular acts.

Situation	Rule
Civil case, to prove conduct (s.46)	**Irrelevant**
Criminal case: **good character of the accused** (s.47)	**Relevant**
Sexual offences: the victim's character or past sexual experience (s.48)	**Not relevant** on consent
Criminal case: **bad character of the accused** (s.49)	**Irrelevant**, unless the accused first gives evidence of good character (then it is allowed in rebuttal), or bad character is itself a fact in issue. A previous conviction counts as bad character.
Civil case: character affecting damages (s.50)	**Relevant** (for example, in defamation)

MODULE 4: DOCUMENTARY EVIDENCE

1. Document and its proof

Document (s.2(1)(d)): any matter **expressed or recorded on any substance** by letters, figures, marks or any other means, intended to be used to record that matter. It **expressly includes electronic and digital records**, such as emails, server logs, files on computers and phones, messages, websites, cloud data, location data and voicemails.

Proof of contents (s.56): the contents of a document are proved by **primary or secondary evidence**.

2. Primary and secondary evidence (ss. 57–60)

Primary evidence (s.57) is the **document itself** produced in court. It also includes:

- each part of a document executed in **several parts**;
- each **counterpart**, against the party who signed it;
- each copy made by **one uniform process** (such as printing), as evidence of the contents of the others.

New electronic rules:

- a record stored in **multiple files** simultaneously or in sequence: **each file is primary evidence**;
- a record produced from **proper custody** is primary evidence unless disputed;
- a **video** stored and transmitted at the same time is primary evidence;
- **automated storage**, including temporary files, is primary evidence.

Secondary evidence (s.58) includes:

- certified copies;
- copies made by **mechanical processes**, and copies compared with them;

- copies compared with the original;
- counterparts, against parties who did not sign them;
- **oral accounts** by someone who saw the document;
- **oral and written admissions** *(new)*;
- evidence of a **skilled person** who examined voluminous documents *(new)*.

Best evidence rule (s.59): documents must be proved by **primary evidence**, except in the cases in s.60.

When secondary evidence is allowed (s.60):

- a. the original is with the **opposite party**, or with someone beyond the court's reach, and it is not produced after **notice** (s.64);
- b. its existence or contents are **admitted in writing**;
- c. the original is **lost or destroyed** without the party's fault;
- d. the original is **not easily movable**, such as an inscription on a wall;
- e. it is a **public document**;
- f. a **certified copy** is permitted by law;
- g. it consists of **numerous documents** and only the general result is needed.

A party must **lay the foundation** for secondary evidence before using it. A photocopy is not automatically admissible (*H. Siddiqui v. A. Ramalingam*, 2011; *J. Yashoda v. K. Shobha Rani*, 2007).

3. Electronic and digital records (ss. 61–63) and the IT Act

This is the most important modern topic.

s.61: an electronic record **cannot be refused** merely because it is electronic. It has the **same legal effect** as a paper document.

s.62: contents of electronic records are proved under **s.63**.

s.63 (IEA 65B): any computer output, whether printed, stored on CD or pen drive, or produced by any **computer or communication device**, is treated as a document and is **admissible without producing the original device**, if these conditions are met:

1. the device was **regularly used** by a person in lawful control;
2. information of that kind was **regularly fed** in the ordinary course;
3. the device was **working properly**, or any fault did not affect the record;
4. the output reproduces the information fed in.

A **certificate** in the **prescribed Schedule format** must be given. **Part A** is signed by the person in charge of the device. **Part B** is signed by an **expert**. It identifies the record, how it was produced, and the device's details (including hash values).

The case law story:

1. ***Navjot Sandhu* (2005)**: said a certificate was **not essential**. This was later overruled.

2. ***Anvar P.V. v. P.K. Basheer* (2014)**: s.65B is a **complete code**, and the **certificate is mandatory** for copies of electronic records. If the **original device** is produced, no certificate is needed.
3. ***Shafhi Mohammad* (2018)**: relaxed the rule where a party does not possess the device. This was overruled.
4. ***Arjun Panditrao Khotkar v. Kailash Gorantyal* (2020)**: **reaffirmed Anvar**. The certificate is a **condition precedent**. It can be filed **at any stage** before the trial ends. The court can summon the person who must issue it.

Other cases: *Tomaso Bruno* (2015), on the value of CCTV footage, and *Ravinder Singh* (2022), which held call records need a certificate.

IT Act, 2000 links:

- s.4: legal recognition of electronic records.
- s.5: legal recognition of electronic signatures.
- s.10A: contracts formed electronically.
- **s.79A**: Examiner of Electronic Evidence.

The IT Act also inserted the provisions on presumptions about electronic agreements, secure records, electronic signature certificates, electronic messages, and **5-year-old electronic records** (now BSA ss.85–87, 90 and 93).

4. Attested documents and proof of signatures (ss. 64–73)

- **s.64**: **notice to produce** must be given before secondary evidence is used under s.60(a), except in specified cases.
- **s.65**: the **signature or handwriting** of the alleged signer must be proved.
- **s.66**: **electronic signatures** must be proved, unless they are secure electronic signatures.
- **s.67: documents required by law to be attested** (such as a **will**, a mortgage, a gift deed): **at least one attesting witness must be called** to prove execution, if one is alive and available. For a **registered** document **other than a will**, this is not needed unless execution is **specifically denied**.
- **s.68**: if **no attesting witness** can be found, prove the handwriting of one attesting witness and of the executant.
- **s.69**: an **admission** of execution by a party is enough proof against that party.
- **s.70**: if the attesting witness **denies or forgets** the execution, it may be proved by other evidence.
- **s.71**: a document that did not need attestation is proved like an unattested one.
- **s.72**: the court may **compare signatures and handwriting**, and may ask a person present in court to write for comparison. It should do this with caution.
- **s.73**: verification of **digital signatures**.

In the case of wills, the person propounding the will must also **remove any suspicious circumstances** (*H. Venkatachala Iyengar v. B.N. Thimmajamma*, 1959).

5. Public and private documents (ss. 74–77)

Public documents (s.74(1)):

- records of the acts of the **sovereign authority**, **official bodies and tribunals**, and **public officers** (legislative, judicial and executive), in India or abroad;
- **public records of private documents**, such as registered deeds kept in a sub-registrar's office.

All others are private documents (s.74(2)).

- **s.75**: the officer having custody must give **certified copies** on payment of fees.
- **s.76**: public documents are proved by producing **certified copies**.
- **s.77**: proof of other official documents (Acts, proclamations and similar) by the Gazette or official copies.

Difference: a public document can be proved by a **certified copy** directly. A private document needs **primary evidence** or must meet the conditions in s.60.

6. Presumptions as to documents (ss. 78–93)

Shall presume:

- certified copies are genuine (s.78);
- records of evidence and confessions are genuine (s.79);
- Gazettes, newspapers and private Acts (s.80), and electronic Gazettes (s.81);
- electronic agreements, secure electronic records and signatures, and electronic signature certificates (ss.85–87).

May presume:

- maps made under Government authority (s.82);
- law collections and law reports (s.83);
- **powers of attorney** executed before a notary (s.84);
- foreign judicial records (s.88);
- books, maps and charts (s.89);
- **telegraphic and electronic messages** (s.90): that the message received matches the one sent, but **not who sent it**;
- documents not produced after notice were duly executed (s.91);
- **30-year-old documents** from **proper custody** are genuinely signed and executed (s.92);
- **5-year-old electronic records** from proper custody bear genuine electronic signatures (s.93).

7. Exclusion of oral by documentary evidence (ss. 94–95)

s.94 (IEA 91): when a **contract, grant or disposition of property** has been put in writing, or the law requires a matter to be in writing, its **terms can be proved only by the document** (or secondary evidence where allowed). Oral evidence of the terms is excluded. This is the **best evidence rule** for documents.

s.95 (IEA 92): once the document is proved, **no oral agreement** between the **parties** can be used to **contradict, vary, add to or subtract from** its terms.

Six provisos to s.95 allow oral evidence of:

1. **fraud, intimidation, illegality, mistake, want of capacity** or failure of consideration, i.e. facts that would invalidate the document;
2. a **separate oral agreement** on a matter the document is silent about, if consistent with it;
3. an oral **condition precedent**;
4. a later oral agreement to **rescind or modify** it (not if registration is required);
5. **usage or custom**;
6. facts showing how the language **relates to existing facts**.

Differences between s.94 and s.95:

s.94	s.95
Applies to **everyone**	Applies only to **parties** and their representatives
Bars oral evidence **to prove the terms**	Bars oral evidence **to vary the terms**
Covers unilateral documents too	Covers bilateral documents

Strangers to the document can show a variation (s.102). Oral evidence is also allowed to show that a document was a **sham**, never meant to be acted on (*Gangabai v. Chhabubai*, 1982; *Roop Kumar v. Mohan Thedani*, 2003).

8. Ambiguous documents (ss. 96–103)

- **Patent ambiguity**: the ambiguity is visible **on the face** of the document.
- **Latent ambiguity**: the language looks clear but becomes ambiguous **when applied to facts**.

Section	Rule	Example
s.96	Patent ambiguity: **no** evidence allowed to explain it	“I sell my horse for ₹1,000 **or** ₹1,500”
s.97	Plain language that fits the facts: **no** evidence allowed to show a different meaning	
s.98	Plain language that is **meaningless** when applied to facts: evidence **allowed**	“My house in Kolkata” when the person has none there but has one in Howrah
s.99	Language that fits **one of several** persons or things: evidence **allowed** to show which was meant	“My white horse” when the person owns two
s.100	Language that **partly** fits one set of facts and partly another: evidence **allowed**	
s.101	Evidence allowed to explain **illegible, foreign, technical or local** words and abbreviations	
s.102	**Strangers** may prove a variation of the document’s terms	
s.103	Savings for the Succession Act on wills	

MODULE 5: WITNESSES

1. Competency and compellability (s.124)

Competency means whether a person **can** testify. **Every person is competent** unless the court finds they cannot understand questions or give rational answers because of:

- tender years;
- extreme old age;
- disease of body or mind; or
- a similar cause.

A person of unsound mind is competent if they can understand.

Compellability means whether a person **can be forced** to testify. Generally every competent witness is compellable, except:

- **foreign sovereigns and diplomats**;
- the **President and Governors** (Art. 361);

- the **accused**, who is a witness only on their own request (BNSS s.353) and cannot be compelled (Art. 20(3)).

Some witnesses are compellable to appear but **privileged** from answering certain questions, such as judges and spouses.

Child witness:

- There is **no minimum age**. The test is understanding.
- The judge holds a **preliminary questioning (voir dire)** to check competency.
- Under the Oaths Act, a child **under 12** gives evidence without an oath, and it is still valid.
- Because children can be **tutored**, their evidence is examined carefully.
- Corroboration is **prudent but not required by law** (*Dattu Ramrao Sakhare*, 1997; *State of M.P. v. Ramesh*, 2011).

2. Witness unable to communicate verbally (s.125)

A witness who cannot speak may testify **by writing or signs** made in open court. This counts as **oral evidence**. The court must take the help of an **interpreter or special educator**, and the testimony must be **video-recorded**.

3. Parties, spouses and judges (ss. 126–127)

- **s.126**: in civil cases, the **parties and their spouses** are competent witnesses. In criminal cases, the **spouse of the accused** is competent.
- **s.127**: **judges and magistrates** cannot be compelled, except by order of a superior court, to answer questions about their **own conduct in court** or what they learned there as judges. They can be questioned about other events that happened in their presence.

4. Privileged communications (ss. 128–131)

Some relevant facts are **protected from disclosure** for reasons of **public policy**.

(a) Matrimonial communications (s.128):

- A married person **cannot be compelled** to disclose any communication made to them **during marriage** by their spouse.
- They are also **not permitted** to disclose it **without the consent** of the spouse who made it.
- **Exceptions**: suits between the spouses, and prosecution of one spouse for an offence against the other.
- The privilege covers **communications only, not acts**. In *Ram Bharosey v. State of U.P.* (1954), the wife could testify about what she **saw** her husband do.
- It continues **after divorce or death**, for communications made during the marriage. In *M.C. Verghese v. T.J. Ponnan* (1970), letters from a husband to his wife could not be used by her father in a defamation case.

(b) Affairs of State (s.129):

- No one may give evidence from **unpublished official records relating to affairs of State** without the **head of the department's permission**.
- However, the **court decides** whether the document really concerns affairs of State, and it may **inspect** the document privately.
- *State of Punjab v. Sodhi Sukhdev Singh* (1961).
- ***State of U.P. v. Raj Narain* (1975)**: the "Blue Book" on the Prime Minister's security.
- ***S.P. Gupta v. UOI* (1981)**: correspondence on judges' appointments was disclosed. The court balances the public interest in disclosure against the harm caused.

(c) Official communications (s.130): a public officer **cannot be compelled** to disclose communications made to them **in official confidence** if disclosure would harm the **public interest**.

(d) Information about offences (s.131): magistrates, police officers and revenue officers **cannot be compelled to reveal the source** of information about offences. This **protects informers**.

5. Professional privilege (ss. 132–134)

s.132: an **advocate** cannot disclose, **without the client's express consent**:

- communications made in the course of their professional employment;
- the contents of documents they saw;
- the advice they gave.

The duty **continues after the engagement ends**. The same duty applies to interpreters and clerks.

Exceptions:

- communications made **in furtherance of an illegal purpose**;
- any fact the advocate observed showing a **crime or fraud** committed since the engagement began.

s.133: the privilege is **not waived** just because the client gives evidence. If the client **calls the lawyer as a witness**, it is waived only for the matters on which the lawyer is questioned.

s.134: a client **cannot be compelled** to disclose confidential communications with their legal adviser, unless the client offers themselves as a witness. Then they may be asked about communications needed to explain their own evidence.

Reason for the privilege: clients must be able to speak **freely** to their lawyers for justice to work.

6. Other provisions as to witnesses (ss. 135–137)

- **s.135**: a witness who is **not a party** need not produce their **title deeds** or documents that could incriminate them, unless they agree in writing.
- **s.136**: no one can be compelled to produce a document that another person in their place could refuse to produce, unless that person consents.
- **s.137**: a witness **cannot refuse to answer** a relevant question on the ground that the answer may **incriminate** them. But the compelled answer **cannot be used** to arrest or prosecute them, **except for giving false evidence**. This is a **statutory immunity** that balances the court's need for the truth against the witness's protection.

7. Accomplice evidence (ss. 138, 119)

An **accomplice** is a **guilty partner** in the crime (a principal or an abettor). An **approver** is an accomplice who has received a **pardon** and testifies for the prosecution.

The two provisions appear to conflict:

- **s.138**: an accomplice is a **competent witness**, and a conviction based on **uncorroborated** accomplice evidence is **not illegal**.
- **s.119, illustration (b)**: the court **may presume** that an accomplice is **unworthy of credit unless corroborated in material particulars**.

How they are reconciled:

- s.138 is a **rule of law**: a conviction without corroboration is legally valid.
- s.119(b) is a **rule of prudence**: it is unsafe, so courts insist on corroboration.

The accomplice is unreliable because they are a criminal, may want to shift blame, and hope for a pardon. In practice, the rule of prudence has become almost a rule of law.

Corroboration must:

- be **independent**;
- **connect the accused** with the crime in a material particular (*R v. Baskerville*, 1916; *Rameshwar v. State of Rajasthan*, 1952).

One accomplice **cannot corroborate** another (*Haroon Haji Abdulla*, 1968). A **rape victim is not an accomplice**, and her evidence needs no corroboration (*State of Punjab v. Gurmit Singh*, 1996).

8. Number of witnesses (s.139)

No particular number of witnesses is required to prove any fact. **Evidence is weighed, not counted.**

In ***Vadivelu Thevar v. State of Madras* (1957)**, the court divided witnesses into three kinds:

1. **wholly reliable**: a conviction can rest on one such witness;
2. **wholly unreliable**: rejected;

3. **neither wholly reliable nor wholly unreliable**: corroboration is needed.

MODULE 6: BURDEN OF PROOF

1. Meaning and kinds

Burden of proof (*onus probandi*) is the obligation to prove a fact. It has two senses:

1. **Legal burden** (s.104): the burden of **establishing the case**. It **never shifts**. It lies on the party who asserts.
2. **Evidential burden** (s.105): the burden of **producing evidence**. It **shifts** back and forth during the trial as evidence comes in.

Standard of proof:

- **Civil cases**: **preponderance of probabilities**, i.e. which version is more probable.
- **Criminal cases**: **beyond reasonable doubt**. *Woolmington v. DPP* (1935): proving guilt is the prosecution's duty; this is "the golden thread" of criminal law. Reasonable doubt must be **real**, not fanciful.
- When the **accused** has to prove something, such as an exception or an alibi, they need only a **preponderance of probabilities** (*Dahyabhai Chhaganbhai Thakker*, 1964).

2. General rules (ss. 104–107)

- **s.104**: **whoever asserts must prove**. The person who wants judgment based on certain facts must prove those facts exist.
- **s.105**: the burden lies on the person **who would fail if no evidence at all were given** by either side.
- **s.106**: the burden of proving a **particular fact** lies on the person who wants the court to believe it, unless the law says otherwise. For example, the accused must prove their **alibi**.
- **s.107**: the burden of proving a fact **necessary to make evidence admissible** is on the person offering that evidence. For example, to use a dying declaration, the death must be proved. To use secondary evidence, the loss of the original must be proved.

3. Special burdens and exceptions (ss. 108–116)

- **s.108 (IEA 105)**: when an accused claims a **general exception** of the BNS (insanity, private defence, accident, intoxication) or a **special exception** (such as grave and sudden provocation), **the burden is on the accused**, and the court **presumes the absence** of those circumstances.
  - *K.M. Nanavati* (1962): provocation.
  - *Dahyabhai* (1964): insanity.
- **s.109 (IEA 106)**: a fact **especially within the knowledge** of a person must be proved by that person. For example, a train passenger must prove they had a ticket.

    - It **does not relieve the prosecution** of its basic burden (*Shambhu Nath Mehra v. State of Ajmer*, 1956).
    - In ***Trimukh Maroti Kirkan* (2006)**, when a wife died in the matrimonial home at night, the husband had to explain how. His **failure to explain** was a circumstance against him.
- **s.110**: a person shown to be alive within **30 years** is presumed alive. Whoever says they are dead must prove it.
- **s.111**: a person **not heard of for 7 years** by those who would naturally hear from them is presumed **dead**. Whoever says they are alive must prove it. **The date of death is not presumed.**
- **s.112**: once a relationship of **partners, landlord and tenant, or principal and agent** is shown, whoever says it has ended must prove it.
- **s.113**: a person **in possession** is presumed to be the **owner**.
- **s.114**: in a **fiduciary relationship** (lawyer and client, guardian and ward, doctor and patient), the person in **active confidence** must prove that the transaction was in **good faith**.
- **s.115**: presumption of guilt for certain offences in **disturbed areas**.
- **s.116**: **birth during a valid marriage**, or within **280 days** of its dissolution (the mother remaining unmarried), is **conclusive proof of legitimacy**, unless **non-access** between the spouses is proved.
    - *Goutam Kundu* (1993): DNA tests should not be ordered routinely.
    - ***Nandlal Badwaik* (2014)**: a reliable **DNA test prevails** over the presumption.
    - *Aparna Ajinkya Firodia* (2023): DNA tests only in exceptional cases, with the child's interest paramount.

Presumptions in offences against married women:

- **s.117**: **abetment of suicide** by a married woman within **7 years of marriage**, if she was subjected to **cruelty**. The court **may presume** abetment.
- **s.118**: **dowry death**. If, **soon before her death**, the woman was subjected to cruelty or harassment **for dowry**, the court **shall presume** the person caused the dowry death. "Soon before" requires a **proximate and live link** (*Satbir Singh v. State of Haryana*, 2021).

4. Court may presume certain facts (ss. 119–120)

s.119 (IEA 114): the court **may presume** any fact it thinks likely, considering the **common course of natural events, human conduct and business**. The illustrations include:

- a person found with **stolen goods soon after a theft** is the thief or a receiver;
- an **accomplice is unworthy of credit** unless corroborated;
- **official acts were regularly performed**;
- a state of things shown to exist **continues**;
- evidence that could be produced but is **withheld would be unfavourable** to the party withholding it (adverse inference);

- refusing to answer a question one is not legally required to answer suggests the answer would be unfavourable.

These are **rebuttable presumptions of fact**.

s.120 (IEA 114A): in a **rape prosecution**, once sexual intercourse is proved and the woman says in court that she **did not consent**, the court **shall presume** she did not consent.

5. Judicial notice (ss. 51–52)

s.51: facts of which the court takes **judicial notice need not be proved**.

s.52 lists facts the court **must** notice, including:

- all **laws in force** in India;
- **international treaties** and agreements;
- proceedings of the **Constituent Assembly** and legislatures;
- **seals** of courts;
- names and signatures of public officers notified in the Gazette;
- countries and **flags** recognised by India;
- **divisions of time**, geographical divisions, and notified holidays;
- the **territory of India**;
- hostilities with other nations;
- names of court officers and advocates;
- the **rule of the road**.

The court may consult **reference books** for matters of history, literature, science or art, and may refuse to take notice unless the person produces such a book.

The list is **not exhaustive**. Courts also take notice of facts of **common knowledge**.

6. Facts admitted need not be proved (s.53)

Facts that the parties **admit at the hearing**, agree in writing to admit, or are deemed to have admitted in their **pleadings** need **no proof**. These are **judicial admissions**, and they bind the party. The court may still **require proof** if it wishes.

In criminal cases, an admission by the accused does **not** relieve the prosecution of its burden.

MODULE 7: ORAL EVIDENCE

1. General principles

- **s.54**: **all facts may be proved by oral evidence**, except the **contents of documents and electronic records**.
- **s.55**: **oral evidence must be direct**:

    - a fact that could be **seen**: the witness says **“I saw it”**;
    - a fact that could be **heard**: the witness says **“I heard it”**;
    - a fact perceived by **another sense**: the witness says they perceived it that way;
    - an **opinion**: the person who **holds that opinion** must say so.

Experts’ opinions in published treatises can be proved by the treatise if the author is unavailable. The court may require **material objects** to be produced.

2. Exceptions to the hearsay rule

Hearsay is excluded by s.55, but it is admitted in these situations:

1. **Res gestae** (s.4).
2. **Admissions and confessions** (ss.15–24).
3. Statements of persons who **cannot be called** as witnesses, including **dying declarations** (s.26).
4. **Evidence given in an earlier proceeding** (s.27), if the witness is now unavailable, the proceeding was between the **same parties**, the other side had the **chance to cross-examine**, and the issues were **substantially the same**.
5. Entries in **books of account and public records** (ss.28–32).
6. **Statements of conspirators** (s.8).
7. **Expert opinions in treatises** (s.55).
8. Opinions on **public rights and customs** (s.42).

3. Examination of witnesses (ss. 140–168)

Order of examination:

1. **Examination-in-chief**: by the party who calls the witness.
2. **Cross-examination**: by the opposite party.
3. **Re-examination**: by the calling party, only to **explain matters raised in cross-examination**. If a new matter is introduced with the court’s permission, the opposite party may cross-examine on it.

(ss.142–143)

Key rules:

- The **judge decides admissibility** (s.141).
- Cross-examination **need not be limited** to what the witness said in chief (s.143).
- A person summoned **only to produce a document** is not a witness unless called as one (s.144).
- A witness may be **contradicted with their earlier written statements**, such as police statements. Their attention must first be drawn to the relevant parts (s.148). Under BNSS s.181, police statements can be used **only** this way (*Tahsildar Singh v. State of U.P.*, 1959).

The court protects witnesses:

- no question **without reasonable grounds** (ss.152–153);
- the court may forbid **indecent or scandalous** questions (s.154);
- it shall forbid questions meant to **insult or annoy** (s.155).

Answers on collateral matters are final (s.156). If a witness is asked about something only to test their truthfulness, their answer cannot be contradicted by other evidence. The exceptions are a **previous conviction** and questions about the witness's **impartiality**.

Corroboration:

- questions that tend to **corroborate** a relevant fact are admissible (s.159);
- a witness's **earlier statement**, made at the time of the event or to an authority, can be used to **corroborate** them (s.160).

Production of documents (s.165): a person summoned to produce a document must bring it, even if they object. The court decides the objection and may inspect the document, except one relating to affairs of State.

Judge's power to ask questions (s.168): the judge may ask **any question**, in any form, at any time, of any witness or party, and order **production of any document**, in order to discover the truth. The parties cannot object, and they need the court's permission to cross-examine on the answers.

Limits on s.168:

- the **judgment must be based on relevant facts** only;
- the judge **cannot compel answers** that are privileged;
- the judge cannot ask questions that would be improper under ss.151–152.

4. Leading questions (s.146)

A **leading question** is one that **suggests the answer** the questioner wants. For example: "You saw A stab B, didn't you?"

Stage	Allowed?
Examination-in-chief and re-examination	**Not allowed** if objected to, **except** on introductory or undisputed matters, matters already proved, or with the court's permission
Cross-examination	**Allowed**

The court can also allow leading questions in chief for a **hostile witness**.

5. Lawful questions in cross-examination (s.149)

In cross-examination, a witness may be asked questions to:

- **test their truthfulness**;
- find out **who they are and their position in life**;

- **shake their credit** by attacking their character, even if the answer may incriminate them.

Exception for sexual offences: questions about the victim's **general immoral character or past sexual experience** are **not allowed** to prove consent.

6. Hostile witness (s.157)

The Act does not use the word "hostile". Section 157 lets the court, at its **discretion**, allow the party calling a witness to **ask questions as in cross-examination**. This is used when a witness turns against the party who called them, or departs from their earlier statement.

The evidence of a hostile witness is not wiped out. The court can accept the parts that are **reliable** and consistent with other evidence.

- *Sat Paul v. Delhi Administration* (1976).
- ***Bhagwan Singh v. State of Haryana* (1976)**.
- *Koli Lakhmanbhai* (1999).

Why witnesses turn hostile: threats, money, long delays, and lack of protection. The **Witness Protection Scheme** (*Mahender Chawla v. UOI*, 2018; now BNSS s.398) and **perjury prosecutions** are the remedies. The Best Bakery case (*Zahira Habibullah Sheikh*) shows how serious the problem can be.

7. Impeaching the credit of a witness (s.158)

The opposite party, or the calling party with the court's permission, may **impeach a witness's credit** by:

- a. evidence from people who know the witness and believe them **unworthy of credit**;
- b. proof that the witness was **bribed** or received some other **corrupt inducement**;
- c. proof of **earlier inconsistent statements**.

The old clause allowing attacks on a rape victim's character was **deleted in 2003** and does not appear in the BSA.

Contradiction vs impeachment: contradiction (s.148) is one way of impeaching credit. **Impeachment** is wider: it attacks the witness's **general trustworthiness**.

8. Refreshing memory (ss. 162–164)

A witness may **refresh their memory** by looking at a writing:

- made by themselves **at the time of the event or soon after**, while it was **fresh in memory**; or

- made by someone else and **read by the witness at that time**, knowing it to be correct.

A **copy** may be used with the court's permission. An **expert** may refer to professional books.

The witness may also testify to facts in the document if they are sure it was **correctly recorded**, even without a specific memory of the facts (s.163).

The **opposite party may inspect** the writing and **cross-examine** on it (s.164). When police officers refresh their memory from the **case diary**, the accused may see those entries.

MODULE 8: ESTOPPEL

1. What is estoppel?

s.121 (IEA 115): when a person, **by declaration, act or omission**, has **intentionally caused or permitted another to believe a thing to be true** and **to act on that belief**, they (and their representatives) **cannot later deny the truth** of that thing in a case between them and that other person.

Illustration: A falsely leads B to believe that land belongs to A, and B buys it. Later A actually acquires the land and tries to set aside the sale, saying he had no title at the time. A **is estopped** from saying so.

Essentials:

1. a **representation** of an **existing fact** (not law, not a future promise);
2. made **intentionally**, or the person allowed the other to believe it;
3. the other person **believed it**;
4. they **acted on it** and changed their position to their **detriment**;
5. the case is **between the same parties** or their representatives.

Nature:

- Estoppel is a **rule of evidence**. It is a **shield, not a sword**, so it cannot create a cause of action (except promissory estoppel in India).
- There is **no estoppel against a statute** and **none on a point of law**.
- Origin: *Pickard v. Sears* (1837). See also *Sarat Chunder Dey v. Gopal Chunder Laha* (1892).

Kinds:

- estoppel by **record** (res judicata);
- estoppel by **deed**;
- estoppel by **conduct** (*in pais*), which is s.121;
- **promissory** estoppel;

- **tenant and licensee** estoppel.

Tenant estoppel (s.122): a **tenant** cannot deny the landlord's title **as it was at the start of the tenancy**, while the tenancy continues. A **licensee** cannot deny the licensor's title to possession at the time of the licence.

s.123: the **acceptor of a bill of exchange** cannot deny the drawer's authority to draw. A **bailee** cannot deny the bailor's authority. A **licensee** cannot deny the licensor's authority.

2. Estoppel distinguished from res judicata, waiver and presumption

Estoppel	Res judicata
Arises from the **act of the parties**	Arises from the **decision of a court**
Stops a party **saying one thing and later the opposite**	Stops a party **litigating the same matter twice**
A rule of **evidence** (BSA s.121)	A rule of **procedure** (CPC s.11) that bars the court's jurisdiction
Based on **equity**	Based on **public policy**: finality of litigation

Waiver is the **intentional giving up of a known right**. It is voluntary and needs **no detriment** to the other side. **Estoppel** needs the other party to have **relied on the representation to their detriment**. Waiver gives up a right; estoppel prevents denying a representation.

Estoppel vs presumption: a presumption is an **inference** the court draws. Estoppel **prevents a party from proving** the opposite of what they represented. It works like a conclusive presumption, but **only between the parties**.

3. Promissory estoppel

Meaning: if a person makes a **clear promise** intending it to be acted upon, and the other person **acts on it** and changes position, the promisor **cannot go back** on the promise if that would be **unjust**, **even without consideration**.

Origin: ***Central London Property Trust v. High Trees House*** **(1947)**, by Denning J. A landlord promised to accept reduced rent during the war, and was held bound for that period.

Development in India:

- ***Union of India v. Indo-Afghan Agencies*** **(1968)**: the Government was **bound** by its promise under an export scheme. The Government is not above equity.
- ***Motilal Padampat Sugar Mills v. State of U.P.*** **(1979)** (Bhagwati J.): the leading case. The State promised a **sales tax exemption** for 3 years, and the company set up a factory relying on it. The State was **held to its promise**. **Executive necessity is not a defence**. In India, promissory estoppel can found a **cause of action**.

- ***Jit Ram v. State of Haryana* (1980)**: tried to weaken Motilal. It was later disapproved.
- ***Union of India v. Godfrey Philips* (1985)**: confirmed Motilal. There is **no estoppel against the legislature** when it legislates, and none that would force the Government to act **against the law**.
- ***State of Punjab v. Nestle India* (2004)**: the Government can withdraw a promise only if **overriding public interest** requires it.

Limits:

1. No estoppel **against a statute** or the legislature.
2. None where the promise was **beyond the Government's powers** or illegal.
3. The Government may withdraw for **overriding public interest**, with reasonable notice.
4. The promise must be **clear**.
5. The promisee must have **changed position**.
6. None where there was **fraud**.

Difference from s.121: s.121 concerns a representation of an **existing fact**. Promissory estoppel concerns a **promise about the future**. It is an **equitable doctrine** developed by courts rather than strictly a rule within s.121.

4. Improper admission or rejection of evidence (s.169)

s.169 (IEA 167): wrongly admitting or rejecting evidence is **not by itself a ground for a new trial or for reversing a decision**, if the appellate court finds that:

- **without the wrongly admitted evidence**, there was still **enough evidence** to justify the decision; or
- **even if the rejected evidence had been admitted**, it **would not have changed** the decision.

This applies in **both civil and criminal** cases. For example, if a confession to the police was wrongly admitted, the appeal court **ignores it** and checks whether the remaining evidence is enough to convict.

On objections:

- An objection to the **mode of proof** must be raised **at the time** the evidence is tendered, or it is lost.
- An objection that evidence is **inherently inadmissible** can be raised **at any stage**.
- *R.V.E. Venkatachala Gounder v. Arulmigu Viswesaraswami & V.P. Temple* (2003).

The idea matches BNSS s.511 and CPC s.99: **no reversal unless justice has actually failed**.

INTERPRETATION OF STATUTES (LCC 0703): Module-wise Explanation

MODULE 1: INTRODUCTION TO INTERPRETATION AND THE GENERAL CLAUSES ACT, 1897

1. Meaning, need and object of interpretation

Meaning. Interpretation is the process by which courts find out the **meaning and intention of the legislature** from the words it has used in a statute. Salmond describes it as "the process by which the courts seek to ascertain the meaning of the legislature through the medium of authoritative forms in which it is expressed."

The legislature speaks only through the text. Once the law is passed, the courts have to apply that text to real disputes. This is where interpretation comes in.

Need.

1. **Language is imperfect.** Words often have more than one meaning.
2. **Drafting has limits.** Legislators cannot foresee every situation.
3. **Society changes.** New technology and new social conditions arise after a law is made. For example, the internet and electronic records did not exist when the Evidence Act was drafted.
4. **General words** must be applied to specific facts.
5. **Provisions can conflict**, either within one Act or between two Acts.
6. **Complex statutes** must be read as a whole for the parts to make sense.

Object. The main object is to **give effect to the intention of the legislature**. Related aims are:

- to make the law **workable**, following the maxim *ut res magis valeat quam pereat* (it is better for a thing to have effect than to fail);
- to **resolve ambiguity** and fill small gaps;
- to ensure **certainty and justice**.

R.M.D. Chamarbaugwalla v. UOI (1957): the intention of the legislature must be gathered from the words used, read in their context.

2. Interpretation vs construction

Writers draw a distinction between the two terms, though courts use them interchangeably.

- **Interpretation** means finding the **meaning of the words**. It is **linguistic** and stays close to the text.

- **Construction** means drawing **conclusions beyond the direct expression of the text**, from its spirit and purpose. It is used when the words are unclear or a situation is not covered.

Cooley: “Interpretation is the art of finding out the true sense of any form of words… Construction is the drawing of conclusions respecting subjects that lie beyond the direct expression of the text.”

Interpretation	Construction
Finds the meaning of words	Draws legal conclusions beyond the words
Linguistic	Legal
Used when words are clear	Used when words are ambiguous or silent
Literal sense	Spirit and purpose

3. Concept and classification of statutes

A **statute** is written law made by a **competent legislature**. It includes Acts of Parliament and State legislatures, Ordinances, and delegated legislation (rules, regulations, bye-laws).

Statutes are classified in several ways.

By duration

- **Perpetual**: no fixed time limit. Stays in force until repealed.
- **Temporary**: lasts for a fixed period and then expires.

By method

- **Mandatory**: must be strictly obeyed. Non-compliance makes the act invalid.
- **Directory**: substantial compliance is enough.
- How to tell them apart: look at the **intention** of the legislature, the **object** of the provision, and the **consequences of non-compliance**. The word “shall” is not decisive by itself. See *State of U.P. v. Manbodhan Lal Srivastava* (1957); *Sharif-ud-Din v. Abdul Gani Lone* (1980).

By object

- **Codifying**: states the whole law on a subject.
- **Consolidating**: gathers existing laws into one Act.
- **Declaratory**: removes doubts about what the law is.
- **Remedial**: gives a new remedy or benefit.
- **Amending**: changes an existing law.
- **Repealing**: ends an existing law.
- **Penal**: imposes punishment.
- **Taxing**: imposes tax.
- **Enabling**: grants powers.

- **Disabling**: restricts rights.
- **Validating**: cures past defects.

By extent

- **General**: applies to the whole community.
- **Local, special or private**: applies to a place, a subject, or particular persons.

By operation in time

- **Prospective** or **retrospective**.

4. General Clauses Act, 1897

Why it exists. If every Act had to define common words like “person”, “month” or “good faith”, and repeat general rules about repeal and time, statutes would be very long and inconsistent. The GCA provides **common definitions and general rules** that apply to all Central Acts and Regulations, **unless there is something repugnant in the subject or context**. States have their own General Clauses Acts. Article 367 applies the GCA to the interpretation of the **Constitution** as well.

Preliminary (ss. 1–2): short title, extent and repeal.

Definitions (s.3). Important ones:

- “**act**” includes illegal omissions;
- “**document**”;
- “**good faith**”: a thing done honestly, **whether negligently or not**;
- “**immovable property**” and “**movable property**”;
- “**month**”: a British calendar month;
- “**offence**”;
- “**person**”: includes any company or association, incorporated or not;
- “**sign**”;
- “**State**”;
- “**writing**”.

General rules of construction

- **s.5 (commencement):** if no date is given, a Central Act comes into force on the **day it receives assent**. It takes effect from the **midnight** at the start of that day.
- **s.6 (effect of repeal):** a repeal does not revive anything, does not affect past operation, accrued rights and liabilities, penalties already incurred, or pending proceedings, unless a different intention appears. (Covered in detail in Module 7.)
- **s.6A:** repealing an amending Act does not undo the amendments it already made.
- **s.7:** a repealed Act is revived only if this is expressly stated.
- **s.8:** references to a repealed provision are read as references to the re-enacted provision.
- **s.9 (time):** “from” **excludes** the first day; “to” **includes** the last day.

- **s.10:** if the last day for doing something falls when the **court or office is closed**, it may be done on the **next working day**.
- **s.11:** distances are measured in a straight line on a horizontal plane.
- **s.13 (gender and number):** the **masculine includes the feminine**, and the **singular includes the plural** and vice versa.

Powers and functionaries

- **s.14:** a power may be **exercised from time to time** as needed.
- **s.15:** a power to appoint includes a power to appoint ex officio.
- **s.16:** a **power to appoint includes a power to suspend or dismiss**.
- **s.17:** references to an office cover whoever holds it.
- **s.18:** references cover successors.
- **s.19:** references to official chiefs cover their subordinates.

Orders, rules and bye-laws made under enactments

- **s.20:** words in rules and notifications have the **same meaning as in the parent Act**.
- **s.21:** the **power to issue** a notification, order or rule **includes the power to add to, amend, vary or rescind** it. This does not apply to quasi-judicial orders (*Indian National Congress (I) v. Institute of Social Welfare*, 2002).
- **s.23:** rules may be made only after **previous publication** where the Act requires it.
- **s.24:** rules and orders made under a repealed Act **continue** under the re-enacted Act, so far as they are consistent with it.

Miscellaneous

- **s.26:** if an act is an offence under **two enactments**, the offender may be prosecuted under either, but **not punished twice**.
- **s.27:** service by **registered post**, properly addressed, is deemed to be effected.

MODULE 2: GENERAL PRINCIPLES AND RULES OF INTERPRETATION

1. Mimansa principles of interpretation (Indian Knowledge System)

Background. Mimansa is an ancient Indian school of interpretation founded by **Jaimini** (the *Mimansa Sutras*). It was developed further by **Shabara, Kumarila Bhatta and Prabhakara**. It was originally created to interpret the **Vedas** so that rituals could be performed correctly. Later, jurists such as **Vijnaneshwara** (author of the *Mitakshara*) and **Jimutavahana** used it to interpret the Smritis, which was the law of the time.

It is a highly **rational and systematic** method. In some ways it is more refined than the English rules.

Modern revival. Justice **Markandey Katju** brought Mimansa back into Indian law through his article "The Mimansa Principles of Interpretation" (1993) 1 SCC (Jour) 16, and through judgments such as:

- ***Ispat Industries Ltd. v. Commissioner of Customs* (2006)**;
- ***Udai Shankar Awasthi v. State of U.P.* (2013)**.

The six tests for finding the meaning of a text (shadlinga)

1. **Upakrama–Upasamhara**: the beginning and the conclusion of the text must be read together.
2. **Abhyasa**: repetition shows emphasis.
3. **Apurvata**: what is new or unique in the text.
4. **Phala**: the result or purpose.
5. **Arthavada**: explanatory or praising passages.
6. **Upapatti**: logical reasoning and consistency.

The six means of interpretation, in decreasing order of strength

1. **Shruti**: the **express words**. This is like the literal rule.
2. **Linga**: the **suggestive power** of words, i.e. the implied meaning.
3. **Vakya**: the **syntactical connection**, i.e. the sentence as a whole.
4. **Prakarana**: the **context**.
5. **Sthana**: the **position** or order of the words.
6. **Samakhya**: the **name** or etymology.

When these conflict, the **earlier one prevails** over the later.

Important axioms (nyayas)

- **Sarthakya**: every word must have a meaning. No word is redundant. This is the same as the modern rule against surplusage.
- **Laghava**: prefer the **simpler** interpretation that needs fewer assumptions.
- **Arthaikatva**: a word has **one meaning in one context**. Double meanings are avoided.
- **Gunapradhan**: when a **subordinate (guna)** provision conflicts with the **principal (pradhan)** provision, the subordinate gives way. In *Ispat Industries*, the Customs Valuation Rules (subordinate) gave way to the Customs Act (principal).
- **Samanjasya**: reconcile apparently conflicting provisions. This is the same idea as **harmonious construction**.
- **Vikalpa**: when two provisions genuinely cannot be reconciled, an **option** is allowed. This is used only as a last resort.
- **Atidesha**: extending the features of one thing to another by **analogy**.
- **Badha**: one rule is excluded in favour of another.

Vidhi, Nishedha and Arthavada. Mimansa divides texts into:

- **Vidhi**: a positive command;
- **Nishedha**: a prohibition;

- **Arthavada**: explanatory or recommendatory statements.

Arthavada is **directory**, not binding. Courts have used this idea to tell **mandatory** provisions from **directory** ones.

2. Literal rule

Rule. Words must be given their **plain, ordinary and grammatical meaning**. If the words are clear, the court must apply them **even if the result is harsh**, because the legislature is presumed to mean what it says.

Sussex Peerage Case (1844), Tindal C.J.: if the words are precise and unambiguous, nothing more is needed than to expound them in their natural and ordinary sense.

Cases

- ***Whiteley v. Chappell* (1868)**: it was an offence to impersonate "any person entitled to vote". The accused impersonated a **dead voter**. A dead person is not "entitled to vote", so the accused was **acquitted**. This shows how the literal rule can produce absurd results.
- *R v. Harris* (1836): the words were "stab, cut or wound". **Biting off a nose** did not fall within them.
- *Fisher v. Bell* (1961): displaying a flick-knife in a shop window was an **invitation to treat**, not an "**offer for sale**".
- ***Nelson Motis v. UOI* (1992)**: clear words must be applied as they are.
- *Kanai Lal Sur v. Paramnidhi Sadhukhan* (1957): if the words are clear, the consequences are irrelevant.
- ***Raghunath Rai Bareja v. Punjab National Bank* (2007)**: the literal rule is the **first rule** of interpretation. A hard case does not justify departing from it.
- *Ramavtar Budhaiprasad v. ATO* (1961): words in a taxing statute are read in their **popular sense**. "Vegetables" did **not include betel leaves**.

Merits

- It respects the **separation of powers**.
- It gives **certainty**.
- It prevents judges from making law.

Demerits

- It can produce **absurd or unjust** results.
- It ignores the **purpose** of the law.
- It assumes language is perfect, which it is not.

3. Golden rule

Rule. A modified literal rule. The ordinary meaning is followed **unless** it leads to **absurdity, inconsistency, hardship or repugnancy**. In that case the meaning may be **modified, but only as far as necessary** to avoid the absurdity.

Lord Wensleydale in ***Grey v. Pearson* (1857)**: "the grammatical and ordinary sense of the words is to be adhered to unless that would lead to some absurdity… in which case [it] may be modified so as to avoid that absurdity… but no further."

Cases

- ***R v. Allen* (1872)**: bigamy was defined as "whoever being married shall **marry** another". A second marriage is legally void, so literally no one could ever "marry" a second time. "Marry" was read as "**go through a form of marriage**".
- ***Re Sigsworth* (1935)**: a son who **murdered his mother** was not allowed to inherit from her, even though the succession statute literally entitled him to.
- *Adler v. George* (1964): "**in the vicinity of**" a prohibited place was read to include "**in**" the place.
- ***Tirath Singh v. Bachittar Singh* (1955)**: a provision requiring notice "to persons" was read narrowly to avoid the absurdity of having to give notice to everyone.
- ***State of Punjab v. Qaisar Jehan Begum* (1963)**: the "**date of the award**" meant the date the party **came to know** of it, not the date it was signed.

Merit: it avoids absurd results while keeping close to the text. **Demerit:** what counts as "absurd" is **subjective**.

4. Mischief rule (Heydon's rule)

Origin. *Heydon's Case* (1584). This is the **oldest** of the rules. The court must consider four things:

1. What was the **law before** the Act?
2. What was the **mischief or defect** the old law did not cover?
3. What **remedy** has Parliament provided?
4. What is the **true reason** for the remedy?

The court must then adopt the meaning that **suppresses the mischief and advances the remedy**.

Cases

- ***Smith v. Hughes* (1960)**: prostitutes were charged with soliciting "**in a street**". They had solicited from **balconies and windows**. They were held liable, because the mischief was the harassment of people in the street.
- *Corkery v. Carpenter* (1951): a **bicycle** was held to be a "carriage".
- ***Bengal Immunity Co. v. State of Bihar* (1955)**: Art. 286 was interpreted to prevent multiple taxation of inter-State sales.
- ***Kanwar Singh v. Delhi Administration* (1965)**: "**owner**" of stray cattle included a person in **possession or control** of them.
- *Alamgir v. State of Bihar* (1959).
- *Sodra Devi v. CIT* (1957): "individual" included **women**.

Modern form. The mischief rule has developed into the broader **purposive approach**: read the statute to carry out its purpose (*Pepper v. Hart*, 1993).

Merits: it gives effect to legislative purpose and avoids injustice. **Demerits:** judges get wide discretion, and finding the original "mischief" in old records can be difficult.

5. Harmonious construction

Rule. When two provisions in the same statute, or in two statutes, appear to **conflict**, the court must try to **reconcile them** so that **both have effect**. One provision must not be read in a way that makes the other **useless**. The statute is read **as a whole**.

Principles from *CIT v. Hindustan Bulk Carriers* (2003)

- Avoid a **head-on clash** between provisions.
- One provision cannot be used to **defeat** another unless reconciliation is impossible.
- If they cannot be fully reconciled, give effect to **both as far as possible**.
- Neither provision should become a **dead letter**.

Cases

- ***Venkataramana Devaru v. State of Mysore* (1958)**: Art. 25(2)(b) (throwing open Hindu temples to all classes) appeared to conflict with Art. 26(b) (a denomination's right to manage its religious affairs). They were harmonised: the temple was open to all, but the denomination could **exclude the public from certain special ceremonies**.
- ***Re Kerala Education Bill* (1957)**: Fundamental Rights and Directive Principles should be harmonised.
- *Sri Shankari Prasad v. UOI* (1951): Articles 13 and 368 were harmonised.
- *M.S.M. Sharma v. Sri Krishna Sinha* (1959): Art. 19(1)(a) and legislative privileges were harmonised.

This rule is the modern equivalent of Mimansa's **Samanjasya** principle.

6. Rule of last antecedent

Rule. Qualifying words or phrases normally refer to the **nearest preceding word** (the last antecedent), and not to all the earlier words, **unless the context shows otherwise**.

Example. In "a dog, a horse or a cat that is black", "that is black" qualifies only "cat".

Exception. If a **comma** separates the qualifying phrase from all the antecedents, or the sense requires it, the phrase may apply to **all of them**.

Indian courts treat this rule only as an **aid**. It gives way to the **context and intention** of the statute (*Lockhart v. United States*, 2016, is a modern US example of the rule).

7. Non-obstante clause

Meaning. A clause beginning "**Notwithstanding anything contained in…**". It gives the provision **overriding effect** over the provisions or laws it names, but **only where there is a conflict**.

Principles

- If there is **no conflict**, the clause has no work to do.
- It must be read together with the **enacting part** of the section. It does not cut down the enacting part.
  - *Aswini Kumar Ghosh v. Arabinda Bose* (1952);
  - ***Chandavarkar Sita Ratna Rao v. Ashalata Guram* (1986)**;
  - *R.S. Raghunath v. State of Karnataka* (1992).
- When **two statutes both contain non-obstante clauses**, the courts usually prefer the **later** statute or the **special** one, after looking at the purpose of each (*Solidaire India v. Fairgrowth Financial Services*, 2001).

Examples: IBC s.238; Art. 31C of the Constitution.

8. Legal fiction

Meaning. The law **deems** something to exist, or treats one thing as another, even though in reality it is not so. Typical words are "**deemed**", "**as if**", and "**shall be treated as**".

Principle. Lord Asquith in ***East End Dwellings Co. v. Finsbury Borough Council* (1952)**: if you are told to imagine a state of affairs as real, you must also imagine as real all its **inevitable consequences**. "**Your imagination must not boggle**" at the corollaries.

This was adopted in India in ***State of Bombay v. Pandurang Vinayak* (1953)**.

Limit. A legal fiction must be **confined to the purpose** for which it was created. It cannot be extended beyond that purpose (*Bengal Immunity*, 1955; *CIT v. Amarchand Shroff*, 1963).

Examples:

- a company treated as a legal person;
- an adopted child treated as a natural child;
- the deemed partition under s.6 of the Hindu Succession Act.

9. Conjunctive and disjunctive words: "and" / "or"

Ordinary meaning

- "**And**" is **conjunctive**: all the conditions must be satisfied.
- "**Or**" is **disjunctive**: any one of the alternatives is enough.

Exception. If the ordinary reading would cause **absurdity** or defeat the clear **intention** of the legislature, the court may read "and" as "or", or "or" as "and".

- *R v. Oakes* (1959): "**and**" was read as "**or**" to avoid an absurd result.
- *Joint Director of Mines Safety v. Tandur & Nayandgi Stone Quarries* (1987) is also cited on this point.

Courts do this **only when necessary**, as an application of the golden rule.

10. Construction of general words

(a) Ejusdem generis ("of the same kind")

Rule. When **general words follow a list of specific words** that form a single class (genus), the general words are **limited to things of the same class**.

Example. In "dogs, cats and other animals", "other animals" means other **domestic** animals, not lions or tigers.

Conditions (*Amar Chandra Chakraborty v. Collector of Excise*, 1972)

1. There is a **list of specific words**.
2. The specific words form a **distinct class or genus**.
3. The class is **not exhausted** by the list.
4. **General words follow** the list.
5. There is **no contrary intention** in the statute.

Cases

- ***Powell v. Kempton Park Racecourse* (1899)**: "house, office, room or **other place**" used for betting. The specific words described **indoor places**, so an **open-air enclosure** was not covered.
- *Evans v. Cross* (1938): painted white lines on a road were not a "**traffic sign**".
- *Kochuni v. State of Madras* (1960).
- *U.P. State Electricity Board v. Hari Shankar Jain* (1978).
- *Lilavati Bai v. State of Bombay* (1957): the rule was **not applied**, because the legislature clearly intended a wider meaning.

(b) Noscitur a sociis ("a word is known by the company it keeps")

Rule. The meaning of an unclear word is found by looking at the **words around it**. This is **wider** than ejusdem generis; ejusdem generis is really one application of it.

Cases

- *Foster v. Diphwys Casson* (1887): "case or canister" for carrying explosives did **not include a cloth bag**.
- *Pengelly v. Bell Punch Co.* (1964): "floors, steps, stairs, passages" meant floors used for **passage**, not for storage.
- ***State of Bombay v. Hospital Mazdoor Sabha* (1960)**: the court did not narrow "**industry**", and a hospital was held to be an industry.
- ***Rainbow Steels v. CST* (1981)**: "old, discarded, unserviceable or obsolete machinery". "Old" took its colour from the other words and meant **no longer usable**.
- *Godfrey Phillips v. State of U.P.* (2005): "**luxuries**", read with "entertainment, amusement, betting", did **not include tobacco**.

(c) Reddendo singula singulis (“referring each to each”)

Rule. Where a sentence has **several subjects and several objects**, each is matched with its **appropriate** partner (read distributively).

Example. “If anyone shall **draw or load** any **sword or gun**” is read as “**draw a sword** or **load a gun**”. One does not “load” a sword.

(d) Words of rank

Rule. When general words follow words of a **particular rank**, they cover only persons or things of **equal or lower rank**, never higher.

Examples

- “Deans, archdeacons, parsons and **others having spiritual promotion**” did **not include bishops**, who rank higher.
- “Earls, barons and **other nobles**” did **not include dukes**.

Related maxims

- ***Expressio unius est exclusio alterius***: express mention of one thing excludes others.
- ***Generalia specialibus non derogant***: a general provision does not override a special one.

MODULE 3: INTERNAL AND EXTERNAL AIDS TO INTERPRETATION

When the words of a statute are unclear, the court looks for help. **Internal aids** are found **within the statute**. **External aids** come from **outside** it.

1. Internal aids

(a) Long title and short title

- The **long title** describes the purpose of the Act. It may be used to resolve ambiguity.
- The **short title** is only a label for identification.

(b) Preamble The preamble sets out the **object and reasons** for the Act. It has been called the “**key to open the mind of the legislature**”.

- It can be used **only where the enacting words are ambiguous**. It **cannot override** clear words (*A.G. v. Prince Ernest Augustus of Hanover*, 1957; *Burrakur Coal Co. v. UOI*, 1961).
- For the Constitution: ***Re Berubari Union* (1960)** held the Preamble was **not part** of the Constitution. ***Kesavananda Bharati* (1973)** overruled this and held that the Preamble **is part of the Constitution** and an important aid to interpreting it.

(c) Definition clauses

- "**Means**": the definition is **exhaustive**. Nothing else is included.
- "**Includes**": the definition is **extensive**. It adds to the ordinary meaning.
- "**Means and includes**": the definition is **exhaustive** (*P. Kasilingam v. PSG College of Technology*, 1995).
- Definitions apply "**unless the context otherwise requires**".

(d) Headings Headings over a section or group of sections act like a **preamble** to them. They can help **resolve doubt**, but they **cannot control the clear meaning** of the section (***Bhinka v. Charan Singh*, 1959**; *Frick India v. UOI*, 1990).

(e) Marginal notes These are short notes printed beside a section, usually added by the draftsman and not voted on by the legislature. So they carry **little weight**. In the **Constitution**, however, the marginal notes were adopted by the Constituent Assembly, so they are given more weight (*Bengal Immunity*, 1955).

(f) Illustrations Illustrations (as in the BNS and the Evidence Act) show how a section works. They **cannot restrict or expand** the section. If an illustration conflicts with the section, the **section prevails** (***Shambhu Nath Mehra v. State of Ajmer*, 1956**).

(g) Proviso A proviso ("**Provided that…**") normally **makes an exception to, or qualifies,** the main provision. It does not usually expand it.

***S. Sundaram Pillai v. V.R. Pattabiraman* (1985)** listed four roles of a proviso:

1. to **qualify or make an exception** to the main provision;
2. to **change the concept** of the main provision by adding mandatory conditions;
3. to become an **integral part** of the provision, taking on the character of a substantive enactment;
4. to act as an **optional addendum** that only explains the provision.

See also *Shah Bhojraj Kuverji Oil Mills v. Subhash Chandra Yograj Sinha* (1961).

(h) Explanation An explanation **clarifies** the meaning of the main provision, removes doubts, or fills a gap. It does not normally enlarge the section. An explanation added "**for removal of doubts**" can, however, widen its scope. *S. Sundaram Pillai* (1985) also set out the objects of an explanation.

(i) Schedule A schedule is the **appendix** to an Act (forms, lists, details). It is **part of the statute** and is read with it. If the schedule **conflicts** with the main body of the Act, the **main body prevails** (***Aphali Pharmaceuticals v. State of Maharashtra*, 1989**).

(j) Punctuation Older courts gave punctuation **little weight**, because it was not enacted (*Aswini Kumar Ghosh*, 1952). In modern, carefully drafted statutes, punctuation **can matter** (*Mohd. Shabbir v. State of Maharashtra*, 1979, where a comma affected the meaning).

(k) The statute as a whole Under the maxim ***ex visceribus actus***, the statute is construed from within itself, reading all its parts together.

2. External aids

(a) Parliamentary history: debates and proceedings in the legislature This includes speeches made while a Bill was debated, the **Statement of Objects and Reasons**, committee reports, and amendments that were proposed.

English position

- The traditional **exclusionary rule** said courts could not look at Parliamentary debates.
- ***Pepper v. Hart* (1993)** relaxed this. **Hansard** (the record of debates) may be used where:
    1. the law is **ambiguous**, obscure, or leads to absurdity;
    2. the statement relied on was made by a **Minister or the promoter** of the Bill;
    3. the statement is **clear**.

Indian position

- Earlier cases did **not** allow debates to be used (*Aswini Kumar Ghosh*, 1952).
- The **Statement of Objects and Reasons** may be used to understand the **background and the mischief**, but **not** to control the meaning of the words (*State of W.B. v. Subodh Gopal Bose*, 1954).
- ***K.P. Varghese v. ITO* (1981)**: the **Finance Minister's speech** introducing the Bill was used to interpret s.52(2) of the Income Tax Act.
- ***R.S. Nayak v. A.R. Antulay* (1984)**: reports of committees and the Law Commission may be used to find the mischief. Parliamentary history may also be used where the words are ambiguous.
- *Kesavananda Bharati* and *Indra Sawhney* referred to the **Constituent Assembly Debates**.

Present position: Parliamentary history is a **useful aid** for understanding context and purpose, but it is **not conclusive**.

(b) Socio-economic and technological developments A statute is "**always speaking**". It should be read in the light of **present conditions** (this is called **updating** or dynamic construction).

- ***State of Punjab v. Amritsar Beverages* (2006)**: "**books of account**" included **computer hard discs**.
- *Senior Electric Inspector v. Laxminarayan Chopra* (1962): "telegraph line" included **wireless**.
- *National Textile Workers' Union v. P.R. Ramakrishnan* (1983): law cannot stand still while society changes.

(c) Reference to other statutes

- **Statutes in pari materia** (on the **same subject**) are read **together** as one system (*State of Madras v. Vaidyanatha Iyer*, 1958).

- **Earlier and repealed statutes** show the mischief the new law was meant to address.
- **Later statutes** may explain an earlier ambiguous one.
- Definitions borrowed from **unrelated** statutes are used **cautiously**.

(d) International conventions Where domestic law is **silent or ambiguous**, courts may use **international conventions** India has signed, as long as they are **consistent with domestic law** (Arts. 51(c) and 253).

- ***Vishaka v. State of Rajasthan* (1997)**: **CEDAW** was used to frame guidelines against sexual harassment at the workplace.
- ***Jolly George Varghese v. Bank of Cochin* (1980)**: the **ICCPR** was used to interpret the CPC on arrest for debt.
- *NALSA v. UOI* (2014): international principles were used to recognise the rights of transgender persons.
- *PUCL v. UOI* (1997): telephone tapping.

(e) Committee reports and Law Commission reports These help identify the **mischief and the purpose** of the law (*R.S. Nayak*, 1984; *Rosy v. State of Kerala*, 2000; *Santa Singh v. State of Punjab*, 1976).

(f) Other external aids

- **Dictionaries**: used for the ordinary meaning of words that are not defined, but the **context prevails** over the dictionary.
- **Textbooks**, **foreign decisions**, and **historical background**.
- **Contemporaneous exposition**: how the law was understood when it was made (*contemporanea expositio est optima et fortissima in lege*).
- **Usage**: long-established practice.

MODULE 4: APPROACHES, RESTRAINTS AND PRESUMPTIONS IN INTERPRETATION

1. Theoretical and ideological approaches

Judges approach statutes with different **theories** of interpretation:

1. **Textual / literal**: the text is supreme.
2. **Intentionalist**: find what the legislature actually intended when it enacted the law.
3. **Purposive / teleological**: read the law to achieve its purpose.
4. **Dynamic / evolutive**: the law adapts to changing times.
5. **Sociological** (Roscoe Pound): law as a tool of **social engineering**, so interpretation should promote social welfare.
6. **Realist**: law is what judges actually decide.
7. **Natural law**: interpretation should be consistent with justice and morality.

The judge's **ideology** (liberal, conservative, rights-oriented, welfare-oriented) also influences which approach they choose.

2. Judicial activism and judicial restraint

Judicial activism Courts take an **active role**: they go beyond the literal text to protect **rights**, fill **gaps** left by the legislature, and hold the executive accountable.

Indian examples:

- ***Golak Nath* (1967)**;
- ***Kesavananda Bharati* (1973)**: the basic structure doctrine;
- ***Maneka Gandhi* (1978)**: expansion of Art. 21;
- **Public interest litigation**: *S.P. Gupta* (1981), *Hussainara Khatoon* (1979), the *M.C. Mehta* environmental cases;
- ***Vishaka* (1997)**: guidelines in the absence of legislation;
- *Olga Tellis* (1985): the right to livelihood;
- ***K.S. Puttaswamy* (2017)**: the right to privacy;
- ***Navtej Singh Johar* (2018)**.

Merits: protects rights, gives voice to the weak, ensures accountability. **Criticism:** called **judicial overreach** or "judicial legislation". It is said to violate the separation of powers, and judges are **not elected**.

Judicial restraint Judges **defer to the legislature and executive**. They decide only what is necessary, **presume laws are constitutional**, and do not replace policy choices with their own views.

Examples:

- *A.K. Gopalan* (1950);
- ***Divisional Manager, Aravali Golf Club v. Chander Hass* (2008)**: Justice Katju warned judges to know their limits and not try to run the government;
- *Almitra Patel v. UOI* (2000).

Juristic activism and juristic restraint These terms describe the approach of **legal scholars (jurists)** rather than judges.

- **Juristic activism**: scholars who favour **creative, reform-oriented** interpretation. Examples: Upendra Baxi on PIL; Ronald Dworkin's idea of the judge as "Hercules" who seeks the best interpretation of the law as a whole.
- **Juristic restraint**: scholars who favour **positivist** interpretation, where judges declare the law but do not make it. Examples: H.L.A. Hart and John Austin.

Conclusion: a **balance** is needed. Activism is justified when fundamental rights are at stake or the other branches have failed. Restraint is the normal rule, out of respect for the **separation of powers**.

3. Presumptions in interpretation

Courts assume certain things about legislative intention **unless the statute clearly says otherwise**.

(a) Presumption against ousting established jurisdiction The jurisdiction of **civil courts** is not lightly taken away. Any exclusion must be **express or clearly implied** (CPC s.9).

***Dhulabhai v. State of M.P.* (1969)** laid down the principles:

- When a statute makes a tribunal's order **final**, civil court jurisdiction is excluded **only if** an **adequate alternative remedy** is provided.
- Even then, a civil court can step in where the tribunal **did not follow the Act** or the basic principles of judicial procedure.
- A challenge that the Act is **ultra vires** can still be brought in a civil court.
- Exclusion of jurisdiction is **not readily inferred**.

See also *Secretary of State v. Mask & Co.* (1940).

Clauses saying an order "**shall be final**" or "**shall not be questioned in any court**" **cannot exclude** the writ jurisdiction of the High Courts and the Supreme Court under **Arts. 226 and 32**, because **judicial review is part of the basic structure** (***L. Chandra Kumar v. UOI*, 1997**).

(b) Presumption against creating new jurisdiction or enlarging existing jurisdiction Courts presume the legislature does **not** intend to create **new jurisdiction** or **enlarge** the jurisdiction of an existing court, unless it uses **clear words**. Provisions conferring jurisdiction are **strictly construed**.

- ***A.R. Antulay v. R.S. Nayak* (1988)**: even the Supreme Court cannot confer jurisdiction on a court where the statute has not given it.
- *Kiran Singh v. Chaman Paswan* (1954): a decree passed by a court without jurisdiction is a **nullity**.

(c) Presumption about territorial extent of jurisdiction A legislature is presumed to legislate **only for its own territory**.

- **Parliament** may make laws with **extra-territorial operation** (Art. 245(2)), especially where there is a connection with India (*GVK Industries v. ITO*, 2011).
- **State laws** are valid outside the State's borders only where there is a **sufficient territorial nexus**. ***State of Bombay v. R.M.D.C.* (1957)**: a prize competition run from a Bangalore newspaper and circulated in Bombay had a sufficient nexus with Bombay. See also *Tata Iron & Steel Co. v. State of Bihar* (1958).

(d) Presumption against violation of international law Statutes are presumed to be **consistent with international law** and India's **treaty obligations**. Where two readings are possible, the one consistent with international law is preferred. But if the statute is **clear** and conflicts with international law, the **statute prevails**.

***Gramophone Co. of India v. Birendra Bahadur Pandey* (1984)** adopted the **doctrine of incorporation**: rules of international law are part of national law **unless they conflict with an Act of Parliament**.

Other presumptions

- against **retrospective** operation;
- against **absurdity and injustice**;
- against taking away **vested rights**;
- that **mens rea** is required in criminal offences;
- that a statute **does not bind the State** unless it says so expressly or by necessary implication;
- in favour of **constitutionality**;
- that the legislature does not use **words without meaning**.

MODULE 5: MODES OF INTERPRETATION OF THE CONSTITUTION

1. How constitutional interpretation differs from statutory interpretation

The Constitution is the **supreme law** (the *grundnorm*). It is a **living, organic document** meant to last for generations and to govern unforeseen situations. It must therefore be interpreted **broadly, liberally and purposively**, not like an ordinary statute.

Chief Justice Marshall in ***McCulloch v. Maryland* (1819)**: "we must never forget that it is **a constitution** we are expounding", one "intended to endure for ages to come."

Constitution	Ordinary statute
Supreme law	Subordinate to the Constitution
Interpreted liberally and dynamically	Interpreted according to the rules for its type (often strictly)
Involves political, social and moral values	Mostly technical
Hard to amend; basic structure limits apply	Easy to amend

Indian cases: *Kesavananda Bharati* (1973); *Maneka Gandhi* (1978); *M. Nagaraj v. UOI* (2006), which described the Constitution as a living document.

2. Approaches to constitutional interpretation

(a) Textualist Focuses on the **words** of the text. ***A.K. Gopalan* (1950)** read "**procedure established by law**" in Art. 21 literally, to mean any procedure laid down by an enacted law. This was later rejected in *Maneka Gandhi*.

(b) Originalist Seeks the meaning the framers intended **at the time of framing**. It is popular in the USA (Justice Scalia) but used **sparingly** in India.

(c) Harmonious construction Reconciles different provisions. Examples: reconciling **Fundamental Rights and Directive Principles** (*Re Kerala Education Bill*, 1957; ***Minerva Mills*, 1980**).

(d) Historical interpretation Looks at the **historical background**: the freedom struggle, the Government of India Act 1935, and the making of the Constitution.

(e) Constituent Assembly Debates (CAD)

- **Earlier view:** *A.K. Gopalan* (1950) held the debates should not be used to interpret the text, though they could be referred to for historical background.
- **Later view:** the debates are a **legitimate aid** to understanding the framers' intention. Used in *Kesavananda Bharati* (1973), *Indra Sawhney* (1992), the ***Second Judges Case* (1993)**, and *S.R. Bommai* (1994).
- They are an aid, **not binding**.

(f) Structuralist interpretation Reasons from the **structure** of the Constitution: federalism, separation of powers, democracy, and the relationships between institutions. The **basic structure doctrine** is the best example.

(g) Pith and substance When a law passed by one legislature **incidentally touches** a subject in another legislature's list (Seventh Schedule), the court looks at the **true nature and character** (pith and substance) of the law. If, in substance, the law falls within the enacting legislature's competence, it is **valid** even though it incidentally affects the other field.

- ***Prafulla Kumar Mukherjee v. Bank of Commerce, Khulna* (1947)**: a State moneylending law that incidentally affected promissory notes (a Union subject) was upheld.
- ***State of Bombay v. F.N. Balsara* (1951)**: the Bombay Prohibition Act was upheld even though it affected imports.
- The related doctrine of **colourable legislation** says a legislature cannot do **indirectly** what it cannot do directly (*K.C. Gajapati Narayan Deo v. State of Orissa*, 1953).

(h) Occupied field and repugnancy (Art. 254) For subjects in the **Concurrent List**, if a State law is **repugnant** to a Union law, the **Union law prevails** to the extent of the repugnancy. A State law that has received the **President's assent** prevails within that State (Art. 254(2)).

Tests of repugnancy (***M. Karunanidhi v. UOI*, 1979**; *Deep Chand v. State of U.P.*, 1959):

1. there is a **direct conflict** between the two laws; or
2. Parliament intended its law to be a **complete code** (it "occupies the field"); or
3. both laws deal with the **same subject matter**.

(i) Residuary power Under **Art. 248** and **Entry 97 of List I**, Parliament has power over any matter not listed in the State or Concurrent Lists.

- ***Union of India v. H.S. Dhillon* (1972)**: wealth tax including agricultural land was upheld under the residuary power.
- *Kartar Singh v. State of Punjab* (1994): TADA was upheld partly under the residuary power.

(j) Amending power (Art. 368) How far can Parliament amend the Constitution?

- *Shankari Prasad* (1951) and *Sajjan Singh* (1965): Parliament could amend **any part**, including Fundamental Rights.
- ***Golak Nath* (1967)**: Parliament **cannot amend Fundamental Rights**.
- ***Kesavananda Bharati* (1973)**: Parliament can amend any part but **cannot destroy the basic structure**.
- ***Minerva Mills* (1980)**: a **limited** amending power is itself part of the basic structure.
- *I.R. Coelho* (2007): laws placed in the Ninth Schedule are open to basic structure review.
- *Fourth Judges Case* (2015): the NJAC amendment was struck down.

(k) Moral reasoning and national ethos Interpretation guided by **constitutional morality**: the core values of dignity, liberty, equality and fraternity.

- ***Navtej Singh Johar* (2018)**: **constitutional morality prevails over popular or social morality**.
- *Sabarimala case* (2018).
- *Joseph Shine v. UOI* (2018).
- *Manoj Narula v. UOI* (2014).

(l) Directive Principles as a source of interpretation DPSPs are **not enforceable** in court (Art. 37), but they are "**fundamental in the governance**" of the country. Courts use them to **give content to Fundamental Rights** and to judge whether restrictions are **reasonable**.

- *State of Madras v. Champakam Dorairajan* (1951): DPSPs were treated as subordinate to FRs.
- Later cases moved to harmonising them:
  - ***Minerva Mills* (1980)**: the balance between FRs and DPSPs is part of the basic structure;
  - ***Unni Krishnan* (1993)**: the right to education was read into Art. 21;
  - *Olga Tellis* (1985): livelihood;
  - *Bandhua Mukti Morcha* (1984);
  - *State of Gujarat v. Mirzapur Moti Kureshi Kassab Jamat* (2005): Art. 48 was used to uphold a ban on cow slaughter.

(m) Stare decisis Courts follow **precedent** for certainty and consistency.

- **Art. 141**: the law declared by the Supreme Court **binds all courts** in India.

- The **ratio decidendi** binds; **obiter dicta** are only persuasive.
- A **larger bench binds smaller benches**. A bench of equal strength that disagrees must **refer** the question to a larger bench (*Central Board of Dawoodi Bohra Community v. State of Maharashtra*, 2005).

3. Pragmatism, the techniques of innovation, and overruling

Pragmatist interpretation The judge considers the **practical consequences** of a decision: what works best for society. It is associated with **Holmes and Posner**. Many Indian PIL and environmental decisions reflect pragmatism.

Techniques of innovation (or subversion) of stare decisis These are the methods judges use to **avoid being bound** by an earlier precedent:

1. **Distinguishing**: the facts of the present case are materially different.
2. **Per incuriam**: the earlier decision ignored a statute or a binding precedent.
3. **Sub silentio**: the point in question was not argued or considered.
4. **Treating the earlier statement as obiter**, not ratio.
5. **Narrowing** the ratio to its facts.
6. **Changed circumstances**.
7. **Reference to a larger bench**.
8. **Overruling**.
9. **Prospective overruling**.

The Supreme Court's power to overrule The Supreme Court is **not bound by its own earlier decisions** (***Bengal Immunity*, 1955**). It may overrule a decision that is clearly wrong, through a **larger bench**. Examples:

- *Golak Nath* was overruled by *Kesavananda*;
- *A.K. Gopalan* was effectively overruled by *Maneka Gandhi*;
- ***ADM Jabalpur* (1976)** was overruled by *Puttaswamy* (2017);
- *Suresh Kumar Koushal* (2013) was overruled by *Navtej Johar* (2018).

Prospective overruling The new rule applies **only to the future**. Past transactions decided under the old rule are left undisturbed. The doctrine comes from American law.

***Golak Nath* (1967)** applied it for the first time in India. It held that Parliament could not amend Fundamental Rights **in future**, but the earlier amendments (the 1st, 4th and 17th) **remained valid**. It set these limits:

- it applies only to **constitutional matters**;
- only the **Supreme Court** can use it;
- the extent of retrospective effect is in the court's discretion.

Later cases extended it, including to statutes: *India Cement v. State of T.N.* (1990); *Ashok Kumar Gupta v. State of U.P.* (1997); *Somaiya Organics v. State of U.P.* (2001).

Retrospective overruling Under the traditional **declaratory theory** (Blackstone), judges do not make law; they only **declare** what it always was. So when a precedent is

overruled, the new rule applies **retrospectively**, as if it had always been the law. Cases already finally decided (res judicata) are not reopened.

In India, overruling is **ordinarily retrospective**. It is prospective only if the court **expressly** says so (*M.A. Murthy v. State of Karnataka*, 2003).

4. Advisory jurisdiction and precedent

Under **Art. 143**, the **President** may refer a question of **law or fact** of public importance to the Supreme Court. The Court **may** give its opinion. It must be heard by at least **five judges** (Art. 145(3)). The Court can **decline** to answer (*Ismail Faruqui*, 1994, on the Ayodhya reference).

Is an advisory opinion binding?

- ***Re Special Courts Bill* (1978)**: the opinion does **not bind the President**, but it carries **great weight** and **binds lower courts** under Art. 141.
- ***Re Cauvery Water Disputes Tribunal* (1991)**: the opinion deserves respect and is **binding like any law declared** by the Supreme Court.
- In practice, the Government always follows it. Examples: the ***Third Judges Case* (Special Reference No. 1 of 1998)**, *Keshav Singh* (1964), *Re Berubari* (1960), *Re Kerala Education Bill* (1957), and the 2G natural resources reference (2012).

5. Objections to judicial review as anti-majoritarian

The objection. Alexander Bickel called this the "**counter-majoritarian difficulty**". When **unelected judges** strike down laws passed by **elected representatives**, they **override the will of the majority**, which seems **undemocratic**. Critics also argue that judicial review:

- weakens the separation of powers;
- lets judges impose their **personal values**;
- leads to **judicial supremacy**.

The NJAC judgment (2015), which struck down an amendment passed almost unanimously, is often cited as an example.

The answers

1. **The Constitution itself is the will of the people**, a higher law. When courts enforce it against a temporary majority, they enforce the people's deeper will (Hamilton in *Federalist No. 78*; *Marbury v. Madison*, 1803).
2. Judicial review **protects minorities and fundamental rights** from the "**tyranny of the majority**".
3. **John Hart Ely** argued that courts **reinforce democracy** by keeping the political process open and fair.
4. **Dworkin** described courts as a "**forum of principle**", where rights are decided on principle rather than politics.

5. In India, judicial review is **expressly provided** for (Arts. 13, 32, 226) and is part of the **basic structure** (*Kesavananda*; *Indira Gandhi v. Raj Narain*, 1975; *Minerva Mills*, 1980; *L. Chandra Kumar*, 1997).
6. Courts limit themselves through **self-restraint** and the **presumption of constitutionality**.

Conclusion: judicial review is a necessary part of **constitutional democracy**, as long as it is exercised with **restraint and principled reasoning**.

MODULE 6: CONSTRUCTION OF PENAL, TAXING AND REMEDIAL STATUTES

1. Strict construction of taxing statutes

Rule. Tax can be imposed **only by clear words**. Courts do not use **intendment, equity or presumption** in favour of a tax. If the words are **ambiguous**, the benefit goes to the **taxpayer**. Under **Art. 265**, no tax may be levied or collected **except by authority of law**.

Rowlatt J. in ***Cape Brandy Syndicate v. IRC* (1921)**: "In a taxing Act one has to look merely at what is clearly said. There is no room for any intendment. There is no equity about a tax. There is no presumption as to a tax. Nothing is to be read in, nothing is to be implied."

Indian cases

- ***A.V. Fernandez v. State of Kerala* (1957)**: if a person falls within the **letter of the law**, they must pay, however great the hardship. If they do not, they cannot be taxed, however much the case seems to fall within the **spirit** of the law.
- ***Mathuram Agrawal v. State of M.P.* (1999)**: the **charging provision** must clearly state **who** is taxed, **what** is taxed, and at **what rate**.
- *Govind Saran Ganga Saran v. CST* (1985): the four components of a tax (the taxable event, the person taxed, the rate, and the measure of value) must all be clear.

Exemption notifications *Commissioner of Customs v. Dilip Kumar & Co.* (2018, Constitution Bench) held:

- exemption provisions are interpreted **strictly**;
- the **burden** of showing that the exemption applies is on the **assessee**;
- any **ambiguity in an exemption is resolved in favour of the revenue**, not the taxpayer.

This overruled *Sun Export* (1997). Once eligibility is established, however, the exemption is applied **liberally**.

Machinery provisions (those dealing with assessment and collection) are construed **liberally**, so that the tax can actually be collected.

Tax avoidance. *McDowell & Co. v. CTO* (1985) held that **colourable devices** are not legitimate tax planning. ***Azadi Bachao Andolan* (2003)** and ***Vodafone* (2012)** held that **genuine tax planning** is permissible.

2. Strict construction of penal statutes and its limits

Rule. Penal statutes are construed **strictly in favour of the accused**. If two reasonable interpretations are possible, the court adopts the one that is **more lenient** to the accused (the **rule of lenity**). No one is punished unless the case falls **clearly within the words** of the statute.

Basis

- the maxim ***nullum crimen sine lege, nulla poena sine lege*** (no crime and no punishment without law);
- Arts. 20(1) and 21;
- the citizen is entitled to **fair notice** of what is forbidden;
- the **legislature, not the court**, defines crimes.

Cases

- ***Tolaram Relumal v. State of Bombay* (1954)**: where two reasonable constructions are possible, the court must choose the one that **exempts the subject from penalty**.
- ***W.H. King v. Republic of India* (1952)**: a provision of the Bombay Rent Act penalising a "premium" was strictly construed.
- ***Sakshi v. UOI* (2004)**: the court refused to widen the definition of rape by interpretation. That was a matter for the legislature.

Limits of the rule

1. Strict construction does **not** allow the court to defeat the **obvious intention** of the legislature or to adopt a **strained or unnatural** meaning.
2. It applies only where **real ambiguity** remains after using all other aids.
3. In **socio-economic offences** (food adulteration, hoarding, economic crimes), courts prefer a **purposive** reading that suppresses the mischief.
    - ***Murlidhar Meghraj Loya v. State of Maharashtra* (1976)**;
    - ***M.V. Joshi v. M.U. Shimpi* (1961)**: "butter" included butter made from curd;
    - *Kanwar Singh* (1965);
    - *Alamgir* (1959).
4. **Vague penal laws** may be struck down as unconstitutional (*Kartar Singh*, 1994; ***Shreya Singhal v. UOI*, 2015**, striking down s.66A of the IT Act).

3. Mens rea in statutory offences and the BNS

Meaning. ***Actus non facit reum nisi mens sit rea***: an act does not make a person guilty unless the mind is also guilty.

Presumption. Mens rea is presumed to be required for every offence, **unless the statute excludes it expressly or by necessary implication**.

- ***Sherras v. De Rutzen* (1895)**.
- ***Sweet v. Parsley* (1970)**: a landlady who did not know her tenants were using cannabis on the premises was **not guilty**.
- *Brend v. Wood* (1946).

Indian cases

- ***Nathulal v. State of M.P.* (1966)**: a dealer stored foodgrains while his licence application was pending, honestly believing it was allowed. He was **acquitted**, because mens rea was required and was absent.
- ***State of Maharashtra v. Mayer Hans George* (1965)**: a passenger carrying gold **in transit** through India was **convicted** under foreign exchange and customs law, although he did not know of the RBI notification. Mens rea was **excluded by necessary implication** given the object of the law.
- *Ranjit D. Udeshi* (1965): knowledge of obscenity was not required for selling an obscene book.
- *Sarjoo Prasad* (1961): a servant was liable for selling adulterated food without knowledge.

Strict liability offences (no mens rea needed) are usually **regulatory or public welfare** offences: food and drugs, pollution, traffic, weights and measures, and some economic offences. The penalties are usually small.

Mens rea under the BNS The BNS does not use the term “mens rea”, but it uses mental-element words: **“intentionally”, “knowingly”, “voluntarily”, “dishonestly”, “fraudulently”, “rashly”, “negligently”, “reason to believe”**. Examples:

- murder requires **intention or knowledge**;
- theft requires **dishonest intention**;
- cheating requires acting **fraudulently or dishonestly**.

The **General Exceptions** (ss.14–44) recognise the **absence of a guilty mind**: mistake of fact, accident, a child under 7 (s.20), an immature child between 7 and 12 (s.21), unsoundness of mind (s.22), and involuntary intoxication.

Some offences are effectively **strict liability**. For example, in sexual offences against a girl under 18, consent is immaterial. In kidnapping, the accused’s belief about the victim’s age is no defence (*R v. Prince*, 1875).

4. Vicarious liability in statutory offences

General rule. In criminal law there is **no vicarious liability**. A person is punished only for **their own act** done with **their own guilty mind**. The maxim *qui facit per alium facit per se* (whoever acts through another acts himself) belongs to **civil law**, not criminal law.

Exception. A **statute** may expressly or impliedly make one person liable for another's act.

(a) Offences by companies. Many statutes provide that when a company commits an offence, **every person in charge of and responsible for its business** at the time is also deemed guilty, unless they prove **lack of knowledge** or **due diligence**. Examples:

- NI Act s.141;
- Food Safety Act s.66;
- Environment (Protection) Act s.16;
- Drugs and Cosmetics Act s.34;
- IT Act s.85.

(b) Employer and employee. For example, a licence holder may be liable for the acts of their servants.

Cases

- ***Mousell Bros. v. London & North Western Railway* (1917)**: a company was liable for false invoices made by its manager. Whether vicarious liability applies depends on the **object and words of the statute**, the **nature of the duty**, and **who would ordinarily perform it**.
- ***Sarjoo Prasad v. State of U.P.* (1961)**: a servant who sold adulterated oil was liable even without knowledge.
- ***State of Maharashtra v. Syndicate Transport* (1964)**: a company can be criminally liable.
- ***Standard Chartered Bank v. Directorate of Enforcement* (2005)**: a company can be prosecuted even for offences carrying **mandatory imprisonment**; a fine is imposed instead.
- ***Iridium India v. Motorola* (2011)**: a company can have mens rea through its **"directing mind and will"** (the doctrine of attribution).
- ***Aneeta Hada v. Godfather Travels* (2012)**: under NI Act s.141, a director can be prosecuted only if **the company is also made an accused**.
- ***Sunil Bharti Mittal v. CBI* (2015)**: a director is **not automatically liable** for the company's offence unless the statute says so or there is evidence of **active personal involvement**.
- *S.M.S. Pharmaceuticals v. Neeta Bhalla* (2005): the complaint must **specifically state** that the director was in charge of and responsible for the business.

5. Remedial vs penal statutes

Remedial (beneficial or welfare) statutes provide a **remedy or benefit**, or improve the condition of a class of people. Examples: Workmen's Compensation, Industrial Disputes, Maternity Benefit, Payment of Gratuity, Consumer Protection, Domestic Violence, and Rent Control Acts.

Penal statutes impose **punishment** (fines, imprisonment, forfeiture). Examples: the BNS and NDPS Act.

Remedial statute	Penal statute
Gives a remedy or benefit	Imposes punishment
Construed **liberally**, in favour of the beneficiaries	Construed **strictly**, in favour of the accused
Doubt is resolved in favour of the beneficiaries	Doubt is resolved in favour of the accused
Can be retrospective	Cannot be retrospective to the accused's prejudice (Art. 20(1))

A single Act may contain **both** kinds of provision, and each part is read according to its nature.

6. Liberal construction of remedial statutes

Rule. Beneficial legislation is read **liberally** so as to **advance the remedy and suppress the mischief**. Where two meanings are possible, the court chooses the one that **helps the intended beneficiaries**.

Limit. Liberal construction cannot **rewrite the statute** or extend the benefit to people the statute clearly excludes.

Cases

- ***Alembic Chemical Works v. Workmen* (1961)**: in welfare legislation, prefer the interpretation that **benefits the workers**.
- *Workmen of American Express v. Management* (1985): Sundays were counted as working days for gratuity.
- *B. Shah v. Labour Court* (1977): Sundays were included in computing maternity benefit.
- ***Union of India v. Prabhakaran Vijaya Kumar* (2008)**: an accidental fall from a train was held to be an "**untoward incident**" under the Railways Act, so compensation was payable.
- *Bharat Singh v. Management of New Delhi Tuberculosis Centre* (1986).
- *Bangalore Water Supply v. A. Rajappa* (1978): a wide meaning was given to "industry".

MODULE 7: COMMENCEMENT, OPERATION, EXPIRY AND REPEAL OF STATUTES

1. Commencement

A statute comes into force on:

1. the **date stated in the Act**; or
2. the **date notified by the Government** in the Official Gazette (different dates may be fixed for different provisions); or

3. if no date is given, the **date of assent** (GCA s.5).

It takes effect from the **midnight** at the beginning of that day.

Courts cannot compel the Government to bring an Act into force (***A.K. Roy v. UOI*, 1982**; *Aeltemesh Rein v. UOI*, 1988).

Delegated legislation must be published before it takes effect. Without publication it does not come into force (***Harla v. State of Rajasthan*, 1951**).

Example: the BNS, BNSS and BSA came into force on **1 July 2024** by notification.

2. Prospective, retrospective and retroactive operation

- **Prospective:** applies only to **future** acts, after the law begins. **This is the presumption** (*nova constitutio futuris formam imponere debet, non praeteritis*: a new law governs the future, not the past).
- **Retrospective:** applies to **past** acts and transactions. It may take away vested rights or impose new liabilities for things already done. It is **never presumed**. It must be **express or necessarily implied**.
- **Retroactive:** some writers distinguish this. The law operates only **for the future**, but it **relies on past facts**. Example: a law disqualifying persons convicted in the past from contesting **future** elections.

Rules on retrospectivity

1. **Substantive laws** (those affecting rights and liabilities) are **prospective** unless clearly stated otherwise. The **right of appeal is a vested right**, so a later law cannot take it away from a case already begun (***Garikapati Veeraya v. N. Subbiah Choudhry*, 1957**).

2. **Procedural laws** are generally **retrospective** and apply to pending cases, because **no one has a vested right in procedure**. The exception is where a procedural change affects vested rights or creates new disabilities (***Hitendra Vishnu Thakur v. State of Maharashtra*, 1994**).

3. **Penal laws cannot be retrospective** to the accused's **prejudice** (Art. 20(1)): no one can be convicted for an act that was not an offence when done, or given a heavier penalty than the law then allowed. But a **beneficial** penal law can apply retrospectively in the accused's favour.

    - ***Rattan Lal v. State of Punjab* (1965)**: the Probation of Offenders Act was applied to an offence committed before it came into force.
    - *T. Barai v. Henry Ah Hoe* (1983): a reduction in punishment benefits the accused.

4. **Declaratory and clarificatory laws** are retrospective, since they only declare what the law always was (*Zile Singh v. State of Haryana*, 2004).

5. **Validating laws** are retrospective. They can **remove the basis** of a court judgment, but the legislature **cannot simply overrule a judgment** (*S.R. Bhagwat*, 1995; *Madras Bar Association*, 2021).

6. **Taxing laws** can be retrospective if clearly stated, subject to Arts. 14 and 19. The 2012 Vodafone-related retrospective tax amendment was withdrawn in 2021.

7. ***CIT v. Vatika Township* (2014, Constitution Bench)**: the presumption against retrospectivity rests on **fairness**. People should be able to plan their affairs under the law as it stands.

3. Perpetual and temporary statutes

- A **perpetual statute** has **no fixed period**. It lasts until it is **repealed**. "Perpetual" does not mean it can never be repealed.
- A **temporary statute** lasts for a **fixed period** and **expires automatically** at the end of it, unless extended. Examples:
    - TADA (1985–1995);
    - annual Finance Acts;
    - **Ordinances**, which lapse **six weeks after the legislature reassembles** (Arts. 123 and 213) unless replaced by an Act.

A temporary Act may be **extended** by a new law passed **before** it expires. Once it has expired, it can only be brought back by a **fresh enactment**.

4. Effect of expiry of temporary statutes

1. **GCA s.6 does not apply to expiry.** Section 6 protects pending proceedings and liabilities only on **repeal**, and expiry is not repeal. So when a temporary Act expires, **pending prosecutions lapse**, and **no new prosecution** can be started for offences committed while it was in force, **unless the Act contains a saving clause**.
    - ***State of Orissa v. Bhupendra Kumar Bose* (1962)**: this is the general rule. But whether **rights and liabilities** survive also depends on the **construction of the particular statute**. Some may survive even without a saving clause.
    - ***Rayala Corporation v. Director of Enforcement* (1969)**: after a FERA rule lapsed, proceedings under it could not continue, since s.6 does not apply to expiry or omission.
2. **Things already done and completed** under the Act remain **valid**.
3. **Rules, orders and notifications** made under the Act **lapse** with it.
4. **Persons detained** under an expired detention law must be **released**.
5. If a temporary Act is **repealed before it expires**, **s.6 does apply**, because that is a repeal.
6. **Ordinances. *Krishna Kumar Singh v. State of Bihar* (2017, seven judges)**: rights and liabilities created by an Ordinance **do not automatically survive** its lapse. The test is **public interest and constitutional necessity**. **Repeated re-promulgation** of Ordinances is a **fraud on the Constitution** (also *D.C. Wadhwa v. State of Bihar*, 1987).
7. **Omission vs repeal.** Is removing a provision ("omission") a repeal that attracts s.6?

- *Rayala* (1969) and *Kolhapur Canesugar Works v. UOI* (2000) said **no**.
- ***Fibre Boards (P) Ltd. v. CIT* (2015)** held that omission **is a kind of repeal**, so s.6 applies. *Shree Bhagwati Steel Rolling Mills* (2016) agreed.

5. Express and implied repeal

Express repeal. The new Act **expressly states** that the old law is repealed ("is hereby repealed", "shall cease to have effect"). Examples:

- **BNS s.358** repealed the IPC;
- **BNSS s.531** repealed the CrPC;
- **BSA s.170** repealed the Evidence Act.

Repealing and Amending Acts are used periodically to clear obsolete laws from the statute book.

Implied repeal. No words of repeal are used, but the new law is **so inconsistent** with the old one that **both cannot stand together**. The later law prevails to the extent of the conflict (*leges posteriores priores contrarias abrogant*: later laws abrogate earlier contrary laws).

Courts **presume against implied repeal**. The legislature is taken to know the existing law, and if it meant to repeal it, it would have said so. The court first tries to **harmonise** the two laws.

Tests for implied repeal (*Zaverbhai Amaidas v. State of Bombay*, 1954; ***Municipal Council, Palai v. T.J. Joseph*, 1963**):

1. Is there a **direct conflict**, so the two cannot stand together?
2. Did the legislature intend the new law to be a **complete code** on the subject?
3. Do both laws occupy the **same field**?

Special and general laws. ***Generalia specialibus non derogant***: a **later general law** does not impliedly repeal an **earlier special law** (*J.K. Cotton Spinning & Weaving Mills v. State of U.P.*, 1961; *Ethiopian Airlines v. Ganesh Narain Saboo*, 2011). A **later special law**, however, can override an earlier general one.

Repugnancy under **Art. 254** (Union and State laws in the Concurrent List) works like a form of implied repeal.

6. Consequences of repeal

Common law position. Under the old common law, a repealed statute was treated **as if it had never existed**, except for **completed transactions**. Pending proceedings failed. This was **harsh**, so **s.6 of the GCA** was enacted.

GCA s.6. Unless a **different intention** appears, a repeal does **not**:

- **(a) revive** anything not in force when the repeal takes effect;
- **(b)** affect the **previous operation** of the repealed law, or anything done under it;

- **(c)** affect any **right, privilege, obligation or liability** already **acquired, accrued or incurred**;
- **(d)** affect any **penalty, forfeiture or punishment** already incurred;
- **(e)** affect any **investigation, legal proceeding or remedy** relating to those rights and liabilities. These may be **started, continued and enforced** as if the repealing Act had not been passed.

Principles

1. **No revival.** If Act A repealed Act B, and Act A is later repealed, Act B does **not** come back unless the law says so (ss.6(a) and 7).
2. **Only accrued rights are saved.** A **mere hope or expectation**, or the bare right to take advantage of a repealed law, is not protected (*Abbott v. Minister for Lands*, 1895; *Lalji Raja & Sons*, 1971).
3. **Pending cases continue** under the old law, and **past offences can still be prosecuted** after repeal.
4. **Repeal and re-enactment. *State of Punjab v. Mohar Singh* (1955)**: when a law is repealed and re-enacted, s.6 applies **unless the new law shows a contrary intention**. The mere absence of a saving clause is **not** enough to exclude s.6. Prosecutions under the repealed Ordinance in that case could continue.
5. **References and continuity on re-enactment.**
    - **GCA s.8**: references to the repealed law are read as references to the re-enacted law.
    - **GCA s.24**: rules and orders made under the old law **continue** if consistent with the new one.
    - Example: BNSS s.531(2) **saves pending proceedings** under the CrPC.
6. **Repeal of an amending Act** does not undo the amendments it already made (s.6A; *Jethanand Betab v. State of Delhi*, 1960).
7. **Delegated legislation** made under a repealed Act **falls with it**, unless saved by s.24 or a saving clause.
8. **Unconstitutional laws.**
    - A law made **after** the Constitution that violates Fundamental Rights is **void from the start** (“still-born”) (*Deep Chand v. State of U.P.*, 1959).
    - A **pre-Constitution** law that is inconsistent with Fundamental Rights is only **eclipsed**. It **revives** if the inconsistency is later removed (the **doctrine of eclipse**, *Bhikaji Narain Dhakras v. State of M.P.*, 1955).

LAW OF CRIMINAL PROCEDURE — BNSS, 2023 (Exam Answers)

> Pattern followed: each syllabus topic is written as an exam question → answer with **meaning, provisions, key points, cases, conclusion**. Old CrPC, 1973 section numbers are given in brackets as `(CrPC xx)` because many textbooks and past papers still use them.

MODULE 1 — INTRODUCTION TO BNSS, 2023

Q1. Distinguish between the Inquisitorial and Adversarial (Accusatorial) systems of criminal justice. Which system does India follow?

Adversarial system (England, USA, India):

- Two parties, the prosecution and the defence, fight the case before a **neutral judge** who acts like an umpire.
- The accused is **presumed innocent**. The prosecution must prove guilt **beyond reasonable doubt**.
- The parties collect and present the evidence. The judge does not investigate.
- Oral evidence, cross-examination and strict rules of evidence are central.

Inquisitorial system (France, Germany and other civil-law countries):

- The judge (an "investigating magistrate") **actively investigates**, questions witnesses and directs the inquiry.
- The aim is finding the truth, not deciding a contest between two parties.
- Written dossiers matter more and evidence rules are less strict.

Basis	Adversarial	Inquisitorial
Role of judge	Passive umpire	Active investigator
Search for truth	Through contest between parties	Through judicial inquiry
Evidence	Collected by parties	Collected under court direction
Cross-examination	Central	Limited
Right to silence	Strong	Weaker

Indian position: India follows the **adversarial system with some inquisitorial features**:

- BNSS s.348 (CrPC 311): the court can summon any witness.
- BSA s.168 (IEA 165): the judge has power to put any question.
- BNSS s.351 (CrPC 313): the court examines the accused.
- The Malimath Committee (2003) recommended adding more inquisitorial elements.
- *Zahira Habibullah Sheikh v. State of Gujarat* (2004): the judge is not a mere spectator but must participate actively to find the truth.

Q2. International norms and constitutional perspectives (Arts. 14, 20, 21, 22) on criminal justice

International norms

- **UDHR, 1948**: Art. 9 (no arbitrary arrest), Art. 10 (fair public hearing), Art. 11 (presumption of innocence; no retrospective punishment).
- **ICCPR, 1966**: Art. 9 (liberty and security; prompt production before a judge), Art. 14 (fair trial, legal aid, no self-incrimination, no double jeopardy), Art. 15 (no ex post facto law).
- UN Basic Principles on the Role of Lawyers and the Convention against Torture.

Constitutional safeguards

- **Art. 14** (equality before law): procedure must not be arbitrary. Special courts need a reasonable classification (*State of W.B. v. Anwar Ali Sarkar*, 1952).
- **Art. 20**:
  - 20(1) no ex post facto criminal law.
  - 20(2) no double jeopardy (BNSS s.337).
  - 20(3) no self-incrimination (*Nandini Satpathy v. P.L. Dani*, 1978; *Selvi v. State of Karnataka*, 2010, which held narco-analysis, polygraph and brain-mapping cannot be done without consent).
- **Art. 21**: procedure must be "fair, just and reasonable" (*Maneka Gandhi v. UOI*, 1978). It includes:
  - the right to a speedy trial (*Hussainara Khatoon v. State of Bihar*, 1979);
  - free legal aid (*M.H. Hoskot v. State of Maharashtra*, 1978);
  - protection against custodial torture (*D.K. Basu v. State of W.B.*, 1997);
  - the right to a fair trial (*Zahira Habibullah*).
- **Art. 22**:
  - 22(1) right to be told the grounds of arrest and to consult a lawyer;
  - 22(2) production before a magistrate within 24 hours.
  - These rights do not apply to enemy aliens and preventive detention.
- **Art. 39A**: free legal aid.

Q3. Rationale of criminal procedure; salient features of BNSS 2023; police, prosecution, defence and prison authorities

Rationale: substantive criminal law (BNS) defines offences. Procedural law (BNSS) provides the **machinery to enforce it**: investigation, arrest, trial, sentencing and appeal.

It must balance **effective crime control** with **due process** and the rights of the accused and the victim.

Salient features of BNSS 2023 (in force from **1 July 2024**; replaced CrPC 1973; **531 sections**):

1. **Zero FIR and e-FIR** (s.173). A preliminary enquiry within 14 days is allowed for offences punishable with 3–7 years.
2. **Mandatory forensic** team visit for offences punishable with 7 years or more (s.176(3)).
3. **Audio-video recording** of search and seizure (s.105). Trials, evidence and summons can be done by electronic means (ss. 530, 64, 254).
4. **Trial in absentia** of proclaimed offenders (s.356).
5. **Timelines**:
    - supply of documents within 14 days (s.230);
    - discharge application within 60 days;
    - charge framed within 60 days of the first hearing;
    - judgment within 30 days of arguments, extendable to 45 days (s.258);
    - chargesheet/progress information to the victim within 90 days.
6. **Community service** as a punishment for petty offences (s.23).
7. **Undertrial relief**: a first-time offender is released after serving **one-third** of the maximum sentence (s.479).
8. **Directorate of Prosecution** (s.20).
9. **Witness Protection Scheme** (s.398).
10. **Sanction for prosecuting a public servant** is deemed given if not decided within **120 days** (s.218).
11. **Handcuffing** is allowed for habitual offenders, escapees and those accused of organised crime or terrorism (s.43(3)).
12. **Attachment and forfeiture of proceeds of crime** (s.107).
13. **Metropolitan Magistrates and Assistant Sessions Judges abolished**.
14. **Mercy petition** procedure (s.472).

Functionaries

- **Police** (Police Act, 1861 and BNSS): prevention of offences, investigation, arrest, search, chargesheet.
- **Prosecution** (ss.18–20): Public Prosecutors, Assistant Public Prosecutors and the Directorate of Prosecution. They act as **ministers of justice**, not persecutors.
- **Defence**: Art. 22(1); s.340 (right to be defended); s.341 (legal aid at State expense).
- **Prison authorities** (Prisons Act, 1894; Model Prison Manual): custody, reform and rehabilitation. Prisoners keep their fundamental rights (*Sunil Batra v. Delhi Admin.*, 1978).

Q4. Object, scope and significance of BNSS

- **Object**: to consolidate and amend the law of criminal procedure and make justice **speedy, technology-driven and victim-centric**. It also aims to “decolonise”

criminal law.
- **Scope**: applies to the whole of India. Parts relating to Chapters IX, XI and XII do not apply to Nagaland and tribal areas unless notified (s.1). It is a procedural law that applies to offences under the BNS and under special laws (s.4), unless the special law provides otherwise (s.5).
- **Significance**: it protects individual liberty while enabling enforcement. It fixes timelines, uses technology, and gives the victim rights to be heard, to receive information and to appeal.

Q5. Important definitions under Section 2 BNSS (CrPC 2)

- **Audio-video electronic means** (2(1)(a)): video conferencing, recording of search and seizure, etc. *(new)*
- **Bail** (2(1)(b)): release of a person accused or suspected of an offence from custody, on conditions set by an officer or court, on executing a bond or bail bond. *(new definition)*
- **Bailable offence** (2(1)(c)): an offence shown as bailable in the First Schedule or made bailable by law. All others are non-bailable.
- **Charge** (2(1)(f)): includes any head of charge when the charge contains more than one head.
- **Cognizable offence** (2(1)(g)): an offence for which police may **arrest without warrant**. **Non-cognizable offence** (2(1)(o)): police cannot arrest without a warrant.
- **Complaint** (2(1)(h)): an allegation made **orally or in writing to a Magistrate** asking them to take action. It does **not include a police report**. If a police report in a non-cognizable case discloses an offence, the report is treated as a complaint.
- **Inquiry** (2(1)(k)): every inquiry, other than a trial, conducted by a Magistrate or Court.
- **Investigation** (2(1)(l)): all proceedings for collecting evidence conducted by a police officer or any person authorised by a Magistrate (other than a Magistrate).
- **Judicial proceeding** (2(1)(m)): any proceeding in which evidence is or may be legally taken on oath.
- **Officer in charge of police station** (2(1)(r)), **Police report** (2(1)(u)), **Public Prosecutor** (2(1)(w)).
- **Summons case** (2(1)(y)): an offence that is not a warrant case. **Warrant case** (2(1)(za)): an offence punishable with death, life imprisonment, or imprisonment **exceeding two years**.
- **Victim** (2(1)(z)): a person who has suffered loss or injury because of the act or omission of the accused, including the guardian or legal heir.

Distinction: Inquiry vs Investigation vs Trial

- **Investigation** is done by the police and collects evidence.
- **Inquiry** is done by a Magistrate before trial (e.g. a s.225 inquiry or a maintenance proceeding).
- **Trial** is the judicial determination of guilt and ends in conviction or acquittal.

Q6. Hierarchy and powers of criminal courts (ss. 6–17, 21–29)

Classes of criminal courts (s.6), besides the High Courts and courts under other laws:

1. Courts of Session
2. Judicial Magistrates of the First Class
3. Judicial Magistrates of the Second Class
4. Executive Magistrates

(Metropolitan Magistrates and Assistant Sessions Judges have been dropped.)

- s.7: territorial divisions (sessions divisions and districts).
- s.8: the Court of Session is presided over by a Sessions Judge, appointed by the High Court. Additional Sessions Judges are also appointed.
- s.9: Courts of Judicial Magistrates.
- s.10: Chief Judicial Magistrate (CJM) and Additional CJM.
- s.11: Special Judicial Magistrates.
- s.12: local jurisdiction.
- s.13: subordination. The CJM is subordinate to the Sessions Judge, and other JMs are subordinate to the CJM.
- ss.14–17: Executive Magistrates, District Magistrate (DM), Sub-Divisional Magistrate (SDM), Special Executive Magistrates.

Offences triable by (s.21): BNS offences are triable by the High Court, the Court of Session, or the court shown in the First Schedule. Rape-related offences should, as far as practicable, be tried by a court presided over by a woman.

Sentencing powers

- **s.22**: the High Court may pass any sentence authorised by law. A Sessions Judge or Additional Sessions Judge may pass any sentence, but **a death sentence needs confirmation by the High Court**.
- **s.23** Magistrates:
  - **CJM**: any sentence except death, life imprisonment, or imprisonment over **7 years**.
  - **JMFC**: up to **3 years**, or a fine up to **₹50,000**, or **community service**, or a combination.
  - **JM Second Class**: up to **1 year**, or a fine up to **₹10,000**, or community service, or a combination.
- s.24: imprisonment in default of fine (limits apply).
- s.25: sentences for several offences at one trial. The court may order them to run consecutively or concurrently. The aggregate must not exceed **20 years**.
- ss.26–29: mode of conferring powers; continuance of powers; withdrawal of powers.

Q7. Powers of superior police officers and aid to Magistrates and police (ss. 30–34)

- **s.30** (CrPC 36): police officers **superior in rank** to an officer in charge of a police station may exercise the same powers throughout their area.
- **s.31** (CrPC 37): **every person is bound to assist** a Magistrate or police officer who reasonably demands help:
    a. in arresting or preventing the escape of a person;
    b. in preventing or suppressing a breach of the peace;
    c. in preventing injury to railways, canals, telegraph or public property.
- **s.32** (CrPC 38): a person who aids someone (other than a police officer) executing a warrant is protected.
- **s.33** (CrPC 39): **public to give information** about certain offences (e.g. offences against the State, murder, robbery, dacoity, criminal trespass by night).
- **s.34** (CrPC 40): village officers must report information (e.g. residence of a proclaimed offender, suspicious deaths).

Q8. Public Prosecutors and their functions (ss. 18–20)

- **s.18** (CrPC 24): the Central or State Government appoints **Public Prosecutors (PP) and Additional PPs** for the High Court, in consultation with the High Court. District PPs are appointed from a panel prepared by the DM in consultation with the Sessions Judge. Eligibility: **7 years** of practice as an advocate. A **Special PP** needs **10 years**. The victim may engage an advocate to assist the prosecution (s.18(8) proviso).
- **s.19** (CrPC 25): **Assistant Public Prosecutors** in Magistrates' courts. A police officer cannot be appointed APP (with limited exceptions).
- **s.20** *(new)*: **Directorate of Prosecution**, headed by a Director (15 years' practice or a Sessions Judge). It monitors cases, gives opinions on filing appeals, and scrutinises police reports.

Functions / role of PP

- Conducts the prosecution (s.338). Is in charge of the case in Sessions trials (s.248).
- Can apply for **withdrawal from prosecution** with the court's consent (s.360).
- Gives opinion on bail, appeals and so on.

Role: the PP is an **officer of the court and a minister of justice**, not a partisan. They must place all evidence fairly, including evidence favouring the accused (*Shiv Kumar v. Hukam Chand*, 1999; *Sheonandan Paswan v. State of Bihar*, 1987).

MODULE 2 — JURISDICTION OF CRIMINAL COURTS IN INQUIRIES AND TRIALS

Q9. General principle of jurisdiction of criminal courts (ss. 197–209)

General rule, s.197 (CrPC 177): every offence is ordinarily inquired into and tried by a court within whose **local jurisdiction it was committed**.

Exceptions and special rules:

- **s.198** (CrPC 178): **uncertain place**. Where it is uncertain in which of several areas the offence was committed, or it was committed partly in one area and partly in another, or it is a **continuing offence**, or it consists of several acts in different areas, any of those courts may try it.
- **s.199** (CrPC 179): offence triable where the **act is done or the consequence ensues**.
- **s.200** (CrPC 180): an act that is an offence because of its relation to another offence (e.g. abetment, receiving stolen property) is triable where either act was done.
- **s.201** (CrPC 181): special places for certain offences:
  - thug or dacoity: where committed or where the accused is found;
  - kidnapping/abduction: where the person was kidnapped, conveyed, concealed or detained;
  - theft/extortion/robbery: where committed or where the property is possessed;
  - criminal misappropriation/breach of trust: where the property was received, retained or accounted for.
- **s.202** (CrPC 182): offences committed by **letters or electronic communication** are triable where sent or received. Bigamy is triable where the offender resides or the first spouse resides.
- **s.203** (CrPC 183): offence committed **during a journey or voyage** is triable in any area through which the person or thing passed.
- **s.204** (CrPC 184): offences triable together may be tried by any competent court.
- **s.205** (CrPC 185): State Government may direct cases to be tried in a different sessions division.
- **s.206** (CrPC 186): **High Court decides** in case of doubt.
- **s.207** (CrPC 187): a Magistrate may issue summons or warrant for an offence committed beyond their jurisdiction.
- **s.208** (CrPC 188): **offence committed outside India** by a citizen of India (anywhere), or by anyone on an Indian-registered ship or aircraft, is triable as if committed at any place in India where the person is found. **Previous sanction of the Central Government** is needed.
- **s.209** (CrPC 189): evidence about offences committed outside India may be received through depositions and exhibits.

Cases: *State of M.P. v. Suresh Kaushal* (2003); *Y. Abraham Ajith v. Inspector of Police* (2004) (cause of action concept is not applicable to criminal cases); *Dashrath Rupsingh Rathod v. State of Maharashtra* (2014) (cheque bounce jurisdiction).

Q10. Initiation of proceedings / cognizance (ss. 210–214)

Cognizance means the Magistrate **applies their judicial mind** to the facts with a view to proceeding further (*S.K. Sinha, Chief Enforcement Officer v. Videocon International*, 2008). It is taken of the **offence, not of the offender**.

s.210 (CrPC 190): a Magistrate (CJM, JMFC, or a JM-II if empowered) may take cognizance:

a. on receiving a **complaint** (including one filed under a special law);
b. on a **police report** (including one submitted electronically);
c. on **information from any person other than a police officer**, or on their **own knowledge**.

- **s.211** (CrPC 191): when cognizance is taken under (c), the accused must be told they may have the case transferred to another Magistrate.
- **s.212** (CrPC 192): the CJM may make over the case to a subordinate Magistrate.
- **s.213** (CrPC 193): a **Court of Session cannot take cognizance as a court of original jurisdiction** unless the case is **committed** by a Magistrate (exceptions are provided by law).
- **s.214** (CrPC 194): Additional Sessions Judges try cases made over to them.

Q11. Exceptions to the general rule — limitations on cognizance (ss. 215–222)

These are cases where cognizance **cannot be taken without a complaint or sanction**:

- **s.215** (CrPC 195): prosecution for **contempt of lawful authority of public servants**, for offences against **public justice**, and for offences relating to **documents given in evidence**. It needs a written complaint by the public servant or court concerned.
    - *Iqbal Singh Marwah v. Meenakshi Marwah* (2005): s.195(1)(b)(ii) applies only when the forgery is committed while the document is in the custody of the court.
- **s.216**: procedure for witnesses facing threats *(new)*.
- **s.217** (CrPC 196): offences **against the State** and criminal conspiracy need sanction from the Central or State Government.
- **s.218** (CrPC 197): prosecution of **judges and public servants** for acts done in discharge of official duty needs prior sanction. **Deemed sanction if not decided within 120 days**. No sanction is needed for offences like sexual offences against women.
- **s.219** (CrPC 198): offences against **marriage** (BNS ss.81–84) need a complaint by the aggrieved person.
- **s.220** (CrPC 198A): cruelty by husband or relatives (BNS s.85) needs a police report or a complaint by the aggrieved person or their relatives.
- **s.221** (CrPC 198B): cognizance of the offence of sexual intercourse by husband during separation.
- **s.222** (CrPC 199): **defamation** needs a complaint by the aggrieved person. If the defamed person is a high constitutional functionary, the Public Prosecutor files the complaint in the Court of Session.

Q12. Complaint to Magistrate (ss. 223–226)

- **s.223** (CrPC 200): the Magistrate **examines the complainant and witnesses on oath** and records it in writing. *New proviso*: **no cognizance without giving the accused an opportunity of being heard.** Examination is not needed if the complaint is by a public servant acting in discharge of duty, or by a court, or if the case is made over.
- **s.224** (CrPC 201): if the Magistrate is not competent, they return the complaint for presentation to the proper court.
- **s.225** (CrPC 202): **postponement of issue of process**. The Magistrate may inquire personally or direct an investigation. It is **mandatory where the accused resides beyond the Magistrate's jurisdiction** (*Vijay Dhanuka v. Najima Mamtaj*, 2014). No investigation is directed if the offence is exclusively triable by a Court of Session.
- **s.226** (CrPC 203): **dismissal of complaint** with brief reasons if there is no sufficient ground.

Q13. Commencement of proceedings before Magistrates (ss. 227–233)

- **s.227** (CrPC 204): **issue of process**, a summons (summons case) or warrant (warrant case). The list of prosecution witnesses must be filed first. Process may also be issued electronically.
- **s.228** (CrPC 205): the Magistrate may **dispense with personal attendance** of the accused and allow appearance by pleader.
- **s.229** (CrPC 206): special summons in **petty offences**. The accused may plead guilty by post or messenger and pay the fine (fine up to ₹5,000).
- **s.230** (CrPC 207): **supply of police report and documents** to the accused **free of cost within 14 days** of appearance (may be electronic).
- **s.231** (CrPC 208): supply of copies in other cases triable by the Court of Session.
- **s.232** (CrPC 209): **commitment** to the Court of Session when the offence is exclusively triable by it, to be completed within **90 days** (extendable to 180 days).
- **s.233** (CrPC 210): if a complaint case and a police investigation on the same offence are both pending, the Magistrate **stays the complaint case** and calls for the police report. If cognizance is taken on the police report, both are tried together as if both arose from the police report.

MODULE 3 — INFORMATION TO POLICE AND POWERS OF INVESTIGATION

Q14. FIR — meaning, procedure (s.173) and evidentiary value. *(Very important)*

Meaning: the information about a **cognizable offence** first given to the officer in charge of a police station, which sets the criminal law in motion. "FIR" is not defined but is drawn from s.173 (CrPC 154).

Procedure (s.173)

1. Given **orally or by electronic communication**. Oral information is reduced to writing, read over to the informant and signed. **e-FIR** must be signed within **3 days**.
2. **Zero FIR**: it can be lodged at **any police station irrespective of jurisdiction**, which then transfers it.
3. A **free copy** goes to the informant or victim.
4. For offences against women (BNS ss. 64–79, 124, etc.), it is recorded by a **woman officer**. For a disabled victim, it is recorded at their residence with videography.
5. **Preliminary enquiry** (s.173(3)): for offences punishable with **3 to 7 years**, it can be done with permission of a DSP rank officer, to be completed within **14 days**.
6. **Remedy if police refuse**: send the information to the **Superintendent of Police** (s.173(4)). Then apply to the **Magistrate under s.175(3)** with an affidavit.

Registration mandatory: *Lalita Kumari v. Govt. of U.P.* (2014, Constitution Bench). Registration of an FIR is **mandatory** if the information discloses a cognizable offence. A preliminary inquiry is allowed only in specified categories (matrimonial, commercial, medical negligence, corruption, delay cases).

Evidentiary value of FIR

- An FIR is **not substantive evidence**.
- It can be used to **corroborate** the informant (BSA s.160, IEA 157) or to **contradict** them (BSA s.148, IEA 145).
- If the informant is the accused, any confession in it is inadmissible (BSA s.23). The non-confessional part may be used, as may facts discovered under the proviso to s.23(2) (*Aghnoo Nagesia v. State of Bihar*, 1966).
- It can be a **dying declaration** under BSA s.26 if the informant dies.
- It can be relevant as **res gestae** (BSA s.4) or as **conduct** (BSA s.6).
- **Delay** in lodging an FIR is not fatal by itself if it is explained (*State of H.P. v. Gian Chand*, 2001). Unexplained delay may suggest embellishment.
- An FIR is not an encyclopaedia; it need not contain every detail (*Superintendent of Police, CBI v. Tapan Kumar Singh*, 2003).

Statements made to a police officer during investigation

- s.180 (CrPC 161): police examine witnesses orally and may record by audio-video.
- **s.181 (CrPC 162)**: such statements are **not signed** and **cannot be used for any purpose**, except by the **accused to contradict** the witness (and by the prosecution with the court's permission). Exceptions: dying declarations and BSA s.23(2) proviso discoveries.

Q15. Information in non-cognizable cases (s.174, CrPC 155)

- The police officer enters the substance in a register and refers the informant to the Magistrate.
- Police cannot investigate a non-cognizable case **without the Magistrate's order**.
- If a case involves two or more offences and at least one is cognizable, the whole case is treated as cognizable.
- BNSS adds that a daily diary report is sent to the Magistrate fortnightly.

Q16. Police power to investigate (ss. 175–178)

- **s.175(1)** (CrPC 156): the officer in charge may investigate any **cognizable** case without the Magistrate's order. The SP may direct a DSP to investigate when the nature or gravity of the offence requires it.
- **s.175(3)**: a Magistrate may **order investigation** after considering an application **supported by an affidavit** and the police officer's submissions (*Priyanka Srivastava v. State of U.P.*, 2015).
- **s.175(4)** *(new)*: a complaint against a **public servant** for acts in official duty needs a report from the superior officer and the public servant's version.
- **s.176** (CrPC 157): procedure for investigation. A report is sent to the Magistrate. In rape cases the victim's statement is recorded at her residence by a woman officer and can be audio-video recorded. A **forensic team must visit the scene** for offences punishable with **7 years or more**.
- **s.177**: report submitted through a superior officer.
- **s.178** (CrPC 159): the Magistrate, on receiving the report, may direct investigation or hold a preliminary inquiry.

Q17. Interrogation powers of police (ss. 179–193)

- **s.179** (CrPC 160): power to require **attendance of witnesses**. **Exemption**: males under 15 or above **60**, women, mentally or physically disabled persons, and persons with acute illness are questioned **at their residence**.
- **s.180** (CrPC 161): oral examination. The witness must answer truly, except questions that tend to incriminate. A statement of a woman victim of sexual offences is recorded by a woman officer.
- **s.181** (CrPC 162): bar on using statements.
- **s.182** (CrPC 163): **no inducement, threat or promise** to be offered.
- **s.183** (CrPC 164): recording of confessions and statements (see Q24).
- **s.184** (CrPC 164A): medical examination of a rape victim within 24 hours of information. The report goes to the IO and is forwarded within **7 days**.
- ss.185–186: search (see Q23). s.187: remand (Q25). ss.188–191: release when evidence is deficient (s.189) and sending cases to the Magistrate when evidence is sufficient (s.190). s.192: diary (Q26). s.193: police report (Q27).
- **Constitutional limits**: Art. 20(3) (*Nandini Satpathy*, 1978). There is no right to remain completely silent before police on all questions, but the person can refuse incriminating answers. *Selvi* (2010) bars forced narco-analysis. *D.K. Basu* (1997) bars custodial torture.

Q18. Arrest without warrant (s.35, CrPC 41) and with warrant

Arrest without warrant (s.35): any police officer may arrest without an order or warrant a person:

a. who commits a cognizable offence **in their presence**;
b. against whom there is a reasonable complaint or credible information of a cognizable offence punishable with **up to 7 years**, if the officer has reason to

believe the person committed it **and** arrest is **necessary**. Necessary means: to prevent further offences, for proper investigation, to prevent tampering with evidence, to prevent inducement or threat to witnesses, or to ensure presence in court. **Reasons must be recorded** for arresting and for not arresting;

c. against whom credible information of an offence punishable with **more than 7 years or death** exists; (d)–(i): proclaimed offender; possession of stolen property; obstructing police or escaping from custody; deserter from the armed forces; offence committed abroad; released convict breaching rules; requisition from another officer.

- **s.35(3)–(6)**: a **notice of appearance** (old s.41A) is issued where arrest is not required. If the person complies, they are not arrested.
- **s.35(7)** *(new)*: **no arrest without prior permission of an officer not below DSP rank** for offences punishable with **less than 3 years** if the person is **infirm or above 60 years**.
- *Arnesh Kumar v. State of Bihar* (2014): no automatic arrest in offences punishable with up to 7 years. There is a checklist, and the Magistrate must not authorise detention mechanically.
- *Joginder Kumar v. State of U.P.* (1994): arrest must be justified; the power to arrest is not the same as the justification for exercising it.

Other arrests without warrant

- s.39 (CrPC 42): refusal to give name and residence in a non-cognizable offence.
- s.40 (CrPC 43): **arrest by a private person** of anyone committing a non-bailable and cognizable offence in their presence, or a proclaimed offender. The person must be handed over to police within **6 hours**.
- s.41 (CrPC 44): arrest by a Magistrate.
- s.42 (CrPC 45): protection of armed forces members (Government consent needed).

Execution rules

- **s.43** (CrPC 46): how arrest is made. There is touch or confinement unless the person submits. A woman is arrested only by a woman officer, and a woman cannot be arrested **after sunset or before sunrise** except in exceptional circumstances with prior permission of a JMFC. **Handcuffs** may be used (s.43(3)) on habitual or repeat offenders, escapees, and persons accused of organised crime, terrorism, drug offences, murder, rape, etc.
- s.44 (CrPC 47): search of a place entered by the person to be arrested.
- s.45 (CrPC 48): pursuit into other jurisdictions.
- s.46 (CrPC 49): **no more restraint than necessary**.
- **s.62** (CrPC 60A): arrest only in accordance with BNSS or other law.

Arrest with warrant (ss. 72–83)

- s.72 (CrPC 70): form of warrant. It is in writing, signed, sealed, and remains in force until cancelled or executed.
- s.73 (CrPC 71): the court may direct **security to be taken** (bailable warrant).

- ss.74–75: to whom directed. The CJM may direct to any person, including for an escaped convict or proclaimed offender.
- s.76: warrant directed to a police officer.
- s.77 (CrPC 75): substance of the warrant notified. s.78 (CrPC 76): person arrested is produced without delay, within **24 hours**.
- ss.79–83: where a warrant may be executed (anywhere in India); execution outside jurisdiction; procedure on arrest; endorsement by the local Magistrate.

Proclamation and attachment (ss. 84–93)

- **s.84** (CrPC 82): **proclamation** for a person absconding, requiring appearance within **at least 30 days**. A person who fails to appear when accused of offences punishable with 10 years or more, life or death may be declared a **proclaimed offender**.
- **s.85** (CrPC 83): **attachment of property** of the proclaimed person.
- **s.86** *(new)*: identification and attachment of property of a proclaimed person, including in a **contracting state abroad**.
- ss.87–89 (CrPC 84–86): claims and objections to attachment; release, sale and restoration of attached property.
- ss.90–93: other rules (issue of warrant in lieu of summons, power to take bond).

Q19. Police to report apprehensions; discharge; pursue and retake (ss. 59–61)

- **s.59** (CrPC 58): officers in charge of police stations report to the DM or SDM **all persons arrested without warrant**, whether admitted to bail or not.
- **s.60** (CrPC 59): a person arrested by police is discharged **only on their own bond, on bail, or under the special order of a Magistrate**.
- **s.61** (CrPC 60): if an arrested person escapes, the person in custody may **immediately pursue and re-arrest** them anywhere in India.

Q20. Rights of arrested persons (ss. 47–58, 77–78, 340–341; Art. 22). *(Very important)*

1. **Right to know the grounds of arrest** (s.47; Art. 22(1)). *Pankaj Bansal v. UOI* (2023) and *Prabir Purkayastha v. State (NCT of Delhi)* (2024): grounds must be supplied **in writing**.
2. **Right to be informed of the right to bail** in bailable offences (s.47(2)).
3. **Right to have a relative or friend informed** of the arrest and place of detention (s.48). This is entered in a book. The Magistrate verifies compliance.
4. **Arrest memo** signed by a witness; officer to bear clear identification (s.36).
5. **Right to meet an advocate** of choice during interrogation, though not throughout (s.38; Art. 22(1)).
6. **Right to be produced before a Magistrate within 24 hours**, excluding journey time (ss.57, 58; Art. 22(2)).
7. **Right to medical examination** (s.53). A medical examination is done soon after arrest by a medical officer. A woman is examined by a female medical officer.

8. **Search with decency** (s.49). A woman is searched by a woman.
9. **Health and safety** of the accused is the duty of the custodian (s.56).
10. **Designated police officer and control room** displaying details of arrested persons (s.37).
11. **Right to free legal aid** (s.341; Art. 39A; *Khatri v. State of Bihar*, 1981). The Magistrate must inform the accused of this right.
12. **Right to be defended by a pleader of choice** (s.340).
13. **Right to a speedy trial** (Art. 21; *Hussainara Khatoon*).
14. **Protection from torture and handcuffing** except under law (*Prem Shankar Shukla v. Delhi Admin.*, 1980; *Sunil Batra*).
15. **Right to compensation** for illegal detention (*Rudul Sah v. State of Bihar*, 1983; *Nilabati Behera v. State of Orissa*, 1993).
16. **Right against self-incrimination** (Art. 20(3)).

D.K. Basu guidelines (1997), now largely codified: identification of police; arrest memo; informing a relative; medical examination every 48 hours; copies to the Magistrate; access to a lawyer; police control room.

Q21. Preventive powers of the police (ss. 168–172)

- **s.168** (CrPC 149): police to **interpose to prevent** any cognizable offence.
- **s.169** (CrPC 150): information of a design to commit a cognizable offence is passed to the superior officer.
- **s.170** (CrPC 151): **arrest to prevent** a cognizable offence if it cannot otherwise be prevented. Detention must not exceed **24 hours** unless authorised by law.
- **s.171** (CrPC 152): prevention of **injury to public property**.
- **s.172** *(new)*: **persons bound to conform to lawful directions of police**. Police may detain or remove a person resisting directions. In petty cases the person is released within 24 hours.

Q22. Search and seizure (ss. 49, 96–110, 185–186)

- **s.49** (CrPC 51): search of an arrested person. A receipt for seized articles is given. A woman is searched by a woman with decency.
- **Summons to produce (s.94)**, including **electronic communication and devices**.
- **Search warrants (ss. 96–99)** (CrPC 93–98): a court may issue a search warrant if the person will not produce a thing, or for a general search. s.97 covers places with stolen property or forged documents. s.98 covers forfeiture of publications. s.99 covers search for wrongfully confined persons.
- **s.100–103** (CrPC 99–102): direction of warrant; **persons in charge of a closed place** to allow search; **two respectable independent local witnesses** must be present (s.103(4), CrPC 100(4)). A list of seized things is signed by the witnesses. **Search and seizure must be recorded by audio-video**, preferably on a mobile phone (s.105, *new*). Police may seize property suspected to be stolen (s.106, CrPC 102).
- **s.107** *(new)*: attachment, forfeiture or restoration of **proceeds of crime** by Magistrate's order.

- **s.185** (CrPC 165): **search by police officer** without warrant during investigation. Reasons must be recorded in writing, and copies sent to the nearest Magistrate within **48 hours**. Recording by audio-video.
- **s.186** (CrPC 166): when an officer in charge may require another to issue a search warrant (beyond jurisdiction).
- Effect of an illegal search: evidence is **not inadmissible** merely because the search was illegal, but the court weighs it with caution (*Radha Kishan v. State of U.P.*, 1963; *State of Punjab v. Baldev Singh*, 1999 for NDPS).

Q23. Recording of confessions and statements (s.183, CrPC 164)

- Any **Judicial Magistrate** of the district where information is recorded (whether having jurisdiction or not) may record a confession or statement during investigation or before trial. It may be recorded by audio-video, in the presence of the advocate of the accused.
- **Safeguards for confessions**:
  - The Magistrate must explain that the accused **is not bound to confess** and that it may be used as evidence.
  - The Magistrate must have **reason to believe it is voluntary**.
  - Time for reflection is given (*Sarwan Singh v. State of Punjab*, 1957, suggested at least 24 hours).
  - The person is **not remanded to police custody** if they decline.
  - There is a certificate and memorandum at the foot of the record.
- Statements of rape and sexual offence victims are recorded **by a woman Magistrate** as far as practicable, and with the help of an interpreter or special educator for disabled persons. In offences against women, the victim's statement is to be recorded by the Magistrate as soon as the offence is brought to the notice of the police.
- **Value**: a s.183 confession is admissible against the maker (BSA s.23(2) exception) and is **substantive evidence** if voluntary and true. A statement of a witness is not substantive; it is used to corroborate or contradict.

Q24. Special remand order — detention when investigation cannot be completed in 24 hours (s.187, CrPC 167)

- If investigation cannot be completed in 24 hours, the officer transmits **diary entries** and produces the accused before the nearest JM.
- **Custody limit**: the Magistrate may authorise **police custody up to 15 days**, **in whole or in parts, at any time during the first 40 days** (for offences with up to 10 years) **or 60 days** (for offences with death, life or 10 years or more) of the total period. This is a *major change* from *CBI v. Anupam J. Kulkarni* (1992), which allowed police custody only in the first 15 days.
- **Total detention**: **90 days** (death, life, or not less than 10 years) or **60 days** (other offences). If the chargesheet is not filed within this period, the accused gets **default / statutory bail** (s.187(3)).
  - *Sanjay Dutt v. State* (1994); *Rakesh Kumar Paul v. State of Assam* (2017);

    - *M. Ravindran v. Intelligence Officer DRI* (2021): the right is indefeasible once claimed before the chargesheet is filed;
    - *Ritu Chhabaria v. UOI* (2023): an incomplete chargesheet cannot defeat default bail.
- An Executive Magistrate may authorise up to 7 days.
- Detention may be authorised by **video linkage**; the accused must be produced physically at least once.

Q25. Police diary (s.192, CrPC 172)

- Every officer investigating must enter **day-by-day proceedings** in a case diary: time the information was received, time of beginning and closing, places visited, circumstances ascertained. Statements of witnesses are included. The diary is **duly paginated** in volume form.
- The **criminal court** may call for the diary, but only to **aid it in the inquiry or trial**, **not as evidence**.
- The **accused cannot call for it** or see it as of right. They can do so only if it is used by the police officer to refresh memory or by the court to contradict the officer (then BSA ss.162, 148 apply).
- *Shamshul Kanwar v. State of U.P.* (1995); *Mukund Lal v. UOI* (1989).

Q26. Police report / chargesheet (s.193, CrPC 173)

- Investigation is to be completed **without unnecessary delay**. For offences under BNS ss.64–71 (rape) and POCSO, it is to be completed within **2 months**.
- The officer forwards the **report to the Magistrate**, including electronically. It contains names of parties, nature of information, names of persons acquainted with the facts, whether an offence was committed and by whom, whether the accused is arrested, released on bond or in custody, the medical report (for rape cases), and the **sequence of custody of electronic devices**.
- The informant or victim is informed of the **progress of investigation within 90 days** (s.193(3)(ii), *new*).
- **Further investigation** is allowed (s.193(9)). During trial it needs the court's permission and must be completed within **90 days** (extendable).
- A **closure report** gives the informant the right of notice and hearing (*Bhagwant Singh v. Commissioner of Police*, 1985). The Magistrate may (i) accept it, (ii) direct further investigation, or (iii) take cognizance on the protest petition.
- *Vinubhai Haribhai Malaviya v. State of Gujarat* (2019): the Magistrate can order further investigation even after cognizance, before trial.

Q27. Inquest proceedings (ss. 194–196)

- **s.194** (CrPC 174): police to inquire and report on **suicide, homicide, death by animal or machinery, or suspicious death**. The officer gives intimation to the Executive Magistrate and, in the presence of **two or more respectable inhabitants**, makes the investigation and report (apparent cause of death, wounds and so on). The report must be forwarded within **24 hours**. **Post-mortem** is

mandatory for the suicide of a woman within **7 years of marriage**, suspicious deaths of women, or on a relative's request.
- **s.195** (CrPC 175): power to summon persons.
- **s.196** (CrPC 176): **inquiry by a Magistrate** into cause of death. It is mandatory for **death or disappearance in police custody**, rape in custody, and deaths of women within 7 years of marriage. **Judicial Magistrate** inquiry is held in custodial deaths. The body may be exhumed.
- **Scope**: an inquest is only to find the **apparent cause of death**, not who is responsible (*Pedda Narayana v. State of A.P.*, 1975). The inquest report is not substantive evidence.

MODULE 4 — BAIL, SECURITY AND MAINTENANCE

Q28. Bail — meaning, kinds and provisions (ss. 478–496). *(Very important)*

Meaning: s.2(1)(b) defines bail as the release of an accused or suspected person from custody on conditions, on executing a bond or bail bond. Principle: **"Bail is the rule, jail is the exception"** (*State of Rajasthan v. Balchand*, 1977, Krishna Iyer J.). Based on Art. 21 and the presumption of innocence.

A. Bail in bailable offences (s.478, CrPC 436)

- Bail is a **matter of right**. The police officer or court **must** release the accused.
- An **indigent person** (unable to give bail within **one week**) is presumed indigent and released on a personal bond.
- If the accused fails to comply with bail conditions, bail may be refused next time.

B. Maximum period of undertrial detention (s.479, CrPC 436A)

- An undertrial who has served **half** of the maximum sentence is released on bond.
- A **first-time offender** is released after **one-third**.
- This does not apply to offences punishable with death or life imprisonment, or where multiple cases are pending.
- The jail superintendent must apply to the court.

C. Bail in non-bailable offences (s.480, CrPC 437)

- It is **discretionary**.
- A Magistrate **shall not** release a person if there are **reasonable grounds to believe** they committed an offence punishable with **death or life imprisonment**, or if they were previously convicted of such or of a 7+ year offence (twice). **Exceptions**: a child, a **woman**, or a **sick or infirm** person.
- **Conditions** for offences of 7 years or more include: attending as required, not committing a similar offence, and not tampering with evidence.
- If trial is not concluded within **60 days** from the first date fixed for evidence, an accused in custody is to be released (Magistrate-triable cases).

D. Anticipatory bail (s.482, CrPC 438)

- A person **apprehending arrest** for a non-bailable offence may apply to the **High Court or Court of Session**.
- Conditions may include: availability for interrogation, not influencing witnesses, not leaving India without permission.
- **Not available** for BNS s.65 and s.70(2) (rape or gang rape of a girl under 12 or 18).
- *Gurbaksh Singh Sibbia v. State of Punjab* (1980): wide discretion; no blanket conditions should be read in.
- *Sushila Aggarwal v. State (NCT of Delhi)* (2020, Constitution Bench): anticipatory bail is **not limited in time** ordinarily and continues till the end of trial.
- *Siddharam Satlingappa Mhetre v. State of Maharashtra* (2011).

E. Special powers of High Court / Sessions Court (s.483, CrPC 439)

- These courts may grant bail in any case and set aside or modify conditions.
- **Notice to the PP** is required for offences triable exclusively by Sessions or punishable with life.
- **Hearing the informant** is required for rape of a minor.
- **Cancellation of bail** under s.483(3) is possible if the person misuses liberty, tampers with evidence or threatens witnesses (*Dolat Ram v. State of Haryana*, 1995). Grounds for cancellation differ from grounds for rejection.

F. Other provisions

- s.481 (CrPC 437A): bail bond to appear before the appellate court.
- s.484: amount of bond. s.485 (CrPC 441): bond of accused and sureties. s.486: declaration by sureties.
- s.487: discharge from custody.
- s.489: power to order sufficient bail when the first bail was insufficient.
- s.490: deposit instead of bond. s.491: forfeiture of bond (CrPC 446). s.493: appeal from orders.
- s.494: power to direct levy of the amount.

Factors for bail: nature and gravity of the accusation; severity of punishment; character of evidence; chance of absconding; chance of tampering with evidence; criminal antecedents; reasonable apprehension of witness intimidation (*Prahlad Singh Bhati v. NCT Delhi*, 2001; *Prasanta Kumar Sarkar v. Ashis Chatterjee*, 2010).

Satender Kumar Antil v. CBI (2022): guidelines on bail; categorises offences; no need to arrest if not arrested during investigation; bail applications to be decided within 2 weeks.

Default bail: see Q24.

Q29. Security for keeping peace and good behaviour (ss. 125–143, CrPC 106–124)

These are **preventive**, not punitive, provisions.

- **s.125** (CrPC 106): **on conviction** for offences involving breach of peace, criminal intimidation, etc., the court may order a **bond for keeping the peace for up to 3 years**.
- **s.126** (CrPC 107): **in other cases**, an Executive Magistrate who receives information that a person is likely to commit a breach of peace may require them to show cause why they should not execute a bond for keeping the peace for **up to 1 year**.
- **s.127** (CrPC 108): good behaviour from persons **disseminating certain matters** (e.g. promoting enmity, defamation of judges, obscene matter). Up to 1 year.
- **s.128** (CrPC 109): good behaviour from **suspected persons** who conceal their presence to commit cognizable offences. Up to 1 year.
- **s.129** (CrPC 110): **habitual offenders**, such as habitual robbers, house-breakers, thieves, receivers of stolen property, and those so desperate and dangerous as to be hazardous. Up to **3 years**.
- **Procedure (ss. 130–143)**:
  - s.130: the Magistrate makes a written **order** setting out the substance of the information.
  - s.131: procedure in respect of a person present in court.
  - s.132: summons or warrant.
  - s.135: **inquiry into truth of the information**. Interim bond is possible.
  - s.136: order to give security. s.137: discharge.
  - s.138: commencement of period.
  - s.140: power to reject sureties.
  - s.141: imprisonment in default of security.
  - s.142: power to release persons.
  - s.143: security for unexpired period.
- *Madhu Limaye v. SDM, Monghyr* (1970): these are preventive powers and must be exercised strictly.

Q30. Maintenance of public order: unlawful assemblies (ss. 148–151, CrPC 129–132)

- **s.148**: an Executive Magistrate or officer in charge of a police station may **command an unlawful assembly** (or an assembly of 5 or more likely to cause a disturbance) to disperse. If it does not disperse, they may use **civil force**, and arrest and confine the members.
- **s.149**: if necessary, the Executive Magistrate of the highest rank present may cause it to be dispersed by the **armed forces**, using as little force and doing as little injury as possible.
- **s.150**: when no Executive Magistrate can be contacted, a commissioned or gazetted **officer of the armed forces** may disperse it.
- **s.151**: **protection against prosecution**. No prosecution of these persons for acts done in good faith without Government sanction.
- *Ramlila Maidan Incident v. Home Secretary* (2012): use of force must be reasonable and proportionate.

Q31. Public nuisance (ss. 152–163, CrPC 133–144)

- **s.152** (CrPC 133): **conditional order for removal of nuisance**. A DM, SDM or Executive Magistrate, on a police report or other information, may order removal of an unlawful obstruction or nuisance on a public way, conduct of a trade injurious to health, dangerous buildings, unfenced tanks or wells, dangerous animals, etc.
- ss.153–159: service of the order; the person shall obey or show cause; claim of a public right (s.157, inquiry and stay of proceedings); evidence; local investigation; procedure when the order is made absolute.
- s.160: consequences of disobedience (BNS s.223). s.161: **injunction pending inquiry**. s.162: order to prevent repetition.
- **s.163** (CrPC 144): **urgent cases of nuisance or apprehended danger**. The DM, SDM or Executive Magistrate may issue a written order directing a person to abstain from an act, or to take order with property, to prevent obstruction, annoyance, injury, danger to human life, health or safety, or a disturbance of public tranquillity, a riot or an affray. It is valid for **2 months**. The State Government may extend it up to **6 months**. It may be made **ex parte** in emergencies.
    - *Madhu Limaye v. SDM, Monghyr* (1970): upheld as a reasonable restriction.
    - *Anuradha Bhasin v. UOI* (2020): the power cannot be used to suppress legitimate expression; it must be proportionate and the order must be reasoned and published.
    - *Municipal Council, Ratlam v. Vardichan* (1980): s.133 obligates municipalities to remove public nuisances; financial inability is no excuse.

Q32. Disputes as to immovable property (ss. 164–167, CrPC 145–148)

- **s.164** (CrPC 145): when an Executive Magistrate is satisfied that a dispute about **land or water** is likely to cause a **breach of the peace**, they order the parties to attend and put in written statements about **actual possession**. They decide **who was in possession on the date of the order**, regardless of title. A person wrongfully dispossessed within **2 months** before the police report is deemed to be in possession. The order stands until eviction in due course of law (a civil court decides title).
- **s.165** (CrPC 146): power to **attach** the subject of the dispute in emergency or where possession cannot be determined, and appoint a receiver.
- **s.166** (CrPC 147): dispute about the **right of use** of land or water (easements).
- **s.167** (CrPC 148): local inquiry.
- These provisions are **quasi-civil** and aimed at maintaining peace. They do not decide title (*R.H. Bhutani v. Mani J. Desai*, 1968).

Q33. Maintenance of wives, children and parents (ss. 144–147, CrPC 125–128). *(Very important)*

Object: social justice. A **summary remedy to prevent vagrancy and destitution** (*Chaturbhuj v. Sita Bai*, 2008; *Bhuwan Mohan Singh v. Meena*, 2014). It is secular and applies to all religions.

Who can claim (s.144(1)): a person **having sufficient means** who neglects or refuses to maintain:

a. their **wife** unable to maintain herself. “Wife” includes a **divorced wife who has not remarried**;
b. a **legitimate or illegitimate minor child**, whether married or not;
c. a legitimate or illegitimate **major child** (other than a married daughter) unable to maintain itself because of physical or mental abnormality or injury;
d. their **father or mother** unable to maintain themselves.

A **married minor daughter’s** maintenance falls on the father until marriage, if her husband lacks means.

- **Amount**: a **monthly allowance** as the Magistrate thinks fit. There is **no upper limit** (since the 2001 amendment). **Interim maintenance** and expenses of proceedings are possible, with the application to be disposed of within **60 days** of notice.
- **Wife not entitled**: if she is **living in adultery**, refuses to live with her husband **without sufficient reason**, or they live separately by **mutual consent** (s.144(4)). A husband’s second marriage or keeping a mistress is just ground for the wife to live separately.
- **Who decides**: a JMFC. **Jurisdiction (s.145)**: where the respondent is, where they or their wife reside, where they last resided with the wife, or where the person claiming resides. Evidence is taken in the presence of the respondent. An ex parte order is possible.
- **Alteration (s.146, CrPC 127)**: on change of circumstances; cancellation if the divorced wife remarries or has received the customary sum.
- **Enforcement (s.147, CrPC 128)**: a warrant to **levy as fine**; imprisonment up to **1 month for each month’s default** if unpaid. The application must be made **within 1 year** of the amount falling due.

Cases

- *Mohd. Ahmed Khan v. Shah Bano Begum* (1985): s.125 applies to Muslim divorced women. Personal law cannot override it.
- *Danial Latifi v. UOI* (2001): upheld the Muslim Women (Protection of Rights on Divorce) Act, 1986. The husband must make a **reasonable and fair provision** for the future, extending beyond iddat, which must be paid within the iddat period.
- *Mohd. Abdul Samad v. State of Telangana* (2024): a divorced Muslim woman **can also claim under s.125 CrPC** (s.144 BNSS). The 1986 Act does not exclude it.
- *Chanmuniya v. Virendra Kumar Singh Kushwaha* (2011): “wife” is interpreted broadly; a long cohabitation creates a presumption.
- *Badshah v. Urmila Badshah Godse* (2014): a second wife married without knowledge of the first marriage was granted maintenance.
- *Rajnesh v. Neha* (2020): guidelines for maintenance. Affidavit of assets is required. Maintenance runs from the **date of application**. Overlapping claims are adjusted.
- *Vijay Kumar Prasad v. State of Bihar* (2004): proceedings are civil in nature.

Q34. Maintenance under the Muslim Women (Protection of Rights on Divorce) Act, 1986

- **s.3**: a divorced Muslim woman is entitled to:
  a. a **reasonable and fair provision and maintenance** to be made and paid within the **iddat period** by the former husband;
  b. maintenance for children for 2 years from birth;
  c. **mahr / dower**;
  d. properties given to her. If not paid, the Magistrate orders payment within 1 month.
- **s.4**: if she has not remarried and cannot maintain herself after iddat, the Magistrate may order **relatives who would inherit her property** to pay. If none can, the **State Wakf Board** pays.
- **s.5**: option to be governed by s.125 CrPC by a joint affidavit.
- **Interpretation**: *Danial Latifi* (2001) held that "provision" covers her entire future life, and the Act is constitutional. *Shabana Bano v. Imran Khan* (2009) held that the Family Court can grant s.125 maintenance even after iddat. *Mohd. Abdul Samad* (2024) held both remedies are available.

MODULE 5 — CHARGE, TRIAL AND RELATED PROCEDURES

Q35. Concept of fair trial — presumption of innocence, right to silence, speedy trial

A fair trial is the **heart of criminal jurisprudence** (Art. 21). Its ingredients:

1. **Presumption of innocence**. The burden is on the prosecution; proof is required **beyond reasonable doubt** (*Woolmington v. DPP*, 1935, the "golden thread"; *Kali Ram v. State of H.P.*, 1973). Exceptions exist where statutes reverse the burden (e.g. NDPS ss.35, 54; POCSO s.29; BSA ss.117–120 presumptions).
2. **Right to silence / against self-incrimination**. Art. 20(3); BNSS s.351(3) (no oath for the accused); s.353 (accused a competent witness only on their own written request; no adverse comment on failure to testify). *Nandini Satpathy* (1978); *Selvi* (2010).
3. **Speedy trial**. *Hussainara Khatoon* (1979); *Abdul Rehman Antulay v. R.S. Nayak* (1992), which held no fixed time limit applies but delay is a factor; *P. Ramachandra Rao v. State of Karnataka* (2002). BNSS sets many timelines.
4. **Independent, impartial and competent judge**; open court trial (s.366, CrPC 327). In-camera trials are held for rape cases.
5. **Right to counsel and legal aid** (ss.340–341).
6. **Trial in presence of the accused** (s.308), and knowledge of the accusation (charge).
7. **Right to cross-examine** and to lead defence evidence.
8. **Disclosure of documents** (s.230).

9. **Protection against double jeopardy** (s.337).
10. **Fair investigation** (*Babubhai v. State of Gujarat*, 2010).

Zahira Habibullah Sheikh v. State of Gujarat (Best Bakery case, 2004): a fair trial means one before an impartial judge, a fair prosecutor and an atmosphere of judicial calm. Denial of a fair trial is injustice to the accused, the victim and society.

Q36. Limitation for taking cognizance (ss. 513–519, CrPC 467–473)

- **s.514** (CrPC 468): **bar to taking cognizance after the limitation period**:
  - **6 months**: offence punishable with fine only;
  - **1 year**: imprisonment up to 1 year;
  - **3 years**: imprisonment of more than 1 year but up to 3 years.
  - No limitation for offences punishable with more than 3 years.
- **s.515** (CrPC 469): **commencement** is the date of the offence, or the date of knowledge to the aggrieved person or police, or, if the offender is unknown, the date their identity is known.
- **s.516** (CrPC 470): exclusion of time spent in other prosecutions in good faith, under stay, notice periods, sanction periods, and so on.
- s.517: exclusion of the date on which the court is closed.
- **s.518** (CrPC 472): **continuing offence**. A fresh period begins every moment the offence continues.
- **s.519** (CrPC 473): the court may take cognizance after the limitation period if satisfied that the **delay is properly explained** or it is necessary in the **interests of justice**.
- *Sarah Mathew v. Institute of Cardio Vascular Diseases* (2014, Constitution Bench): for computing limitation, the relevant date is the **date of filing the complaint / initiating prosecution**, not the date of cognizance.
- *Vanka Radhamanohari v. Vanka Venkata Reddy* (1993): s.473 is to be read liberally in matrimonial offences.

Q37. Charge — contents, form and alteration (ss. 234–240, 247). *(Important)*

Meaning: the formal accusation in writing that tells the accused **precisely and concisely** the offence they are charged with. Object: to give the accused **notice** so they can prepare a defence. It is not needed in summons cases; there only the particulars are explained (s.274).

Contents (s.234, CrPC 211):

- states the **offence** charged;
- uses the specific **name** of the offence, if any, or a **definition** so the accused has notice;
- states the **law and section**;
- is written in the language of the court;

- is a statement that every legal condition required to constitute the offence is fulfilled;
- states **previous conviction** if it affects punishment.

Particulars (s.235, CrPC 212): **time, place and person** against whom, or the thing in respect of which, the offence was committed. In criminal breach of trust and misappropriation, the **gross sum** and dates between which it was committed may be specified, with the period not exceeding **one year**.

- **s.236** (CrPC 213): when the manner of commission must be stated, if the particulars do not give sufficient notice.
- **s.237** (CrPC 214): words in the charge are taken in the sense attached to them by law.
- **s.238** (CrPC 215): **effect of errors**. No error or omission is material unless the accused was **misled** and it caused a **failure of justice**.
- **s.239** (CrPC 216): the **court may alter or add to the charge at any time before judgment**. The charge is read and explained. If the alteration prejudices the accused, the court may direct a new trial or adjourn.
- **s.240** (CrPC 217): **recall of witnesses** when the charge is altered.
- **s.247** (CrPC 224): withdrawal of remaining charges on conviction on one of several charges.

Cases

- *Willie (William) Slaney v. State of M.P.* (1956): absence of a charge or an error in it is not fatal unless prejudice is caused. The test is **failure of justice**.
- *Main Pal v. State of Haryana* (2010): a conviction for a different offence than the one charged depends on prejudice.
- *Dalbir Singh v. State of U.P.* (2004).

Q38. Separate charge for distinct offences and exceptions — joinder of charges (ss. 241–246)

Basic rule (s.241, CrPC 218): for every **distinct offence** there must be a **separate charge**, and every charge must be **tried separately**. Object: to avoid prejudice and confusion. The Magistrate may try charges together if the accused applies in writing and it will not prejudice them.

Exceptions:

1. **s.242** (CrPC 219): **offences of the same kind within 12 months**, against the same or different persons, can be charged and tried together. BNSS allows **up to five** such offences (CrPC allowed three). “Same kind” means punishable with the same amount of punishment under the same section.
2. **s.243** (CrPC 220): offences committed in the **same transaction**. Also where the acts fall within two definitions of an offence, or several acts together constitute a different offence. Test of same transaction: **proximity of time, unity of place,**

unity or community of purpose, continuity of action (*State of A.P. v. Cheemalapati Ganeswara Rao*, 1963).

3. **s.244** (CrPC 221): **doubt about which offence** the facts constitute. The accused may be charged in the alternative and convicted of the offence proved even if not charged.
4. **s.245** (CrPC 222): when the offence proved is **included in the offence charged** (a **minor offence**), the accused may be convicted of it.
5. **s.246** (CrPC 223): **joint trial of persons**, including persons accused of the same offence in the same transaction, abettors, persons accused of offences in the same transaction, receivers of stolen property, and so on. *Essa @ Anjum Abdul Razak Memon v. State of Maharashtra* (2013).

Misjoinder of charges is curable under s.511 (CrPC 465) unless it caused a failure of justice (*Kadiri Kunhahammad v. State of Madras*, 1960).

Q39. Trial before a Court of Session (ss. 248–260). *(Very important)*

1. **s.248** (CrPC 225): the prosecution is conducted by a **Public Prosecutor**.
2. **s.249** (CrPC 226): **opening the case**. The PP describes the charge and the evidence.
3. **s.250** (CrPC 227): **discharge**. The accused may file a discharge application **within 60 days of commitment**. If the judge, after considering the record and documents and hearing both sides, finds **no sufficient ground**, the accused is discharged with reasons recorded. *Union of India v. Prafulla Kumar Samal* (1979): at this stage the test is a **prima facie case / grave suspicion**; there is no mini-trial. *Sajjan Kumar v. CBI* (2010).
4. **s.251** (CrPC 228): **framing of charge** within **60 days** of the first hearing on charge. If the offence is not exclusively triable by Sessions, the case may be transferred to the CJM. The charge is read and explained, and the accused is asked whether they plead guilty.
5. **s.252** (CrPC 229): **conviction on plea of guilty**. This is discretionary; the plea must be unequivocal.
6. **s.253** (CrPC 230): date for prosecution evidence.
7. **s.254** (CrPC 231): **prosecution evidence**: examination-in-chief, cross-examination, re-examination. It may be recorded by **audio-video electronic means**. Cross-examination may be deferred.
8. **s.351** (CrPC 313): **examination of the accused**. The accused explains the circumstances appearing against them. There is no oath.
9. **s.255** (CrPC 232): **acquittal** if there is no evidence that the accused committed the offence.
10. **s.256** (CrPC 233): **defence evidence**. The accused may enter on the defence, give a written statement, and summon witnesses.
11. **s.257** (CrPC 234): **arguments**. The PP sums up and the accused replies. The PP may reply on a point of law.
12. **s.258** (CrPC 235): **judgment within 30 days** of conclusion of arguments, extendable to **45 days**. If the accused is convicted, the court **hears them on**

sentence (*Bachan Singh v. State of Punjab*, 1980; *Santa Singh v. State of Punjab*, 1976, which held non-hearing on sentence vitiates the sentence).

13. **s.259** (CrPC 236): previous conviction.
14. **s.260** (CrPC 237): procedure in defamation cases against high functionaries.

Q40. Trial of warrant cases by Magistrates (ss. 261–273)

A. Cases instituted on a police report (ss. 261–266)

- **s.261** (CrPC 238): the Magistrate ensures compliance with s.230 (copies supplied).
- **s.262** (CrPC 239): **discharge**. A discharge application may be filed within **60 days** of supply of documents. The accused is discharged if the charge is **groundless**. The accused may be examined by audio-video.
- **s.263** (CrPC 240): **framing of charge** within **60 days** of the first hearing on charge.
- **s.264** (CrPC 241): conviction on plea of guilty.
- **s.265** (CrPC 242): evidence for the prosecution.
- **s.266** (CrPC 243): evidence for the defence.

B. Cases instituted otherwise than on a police report (ss. 267–270)

- **s.267** (CrPC 244): the Magistrate **hears the prosecution and takes evidence** first (pre-charge evidence).
- **s.268** (CrPC 245): discharge if no case is made out, or at any previous stage if the charge is groundless.
- **s.269** (CrPC 246): framing of charge. The accused is asked to plead. Witnesses are recalled for cross-examination.
- **s.270** (CrPC 247): defence evidence.

C. Conclusion of trial (ss. 271–273)

- **s.271** (CrPC 248): acquittal or conviction. The accused is heard on sentence. Probation may be considered.
- **s.272** (CrPC 249): **absence of complainant**. The Magistrate may discharge the accused if the offence is compoundable or non-cognizable and the charge has not been framed.
- **s.273** (CrPC 250): **compensation for accusation without reasonable cause**. The complainant or informant may be ordered to pay compensation.

Q41. Trial of summons cases (ss. 274–282, CrPC 251–259)

- **s.274**: **no formal charge**. The particulars of the offence are stated to the accused and they are asked whether they plead guilty. *New*: if the accusation is groundless, the Magistrate may release the accused after recording reasons (this has the effect of discharge).
- s.275: conviction on plea of guilty. s.276: conviction on plea of guilty in absence of the accused in petty cases.

- **s.277**: procedure when not convicted. The Magistrate hears the prosecution and the defence and takes evidence.
- **s.278**: acquittal or conviction.
- **s.279** (CrPC 256): **non-appearance or death of complainant**. The accused may be acquitted.
- s.280: **withdrawal of complaint** by the complainant before final order, with permission. This leads to acquittal.
- s.281 (CrPC 258): power to **stop proceedings** in cases not instituted on complaint. If stopped after evidence of the main witnesses, this leads to acquittal; otherwise it leads to release (discharge).
- **s.282** (CrPC 259): power to **convert a summons case into a warrant case** if the offence is punishable with more than 6 months and it is in the interests of justice.

Summons vs warrant case

Summons case	Warrant case
Offence punishable up to 2 years	Death, life, more than 2 years
No formal charge	Formal written charge
Accused may be acquitted for absence of complainant	Discharge only in limited cases
Simpler, quicker	More elaborate, with a discharge stage
Can be converted into a warrant case (s.282)	Cannot be converted into a summons case

Q42. Summary trials (ss. 283–288, CrPC 260–265)

- **s.283**: a **CJM or JMFC** (or a JM-II specially empowered, for offences with fine or up to 6 months) **shall try summarily**:
  - offences not punishable with death, life imprisonment or imprisonment exceeding **2 years**;
  - **theft, receiving or retaining stolen property** where value does **not exceed ₹20,000** (raised from ₹2,000);
  - house trespass, insult intending provocation, criminal intimidation, abetment of these, offences under the Cattle Trespass Act.
- **s.283(2)** *(new)*: the Magistrate may, after hearing the accused, try summarily offences punishable with up to **3 years**. **No appeal** lies against this decision to try summarily.
- If it appears during trial that summary trial is undesirable, the Magistrate recalls the witnesses and tries the case as a regular case.
- **s.284**: procedure is that for **summons cases**.
- **s.285**: **sentence** of imprisonment up to **3 months** only.
- **s.286**: summary trial by a Magistrate of the second class. s.287: **record** in prescribed form (serial number, date of offence, complainant, accused, offence, plea, finding, sentence). s.288: **judgment** with brief reasons where the accused does not plead guilty. Record and judgment in the language of the court.

Q43. Evidence in inquiries and trials; commissions (ss. 307–336)

- s.307: language of courts (determined by the State Government).
- **s.308** (CrPC 273): **evidence to be taken in presence of the accused or their pleader**. It may be recorded by **audio-video electronic means** at a designated place. In rape cases with a victim under 18, the court ensures she is **not confronted by the accused** while ensuring cross-examination.
- ss.309–312: record in summons cases (memorandum), warrant cases (narrative), Sessions (narrative / question-answer). Evidence may be recorded electronically.
- **s.313** (CrPC 280): **remarks on demeanour** of witnesses.
- **s.316** (CrPC 281): record of examination of the accused.
- s.317: interpretation of evidence to the accused.
- **Commissions (ss. 319–326)**: when attendance of a witness cannot be procured without unreasonable delay, expense or inconvenience, the court may **issue a commission** for examination (e.g. the President, Vice-President, Governors, and witnesses abroad).
- **Special rules (ss. 327–336)**:
  - s.329 (CrPC 293): **reports of Government scientific experts** (CFSL etc.) may be used as evidence without examining the expert.
  - s.330 (CrPC 294): **no formal proof of documents** whose genuineness is not disputed. Objection must be raised **within 30 days** of supply.
  - s.332 (CrPC 296): evidence of a formal character on **affidavit**.
  - s.335 (CrPC 299): **record of evidence in absence of the accused** (absconding).
  - **s.336** *(new)*: if a public servant, scientific expert, medical officer or investigating officer has been transferred, retired or died, their **successor-in-office** can depose on the document or report.

Q44. Plea bargaining (ss. 289–300, CrPC 265A–265L). *(Important)*

Meaning: pre-trial negotiation in which the accused **pleads guilty** in exchange for a **lesser sentence**. It was introduced in 2005 on the recommendations of the **154th Law Commission Report** and the **Malimath Committee**.

Applicability (s.289):

- Only for offences punishable with imprisonment **up to 7 years** where the case is pending trial.
- **Not available** for offences affecting the **socio-economic condition** of the country (notified), offences against a **woman**, or offences against a **child below 14**.
- Not available if the accused was previously convicted of the same offence.

Procedure:

1. **s.290**: the accused files the application **within 30 days of framing of charge** (*new time limit*), with an affidavit that it is voluntary. The court examines the accused **in camera** to ensure voluntariness.

2. **s.291**: guidelines for a **mutually satisfactory disposition**. The court gives time (**up to 60 days**) to the PP or complainant, the victim and the accused to work it out. This may include **compensation** to the victim.
3. **s.292**: report of the mutually satisfactory disposition, signed by all parties.
4. **s.293**: **disposal of the case**:
    - compensation to the victim;
    - release on **probation / admonition** if eligible;
    - if a **minimum punishment** is prescribed, **one-half** of the minimum;
    - otherwise **one-fourth** of the punishment provided.
    - *New*: for a **first-time offender**, **one-fourth** of the minimum and **one-sixth** of the maximum.
5. **s.294**: judgment in open court.
6. **s.295**: judgment is **final**. **No appeal**, except a writ petition under Arts. 32, 226, 227 or an SLP under Art. 136.
7. s.296: powers of the court.
8. **s.297**: **set-off** of detention period.
9. s.298: savings.
10. **s.299**: **statements made in a plea bargaining application cannot be used** for any other purpose.
11. s.300: non-application to juveniles.

Cases

- *State of U.P. v. Chandrika* (2000), before the 2005 amendment: plea bargaining was illegal; the court must decide on merits.
- *Kachhia Patel Shantilal Koderlal v. State of Gujarat* (1980): practice disapproved before the amendment.

Merits: reduces backlog, saves time and cost, gives the victim compensation, offers a lighter sentence. **Demerits**: risk of coercion; innocent persons may plead guilty; it may favour the wealthy.

Q45. Autrefois acquit and autrefois convict — double jeopardy (s.337, CrPC 300; Art. 20(2))

Maxim: *nemo debet bis vexari pro una et eadem causa* (no one should be vexed twice for the same cause).

s.337(1): a person once tried by a **court of competent jurisdiction** for an offence and **convicted or acquitted**, while the conviction or acquittal remains in force, **shall not be tried again for the same offence**, nor for any other offence on the same facts for which a different charge could have been made (s.243(1)) or for which they could have been convicted (s.244(2)).

Exceptions:

- s.337(2): a **distinct offence** for which a separate charge might have been made may be tried with the consent of the State Government.

- s.337(3): where the act caused **consequences** that, together with the act, constitute a different offence, and the consequences had not happened or were not known when first tried (e.g. hurt that later results in death).
- s.337(4): if the court that first tried the person was **not competent** to try the offence later charged.
- s.337(5): a person discharged under s.281 cannot be tried again without the consent of the court.
- Explanation: **dismissal of a complaint or discharge is not an acquittal**.

Art. 20(2) vs s.337

Art. 20(2)	s.337 BNSS
Protects only against **prosecution and punishment** (autrefois convict)	Covers both **acquittal and conviction**
Requires prosecution **and punishment**	Requires trial by a competent court
A fundamental right	A statutory right, wider in scope

Cases

- *Maqbool Hussain v. State of Bombay* (1953): proceedings before the Sea Customs authorities are not "prosecution", so a later criminal trial was not barred.
- *S.A. Venkataraman v. UOI* (1954): departmental inquiry followed by prosecution is not barred.
- *Thomas Dana v. State of Punjab* (1959): "same offence" means identical ingredients.
- *Kolla Veera Raghav Rao v. Gorantla Venkateswara Rao* (2011): conviction under NI Act s.138 bars a later trial under IPC s.420 on the **same facts**.
- *State of Bihar v. Murad Ali Khan* (1988): the test is identity of ingredients, not of facts.

Q46. Compounding of offences (s.359, CrPC 320)

- **Meaning**: the **victim forgiving the offender**, usually for compensation, which results in **acquittal**.
- **Table 1**: offences compoundable **without court permission** by the specified persons (e.g. simple hurt, wrongful restraint, criminal trespass, defamation, criminal intimidation).
- **Table 2**: offences compoundable **with permission of the court** (e.g. grievous hurt, theft, cheating, criminal breach of trust by a clerk or servant, some voluntary hurt cases).
- Offences not listed **cannot be compounded**.
- The composition **has the effect of acquittal**.
- Abetment and attempt are compoundable when the main offence is compoundable.
- A minor or person of unsound mind compounds through a guardian. A legal representative compounds if the person dies.
- Compounding is not permissible when the accused is **committed for trial** or convicted and an appeal is pending, without the court's leave. It is not allowed if the

accused is liable to enhanced punishment due to a previous conviction.

- **Quashing distinguished**: the High Court under s.528 can **quash even non-compoundable offences** on settlement in private, civil-flavoured disputes (matrimonial, commercial). It cannot do so in heinous offences (murder, rape, dacoity) or offences against society.
    - *Gian Singh v. State of Punjab* (2012);
    - *Narinder Singh v. State of Punjab* (2014);
    - *Parbatbhai Aahir v. State of Gujarat* (2017).

Q47. Withdrawal from prosecution (s.360, CrPC 321)

- The **Public Prosecutor or Assistant PP in charge** of the case may, **with the consent of the court**, withdraw from the prosecution **at any time before judgment**.
- **Effect**: before the charge is framed, the accused is **discharged**. After the charge is framed (or in cases where no charge is required), the accused is **acquitted**.
- *New proviso*: **the victim must be given an opportunity to be heard**. Central Government permission is needed in some cases (e.g. offences under laws relating to the Union's executive power, investigated by the CBI).
- **Principles**:
    - The PP must apply an **independent mind**; they are not a post office of the Government.
    - The court performs a **supervisory function**: it checks whether the application is made in good faith, in the public interest, and not to thwart justice.
    - Grounds include: inadequate evidence, public peace, a broader public interest, or political, social or economic reasons.
    - Cases: *Sheonandan Paswan v. State of Bihar* (1987, Constitution Bench); *Abdul Karim v. State of Karnataka* (2000, the Veerappan case); *Rajender Kumar Jain v. State* (1980); *State of Kerala v. K. Ajith* (2021, Kerala Assembly ruckus case: withdrawal refused).

Q48. Irregular proceedings (ss. 506–512, 520, 525–527)

Principle: procedural irregularities should not defeat justice unless they cause **prejudice or failure of justice**.

- **s.506** (CrPC 460): **irregularities that do not vitiate proceedings**, if done erroneously in good faith by a Magistrate not empowered. Examples: issuing a search warrant, ordering investigation, holding an inquest, issuing process, taking cognizance under s.210(1)(a) or (b), making over a case, tendering pardon, recalling and trying a case.
- **s.507** (CrPC 461): **irregularities that vitiate proceedings**, done by a Magistrate not empowered. Examples: attaching and selling property, issuing a search warrant for a document in postal custody, demanding security for keeping peace or good behaviour, discharging a person lawfully bound, cancelling a bond, making an order for maintenance, making orders under ss.152 or 163, taking cognizance under

s.210(1)(c), trying an offender, trying summarily, passing a sentence, deciding an appeal, calling for proceedings in revision.

- **s.508** (CrPC 462): proceedings in the **wrong place** are not set aside unless there was a failure of justice.
- **s.509** (CrPC 463): non-compliance with s.183 or s.316 (recording of confession or examination of the accused) can be cured by taking evidence that the person duly made the statement.
- **s.510** (CrPC 464): **omission to frame a charge, or an error in the charge**, does not invalidate a finding unless it caused a failure of justice. The appellate court may then direct framing of a charge and a retrial.
- **s.511** (CrPC 465): **no finding or sentence is reversed for error, omission or irregularity** (including in sanction) **unless a failure of justice** has been occasioned. The court considers whether the objection could and should have been raised earlier.
- **s.512** (CrPC 466): defect or error in an attachment does not make the seizure unlawful.
- **s.525** (CrPC 479): a judge or magistrate shall **not try a case to which they are a party or in which they are personally interested**, without permission of the appellate court.
- **s.526** (CrPC 480): a practising pleader shall not sit as a Magistrate in courts in which they practise.
- **s.527** (CrPC 481): a public servant concerned in a sale shall not purchase or bid for the property.
- (s.520 deals with cases transferred / trial before the High Court.)

Q49. Inherent powers of the High Court (s.528, CrPC 482). *(Very important)*

Text: "Nothing in this Sanhita shall be deemed to limit or affect the **inherent powers of the High Court** to make such orders as may be necessary:

i. to give effect to any order under this Sanhita;
ii. to **prevent abuse of the process of any court**; or
iii. otherwise to **secure the ends of justice**."

Nature: these powers are not conferred but **saved**. They are inherent in the High Court as a superior court. They are to be exercised **sparingly, with circumspection and in rare cases**. They cannot be used to override express provisions.

Uses: quashing an FIR, complaint or chargesheet; quashing proceedings on settlement; expunging remarks; correcting clerical errors; granting relief where no other remedy exists.

State of Haryana v. Bhajan Lal (1992). Seven categories where an FIR or proceedings may be quashed:

1. The allegations, even if taken at face value, do not constitute an offence.

2. The allegations do not disclose a cognizable offence justifying investigation without a Magistrate's order.
3. The uncontroverted allegations do not disclose any offence.
4. The allegations constitute only a non-cognizable offence and no Magistrate's order was obtained.
5. The allegations are so absurd and improbable that no prudent person could reach a conclusion.
6. There is an express legal bar to institution of proceedings.
7. The proceedings are **manifestly mala fide** or maliciously instituted with ulterior motive.

Other cases

- *R.P. Kapur v. State of Punjab* (1960): earlier categories.
- *Gian Singh* (2012): quashing on compromise.
- *Neeharika Infrastructure v. State of Maharashtra* (2021): the High Court should not pass blanket "no coercive steps" orders; guidelines.
- *State of Karnataka v. L. Muniswamy* (1977): ends of justice are higher than the ends of mere law.

MODULE 6 — JUDGMENT, PROBATION, APPEALS, REVISION, EXECUTION

Q50. Judgment — mode and contents (ss. 392–406, CrPC 353–365)

- **s.392** (CrPC 353): judgment is pronounced in **open court** immediately after the trial or at a later time with notice. It may be pronounced by delivering the whole judgment, reading it, or reading the operative part and explaining its substance. It is to be **uploaded on the portal within 7 days**. It may be pronounced through audio-video means.
- **s.393** (CrPC 354): **language and contents**: in the language of the court. It contains the **points for determination, the decision and the reasons**. It specifies the offence and section and the punishment. For an acquittal, it states the offence and directs that the accused be set at liberty. **For life imprisonment or a term of years** where death is an alternative, **special reasons** must be given for a death sentence (*Bachan Singh*). If the offence is punishable with 1 year or more but the court imposes **less than 3 months**, it must record reasons.
- s.394: order for notifying the address of a previously convicted offender.
- **s.395** (CrPC 357): **order to pay compensation** to the victim out of the fine, or even when a fine is not part of the sentence (*Hari Singh v. Sukhbir Singh*, 1988, which urged courts to use this liberally; *Ankush Shivaji Gaikwad v. State of Maharashtra*, 2013, which held courts must apply their mind to compensation in every case).
- **s.396** (CrPC 357A): **Victim Compensation Scheme**. Interim relief and free first aid (s.397, CrPC 357C).
- **s.398** *(new)*: **Witness Protection Scheme** to be notified by every State.

- s.399: compensation to persons groundlessly arrested.
- s.400: order to pay costs in non-cognizable cases.
- **s.401** (CrPC 360): **release on probation of good conduct or after admonition** (see Q52).
- s.402: special reasons to be recorded for not granting probation.
- **s.403** (CrPC 362): the **court shall not alter or review** its judgment after signing, except to correct a **clerical or arithmetical error**.
- s.404: copy of judgment to the accused free of cost.
- s.405: translation to be explained.
- s.406: court of Session to send copy of finding to DM.

Q51. Confirmation of death sentence (ss. 407–412, CrPC 366–371)

- **s.407**: when the Court of Session passes a **death sentence**, the proceedings are submitted to the **High Court**. **The sentence shall not be executed unless confirmed by the High Court.** The convicted person is committed to jail custody.
- s.408: the High Court may direct **further inquiry or additional evidence**.
- **s.409**: the High Court may:
  - **confirm** the sentence or pass any other sentence;
  - **annul the conviction** and convict for another offence, or order a new trial on the same or amended charge;
  - **acquit** the accused. No confirmation is made until the appeal period expires or the appeal is disposed of.
- s.410: confirmation or new sentence signed by **two judges** (where the Bench has two or more).
- s.411: procedure in case of difference of opinion. It goes to a third judge.
- s.412: procedure on confirmation. A copy goes to the Sessions Court.
- **Doctrine of "rarest of rare"**:
  - *Bachan Singh v. State of Punjab* (1980): the death penalty is constitutional but to be imposed only in the "rarest of rare" cases, balancing aggravating and mitigating circumstances. **Life imprisonment is the rule and death the exception.**
  - *Machhi Singh v. State of Punjab* (1983): five categories (manner of commission, motive, anti-social nature, magnitude, personality of the victim).
  - *Manoj v. State of M.P.* (2022): mitigation investigation and psychological evaluation are required.

Q52. Probation of offenders and parole

A. Probation: a **non-institutional (community-based) treatment** of an offender. The offender is released conditionally under supervision instead of being sent to prison. It is based on the **reformative theory**. It avoids contamination of first offenders by hardened criminals.

Probation of Offenders Act, 1958

- **s.3**: **release after admonition** for offences under IPC ss.379, 380, 381, 404, 420 or any offence punishable with up to **2 years**, with no previous conviction.
- **s.4**: **release on probation of good conduct** for any offence **not punishable with death or life imprisonment**, having regard to the circumstances, nature of the offence and character of the offender. A bond is required for up to **3 years**, with or without sureties. A **supervision order** may be made. The probation officer's report is considered.
- **s.5**: the court may order **compensation and costs** to the victim.
- **s.6**: an offender **under 21** shall not be sentenced to imprisonment (for offences not punishable with life) unless the court records reasons. The court must call for a probation officer's report.
- s.7: report of the probation officer is confidential.
- s.8: variation of conditions. s.9: procedure on the offender failing to observe conditions. The offender may be sentenced for the original offence.
- **s.11**: appellate and revisional courts may also grant probation.
- **s.12**: **removal of disqualification** attached to conviction (e.g. for government service).
- s.13: **probation officers**. **s.14**: **duties of probation officers**:
    - inquire into the circumstances and home surroundings of the offender;
    - supervise probationers;
    - advise and assist them in finding employment;
    - advise them on compensation;
    - report to the court.
- s.18: saves certain special laws (the Act does not override specific statutes listed there).
- s.19: s.401 BNSS (CrPC 360) **does not apply** where the Probation of Offenders Act is in force.

Role of judiciary

- *Rattan Lal v. State of Punjab* (1965): the Act was applied retrospectively as a beneficial law.
- *Ishar Das v. State of Punjab* (1972): probation applied to a young offender under the Food Adulteration Act.
- *Musa Khan v. State of Maharashtra* (1977).
- *Mohd. Aziz Mohd. Nasir v. State of Maharashtra* (1976).
- *State of Maharashtra v. Jagmohan Singh Kuldip Singh Anand* (2004): probation is not to be granted mechanically.
- *State of M.P. v. Vikram Das* (2019): where a statute prescribes a **mandatory minimum sentence**, courts cannot go below it (so probation is generally not available).

B. Parole: **conditional release of a convict before completion of sentence** (or temporary release for a short period) for good behaviour, family emergencies, or social reasons. It is governed by **State prison rules / executive orders**, not the BNSS. **Furlough** is a release as a matter of right after a certain period served, for good conduct, to maintain family ties.

- *State of Haryana v. Mohinder Singh* (2000);
- *Asfaq v. State of Rajasthan* (2017): difference between parole and furlough;
- *State of Gujarat v. Narayan @ Narayan Sai* (2021).

Probation vs Parole

Probation	Parole
Granted **instead of** imprisonment, at the sentencing stage	Granted **after** serving part of the sentence
Granted by the **court**	Granted by the **executive** (prison authorities / State Government)
Under the Probation of Offenders Act, 1958 / s.401 BNSS	Under prison rules
Offender never goes to prison	Offender is released from prison
Judicial function	Administrative function
Aim: reformation without stigma	Aim: rehabilitation and maintaining social ties

Q53. Appeals (ss. 413–435, CrPC 372–394)

- **s.413** (CrPC 372): **no appeal except as provided** by BNSS or another law. *Proviso*: the **victim has a right to appeal** against an acquittal, a conviction for a lesser offence or inadequate compensation (introduced 2009). *Mallikarjun Kodagali v. State of Karnataka* (2018): the victim does not need leave to appeal.
- s.414 (CrPC 373): appeal from orders requiring security or refusing to accept or rejecting a surety.
- **s.415** (CrPC 374): **appeals from convictions**:
  - from a High Court in extraordinary original criminal jurisdiction, to the Supreme Court;
  - from Sessions trials or trials by a Magistrate with a sentence of more than 7 years, to the High Court;
  - from Magistrates, to the Court of Session.
  - Appeals in **rape cases** are to be disposed of within **6 months**.
- **s.416** (CrPC 375): **no appeal where the accused pleads guilty** and is convicted, except as to extent or legality of sentence.
- **s.417** (CrPC 376): **no appeal in petty cases**:
  - High Court: imprisonment up to 3 months or fine up to ₹1,000, or both;
  - Court of Session: imprisonment up to 3 months or fine up to ₹200, or both;
  - Magistrate: fine only, up to ₹3,000;
  - summary trial: fine only, up to ₹200. An appeal still lies if any other punishment is combined with it. *(Check the exact rupee figures against your bare act.)*
- **s.418** (CrPC 377): **appeal by the State against inadequacy of sentence**, to the High Court (or Sessions in some cases). The accused can plead for acquittal.
- **s.419** (CrPC 378): **appeal against acquittal**:
  - by the DM through the PP, to the Sessions Court, in cognizable and non-bailable Magistrate cases;

    - by the State Government to the High Court **with leave**;
    - by the complainant **with special leave** of the High Court, within **6 months** if the complainant is a public servant, or **60 days** otherwise.
    - Principles: an acquittal reinforces the presumption of innocence; it is interfered with only if perverse (*Chandrappa v. State of Karnataka*, 2007).
- **s.420** (CrPC 379): an appeal against conviction by the High Court in certain cases lies to the Supreme Court (where the High Court reversed an acquittal and sentenced to death, life or 10+ years).
- s.421 (CrPC 380): special right of appeal in certain cases (co-accused).
- ss.422–426: appeal to Sessions; petition of appeal; procedure; summary dismissal.
- **s.427** (CrPC 386): **powers of appellate court**: reverse, alter, order retrial, enhance (only after notice to the accused), and so on.
- **s.430** (CrPC 389): **suspension of sentence pending appeal; release on bail**. The PP must be heard for offences punishable with death, life or 10+ years.
- s.431: arrest of accused in appeal from acquittal. s.432: appellate court may take further evidence.
- s.434: **finality** of appellate judgments. s.435: abatement of appeals on death (except appeals against conviction where sentence of fine).

Q54. Reference and revision (ss. 436–445, CrPC 395–405)

Reference (s.436, CrPC 395): if a subordinate court is satisfied that a case pending before it involves a **question about the validity** of an Act, ordinance or regulation, the determination of which is necessary for the disposal of the case, and it thinks the law is invalid (but it has not been declared so by the High Court or Supreme Court), it **must state the case and refer** it to the High Court. Sessions Courts and Metropolitan Magistrates may also refer other questions of law. s.437: the High Court's order on the reference.

Revision

- **s.438** (CrPC 397): the **High Court or Sessions Judge may call for and examine the record** of any proceeding of an inferior criminal court to satisfy itself as to the **correctness, legality or propriety** of any finding, sentence or order, and the regularity of proceedings. **No revision against interlocutory orders** (s.438(2); *Amar Nath v. State of Haryana*, 1977; *Madhu Limaye v. State of Maharashtra*, 1977, which said intermediate orders are not interlocutory). **Bar on second revision** by the same person (s.438(3)).
- s.439 (CrPC 398): power to order inquiry.
- s.440 (CrPC 399): Sessions Judge's powers of revision.
- s.441 (CrPC 400): Additional Sessions Judge.
- **s.442** (CrPC 401): **High Court's powers of revision**: any power of an appellate court. Limits:
    - no order to the prejudice of the accused without hearing;
    - **cannot convert a finding of acquittal into a conviction** (it can only order a retrial);
    - **no revision at the instance of a party who could have appealed**.

- s.443: power of High Court to withdraw or transfer revision cases.
- s.444: option of the court to hear parties.
- s.445: statement of High Court's order to be certified to the lower court.

Appeal vs Revision

Appeal	Revision
A substantive **right** of the party conferred by statute	A **discretion** of the court
Lies on facts and law	Mainly on legality, propriety and correctness; not a re-appreciation of evidence
Conviction may be reversed	Acquittal cannot be converted into conviction
Limitation period applies	Can be exercised suo motu

Q55. Transfer of criminal cases (ss. 446–452, CrPC 406–412)

- **s.446** (CrPC 406): the **Supreme Court** may transfer a case or appeal from one High Court to another, or from a subordinate court of one State to that of another, **for the ends of justice**. The application is made by the Attorney General or an interested party, by motion supported by affidavit. Compensation up to ₹1,000 may be ordered for a frivolous application.
  - *Zahira Habibullah Sheikh* (2004): the Best Bakery case was transferred from Gujarat to Maharashtra.
  - *Maneka Sanjay Gandhi v. Rani Jethmalani* (1979): grounds for transfer include reasonable apprehension of a fair trial not being possible; the apprehension must be reasonable, not imaginary.
- **s.447** (CrPC 407): **High Court's** power to transfer within the State where:
  - a fair and impartial trial cannot be had;
  - a question of unusual difficulty is likely to arise;
  - it is required under a provision of BNSS;
  - it is expedient for the general convenience of parties or witnesses or for the ends of justice.
- **s.448** (CrPC 408): **Sessions Judge** may transfer within the sessions division.
- s.449: withdrawal of cases and appeals by Sessions Judges.
- s.450: withdrawal by Additional Sessions Judge.
- s.451: Magistrates (CJM) may make over or withdraw cases.
- s.452: reasons to be recorded.

Q56. Execution, suspension, remission and commutation of sentences (ss. 453–477)

- **s.453** (CrPC 413): execution of an order in a death sentence after confirmation. **s.454**: execution of a sentence of death passed by the High Court.
- **s.455** (CrPC 416): **pregnant woman** sentenced to death: the **High Court shall commute** the sentence to **life imprisonment** (BNSS).
- ss.456–459: execution of imprisonment; place of imprisonment; warrant to execute.

- ss.461–464: levy of fine; effect of payment of fine.
- s.465: suspension of execution of sentence of imprisonment.
- s.467 (CrPC 427): a sentence on an offender already sentenced for another offence runs consecutively, unless the court directs concurrent running.
- s.468 (CrPC 428): **set-off** of detention undergone during investigation, inquiry or trial against the term of imprisonment.
- ss.469–471: saving; return of warrant; warrant with which a sentence is to be executed.
- **s.472** *(new)*: **mercy petition in death sentence cases**. The convict files it within **30 days** of being informed of the dismissal of the appeal or SLP, first to the Governor and then to the President within 60 days. No appeal lies against the President's order.
- **s.473** (CrPC 432): **power to suspend or remit sentences**. The appropriate Government may suspend or remit the sentence, with or without conditions, after taking the opinion of the presiding judge. If a condition is not fulfilled, the remission is cancelled and the person can be re-arrested.
- **s.474** (CrPC 433): **power to commute**:
    - death to any other punishment under BNS;
    - life imprisonment to imprisonment not less than **7 years**;
    - imprisonment of 7 years or more to not less than **3 years**;
    - imprisonment of less than 7 years to a fine;
    - rigorous imprisonment to simple imprisonment.
- **s.475** (CrPC 433A): **restriction**. A person sentenced to **life imprisonment for an offence punishable with death**, or whose death sentence was commuted to life, shall not be released **until they have served 14 years**.
- s.476 (CrPC 434): concurrent powers of the Central Government in death sentence cases.
- s.477 (CrPC 435): the State Government must act after **consultation with (concurrence of) the Central Government** in certain cases (CBI-investigated, Central law offences).
- **Constitutional powers** (Arts. 72 and 161) are independent of these.
    - *Union of India v. V. Sriharan* (2016, Constitution Bench): the State cannot remit suo motu; the court can fix a fixed-term life sentence beyond 14 years; "consultation" means concurrence.
    - *Epuru Sudhakar v. Govt. of A.P.* (2006): the pardon power is subject to judicial review on limited grounds.
    - *Shatrughan Chauhan v. UOI* (2014): delay in deciding a mercy petition is a ground for commutation.

Q57. Tender of pardon to accomplice (ss. 343–345, CrPC 306–308)

- **s.343** (CrPC 306): to obtain the evidence of a person supposed to be directly or indirectly concerned in an offence, a **CJM or JMFC** (during investigation, inquiry or trial) may **tender a pardon** on condition that they make a **full and true disclosure** of all circumstances within their knowledge. It applies to offences **triable exclusively by Sessions**, offences punishable with **7 years or more**, or offences

under specified laws. Reasons are recorded. The **approver** is examined as a witness and is **detained in custody till termination of the trial**, unless already on bail.
- **s.344** (CrPC 307): power to direct tender of pardon **after commitment but before judgment** by the court to which the case is committed.
- **s.345** (CrPC 308): **trial of a person not complying** with the conditions. If the PP certifies that the approver wilfully concealed something material or gave false evidence, the approver may be tried for the offence and for giving false evidence (the latter with High Court sanction). Their statement may be used against them.
- *Suresh Chandra Bahri v. State of Bihar* (1995): the approver's evidence needs **corroboration in material particulars** (BSA s.119(b) illustration, s.138).
- *A. Devendran v. State of T.N.* (1997): the Sessions Court cannot tender pardon at the commitment stage; s.306 is for Magistrates before commitment.

Q58. Provisions as to accused persons of unsound mind (ss. 367–378, CrPC 328–339)

- **s.367** (CrPC 328): procedure in case of an accused of unsound mind at an **inquiry**. The Magistrate gets them examined by a psychiatrist or clinical psychologist. If the accused is of unsound mind **and incapable of making a defence**, the inquiry is postponed. If the evidence shows no prima facie case, the accused is discharged.
- **s.368** (CrPC 329): procedure in case of a person of unsound mind **tried before court**.
- **s.369** (CrPC 330): **release pending investigation or trial**. The person is released on security if they can be cared for and prevented from injuring themselves or others. Otherwise they are detained in a residential facility.
- s.370 (CrPC 331): resumption of inquiry or trial when the person ceases to be of unsound mind.
- **s.371** (CrPC 332): procedure on the accused appearing before Magistrate or court.
- **s.372** (CrPC 333): when the accused appears to have been of sound mind at the time of the offence, the trial proceeds.
- **s.373** (CrPC 334): **judgment of acquittal on the ground of unsoundness of mind**. The finding must state whether the accused committed the act (BNS s.22).
- **s.374** (CrPC 335): a person acquitted on this ground is **detained in safe custody** or delivered to a relative.
- ss.375–378: delivery of a lunatic prisoner to the care of a relative or friend, etc.
- *Dahyabhai Chhaganbhai Thakker v. State of Gujarat* (1964): a defence of insanity must be proved on the preponderance of probabilities.
- *Shrikant Anandrao Bhosale v. State of Maharashtra* (2002).

MODULE 7 — JUVENILE JUSTICE (Note: the syllabus heading says 1986 but the content is the JJ (Care and Protection of Children) Act, 2015)

Q59. Concept and historical perspective of juvenile justice; BNS ss. 20 and 21

Concept: children who commit offences are to be treated differently from adults, with the focus on **reformation, rehabilitation and the best interests of the child**, not punishment. It is based on the **doctrine of parens patriae** (the State as guardian).

Historical perspective

- Apprentices Act, 1850.
- Reformatory Schools Act, 1897.
- IPC ss.82–83 (now BNS ss.20–21).
- Children Acts of the various States (Madras 1920, Bengal 1922, Bombay 1924).
- **Children Act, 1960** (for Union Territories).
- *Sheela Barse v. UOI* (1986) led to a uniform law.
- **Juvenile Justice Act, 1986** (the first uniform law): age 16 for boys and 18 for girls.
- **UN Convention on the Rights of the Child (1989)**, ratified by India in 1992.
- **JJ (Care and Protection of Children) Act, 2000**: age 18 for both.
- After the **Nirbhaya case (2012)**: the **JJ Act, 2015**, which allows children of **16–18 years** to be tried as **adults for heinous offences** after a preliminary assessment.
- **2021 amendment**: District Magistrates were empowered (adoption orders, supervision).

BNS provisions

- **s.20** (IPC 82): nothing is an offence that is done by a **child under 7 years**. This is absolute immunity (*doli incapax*).
- **s.21** (IPC 83): nothing is an offence that is done by a child **above 7 and under 12** who has **not attained sufficient maturity of understanding** to judge the nature and consequences of their conduct. This is a **qualified immunity**; maturity must be proved.

International instruments: UNCRC 1989; **Beijing Rules** (UN Standard Minimum Rules for the Administration of Juvenile Justice, 1985); **Riyadh Guidelines** (1990); **Havana Rules** (1990).

Q60. Child in conflict with law vs child in need of care and protection; JJ Boards and Children's Courts

Child in conflict with law (CCL) (s.2(13)): a child **alleged or found to have committed an offence** who has not completed **18 years** on the date of the offence.

Child in need of care and protection (CNCP) (s.2(14)): a child who:

- has no home or settled place and no ostensible means of subsistence;
- works in contravention of labour laws or is found begging or living on the street;
- resides with a person who has injured, exploited, abused or neglected them, or has threatened to do so;

- is mentally ill, mentally or physically challenged, or suffers from a terminal or incurable disease with no one to support them;
- has a parent or guardian who is unfit or incapacitated;
- has no parent and no one willing to take care of them, or whose parents have abandoned or surrendered them;
- is missing or a runaway;
- has been or is being, or is likely to be, abused, tortured or exploited for sexual abuse or illegal acts;
- is vulnerable and likely to be inducted into drug abuse or trafficking;
- is being or is likely to be abused for unconscionable gains;
- is a victim of an armed conflict, civil unrest or natural calamity;
- is at imminent risk of marriage before attaining the age of marriage.

CCL	CNCP
Has allegedly committed an offence	Is a victim of circumstances or neglect
Dealt with by the **Juvenile Justice Board**	Dealt with by the **Child Welfare Committee**
Placed in observation or special homes	Placed in children's homes or with fit persons
Approach: reformation	Approach: care, protection, rehabilitation

Juvenile Justice Board (ss. 4–9)

- **Composition**: a **Metropolitan Magistrate or JMFC** (Principal Magistrate) with at least 3 years' experience, and **two social workers**, at least one a woman.
- **Functions**: to ensure informed participation of the child; to inquire into CCL cases; to direct the DCPU or probation officer to prepare a **social investigation report**; to adjudicate; to inspect residential facilities.

Procedure

- No child is placed in police lock-up or jail (s.10). The child is produced before the Board within 24 hours.
- **Bail is the norm** (s.12): a child is released with or without surety unless release would bring them into association with known criminals, expose them to moral, physical or psychological danger, or defeat the ends of justice.
- Inquiry is to be completed within **4 months**, extendable by 2 months (s.14).
- **Heinous offences by a child of 16–18 (s.15)**: the Board conducts a **preliminary assessment** within **3 months** of the child's ability to commit the offence, understanding of consequences, and circumstances. It may then transfer the case to the **Children's Court** (Sessions Court) for trial as an adult (s.18(3)).
- **Orders (s.18)**: admonition; group counselling; community service; fine; probation; placement in a **special home** for up to **3 years**.
- **No death or life imprisonment without the possibility of release** (s.21).
- No disqualification attaches to a conviction (s.24).
- **Categories of offences**: **petty** (up to 3 years), **serious** (3–7 years), **heinous** (minimum 7 years or more).

- *Shilpa Mittal v. State (NCT of Delhi)* (2020): an offence with a **maximum of more than 7 years but no minimum** (or a minimum of less than 7 years) is a "serious" offence, not a "heinous" one.

Cases

- *Pratap Singh v. State of Jharkhand* (2005): the relevant age is the date of the offence.
- *Salil Bali v. UOI* (2013): upheld 18 as the age of juvenility.
- *Subramanian Swamy v. Raju* (2014): the court refused to read down the JJ Act based on the mental maturity of the offender.
- *Jitendra Singh v. State of U.P.* (2013): a claim of juvenility can be raised at any stage, even after final disposal.

Q61. Children in need of care and protection — Child Welfare Committee, SJPU, Childline

Child Welfare Committee (CWC) (ss. 27–30)

- **Composition**: a **Chairperson and four members**, at least one a woman and one an expert on matters concerning children. Constituted by the State Government for each district.
- **Powers**: it has the powers of a **Metropolitan Magistrate / JMFC**. Its decisions are final for CNCP cases.
- **Functions (s.30)**:
    - take cognizance of and receive children produced before it;
    - inquire into all issues relating to the safety and well-being of children;
    - direct social workers or probation officers to conduct social investigations;
    - declare a child fit for adoption (legally free for adoption);
    - restore children to families;
    - select registered institutions for placement;
    - conduct regular inspections of homes;
    - certify the execution of the surrender deed by parents;
    - ensure the care, protection, treatment, development and rehabilitation of children.
- A child is produced before the CWC within **24 hours** (s.31) by a police officer, public servant, Childline, NGO, social worker, nurse, doctor, or the child themselves.
- The inquiry is to be completed within **4 months** (s.36).

Rehabilitation and social reintegration (ss. 39–46): through **family-based care**, i.e. **adoption, foster care (s.44), sponsorship (s.45)**, and **after-care** (s.46, for children leaving institutions at 18, with support until 21).

Special Juvenile Police Unit (SJPU) (s.107)

- Every police station has at least one **Child Welfare Police Officer** (ASI or above).
- The SJPU in every district is headed by a DSP-level officer, with two social workers.

- It coordinates all police functions relating to children and handles cases with sensitivity (plain clothes, no handcuffs).

Childline services: 24×7 emergency outreach helpline (**1098**) for children in distress. It is now integrated with the Emergency Response Support System (112) under Mission Vatsalya. It rescues children and produces them before the CWC.

Q62. Institutional mechanisms and rehabilitation

- **Observation Homes (s.47)**: **temporary reception** of a CCL during the pendency of an inquiry.
- **Special Homes (s.48)**: for **rehabilitation of a CCL found to have committed an offence** and placed there by order of the JJB.
- **Place of Safety (s.49)**: for persons **above 18 or children of 16–18** accused or convicted of a **heinous offence**. At least one is set up in each State.
- **Children's Homes (s.50)**: for **CNCP** for care, treatment, education, training and rehabilitation. There are special homes for children with special needs.
- **Open Shelters (s.43)**: for children in need of residential support on a short-term basis.
- **Fit Facility (s.51)**: a facility run by a Government organisation or registered NGO, recognised by the Board or CWC as fit to take temporary responsibility of a child.
- **Fit Person (s.52)**: a person recognised as fit to take temporary care of a child.
- **Specialised Adoption Agencies (s.65)**.
- **Standards of care**: registration of all child care institutions is mandatory (s.41). This covers the standards of food, clothing, education, health, vocational training and recreation in the rules. **Inspection committees** inspect the institutions (s.54). There is a **social audit** (s.55), and the **NCPCR / SCPCR** monitor implementation of the Act (s.109).
- *Sampurna Behrua v. UOI* (2018): implementation of the JJ Act and the need for proper infrastructure.
- *Re: Exploitation of Children in Orphanages in the State of T.N. v. UOI* (2017).

Q63. Adoption under the JJ Act; CARA; inter-country adoption

Legal framework (Chapter VIII, ss. 56–73)

- **s.56**: adoption is for **orphan, abandoned and surrendered children**. It is also possible for a relative's child and for a step-parent adoption. It is done according to the **Adoption Regulations, 2022** framed by CARA. It applies to all religions (a **secular** law), unlike HAMA 1956, which applies only to Hindus. *Shabnam Hashmi v. UOI* (2014): any person, irrespective of religion, can adopt under the JJ Act.
- **s.38**: procedure for declaring a child **legally free for adoption** by the CWC. This takes **2 months** for children under 2 years and **4 months** for those above. A surrendering parent gets **60 days to reconsider** (s.35).
- **s.57 Eligibility of prospective adoptive parents**:
    - physically fit, financially sound, mentally alert, and highly motivated;

    - a couple needs consent of both spouses and must have a **stable marital relationship of at least 2 years**;
    - a **single female** can adopt a child of any gender;
    - a **single male cannot adopt a girl child**;
    - minimum age difference of **25 years** between the child and either parent.
- **s.58**: procedure for in-country adoption by Indian prospective adoptive parents.
- **s.61**: the **District Magistrate issues the adoption order** (since the 2021 amendment; earlier it was the court). The order must be passed within **2 months**.
- **s.63**: **effect of adoption**: the child becomes the child of the adoptive parents for all purposes, **including inheritance**. All ties with the birth family are severed.
- **s.80**: punishment for adoption without following the procedure (up to 3 years or a fine of ₹1 lakh).

Central Adoption Resource Authority (CARA) (s.68)

- A **statutory body** under the Ministry of Women and Child Development.
- It is the **Central Authority under the Hague Convention on Inter-country Adoption, 1993**.
- **Functions**:
    - promote in-country adoptions;
    - regulate and facilitate **inter-country adoptions**;
    - **frame regulations** on adoption;
    - carry out the functions of the Central Authority under the Hague Convention;
    - monitor State Adoption Resource Agencies (SARAs) and Specialised Adoption Agencies (SAAs);
    - maintain **CARINGS** (the online database of children and prospective parents);
    - issue the **No Objection Certificate (NOC)** for inter-country adoptions.

Inter-country adoption (s.59)

- If a child cannot be placed with Indian or NRI parents within **60 days** of being declared legally free, they may be given for inter-country adoption.
- **Preference order**: NRIs, then OCIs, then foreign nationals.
- Applications are routed through an **Authorised Foreign Adoption Agency (AFAA)** or the Central Authority / government department of the receiving country, and the **home study report** is prepared there.
- **CARA issues the NOC**. The DM passes the adoption order. Post-adoption follow-up continues for **2 years**.
- Relatives abroad may also adopt.

Safeguards

- *Lakshmi Kant Pandey v. UOI* (1984): the landmark guidelines.
    - Preference is given to Indian parents.
    - Recognised agencies only.
    - A home study report is required.
    - There must be a court scrutiny (now done by the DM).
    - Follow-up reports are needed.

    - There must be no trafficking or commercial element.
- These protections prevent **child trafficking** and ensure the **best interests of the child**.

Key exam tip: for every long answer, write in this order:

1. Introduction (meaning)
2. The relevant section (BNSS number, with the CrPC number in brackets)
3. Ingredients, procedure or points
4. **At least 2–3 cases**
5. Recent change under BNSS
6. Conclusion (link to Art. 21 / fair trial)

LAW OF EVIDENCE — Bharatiya Sakshya Adhiniyam (BSA), 2023 (Exam Answers)

> The BSA came into force on **1 July 2024**, replacing the Indian Evidence Act, 1872 (IEA). It has **170 sections** (the IEA had 167). Old IEA section numbers are given in brackets as `(IEA xx)`. Format: each syllabus topic is written as an exam question, followed by the answer.

MODULE 1 — INTRODUCTION TO LAW OF EVIDENCE

Q1. Overview of the Indian Evidence Act: history, objectives and scope

Historical background

- **Ancient India**: Hindu law (Yajnavalkya, Manu, Narada) recognised three kinds of proof: **documents (lekhya), witnesses (sakshi) and possession (bhukti)**, plus **divine tests (ordeals)**.
- **Muslim period**: oral evidence, documents and the oath. The Quran and Hadith required witnesses (e.g. two male witnesses).
- **British period**: the presidency towns followed English rules; the mofussil had no uniform law. Several regulations were passed (1793–1855).
- **Indian Evidence Act, 1872**: drafted by **Sir James Fitzjames Stephen**. It came into force on 1 September 1872.
- **BSA 2023** replaced it. The structure is retained. The main changes are the inclusion of **electronic and digital records** as documents and primary evidence, the merging of some sections, and the removal of colonial terms.

Objectives

1. To prevent the court from being misled by irrelevant matter.
2. To ensure uniformity and certainty.
3. To lay down what facts may be proved (**relevancy**), how they are proved (**proof**), and who must prove them (**burden**).
4. To avoid delay and ensure a fair trial.

Scope (s.1)

- Applies to **all judicial proceedings in or before any court**, including **court-martials**.
- **Does not apply** to **affidavits** presented to a court or officer, or to **arbitration** proceedings. (The syllabus statement that it applies to arbitration is not accurate in law: Arbitration Act s.19 says the tribunal is not bound by it.)
- Applies to both **civil and criminal** proceedings.
- It is **lex fori** (the law of the forum) and **adjective law** (procedural).

Central conceptions

1. **Facts** and **facts in issue**.
2. **Relevancy** (BSA ss. 3–50).
3. **Evidence** (oral, documentary, electronic).
4. **Proof**, i.e. proved, disproved and not proved, and presumptions.
5. **Burden of proof**.
6. **Witnesses** and their examination.

Q2. BSA, 2023: structure and key provisions

Structure: 170 sections in **12 chapters**, in four parts:

- **Part I: Relevancy of facts** (Chapters I–II, ss. 1–50): preliminary; relevancy (res gestae, admissions, confessions, statements of persons who cannot be called, expert opinion, character).
- **Part II: On proof** (Chapters III–V, ss. 51–103): facts that need not be proved; oral evidence; documentary evidence (including electronic); exclusion of oral by documentary evidence.
- **Part III: Production and effect of evidence** (Chapters VI–XI, ss. 104–169): burden of proof; estoppel; witnesses; examination of witnesses; improper admission of evidence.
- **Part IV**: repeal and savings (s.170).

Key changes from the IEA

1. **“Document” includes electronic and digital records** (s.2(1)(d)): emails, server logs, smartphones, laptops, SMS, websites, locational evidence, voicemails.
2. **Evidence includes information given electronically** (s.2(1)(e)), so witnesses can be examined electronically.
3. **Electronic records as primary evidence** (s.57, explanations): stored or produced simultaneously or sequentially in multiple files.
4. **Secondary evidence expanded** (s.58): oral and written admissions, and evidence of a person skilled in examining documents.
5. **s.63 certificate**: a new two-part format in the Schedule (**Part A** filled by the party, **Part B** by an expert).
6. **Merging**: IEA ss. 24, 28, 29 became s.22; ss. 25, 26, 27 became s.23.
7. **Joint trial** includes **trial in absentia** of an absconding accused (s.24).
8. Colonial terms (“Her Majesty”, “Lunatic”, “Court of Wards”) removed.
9. An **“Examiner of electronic evidence”** under IT Act s.79A is treated as an expert (s.39).

Q3. Definitions: Fact, Relevant fact, Facts in issue (s.2)

Fact (s.2(1)(f), IEA 3):

i. anything, state of things or relation of things **capable of being perceived by the senses** (a **physical fact**);

ii. any **mental condition** of which any person is conscious (a **psychological fact**).

Illustrations: that there are certain objects arranged in a certain order in a certain place is a fact; that a person heard or saw something is a fact; that a person has a certain opinion, intention, good faith or fraudulent intent, or holds a reputation, is a fact.

Relevant fact (s.2(1)(k)): one fact is relevant to another when it is connected with the other in any of the ways referred to in the provisions of the Adhiniyam relating to the **relevancy of facts** (ss. 3–50). "Relevant" therefore means **legally relevant**, not merely logically relevant.

Facts in issue (s.2(1)(g)): any fact from which, **either by itself or in connection with other facts**, the existence, non-existence, nature or extent of any **right, liability or disability** asserted or denied in any suit or proceeding **necessarily follows**.

- In **criminal** cases, the facts in issue are the **ingredients of the offence** charged.
- In **civil** cases, they are determined by the **pleadings and issues** framed (CPC Order XIV).
- *Illustration*: A is accused of the murder of B. The facts in issue are: that A caused B's death; that A intended to cause B's death; that A received grave and sudden provocation; that A was deprived of self-control when he caused the death.

Facts in issue vs relevant facts: facts in issue are the **principal facts** (factum probandum). Relevant facts are **evidentiary facts** (factum probans) that help prove or disprove them.

Q4. Evidence: oral, documentary and real; primary and secondary; circumstantial and direct; hearsay

Evidence (s.2(1)(e)) means and includes:

i. all statements, **including statements given electronically**, which the court permits or requires to be made before it by witnesses in relation to matters of fact under inquiry. This is **oral evidence**;
ii. all documents, **including electronic or digital records**, produced for the inspection of the court. This is **documentary evidence**.

Kinds of evidence

1. **Oral evidence**: statements of witnesses (s.54). It must be **direct** (s.55).
2. **Documentary evidence**: documents, including electronic records (s.56 onwards).
3. **Real / material evidence**: material objects such as a weapon, clothes or a fingerprint. Under s.55 proviso, the court may require its production for inspection. It is not covered by the definition but is admitted as "material things".
4. **Primary evidence** (s.57): the **document itself** produced for inspection by the court.
5. **Secondary evidence** (s.58): certified copies, copies made by mechanical process, counterparts, oral accounts, and so on (see Q24).

6. **Direct evidence**: evidence of a witness who **perceived the fact** with their own senses (s.55: “saw”, “heard”, “perceived”).
7. **Circumstantial evidence**: evidence of **facts from which the fact in issue may be inferred**. *Sharad Birdhichand Sarda v. State of Maharashtra* (1984) set out the **five golden principles (panchsheel)**:
    - a. the circumstances must be **fully established**;
    - b. they must be consistent **only with the hypothesis of guilt**;
    - c. they must be **conclusive** in nature;
    - d. they must **exclude every hypothesis except guilt**;
    - e. they must form a **complete chain** leaving no reasonable ground for innocence. (Also *Hanumant Govind Nargundkar v. State of M.P.*, 1952.)
8. **Hearsay evidence**: what a witness **heard from another person** who perceived the fact. It is generally **inadmissible** because it is not on oath, not cross-examined, and the declarant’s demeanour cannot be seen. It is barred by s.55 (oral evidence must be direct). Exceptions are listed in Q49.

Q5. Proved, disproved and not proved (s.2(1)(j), (c), (i))

- **Proved**: a fact is said to be proved when, after considering the matters before it, the court either **believes it to exist**, or considers its existence **so probable that a prudent man ought**, under the circumstances of the particular case, **to act upon the supposition that it exists**.
- **Disproved**: the court believes it does not exist, or considers its non-existence so probable that a prudent man ought to act on the supposition that it does not exist.
- **Not proved**: a fact is neither proved nor disproved.

The **prudent man test** is the standard. **Civil cases** use the **preponderance of probabilities**. **Criminal cases** require proof **beyond reasonable doubt**, though the definition is the same (*N.G. Dastane v. S. Dastane*, 1975).

Q6. Witness (s.124)

A **witness** is a person who gives evidence. **All persons are competent** to testify unless the court considers that they cannot understand the questions or give rational answers because of tender years, extreme old age, disease (of body or mind) or similar cause. A person of unsound mind is competent unless prevented from understanding. Details are in Module 5.

Q7. May presume, shall presume and conclusive proof (s.2(1)(h), (l), (b)). *(Important)*

Presumption: an inference that the court draws about a fact from other proved facts.

1. **May presume** (s.2(1)(h)): the court **may either regard such a fact as proved, unless and until it is disproved, or may call for proof of it**. This is **discretionary**, i.e. a presumption of fact. Examples: s.119 (IEA 114: possession of stolen goods soon after theft, accomplice unworthy of credit), s.78 onwards.

2. **Shall presume** (s.2(1)(l)): the court **shall regard such fact as proved, unless and until it is disproved**. This is **mandatory but rebuttable**, i.e. a rebuttable presumption of law. Examples: s.118 (IEA 113B, dowry death); s.120 (IEA 114A, absence of consent in rape); s.79 (genuineness of certified copies).
3. **Conclusive proof** (s.2(1)(b)): when one fact is declared conclusive proof of another, the court shall, on proof of the one, regard the other as proved and **shall not allow evidence to be given to disprove it**. This is an **irrebuttable presumption of law**. Examples: s.116 (IEA 112, birth during valid marriage as conclusive proof of legitimacy); s.35 (IEA 41, judgments in rem).

May presume	Shall presume	Conclusive proof
Discretionary	Mandatory	Mandatory
Rebuttable	Rebuttable	Irrebuttable
Presumption of fact	Rebuttable presumption of law	Irrebuttable presumption of law
Court may call for proof	Court must presume, but the other party can disprove	No evidence to disprove is allowed

Appreciation of evidence: the court evaluates the credibility, consistency and probability of evidence. **Evidence is weighed, not counted** (s.139). Minor contradictions do not destroy credibility (*State of U.P. v. M.K. Anthony*, 1985). *Bharwada Bhoginbhai Hirjibhai v. State of Gujarat* (1983): minor discrepancies are not fatal.

MODULE 2 — RELEVANCE AND ADMISSIBILITY

Q8. Relevancy vs admissibility (s.3, IEA 5)

s.3: evidence may be given in any suit or proceeding of the **existence or non-existence of every fact in issue** and of such other facts as are declared to be **relevant**, **and of no others**.

Relevancy	Admissibility
Based on **logic and probability**	Based on **law and policy**
Defined in ss. 3–50	Covered in ss. 51 onwards (proof)
Answers: what facts may be proved?	Answers: how and whether they may be proved
Relevant facts may not be admissible (e.g. a confession to police is relevant but inadmissible; privileged communications)	Admissible facts are generally relevant
Relevancy is the **cause**	Admissibility is the **effect**

Admissible vs inadmissible evidence: admissible evidence is relevant and not excluded by any rule (hearsay, privilege, confession to police). Inadmissible evidence is excluded either because it is irrelevant or because of public policy.

Ram Bihari Yadav v. State of Bihar (1998): relevancy and admissibility are not the same.

Q9. Doctrine of Res Gestae (ss. 4, 5, 6). *(Very important)*

Meaning: "things done" or "part of the same transaction". Facts so connected with a fact in issue that they form **part of the same transaction** are relevant, whether they occurred at the same time and place or at different times and places.

s.4 (IEA 6): facts which, though not in issue, are **so connected with a fact in issue as to form part of the same transaction**.

- *Illustration (a)*: A is accused of murdering B by beating him. Whatever was **said or done by A, B or the bystanders at the beating, or so shortly before or after it as to form part of the transaction**, is a relevant fact.

Essentials

1. The statement or act must be **contemporaneous** with the fact in issue, or so immediately after it that there is **no time for fabrication**.
2. It must be **spontaneous**.
3. It must relate to the fact in issue.

s.4 is an exception to the hearsay rule: statements of bystanders can be proved through another witness.

Cases

- *R v. Bedingfield* (1879): a woman came out with her throat cut and said "See what Harry has done to me". This was held **not admissible**, as it was made after the act was complete. (The decision is criticised.)
- *Ratten v. R* (1972, Privy Council): a telephone call by the deceased saying "Get me the police please" was admissible. The test is **spontaneity, not exact contemporaneity**.
- *Gentela Vijayavardhan Rao v. State of A.P.* (1996): a statement recorded by a Magistrate **hours later** was **not res gestae**. "The statement must be made **contemporaneously** with the acts or **immediately thereafter**."
- *Sukhar v. State of U.P.* (1999): a statement by the injured shortly after the shooting was admissible as res gestae.
- *Uttam Singh v. State of Madhya Pradesh*.

s.5 (IEA 7): facts that are the **occasion, cause or effect** of facts in issue, or that constitute the **state of things** under which they happened or which gave **opportunity** for their occurrence. *Illustration*: footprints, injury marks, etc.

s.6 (IEA 8): **motive, preparation and conduct**.

- Any fact that shows or constitutes a **motive or preparation** for any fact in issue.
- The **conduct** of any party or agent, **previous or subsequent**, if it influences or is influenced by a fact in issue.

- *Explanation 2*: a statement made in the presence and hearing of a person whose conduct is relevant, which affects that conduct, is relevant (e.g. silence or running away when accused).
- Examples: **absconding** after an offence (*Matru v. State of U.P.*, 1971, which held absconding is weak evidence on its own); purchase of poison; a complaint made by the victim of a sexual offence.

Q10. Test Identification Parade (s.7, IEA 9)

s.7: facts necessary to explain or introduce a relevant fact, or that **establish the identity of anything or person** whose identity is relevant, fix the **time or place**, or show the **relation of parties**, are relevant.

Test Identification Parade (TIP): held during **investigation** (usually by a Magistrate) for witnesses who did not know the accused earlier. Its purpose is to **test the memory of witnesses** and assure the investigating agency that it is on the right track.

Evidentiary value

- **Substantive evidence** is the **identification in court**. The TIP only **corroborates** it.
- A TIP is **not mandatory**. Failure to hold one does not make the in-court identification inadmissible, but it reduces its weight.
- The TIP should be held **promptly**, and the accused must not have been **shown to witnesses** beforehand.
- The accused must be mixed with persons of **similar appearance**.
- A **Magistrate** should conduct it. If conducted by police, the statements are hit by s.181 BNSS (CrPC 162).
- The accused **cannot refuse** to participate (no violation of Art. 20(3)). Refusal may lead to an adverse inference.
- BNSS s.54: identification of an arrested person by a Magistrate.

Cases

- *Kanta Prashad v. Delhi Administration* (1958).
- *Ramkishan Mithanlal Sharma v. State of Bombay* (1955): TIP statements before police are hit by s.162.
- *Malkhansingh v. State of M.P.* (2003): a TIP is not substantive evidence; it is used to corroborate.
- *Matru v. State of U.P.* (1971).

Q11. Things said or done by a conspirator in reference to the common design (s.8, IEA 10)

s.8: where there is **reasonable ground to believe** that two or more persons have **conspired together** to commit an offence or an actionable wrong, anything **said, done or written by any one of them in reference to their common intention**, after the time when that intention was **first entertained**, is relevant **against each of the**

persons believed to be conspiring, both to prove the existence of the conspiracy and to show that any such person was a party to it.

Essentials

1. There must be **prima facie evidence (reasonable ground)** that a conspiracy exists.
2. The act or statement must be **in reference to the common intention**.
3. It must be made **after the intention was first formed**, and **before the conspiracy ends**. Statements made after arrest or after the conspiracy ends are not covered.
4. It is relevant against **all conspirators**, even those who joined later or were absent.

This is based on agency: each conspirator is the agent of the others.

Cases

- *Mirza Akbar v. King Emperor* (1940, Privy Council): statements made after the conspiracy ended (after arrest) are not admissible under s.10.
- *Badri Rai v. State of Bihar* (1958): a statement by one conspirator offering a bribe was admissible against the other.
- *Sardar Sardul Singh Caveeshar v. State of Maharashtra* (1965).
- *State (NCT of Delhi) v. Navjot Sandhu* (Parliament attack case, 2005).
- *State of T.N. v. Nalini* (Rajiv Gandhi assassination case, 1999).

Note: the syllabus calls this “Evidence of Common Intention”. Distinguish it from BNS s.3(5) (IPC 34), which deals with substantive liability.

Q12. When facts not otherwise relevant become relevant (s.9, IEA 11)

s.9: facts not otherwise relevant are relevant:

1. if they are **inconsistent with any fact in issue or relevant fact**;
2. if by themselves or in connection with other facts they make the existence or non-existence of any fact in issue or relevant fact **highly probable or improbable**.

Main application: plea of alibi. “Alibi” means “elsewhere”. If A was in Kolkata on the day a murder took place in Lahore, that fact is relevant because it is **inconsistent** with A having committed the murder (*Illustration (a)*). The **burden** of proving an alibi is on the accused (BSA s.106), and it must be proved with **certainty** (*Binay Kumar Singh v. State of Bihar*, 1997; *Jayantibhai Bhenkarbhai v. State of Gujarat*, 2002).

Problems of relevancy: s.9 is very **wide**. If read literally, it could admit hearsay and remote facts. Courts restrict it: the inconsistency or probability must be **high**; it **does not override** other exclusionary rules (hearsay, privileges, confessions); and remote, speculative facts are excluded.

Q13. Facts to determine damages; proof of custom (ss. 10, 11)

- **s.10 (IEA 12)**: in suits for damages, any fact that will enable the court to **determine the amount of damages** is relevant.
- **s.11 (IEA 13)**: where the existence of a **right or custom** is in question, the following are relevant:
    a. any **transaction** by which the right or custom was created, claimed, modified, recognised, asserted or denied, or which was inconsistent with its existence;
    b. **particular instances** in which it was claimed, recognised or exercised, or in which its exercise was disputed, asserted or departed from.
- A **custom** must be **ancient, certain, reasonable, continuous** and not opposed to public policy.
- Also relevant: s.42 (IEA 48), opinions as to the existence of a general custom or right; and judgments under s.34 onwards.

Q14. Facts showing state of mind or body (ss. 12, 13, 14)

- **s.12 (IEA 14)**: facts showing the existence of any **state of mind**, such as intention, knowledge, good faith, negligence, rashness, ill-will or goodwill, or of any **state of body or bodily feeling**, are relevant when its existence is in issue or relevant. It must relate to the **particular matter in question**. *Explanation 2*: a **previous conviction** becomes relevant where the previous commission of an offence is relevant. *Illustration*: A is accused of receiving stolen goods knowing them to be stolen. The fact that he has many other stolen articles is relevant to show knowledge.
- **s.13 (IEA 15)**: when the question is whether an act was **accidental or intentional**, the fact that it formed part of a **series of similar occurrences** is relevant. *Illustration*: A is accused of burning his house to claim insurance. The fact that he lived in several houses, each insured, each of which caught fire, is relevant. (*Makin v. Attorney-General for New South Wales*, 1894: the bodies of several babies were found in the backyard.)
- **s.14 (IEA 16)**: the existence of a **course of business** is relevant to show that a particular act was done (e.g. posting of a letter, presumption of delivery).

Q15. Admissions (ss. 15–21, 25). *(Very important)*

Definition (s.15, IEA 17): a **statement, oral or documentary or contained in electronic form**, which **suggests any inference** as to any fact in issue or relevant fact, made by the persons and in the circumstances mentioned in the Adhiniyam.

Who can make admissions (ss.16–18, IEA 18–20)

1. A **party** to the proceeding, or their **agent** authorised by them (s.16(1)).
2. A party suing or sued in a **representative character**, while holding that character.
3. Persons with a **proprietary or pecuniary interest** in the subject matter.
4. **Predecessors-in-interest** from whom the parties derive their interest, during the continuance of that interest.
5. Persons whose **position or liability** must be proved against a party (s.17). *Illustration*: A undertakes to pay B for rent due from C. C's admission that he owed

rent is relevant against A.
6. Persons **expressly referred to** by a party for information (s.18). *Illustration*: “ask the referee”.

Proof of admissions (s.19, IEA 21): admissions are relevant and may be proved **against the person who makes them** or their representative. **They cannot be proved by or on behalf of the person who makes them** (self-serving statements are excluded), **except**:

a. when it is of a nature that, if the maker were dead, it would be relevant under s.26 (dying declarations and similar);
b. when it consists of a statement of the existence of a state of mind or body, made at or about the time, accompanied by conduct making its falsehood improbable;
c. when it is relevant otherwise than as an admission.

s.20 (IEA 22, 22A): oral admissions about the **contents of a document** are not relevant unless the party is entitled to give secondary evidence, or the genuineness of the document is in question. Oral admissions about the contents of **electronic records** are not relevant unless the genuineness of the record is in question.

s.21 (IEA 23): admissions in civil cases made **“without prejudice”**, i.e. on an express condition that evidence of them should not be given, or in circumstances from which the court can infer the parties agreed so, are not relevant. This encourages settlement.

s.25 (IEA 31): **admissions are not conclusive proof** of the matters admitted, but they may operate as **estoppels**.

Nature and evidentiary value

- An admission is **substantive evidence** even if the maker is **not confronted** with it when in the witness box (*Bharat Singh v. Bhagirathi*, 1966).
- **Judicial admissions** (in pleadings, or under CPC Order XII) are **conclusive** and can be the basis of a decree (s.53, facts admitted need not be proved). **Extra-judicial (evidentiary) admissions** are **rebuttable**.
- An admission must be **clear, unambiguous and definite**. It must be taken as a whole.
- *Nagindas Ramdas v. Dalpatram Ichharam* (1974): judicial admissions stand on a higher footing.
- *Narayan Bhagwantrao Gosavi Balajiwale v. Gopal Vinayak Gosavi* (1960): an admission is the best evidence against the party making it, unless shown to be wrong.

Q16. Confessions (ss. 22–24). *(Very important)*

Meaning: “confession” is **not defined** in the Act. It is a species of admission made by an accused in a criminal case.

- **Stephen**: “an admission made at any time by a person charged with a crime, **stating or suggesting the inference that he committed that crime**.”

- **Pakala Narayana Swami v. Emperor** (1939, Privy Council, Lord Atkin): a confession must either **admit in terms the offence, or at any rate substantially all the facts which constitute the offence**. An admission of a gravely incriminating fact, even a conclusively incriminating one, is **not of itself a confession**.
- *Palvinder Kaur v. State of Punjab* (1952): adopted Pakala. An **exculpatory statement** is not a confession. A confession must be **taken as a whole**: it cannot be split into inculpatory and exculpatory parts.
- *Aghnoo Nagesia v. State of Bihar* (1966): an FIR given by the accused containing a confession is wholly inadmissible, except the formal part and any s.27 discovery.

Kinds of confession

1. **Judicial confession**: made **before a Magistrate** under BNSS s.183 (CrPC 164) or before the court during the proceedings. It can found a conviction if voluntary and true.
2. **Extra-judicial confession**: made to **any person other than a Magistrate or police**, e.g. friends or relatives. It is a **weak piece of evidence**: its value depends on the reliability of the person to whom it is made (*Sahadevan v. State of T.N.*, 2012, which laid down principles; *Kavita v. State of T.N.*, 1998).
3. **Retracted confession**: see Q18.

Admissibility

s.22 (IEA 24, 28, 29):

- 1. A confession made by an accused is **irrelevant** in a criminal proceeding if it appears to the court to have been caused by any **inducement, threat, coercion or promise**:
    - having reference to the charge;
    - proceeding from a **person in authority**;
    - sufficient to give the accused grounds for supposing that by making it they would **gain an advantage or avoid an evil of a temporal nature**. (BSA adds "**coercion**".)
- **Proviso (IEA 28)**: if the confession is made **after the impression caused by the inducement has been fully removed** (in the opinion of the court), it is relevant.
- **Proviso (IEA 29)**: a confession otherwise relevant does not become irrelevant merely because it was made under a **promise of secrecy**, through **deception**, when **drunk**, in answer to questions the accused need not have answered, or **without a warning** that they were not bound to make it.

s.23 (IEA 25, 26, 27):

- **s.23(1)**: **no confession made to a police officer shall be proved** against an accused person. *Reason*: to prevent torture and coerced confessions. "Police officer" is understood in a broad sense (*State of Punjab v. Barkat Ram*, 1962, held customs officers are not police officers; *Raja Ram Jaiswal v. State of Bihar*, 1964, held excise

officers with police powers are; *Tofan Singh v. State of T.N.*, 2020, held **NDPS officers are police officers**, so s.67 statements are inadmissible).

- **s.23(2)**: **no confession made while in police custody** shall be proved against them, **unless made in the immediate presence of a Magistrate**. *Reason*: custody involves the influence of police even if the confession is made to a third person.
- **Proviso to s.23(2) (IEA 27): discovery of facts**. When any **fact is discovered** in consequence of information received from an accused **in police custody**, **so much of the information, whether amounting to a confession or not, as relates distinctly to the fact discovered**, may be proved.
    - *Pulukuri Kottaya v. Emperor* (1947, Privy Council): the "fact discovered" includes the **place from which the object is produced and the knowledge of the accused** as to this. Example: "I will produce a knife concealed in the roof of my house" is admissible; "with which I stabbed A" is inadmissible.
    - *State of U.P. v. Deoman Upadhyaya* (1960): s.27 does not violate Art. 14.
    - *State (NCT Delhi) v. Navjot Sandhu* (2005).
    - *Selvi* (2010): information from forced narco-analysis cannot be used.
    - The essentials are: the accused is in **police custody**; there is information; a **fact is discovered as a consequence**; and **only the part that distinctly relates** to it is admissible.

s.24 (IEA 30): confession of a co-accused

- When more persons than one are **being tried jointly for the same offence**, and a confession made by one of them, **affecting himself and some other** of them, is **proved**, the court **may take it into consideration** against the other person as well as the maker.
- *BSA Explanation*: a trial of more persons held in the **absence of an absconding accused** (trial in absentia) is treated as a joint trial.
- **Evidentiary value**: it is **not substantive evidence** against the co-accused. It can only be used to **lend assurance** to other evidence.
    - *Bhuboni Sahu v. The King* (1949, Privy Council): it is the weakest kind of evidence; it is not given on oath and is not tested by cross-examination.
    - *Kashmira Singh v. State of M.P.* (1952): the court must first marshal the other evidence and then use the confession to lend assurance.
    - *Haricharan Kurmi v. State of Bihar* (1964, Constitution Bench): it is not evidence under s.3 (definition), so it can only support other evidence.

Value of a confession: a **voluntary and true** confession is substantive evidence and can be the sole basis of conviction (*Shankaria v. State of Rajasthan*, 1978, which set out a double test: is it voluntary, and is it true?).

Q17. Problems with judicial action based on a retracted confession

A **retracted confession** is one made voluntarily (usually before a Magistrate) that is later **withdrawn** by the accused, who may claim it was coerced.

- **Law**: it is **admissible**. A conviction can be based on it if the court is satisfied it was **voluntary and true**. As a **rule of prudence**, however, courts require **corroboration in material particulars**. This is not required by law, only by prudence.
- **Cases**
  - *Pyare Lal v. State of Rajasthan* (1963): a retracted confession can be the basis of conviction if voluntary and true; corroboration is a rule of prudence.
  - *Subramania Goundan v. State of Madras* (1958): a retracted confession needs general corroboration.
  - *Bharat v. State of U.P.* (1971): retracted confessions are a weak type of evidence.
  - *Shankaria v. State of Rajasthan* (1978).
- **Problems**: it is hard to know whether the retraction is genuine; there is a possibility of torture; there is delay in retraction; and the court must examine the circumstances in which it was recorded (a BNSS s.183 compliance check).

Q18. Difference between admission and confession

Basis	Admission	Confession
Definition	Defined in s.15	Not defined
Proceedings	Civil and criminal	Criminal only
Maker	Party, agent, predecessor, etc.	The accused only
Nature	Any statement suggesting an inference about a fact in issue	A direct acknowledgment of guilt
Self-serving use	May be proved by the maker in exceptional cases (s.19)	Never in favour of the maker
Effect	Not conclusive; may operate as estoppel (s.25)	If voluntary and true, can be the basis of conviction
Against others	Admission by an agent can bind the principal	A co-accused's confession may be considered against the other (s.24)
Rule	Every confession is an admission	Not every admission is a confession

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MODULE 3 — STATEMENTS BY PERSONS

Q19. Statements by persons who cannot be called as witnesses; dying declaration (s.26, IEA 32). *(Very important)*

s.26 covers statements, written or verbal, of relevant facts made by a person:

- who is **dead**;
- who **cannot be found**;

- who has become **incapable of giving evidence**;
- whose attendance **cannot be procured without unreasonable delay or expense**.

Such statements are themselves relevant in the following cases (this is an **exception to hearsay**):

- **(a) Dying declaration**: a statement made by a person **as to the cause of their death**, or as to **any of the circumstances of the transaction which resulted in their death**, in cases where the **cause of that person's death comes into question**.
    - It is relevant **whether or not the person was under expectation of death** when making it. (This differs from English law, which requires a settled hopeless expectation of death.)
    - It applies to **any proceeding** (civil or criminal).
- b. Statement made in the **course of business**.
- c. Statement **against the interest** of the maker (pecuniary or proprietary interest, or exposing them to prosecution or damages).
- d. Opinion as to a **public right or custom**, made before a controversy arose.
- e. Statement relating to the existence of a **relationship** by blood, marriage or adoption, made before a controversy arose.
- f. Statements in a **will or deed relating to family affairs**.
- g. Statements in a document relating to a **transaction** mentioned in s.11(a).
- h. Statements made by several persons expressing **feelings** relevant to the matter in question.

Dying declaration: principles

- **Basis**: *nemo moriturus praesumitur mentire* (a man will not meet his maker with a lie in his mouth). Necessity is the other basis: the victim is the only eyewitness.
- It is **not made on oath** and **not cross-examined**, so the court must be satisfied that it is **true and voluntary** and that the declarant was in a **fit state of mind**.

Cases

- *Khushal Rao v. State of Bombay* (1958): a dying declaration can be the **sole basis of conviction** without corroboration if it is true and voluntary. Corroboration is not a rule of law. A declaration recorded by a Magistrate in question-answer form, in the words of the declarant, is better.
- *Pakala Narayana Swami v. Emperor* (1939): "circumstances of the transaction" means circumstances having a **proximate relation** to the actual occurrence. A statement that the deceased was going to Berhampur to collect money from the accused was admissible.
- *Laxman v. State of Maharashtra* (2002, Constitution Bench): a doctor's certificate of fitness is **not mandatory**. The test is whether the declarant was mentally fit, which can be established otherwise.
- *Paniben v. State of Gujarat* (1992) and *Atbir v. Govt. of NCT Delhi* (2010): principles. It must not be the result of tutoring, prompting or imagination; a declaration that

suffers from infirmity cannot be the sole basis; multiple declarations must be consistent.
- *Sharad Birdhichand Sarda v. State of Maharashtra* (1984): statements by a wife about cruelty weeks before her death were admissible as **circumstances of the transaction**.
- A declaration in the form of **gestures or signs** is valid (*Queen-Empress v. Abdullah*, 1885).
- **If the declarant survives**, the statement is not a dying declaration. It can be used under s.160 (corroboration) or s.148 (contradiction).

Q20. Statements made under special circumstances (ss. 28–32)

- **s.28 (IEA 34)**: **entries in books of account, including electronic form**, regularly kept in the course of business, are relevant. They **alone are not sufficient** to charge any person with liability (*CBI v. V.C. Shukla*, 1998, the Jain Hawala case: loose sheets are not "books of account"; entries need independent corroboration).
- **s.29 (IEA 35)**: an **entry in any public or official book, register or record, including an electronic record**, made by a public servant in the discharge of official duty, is relevant. Examples: a birth register, a school register (for age).
- **s.30 (IEA 36)**: statements in **published maps or charts** generally offered for public sale, or maps made under the authority of Government.
- **s.31 (IEA 37)**: statements about facts of a **public nature** contained in Acts or notifications.
- **s.32 (IEA 38)**: statements of **law** contained in law books, including electronic or digital form, of any country.

Q21. How much of a statement is to be proved (s.33, IEA 39)

When a statement forms part of a **longer statement, a conversation, an isolated document, a document in a book or series of letters, or an electronic record**, evidence shall be given of **so much and no more** of it as the court considers **necessary** to the full understanding of its nature and effect. This is the **rule of completeness**.

Q22. Judgments of courts: when relevant (ss. 34–38, IEA 40–44)

- **s.34 (IEA 40)**: a **previous judgment that bars a second suit or trial** (res judicata or double jeopardy) is relevant.
- **s.35 (IEA 41): judgments in rem**. Final judgments in **probate, matrimonial, admiralty or insolvency jurisdiction** that confer or take away a **legal character** are relevant and are **conclusive proof** against the **whole world**.
- **s.36 (IEA 42)**: judgments relating to matters of a **public nature** are relevant but not conclusive.
- **s.37 (IEA 43)**: other judgments are **irrelevant**, unless their existence is a fact in issue or relevant under another provision. *Illustration*: a civil judgment is not relevant in a criminal case on the same facts (*K.G. Premshanker v. Inspector of Police*, 2002).

- **s.38 (IEA 44)**: **fraud or collusion** in obtaining a judgment, or **incompetency** of the court, may be proved.
- **Judgment in rem vs in personam**: a judgment in rem binds everyone. A judgment in personam binds only the parties.

Q23. Opinion of experts (ss. 39–45). *(Important)*

s.39 (IEA 45, 45A): when the court has to form an opinion on a point of **foreign law, science, art, any other field, identity of handwriting or finger impressions**, opinions of persons **specially skilled** in it (experts) are relevant.

- **s.39(2)**: the opinion of the **Examiner of Electronic Evidence** (IT Act s.79A) is relevant on matters relating to electronic or digital records.
- Examples: medical opinion, ballistics, handwriting, fingerprint, DNA, forensic and electronic evidence.

Who is an expert: a person with **special knowledge, skill or experience** in the subject, gained by study or practice. Formal qualification is not essential.

Facts bearing on expert opinion (s.40, IEA 46): facts that support or are inconsistent with expert opinion are relevant.

Opinion on handwriting and signature (s.41, IEA 47, 47A): the opinion of a person **acquainted with the handwriting** of the writer is relevant. The opinion of the **Certifying Authority** that issued an **electronic signature certificate** is also relevant.

Opinion as to general custom (s.42), **usages and tenets (s.43)**, **relationship (s.44)** (the conduct of persons with special means of knowledge, e.g. treating as husband and wife), and **grounds of opinion (s.45)**: the grounds on which an opinion is based are also relevant.

Evidentiary value and problems with expert testimony

- Expert opinion is **only advisory**. The court is **not bound** by it; the court decides.
- It is **not substantive evidence**. It is corroborative.
- Experts may be **biased** (paid by a party). The science may be imperfect (handwriting is not an exact science). There may be **conflict between experts**. The expert is a witness of **opinion, not fact**.
- **Medical vs ocular evidence**: ocular evidence prevails unless the medical evidence **wholly rules it out** (*Solanki Chimanbhai Ukabhai v. State of Gujarat*, 1983).

Cases

- *State of H.P. v. Jai Lal* (1999): an expert must give the **reasons** for the opinion; a bare opinion has little value.
- *Murari Lal v. State of M.P.* (1980): **handwriting expert** evidence can be acted upon without corroboration if it is reliable, though corroboration is prudent. The court can compare writing itself (s.72).
- *Magan Bihari Lal v. State of Punjab* (1977): handwriting evidence is weak.

- *Ramesh Chandra Agrawal v. Regency Hospital Ltd.* (2009): conditions for admitting expert evidence.
- *Selvi v. State of Karnataka* (2010): scientific tests and consent.

Q24. Evidence of character (ss. 46–50, IEA 52–55)

- **s.46 (IEA 52)**: in **civil cases**, character to prove conduct imputed is **irrelevant**, except so far as character appears from facts otherwise relevant.
- **s.47 (IEA 53)**: in **criminal cases**, **previous good character is relevant**. The accused can prove it.
- **s.48 (IEA 53A)**: in prosecutions for **sexual offences** (BNS ss.64–71, 74–79), evidence of the **character of the victim or her previous sexual experience** is **not relevant** on the question of **consent** or the quality of consent.
- **s.49 (IEA 54)**: in criminal cases, **previous bad character is irrelevant**, **unless the accused has given evidence of good character**, in which case it becomes relevant (in rebuttal). *Explanation*: this does not apply where bad character is itself a fact in issue. A **previous conviction** is relevant as evidence of bad character.
- **s.50 (IEA 55)**: in **civil cases**, character **affecting the amount of damages** is relevant (e.g. in defamation or breach of promise to marry).
- "**Character**" includes both **reputation and disposition**. Evidence may be given only of **general reputation and general disposition**, not of particular acts.

MODULE 4 — DOCUMENTARY EVIDENCE

Q25. Document: types, admissibility, proof of execution, secondary evidence

Document (s.2(1)(d)): any matter **expressed or described or otherwise recorded** upon any substance by means of letters, figures or marks, or any other means, or by more than one of those means, **intended to be used, or which may be used, for recording that matter**. It **includes electronic and digital records**.

- *Illustrations*: a writing; words printed, lithographed or photographed; a map or plan; an inscription on a metal plate or stone; a caricature. **An electronic record on emails, server logs, documents on computers, laptops or smartphones, messages, websites, cloud storage, locational evidence and voicemail messages stored on digital devices** is a document.

Types

- **Public documents** (s.74(1)): acts or records of sovereign authorities, official bodies, tribunals and public officers (legislative, judicial and executive) of India or a foreign country, and public records of private documents kept in any State.
- **Private documents** (s.74(2)): all others.

Proof of contents (s.56, IEA 61): the contents of documents may be proved by **primary or secondary evidence**.

Q26. Primary and secondary evidence (ss. 57–60). *(Important)*

Primary evidence (s.57, IEA 62): the **document itself produced for the inspection of the court**.

- *Explanation 1*: where a document is executed in **several parts**, each part is primary evidence.
- *Explanation 2*: where a document is executed in **counterpart**, each counterpart is primary evidence against the parties executing it.
- *Explanation 3*: where documents are made by **one uniform process** (printing, lithography, photography), each is primary evidence of the contents of the rest, but not of the original.
- **Explanations 4–7 (new, electronic)**:
    - where an electronic or digital record is **created or stored**, and such storage occurs simultaneously or sequentially in **multiple files**, **each such file is primary evidence**;
    - where an electronic or digital record is **produced from proper custody**, it is primary evidence unless disputed;
    - a **video recording** stored simultaneously in electronic form and transmitted or broadcast is primary evidence;
    - storage in **multiple storage spaces** in a computer resource: each automated storage, including temporary files, is primary evidence.

Secondary evidence (s.58, IEA 63) includes:

i. **certified copies**;
ii. copies made from the original by **mechanical processes** that ensure accuracy, and copies compared with such copies;
iii. copies made from or compared with the original;
iv. **counterparts** of documents as against the parties who did not execute them;
v. **oral accounts** of the contents of a document given by a person who has seen it;
vi. **oral admissions** *(new)*;
vii. **written admissions** *(new)*;
viii. **evidence of a person who has examined a document** whose original consists of numerous accounts or other documents that cannot conveniently be examined in court, and who is skilled in examining such documents *(new)*.

Rule (s.59, IEA 64): **documents must be proved by primary evidence**, except in the cases mentioned below. This is the **best evidence rule**.

When secondary evidence may be given (s.60, IEA 65):

a. the original is in the **possession or power of the adverse party**, or of a person out of reach of or not subject to the court's process, or of a person legally bound to produce it, and they fail to produce it after **notice (s.64)**;
b. the **existence, condition or contents** of the original are **admitted in writing** by the person against whom it is proved;

c. the original is **destroyed or lost**, or the party cannot produce it for reasons not arising from their own default or neglect;
d. the original is **not easily movable**;
e. the original is a **public document** (s.74);
f. the original is a document of which a **certified copy is permitted** by law;
g. the original consists of **numerous accounts or documents** that cannot conveniently be examined in court, and the fact to be proved is the general result.

In cases (a), (c) and (d), any secondary evidence is admissible. In (b), the written admission is admissible. In (e) and (f), only a certified copy. In (g), evidence of the general result by a skilled person.

Cases

- *J. Yashoda v. K. Shobha Rani* (2007): conditions under s.65 must be strictly proved before secondary evidence is admitted.
- *H. Siddiqui v. A. Ramalingam* (2011): a photocopy is inadmissible without the foundation required for secondary evidence.

Q27. Electronic and digital records; admissibility of electronic records (ss. 61–63) and the IT Act, 2000. *(Very important)*

s.61 (new): nothing in the Adhiniyam shall apply to **deny the admissibility of an electronic or digital record** on the ground that it is an electronic or digital record. Such a record shall, subject to s.63, have the **same legal effect, validity and enforceability** as other documents.

s.62 (IEA 65A): the contents of electronic records may be proved in accordance with **s.63**.

s.63 (IEA 65B): admissibility of electronic records

- **s.63(1)**: any information contained in an electronic record that is printed on paper, stored, recorded or copied in optical or magnetic media or **semiconductor memory** produced by a computer or **any communication device**, or otherwise stored, recorded or copied in any electronic form, is deemed to be a **document** (computer output) and is admissible **without further proof or production of the original**, if the conditions are satisfied.
- **s.63(2) conditions**:
  a. the computer or communication device was used **regularly** to create, store or process information by a person having **lawful control** over it;
  b. information of that kind was **regularly fed** in the ordinary course of activities;
  c. the computer or device was **operating properly** throughout the material period, or if not, the improper operation did not affect the record;
  d. the information reproduces or is derived from information fed in the ordinary course.
- **s.63(3)**: records from a **combination of computers or devices** are treated as one.

- **s.63(4) certificate**: a **certificate** identifying the record, describing the manner in which it was produced, and giving particulars of the device. It is signed by a **person in charge of the computer or communication device**, or the management of relevant activities, **and an expert**. It is in the format given in the **Schedule (Part A: by the party; Part B: by the expert)**.

Case law

- *State (NCT Delhi) v. Navjot Sandhu* (2005): a certificate under s.65B is **not mandatory**; secondary evidence can be given under ss.63 and 65. This was **overruled**.
- **Anvar P.V. v. P.K. Basheer** (2014, 3 judges): s.65B is a **complete code**. **A certificate is mandatory** for secondary electronic evidence, such as CDs. If the original (primary) device itself is produced, no certificate is needed.
- *Shafhi Mohammad v. State of H.P.* (2018): the certificate requirement is procedural and can be relaxed when the party is not in possession of the device. This was **overruled**.
- **Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal** (2020, 3 judges): **reaffirmed Anvar**. The certificate is a **condition precedent**. It is **not required if the original device is produced** (by the owner stepping into the witness box). The certificate can be produced **at any stage** before the trial ends. If the authority refuses to give one, the court can summon it.
- *Tomaso Bruno v. State of U.P.* (2015): CCTV footage is good evidence; failure to produce it leads to an adverse inference.
- *Ravinder Singh @ Kaku v. State of Punjab* (2022): call detail records need a s.65B certificate.

Information Technology Act, 2000: relevant provisions

- s.2(1)(t): “electronic record”.
- s.3: authentication by digital signature. s.3A: electronic signature.
- **s.4**: **legal recognition of electronic records**.
- s.5: legal recognition of electronic signatures.
- s.10A: validity of contracts formed electronically.
- s.65: tampering with computer source documents.
- **s.79A**: Central Government notifies an **Examiner of Electronic Evidence**.
- The IT Act inserted ss.65A, 65B, 67A, 73A, 85A–85C, 88A and 90A into the IEA. These are now BSA ss.62, 63, 66, 73, 85–87, 90 and 93.

Presumptions about electronic records

- s.81 (IEA 81A): Gazettes in electronic form.
- **s.85 (IEA 85A)**: **electronic agreements** containing electronic signatures are presumed to be concluded.
- s.86 (IEA 85B): secure electronic records and signatures.
- s.87 (IEA 85C): electronic signature certificates.
- **s.90 (IEA 88, 88A)**: **electronic messages**. The court may presume that a message forwarded corresponds to the one fed in, but not as to the person who sent it.

- **s.93 (IEA 90A)**: **electronic records 5 years old** from proper custody are presumed to bear the electronic signature of the person affixing it.

Q28. Attested documents (ss. 64–73)

- **s.64 (IEA 66)**: **rules as to notice to produce**. Secondary evidence under s.60(a) is given only after **notice to produce** the document. Notice is not required when the document itself is a notice, when the adverse party knows they will be required to produce it, when the adverse party obtained it by fraud or force, when the adverse party or their agent has the original in court, or when the adverse party has admitted its loss.
- **s.65 (IEA 67)**: **proof of signature and handwriting** of the person alleged to have signed or written a document.
- **s.66 (IEA 67A)**: **proof of electronic signature**. Except for a secure electronic signature, the fact that it is the electronic signature of the subscriber must be proved.
- **s.67 (IEA 68)**: **proof of execution of a document required by law to be attested** (e.g. a **will**, a mortgage deed, a gift deed). It shall not be used as evidence until **at least one attesting witness has been called** for proving its execution, if one is alive, subject to the court's process and capable of giving evidence. *Proviso*: it is not necessary to call an attesting witness for a document (**other than a will**) **registered** under the Registration Act, unless its execution is **specifically denied**.
- **s.68 (IEA 69)**: **if no attesting witness is found**, or the document was executed in the UK, it must be proved that the attestation of one witness at least is in their handwriting, and the signature of the executant is in their handwriting.
- **s.69 (IEA 70)**: **admission of execution by a party** to an attested document is sufficient proof of execution against them.
- **s.70 (IEA 71)**: if the **attesting witness denies or does not recollect** the execution, it may be **proved by other evidence**.
- **s.71 (IEA 72)**: an attested document **not required by law to be attested** may be proved as if unattested.
- **s.72 (IEA 73)**: **comparison** of signature, writing or seal with others admitted or proved. The court may direct a person present in court to write words or figures for comparison. *Thiruvengadam Pillai v. Navaneethammal* (2008): courts should be cautious in comparing handwriting themselves.
- **s.73 (IEA 73A)**: **proof as to verification of a digital signature**. The court may direct production of the digital signature certificate, or the application of the public key.
- *Cases on wills*: *H. Venkatachala Iyengar v. B.N. Thimmajamma* (1959): the propounder must remove suspicious circumstances. *Janki Narayan Bhoir v. Narayan Namdeo Kadam* (2003): the attesting witness must prove attestation by both witnesses.

Q29. Public and private documents (ss. 74–77)

- **s.74(1)**: **public documents** are:

    i. documents forming the acts or records of the acts of (a) the **sovereign authority**, (b) **official bodies and tribunals**, (c) **public officers**, legislative, judicial and executive, of any part of India or of a foreign country;
    ii. **public records** kept in any State or UT of **private documents** (e.g. a registered sale deed copy in the Sub-Registrar's records).
- **s.74(2)**: all other documents are **private**.
- **s.75 (IEA 76)**: **certified copies of public documents**. Every public officer having custody of a public document that a person has a right to inspect shall give that person, on demand and payment of fees, a copy with a **certificate** that it is a true copy, dated and signed, and sealed where applicable.
- **s.76 (IEA 77)**: **proof of documents by production of certified copies**.
- **s.77 (IEA 78)**: **proof of other official documents** (Acts of the executive, proceedings of legislatures, proclamations, and so on), e.g. by the Gazette or a printed copy.

Public vs private document: a public document can be proved by a **certified copy** (secondary evidence) without accounting for the original. A private document must be proved by **primary evidence**, or by secondary evidence under s.60. There is a **presumption of genuineness** for certified copies (s.78). A private document must be proved by evidence of execution.

Q30. Presumptions regarding documents (ss. 78–93)

- **s.78 (IEA 79)**: **shall presume** genuineness of **certified copies**.
- **s.79 (IEA 80)**: **shall presume** that documents produced as a **record of evidence** (depositions, confessions) are genuine and that the statements were duly taken.
- **s.80 (IEA 81)**: Gazettes, newspapers, private Acts of Parliament, etc.
- **s.81 (IEA 81A)**: Gazettes in electronic form.
- s.82 (IEA 83): maps and plans made by the authority of Government.
- s.83 (IEA 84): collections of laws and reports of decisions.
- s.84 (IEA 85): **powers of attorney** executed before a notary.
- s.85: **electronic agreements**. s.86: secure electronic records and signatures. s.87: electronic signature certificates.
- s.88 (IEA 86): certified copies of foreign judicial records.
- s.89 (IEA 87): books, maps and charts.
- **s.90 (IEA 88, 88A)**: **telegraphic and electronic messages** (court may presume the message received matches the one sent, but not who sent it).
- s.91 (IEA 89): due execution of documents not produced after notice.
- **s.92 (IEA 90)**: **documents 30 years old**: if produced from **proper custody**, the court **may presume** the signature and handwriting are genuine and the document was duly executed and attested.
- **s.93 (IEA 90A)**: **electronic records 5 years old**: the same presumption about the electronic signature.

Q31. Exclusion of oral by documentary evidence (ss. 94–95). *(Important)*

s.94 (IEA 91): when the terms of a **contract, grant or any other disposition of property** have been **reduced to the form of a document**, and in all cases in which any matter is **required by law to be reduced to the form of a document**, **no evidence shall be given in proof of the terms** except the **document itself** or secondary evidence where admissible. This is the **best evidence rule**.

- *Exceptions*:
  - when a **public officer is required by law to be appointed in writing**, and it is shown that a particular person acted as such, the writing need not be proved;
  - **wills admitted to probate** may be proved by the probate.
- *Explanations*: the rule applies equally to contracts contained in one document or several. Where there is more than one original, only one need be proved. A statement of a fact other than the terms of the contract (e.g. that payment was made) can be proved by oral evidence.

s.95 (IEA 92): once the terms have been proved under s.94, **no evidence of any oral agreement or statement** shall be admitted between the **parties or their representatives** for the purpose of **contradicting, varying, adding to or subtracting from its terms**.

Six provisos:

1. Any fact that would **invalidate** the document or entitle a person to a decree, such as **fraud, intimidation, illegality, want of due execution, want of capacity, failure of consideration, or mistake** in fact or law.
2. A **separate oral agreement** on a matter on which the document is **silent** and which is **not inconsistent** with its terms (the court considers the degree of formality).
3. A separate oral agreement constituting a **condition precedent** to the attaching of any obligation.
4. A **distinct subsequent oral agreement** to **rescind or modify** the contract (unless the contract is required by law to be in writing, or is registered).
5. Any **usage or custom** by which incidents not expressly mentioned are usually annexed to contracts of that description, if not repugnant to the express terms.
6. Any fact that shows **in what manner the language of the document is related to existing facts**.

Section 94 vs Section 95: s.94 applies to **all persons** and excludes oral evidence **to prove the terms** of the document (the document is the best evidence). s.95 applies **only to parties** and their representatives, and excludes oral evidence **to vary or contradict** the terms. Strangers may give evidence varying the terms (s.102, IEA 99). s.94 applies to both bilateral and unilateral documents. s.95 applies only to bilateral documents (contracts, grants, dispositions).

Cases: *Bai Hira Devi v. Official Assignee of Bombay* (1958); *Gangabai v. Chhabubai* (1982): s.92 does not bar oral evidence to show that a document was a **sham** or never

intended to be acted upon. *Roop Kumar v. Mohan Thedani* (2003): explained ss.91 and 92 in detail.

Q32. Ambiguous documents (ss. 96–103, IEA 93–100)

Patent ambiguity: an ambiguity **apparent on the face** of the document. **Latent ambiguity**: an ambiguity that appears only when the document is **applied to existing facts**.

- **s.96 (IEA 93)**: **patent ambiguity**. When the language is, on its face, **ambiguous or defective**, evidence may **not** be given of facts that would show its meaning or supply its defects. *Illustration*: A agrees in writing to sell a horse to B for "Rs 1,000 or Rs 1,500". Evidence cannot be given to show which price was to be given.
- **s.97 (IEA 94)**: when the language is **plain** and applies accurately to existing facts, evidence may **not** be given to show that it was not meant to apply to such facts.
- **s.98 (IEA 95)**: when the language is plain but **unmeaning in reference to existing facts**, evidence may be given to show it was used in a peculiar sense. *Illustration*: "my house in Calcutta", where A has no house in Calcutta but has one at Howrah.
- **s.99 (IEA 96)**: when the language is meant to apply to **one only of several persons or things** but could apply to any of them (equivocation), evidence may be given to show **which one was intended**. *Illustration*: "my white horse", where A has two white horses. This is a **latent ambiguity**.
- **s.100 (IEA 97)**: when language applies **partly to one set of existing facts and partly to another**, but not accurately to either, evidence may be given to show which it was meant to apply to.
- **s.101 (IEA 98)**: evidence may be given to show the meaning of **illegible or not commonly intelligible characters**, of foreign, obsolete, technical or local expressions, and of abbreviations.
- **s.102 (IEA 99)**: **persons who are not parties** to a document, or their representatives, may give evidence of any facts tending to show a **contemporaneous agreement varying the terms** of the document.
- **s.103 (IEA 100)**: saving of the provisions of the Indian Succession Act relating to wills.

MODULE 5 — WITNESSES

Q33. Competency and compellability of witnesses; who may testify (s.124, IEA 118)

s.124: **all persons shall be competent to testify** unless the court considers that they are **prevented from understanding the questions** put to them, or from giving rational answers to those questions, because of **tender years, extreme old age, disease (of body or mind) or any other cause** of the same kind.

- *Explanation*: a **person of unsound mind** is competent unless prevented by that unsoundness from understanding questions and giving rational answers.

Competency is whether a person **can** legally give evidence. **Compellability** is whether they **can be forced** to give evidence. Generally every competent witness is compellable, with **exceptions**:

- foreign sovereigns and ambassadors;
- the President and Governors (Art. 361);
- privileged persons (judges under s.127, spouses under s.128, and so on), who are compellable to appear but **privileged** from answering certain questions;
- the **accused** is a competent witness for the defence only on their own request (BNSS s.353), and is **not compellable** (Art. 20(3)).

Child witness

- There is **no minimum age**. The test is **intelligence and understanding**. The judge conducts a **preliminary examination (voir dire)** to test competency.
- The Oaths Act, 1969, s.4: a child **under 12** is not administered an oath. The evidence is still admissible.
- A child's evidence must be scrutinised carefully because children are susceptible to **tutoring**. Corroboration is a rule of prudence, not of law.
- *Rameshwar v. State of Rajasthan* (1952); *Dattu Ramrao Sakhare v. State of Maharashtra* (1997): a child witness is competent if able to understand questions; corroboration is not essential. *State of M.P. v. Ramesh* (2011); *Pradeep v. State of Haryana* (2023).

Q34. Witness unable to communicate verbally (s.125, IEA 119)

A witness **unable to speak** may give evidence in any other manner by which they can make it intelligible, such as **by writing or by signs**. The writing must be written and the signs made in **open court**. This evidence is deemed **oral evidence**.

- *Proviso*: if the witness is unable to communicate verbally, the court shall take the assistance of an **interpreter or a special educator** in recording the statement, and the statement **shall be videographed**.

Q35. Examination and competency of parties, spouses and judges (ss. 126–127)

- **s.126 (IEA 120)**: in civil proceedings, **parties and their spouses** are competent witnesses. In criminal proceedings against any person, the **spouse** of that person is a competent witness.
- **s.127 (IEA 121)**: **judges and Magistrates** shall not, except on the special order of a superior court, be **compelled** to answer questions about their **own conduct in court** as judges, or about anything that came to their knowledge in court as such. They may be examined about other matters that occurred in their presence while acting as judges.

Q36. Privileged communications (ss. 128–134). *(Important)*

Privilege: certain communications are **protected from disclosure** on grounds of **public policy**, even though they are relevant.

1. **Matrimonial privilege (s.128, IEA 122)**
    - No person who **is or has been married** shall be **compelled** to disclose any **communication made to them during marriage** by their spouse. Nor shall they be **permitted** to disclose it, **unless the person who made it, or their representative in interest, consents**.
    - **Exceptions**: suits between married persons, or proceedings in which one spouse is prosecuted for a crime committed against the other.
    - The privilege applies **only to communications**, not to **acts** observed (*Ram Bharosey v. State of U.P.*, 1954: the wife could testify about her husband's acts, such as seeing him with ornaments).
    - It continues **after divorce or death** for communications made during the marriage (*M.C. Verghese v. T.J. Ponnan*, 1970: letters from a husband to his wife could not be disclosed by the father-in-law in a defamation case, as they were privileged). The communication must be **during a valid marriage**.
2. **State privilege: affairs of State (s.129, IEA 123)**
    - No one shall be permitted to give evidence derived from **unpublished official records relating to affairs of State**, except with the permission of the **head of the department**, who gives or withholds it as they think fit.
    - The **court has the final say** on whether a document relates to affairs of State. It may **inspect** the document.
    - *State of Punjab v. Sodhi Sukhdev Singh* (1961); **State of U.P. v. Raj Narain** (1975: the "Blue Book" on the PM's security was considered; the court can inspect in camera); *S.P. Gupta v. UOI* (1981: correspondence on judges' appointments was disclosed; the public interest in disclosure was balanced against harm); *Yashwant Sinha v. CBI* (2019, Rafale review: documents could be considered).
3. **Official communications (s.130, IEA 124)**: no public officer shall be **compelled** to disclose communications made to them **in official confidence**, when they consider that the **public interest would suffer** by the disclosure.
4. **Information as to commission of offences (s.131, IEA 125)**: no **Magistrate or police officer** shall be compelled to say **from where they got any information** about the commission of an offence. No revenue officer shall be compelled to say from where they got information about an offence against the public revenue. This protects **informers**.

Q37. Professional privilege (ss. 132–134, IEA 126–129)

- **s.132 (IEA 126)**: no **advocate** shall at any time be **permitted**, **unless with the client's express consent**, to disclose any communication made to them in the course of and for the purpose of their employment, or the contents or condition of any document they became acquainted with, or any advice given.
    - **Exceptions**:

        - a. any communication made **in furtherance of an illegal purpose**;
        - b. any fact observed by the advocate showing that a **crime or fraud has been committed** since the start of their employment.
    - The obligation **continues after the employment has ceased**.
- **s.133 (IEA 128)**: the **privilege is not waived** merely because the client gives evidence. If the client **calls the advocate as a witness**, it is deemed waived only for the matters on which the advocate is questioned.
- **s.134 (IEA 129)**: **confidential communications with legal advisers**. No one shall be compelled to disclose confidential communications with their legal adviser, unless they offer themselves as a witness, in which case they may be compelled to disclose communications needed to explain evidence they have given.
- Interpreters, clerks and servants of advocates are bound by the same duty (IEA 127, merged).
- **Rationale**: to secure **free and frank communication** between client and lawyer, which is essential for the administration of justice.

Q38. Other provisions as to witnesses (ss. 135–137)

- **s.135 (IEA 130)**: a witness who is **not a party** to a suit shall not be compelled to produce their **title deeds** or any document by which they hold property as a mortgagee, or any document that might **tend to incriminate** them, unless they agree in writing.
- **s.136 (IEA 131)**: no one shall be compelled to produce documents in their possession, or electronic records under their control, that another person in whose possession they would be entitled to refuse to produce them, unless that other person consents.
- **s.137 (IEA 132)**: a witness **shall not be excused from answering** any question relevant to the matter in issue on the ground that the answer will **criminate** them, or expose them to a penalty or forfeiture. *Proviso*: **no such answer that they are compelled to give shall subject them to arrest or prosecution**, or be proved against them in any criminal proceeding, **except a prosecution for giving false evidence**. This is **protection against self-incrimination** for witnesses (it is related to Art. 20(3) but different, because it is a statutory immunity).

Q39. Accomplice and number of witnesses (ss. 138–139). *(Important)*

Accomplice: a **guilty associate** in crime, i.e. a person who participated in the commission of the crime (*R v. Baskerville*, 1916). It includes a **principal** and an **abettor**. An **approver** is an accomplice who has been granted a pardon (BNSS s.343).

s.138 (IEA 133): **an accomplice shall be a competent witness** against an accused person. A **conviction is not illegal merely because** it proceeds upon the **uncorroborated testimony of an accomplice**.

s.119 illustration (b) (IEA 114 ill. (b)): the court **may presume** that an **accomplice is unworthy of credit, unless corroborated in material particulars**.

Reconciling s.138 and s.119(b)

- s.138 is a **rule of law**: uncorroborated accomplice evidence can legally sustain a conviction.
- s.119(b) is a **rule of prudence**: as a matter of caution, courts **require corroboration in material particulars**.
- In practice, courts **insist on corroboration**, so the rule of prudence has almost hardened into a rule of law.
- *Bhuboni Sahu v. The King* (1949); **Rameshwar v. State of Rajasthan** (1952): corroboration need not be of every detail but must **connect the accused with the crime**; it must be **independent**. *Haroon Haji Abdulla v. State of Maharashtra* (1968): one accomplice cannot corroborate another. *K. Hashim v. State of T.N.* (2005); *Sarwan Singh v. State of Punjab* (1957): double test of reliability.
- **Nature of corroboration** (*Baskerville*): it must be **independent** and must **implicate the accused** in a material particular.
- A **victim of rape is not an accomplice**. Her evidence does not need corroboration (*State of Punjab v. Gurmit Singh*, 1996; *Bharwada Bhoginbhai*, 1983).

Number of witnesses (s.139, IEA 134): **no particular number of witnesses** is required for the proof of any fact. **Evidence must be weighed, not counted.**

- *Vadivelu Thevar v. State of Madras* (1957): a conviction can be based on the testimony of a **single witness** if wholly reliable. Witnesses fall into three categories: wholly reliable, wholly unreliable, and neither wholly reliable nor wholly unreliable. Corroboration is needed for the third category.
- Exceptions where statutes require more: e.g. perjury (traditionally), and a will requires two attesting witnesses.

MODULE 6 — BURDEN OF PROOF

Q40. Burden of proof and standard of proof in civil and criminal cases

Burden of proof (onus probandi): the obligation to **prove a fact**. It has two meanings:

1. **Legal burden / burden of establishing a case** (s.104): this **never shifts**. It lies on the party who asserts the affirmative of the issue.
2. **Evidential burden / burden of adducing evidence** (s.105): this **shifts** constantly during the trial as evidence is produced.

Standard of proof

- **Civil cases**: **preponderance of probabilities** (balance of probabilities).
- **Criminal cases**: **beyond reasonable doubt**. *Woolmington v. DPP* (1935): “throughout the web of the English criminal law one golden thread is always to be seen, that it is the duty of the prosecution to prove the prisoner’s guilt.”
- **Accused’s burden** (general exceptions and so on): only a **preponderance of probabilities**, not beyond reasonable doubt (*Dahyabhai Chhaganbhai Thakker v. State of Gujarat*, 1964; *Rabindra Kumar Dey v. State of Orissa*, 1976).

- Reasonable doubt must be **real and substantial**, not imaginary or fanciful (*Krishnan v. State*, 2003).

Q41. General conception of burden of proof (ss. 104–107, IEA 101–104)

- **s.104 (IEA 101)**: whoever desires any court to give judgment as to any legal right or liability dependent on the existence of facts they assert **must prove that those facts exist**. The burden lies on the person **who asserts**: "he who asserts must prove" (*ei incumbit probatio qui dicit, non qui negat*).
- **s.105 (IEA 102)**: **on whom the burden lies**: on the person **who would fail if no evidence at all were given on either side**. (Test: who would lose if no evidence were given?)
- **s.106 (IEA 103)**: the burden of proof as to **any particular fact** lies on the person who wishes the court to **believe in its existence**, unless a law provides otherwise. *Illustration*: A prosecutes B for theft and wants the court to believe B admitted it to C. A must prove the admission. **Alibi**: the accused must prove it.
- **s.107 (IEA 104)**: the burden of proving any **fact necessary to make evidence admissible** lies on the person who wishes to give that evidence. *Illustration*: to prove a dying declaration, A must prove B's death. To give secondary evidence, A must prove the original was lost.

Q42. General and special exceptions to burden of proof (ss. 108–116, IEA 105–112)

- **s.108 (IEA 105)**: **burden on the accused to prove a case within general exceptions** (BNS Chapter III, e.g. private defence, insanity, accident, intoxication), within a special exception or proviso in the BNS, or within any other law. **The court shall presume the absence of such circumstances.** The standard is a preponderance of probabilities. *K.M. Nanavati v. State of Maharashtra* (1962): the burden of proving grave and sudden provocation was on the accused. *Dahyabhai* (1964): insanity.
- **s.109 (IEA 106)**: when any fact is **especially within the knowledge** of any person, the **burden of proving that fact is upon them**. *Illustration*: a person travelling without a ticket must prove they had one. *Shambhu Nath Mehra v. State of Ajmer* (1956): **s.106 does not relieve the prosecution of its burden**; it applies only to facts **pre-eminently** within the accused's knowledge. **Trimukh Maroti Kirkan v. State of Maharashtra** (2006): in a death in the matrimonial home, the husband must explain; failure gives rise to an adverse inference.
- **s.110 (IEA 107)**: when it is shown that a person was **alive within 30 years**, the burden of proving they are dead is on the person who affirms it.
- **s.111 (IEA 108)**: when a person has **not been heard of for 7 years** by those who would naturally have heard of them, the burden of proving they are **alive** shifts to the person who affirms it. (There is a presumption of death, but **not of the time** of death.)
- **s.112 (IEA 109)**: burden in relationships of **partners, landlord and tenant, principal and agent**: the person who asserts that the relationship has ceased must prove it.

- **s.113 (IEA 110)**: **ownership**. A person in possession is presumed to be the owner. The burden is on the person who affirms they are not.
- **s.114 (IEA 111)**: **good faith in transactions where one party is in a position of active confidence** (fiduciary relationship). The burden of proving good faith is on the person in active confidence. Examples: lawyer and client, guardian and ward, parent and child, doctor and patient.
- **s.115 (IEA 111A)**: presumption of guilt in certain offences in **disturbed areas** (e.g. under AFSPA).
- **s.116 (IEA 112)**: **birth during marriage is conclusive proof of legitimacy**: a birth during a valid marriage, or **within 280 days after its dissolution** (the mother remaining unmarried), unless it is shown the parties had **no access** to each other at any time when the child could have been begotten.
    - *Goutam Kundu v. State of W.B.* (1993): courts cannot order DNA tests as a matter of course; a strong prima facie case of non-access is needed.
    - **Nandlal Wasudeo Badwaik v. Lata Nandlal Badwaik** (2014): when a **DNA test** is scientifically accurate, it **prevails over the conclusive presumption**.
    - *Aparna Ajinkya Firodia v. Ajinkya Arun Firodia* (2023): DNA tests should be ordered only in exceptional cases; the child's interest is paramount.
- **s.117 (IEA 113A)**: presumption of **abetment of suicide by a married woman** within **7 years of marriage**, if subjected to **cruelty** by the husband or his relatives (court **may presume**).
- **s.118 (IEA 113B)**: presumption of **dowry death**. If it is shown that **soon before her death** the woman was subjected to **cruelty or harassment in connection with a demand for dowry**, the court **shall presume** the person caused the dowry death. *Kans Raj v. State of Punjab* (2000); *Satbir Singh v. State of Haryana* (2021): "soon before" means there must be a **proximate and live link**.

Q43. Court may presume existence of certain facts (ss. 119–120, IEA 114, 114A)

s.119 (IEA 114): the court **may presume** the existence of any fact it thinks likely to have happened, having regard to the **common course of natural events, human conduct, and public and private business**.

Illustrations:

- a. a person in **possession of stolen goods soon after the theft** is either the thief or has received the goods knowing them to be stolen, unless they can account for possession (*Sanjay v. State (NCT of Delhi)*, 2001);
- b. an **accomplice is unworthy of credit** unless corroborated in material particulars;
- c. a bill of exchange was accepted for good consideration;
- d. a thing or state of things shown to exist continues to exist;
- e. judicial and official acts have been **regularly performed**;
- f. the common course of business has been followed;
- g. evidence that could be and is **not produced would be unfavourable** to the person who withholds it (adverse inference);

- h. if a person refuses to answer a question they are not compelled to answer by law, the answer would be unfavourable to them;
- i. when a document creating an obligation is in the hands of the obligor, the obligation has been discharged.

s.120 (IEA 114A): presumption as to **absence of consent** in certain prosecutions for **rape** (BNS s.64(2)). If sexual intercourse is proved and the woman states in court that she **did not consent**, the court **shall presume** that she did not consent.

Q44. Doctrine of judicial notice (ss. 51–52)

Meaning: some facts are so **notorious or well known** that they **need not be proved**. The court takes notice of them on its own.

- **s.51 (IEA 56)**: **no fact of which the court will take judicial notice need be proved.**
- **s.52 (IEA 57)**: **facts of which the court shall take judicial notice**:
  - a. **all laws in force** in the territory of India, including laws having extra-territorial operation;
  - b. **international treaties**, agreements or conventions with countries, and decisions made by India at international associations or bodies;
  - c. the course of proceedings of the **Constituent Assembly**, of Parliament and of State legislatures;
  - d. the **seals** of all courts and tribunals;
  - e. seals of courts of admiralty, notaries, and seals that persons are authorised to use under the Constitution or law;
  - f. the accession to office, names, titles, functions and signatures of persons holding public office, if notified in the Official Gazette;
  - g. the existence, title and national flag of every country recognised by the Government of India;
  - h. the **divisions of time**, the **geographical divisions** of the world, and public festivals, fasts and holidays notified in the Official Gazette;
  - i. the territory of India;
  - j. the commencement, continuance and termination of **hostilities** between India and another country;
  - k. the names of members and officers of the court, and of advocates and others authorised to appear;
  - l. the **rule of the road** on land or at sea.
- **s.52(2)**: in these cases, and on matters of **public history, literature, science or art**, the court may **resort to appropriate books or documents of reference**. If called on to take judicial notice, the court may refuse unless the person produces such a book or document.
- **Scope**: the list is not exhaustive. Courts may take notice of **notorious facts** of common knowledge (e.g. that the sun rises in the east, or the fact of the Emergency of 1975).

Q45. Facts admitted need not be proved (s.53, IEA 58)

- **No fact need be proved** in any proceeding which the parties or their agents **agree to admit at the hearing**, or which they agree to admit in writing **before the hearing**, or which they are deemed to have admitted by their pleadings.
- *Proviso*: the court may, in its discretion, **require the facts admitted to be proved** otherwise than by such admissions.
- This covers **judicial admissions** (formal admissions), which are binding. Compare **s.15 admissions**, which are evidentiary and rebuttable.
- In **criminal cases**, an admission by the accused **cannot relieve the prosecution** of proving its case (except in limited areas such as BNSS s.330, admitting genuineness of documents).

MODULE 7 — ORAL EVIDENCE

Q46. Oral evidence: general principles and exceptions to hearsay

s.54 (IEA 59): **all facts, except the contents of documents (or electronic records), may be proved by oral evidence.**

s.55 (IEA 60): **oral evidence must, in all cases whatever, be direct**:

- a fact that could be **seen**: the evidence of a witness who says **they saw it**;
- a fact that could be **heard**: a witness who says **they heard it**;
- a fact that could be perceived by **any other sense**: a witness who says **they perceived it** by that sense;
- an **opinion or the grounds** on which it is held: the evidence of the person who holds that opinion.
- *Provisos*: opinions of experts in treatises commonly offered for sale may be proved by producing the treatise if the author is dead, cannot be found or cannot be called without unreasonable delay. The court may require **material things** referred to in oral evidence to be produced for inspection.

Hearsay rule: s.55 **excludes hearsay**.

- Reasons: the evidence is not on oath; there is no opportunity of cross-examination; the original speaker’s demeanour cannot be seen; the risk of distortion grows with repetition; and it encourages fraud.

Exceptions to the hearsay rule

1. **Res gestae** (s.4).
2. **Admissions and confessions** (ss.15–24).
3. **Statements of persons who cannot be called** as witnesses, including **dying declarations** (s.26).
4. **Evidence given in a former proceeding** (s.27, IEA 33). It is relevant in a later proceeding when the witness is dead, cannot be found, or is incapable of giving evidence, if the proceeding was between the **same parties**, the adverse party had

the **right and opportunity to cross-examine**, and the **questions in issue were substantially the same**.

5. **Statements in public documents**, books of account, maps and so on (ss.28–32).
6. **Expert opinion in treatises** (s.55 proviso).
7. **Statements in conspiracy** (s.8).
8. **Common reputation** about public rights or customs (s.42).

Q47. Examination-in-chief, cross-examination and re-examination; general principles of examination (ss. 140–168). *(Important)*

- **s.140 (IEA 135)**: the **order of production and examination of witnesses** is regulated by the law and practice of civil and criminal procedure, or by the court's discretion.
- **s.141 (IEA 136)**: the **judge decides the admissibility** of evidence. They may ask the party proposing to give evidence how it would be relevant.
- **s.142 (IEA 137)**: definitions:
  - **Examination-in-chief**: the examination of a witness **by the party who calls them**.
  - **Cross-examination**: examination **by the adverse party**.
  - **Re-examination**: examination of a witness, **subsequent to cross-examination**, by the party who called them.
- **s.143 (IEA 138)**: **order of examinations**. The witness is first examined-in-chief, then (if the adverse party so desires) cross-examined, then (if the party calling them so desires) re-examined.
  - Examination-in-chief and cross-examination must relate to **relevant facts**. Cross-examination **need not be confined** to facts the witness testified to in chief.
  - **Re-examination** is directed to the **explanation of matters referred to in cross-examination**. If new matter is introduced by permission of the court, the adverse party may further cross-examine on it.
- **s.144 (IEA 139)**: a person summoned **only to produce a document** does not become a witness and cannot be cross-examined unless called as a witness.
- **s.145 (IEA 140)**: **witnesses to character** may be cross-examined and re-examined.
- **s.147 (IEA 144)**: evidence as to matters in writing.
- **s.148 (IEA 145)**: **cross-examination as to previous statements in writing** (or reduced into writing, or in electronic form). Before the writing is proved, the witness's **attention must be drawn** to the parts used to **contradict** them. This is used to contradict with BNSS s.181 statements (*Tahsildar Singh v. State of U.P.*, 1959).
- **s.150 (IEA 147)**: when a witness is to be compelled to answer.
- **s.151 (IEA 148)**: court to decide when a question shall be asked and when a witness is compelled to answer.
- **s.152 (IEA 149)**: question not to be asked **without reasonable grounds**.
- **s.153 (IEA 150)**: procedure of the court in case of a question being asked without reasonable grounds. The court may report the advocate.

- **s.154 (IEA 151)**: the court may forbid **indecent and scandalous questions**.
- **s.155 (IEA 152)**: the court shall forbid questions **intended to insult or annoy**.
- **s.156 (IEA 153)**: **exclusion of evidence to contradict answers to questions testing veracity** (collateral matters). The answer is final, except: (a) a previous conviction may be proved if denied; (b) questions impeaching **impartiality** may be contradicted.
- **s.159 (IEA 156)**: questions tending to **corroborate** evidence of a relevant fact are admissible.
- **s.160 (IEA 157)**: **former statements of a witness may be proved to corroborate** later testimony, if made at or about the time the fact took place, or before any authority competent to investigate.
- **s.161 (IEA 158)**: what matters may be proved in connection with a proved statement relevant under s.26 or s.27.
- **s.163 (IEA 160)**: testimony to facts stated in a document used to refresh memory.
- **s.164 (IEA 161)**: **right of the adverse party** to inspect and cross-examine on a writing used to refresh memory.
- **s.165 (IEA 162)**: **production of documents**. A witness summoned to produce a document must bring it, notwithstanding any objection. The court decides the validity of the objection and may inspect the document (except one relating to affairs of State). A translator must keep its contents secret.
- **s.166 (IEA 163)**: giving as evidence a document called for and produced on notice.
- **s.167 (IEA 164)**: using as evidence a document whose production was refused on notice.
- **s.168 (IEA 165)**: **judge's power to put questions or order production**. The judge may, to discover or obtain proof of relevant facts, **ask any question** they please, in any form, at any time, of any witness or party, about any fact, relevant or irrelevant, and **order production** of any document or thing. Neither the parties nor their agents can object to any such question or order. The parties cannot cross-examine any witness on the answer without the court's leave. *Limits*: the judgment must be based on facts declared relevant; the judge cannot compel answers privileged under ss.128–137; and cannot ask questions that would be improper under ss.151–152.

Object of cross-examination

1. To **test the veracity** and credibility of the witness.
2. To **discover who they are** and what their position in life is.
3. To **shake their credit** by injuring their character.
4. To elicit facts favourable to the cross-examining party.
5. To bring out **contradictions** and omissions.

Q48. Leading questions (s.146, IEA 141–143)

- **Definition**: any question **suggesting the answer** that the person putting it **wishes or expects to receive**. Example: "Did you see A stab B with a knife?", where the expected answer is yes.

- **When they must not be asked**: in **examination-in-chief or re-examination**, if objected to by the adverse party, **except with the permission of the court**.
- **The court shall permit** leading questions on matters that are **introductory or undisputed**, or that in its opinion have already been **sufficiently proved**.
- **When they may be asked**: in **cross-examination**. Also with the court's permission in examination-in-chief for **hostile witnesses** (s.157) and for identification.

Q49. Lawful questions in cross-examination (s.149, IEA 146)

When a witness is cross-examined, they may, in addition to the questions referred to above, be asked any questions that tend:

a. to **test their veracity**;
b. to discover **who they are and their position in life**;
c. to **shake their credit** by injuring their character, even if the answer might tend directly or indirectly to criminate them, expose them to a penalty or forfeiture.

Proviso (rape cases): in prosecutions for rape (BNS ss.64–71, 74–79), it **shall not be permissible** to adduce evidence or put questions in cross-examination about the victim's **general immoral character or previous sexual experience** with any person for proving consent or the quality of consent.

Q50. Hostile witness (s.157, IEA 154). ***(Important)***

- **s.157(1)**: the court may, in its discretion, **permit the person who calls a witness to put any questions to them which might be put in cross-examination** by the adverse party.
- **s.157(2)**: this does not disentitle the person so permitted to rely on any part of the witness's evidence.
- The term "**hostile witness**" is **not used** in the Act. It means a witness who **resiles** from a previous statement, or who is not desirous of telling the truth at the instance of the party calling them, i.e. shows an **adverse animus**.
- **Evidentiary value**:
  - The evidence of a hostile witness is **not effaced or washed off** the record. The part that is **reliable and consistent** with the prosecution case can be accepted.
  - *Sat Paul v. Delhi Administration* (1976).
  - **Bhagwan Singh v. State of Haryana** (1976).
  - *Khujji @ Surendra Tiwari v. State of M.P.* (1991).
  - *Koli Lakhmanbhai Chanabhai v. State of Gujarat* (1999).
  - *State v. Sanjeev Nanda* (BMW case, 2012): hostile witnesses were criticised, and the court discussed **witness protection**.
- **Reasons witnesses turn hostile**: threats, inducement, delay in trial, lack of witness protection, money power. Remedies include the **Witness Protection Scheme** (*Mahender Chawla v. UOI*, 2018; BNSS s.398) and **prosecution for perjury**. *Zahira Habibullah Sheikh* (2004) is the leading example.

Q51. Impeaching the credit of a witness (s.158, IEA 155)

The credit of a witness may be impeached by the **adverse party**, or, with the court's consent, by the party calling them:

a. by the evidence of persons who testify that they, from their knowledge of the witness, believe them to be **unworthy of credit**;
b. by proof that the witness has been **bribed**, has accepted the offer of a bribe, or has received any other **corrupt inducement** to give evidence;
c. by proof of **former statements inconsistent** with any part of their evidence that is liable to be contradicted.

Note: the former clause (d), about the character of a rape prosecutrix, was **deleted in 2003**. It is not found in the BSA.

Impeaching credit vs contradicting: contradiction (s.148) is one method of impeaching credit. Impeaching is wider: it attacks the **general trustworthiness** of the witness.

Q52. Refreshing memory (ss. 162–164, IEA 159–161)

- **s.162(1)**: a witness may, while under examination, **refresh their memory** by referring to any writing made by themselves **at the time of the transaction** concerning which they are questioned, **or so soon afterwards** that the court considers it likely the transaction was at that time **fresh in their memory**.
- They may also refer to a writing made by **any other person** and **read by the witness within that time**, if they knew it to be correct when they read it.
- With the court's permission, a **copy** may be used if there is sufficient reason for not producing the original.
- An **expert** may refresh their memory by reference to professional treatises.
- **s.163**: a witness may also testify to facts mentioned in such a document even if they have no specific recollection of the facts, if they are sure the facts were correctly recorded.
- **s.164**: the **adverse party** may **inspect the writing** and **cross-examine** the witness on it. Police officers refresh memory from the **case diary** (BNSS s.192); the accused can then see those entries.

MODULE 8 — ESTOPPEL

Q53. What is estoppel? Estoppel, res judicata, waiver and presumption. *(Important)*

s.121 (IEA 115): when one person has, **by their declaration, act or omission**, **intentionally caused or permitted another person to believe a thing to be true** and to **act upon such belief**, neither they nor their representative shall be allowed, in any suit or proceeding between themselves and such person or their representative, to **deny the truth of that thing**.

Illustration: A intentionally and falsely leads B to believe that certain land belongs to A, and thereby induces B to buy and pay for it. The land afterwards becomes A's property, and A seeks to set aside the sale on the ground that he had no title at the time of the sale. He must not be allowed to prove his want of title.

Essentials

1. A **representation** of an **existing fact** (not of law, and not of future intention), by declaration, act or omission.
2. It was made **intentionally** (or with a culpable negligence that permitted the belief).
3. The other person **believed** it to be true.
4. That person **acted upon it** to their **detriment** (altered their position).
5. The proceeding is **between the same parties** or their representatives.

Nature: estoppel is a **rule of evidence**, not a cause of action. It is "a **shield, not a sword**". It **cannot override a statute** (there is **no estoppel against a statute**), and there is no estoppel on a point of law.

- *Pickard v. Sears* (1837) is the origin of the rule.
- *Sarat Chunder Dey v. Gopal Chunder Laha* (1892, Privy Council).
- *B.L. Sreedhar v. K.M. Munireddy* (2003).

Kinds of estoppel

1. **Estoppel by record** (judgment): this is **res judicata**.
2. **Estoppel by deed**.
3. **Estoppel in pais** (by conduct): this is s.121.
4. **Equitable / promissory estoppel**.
5. **Tenant estoppel** (s.122) and **estoppel of the acceptor of a bill, bailee or licensee** (s.123).

Estoppel vs res judicata

Estoppel	Res judicata
Arises from the **act of parties**	Arises from a **decision of the court**
Prevents a party from saying **one thing at one time and the opposite at another**	Prevents a party from **litigating the same matter twice** (it ousts the jurisdiction of the court)
A rule of **evidence** (BSA s.121)	A rule of **procedure** (CPC s.11)
Prevents a person from **denying a fact**	Prevents **a fresh trial** of the matter
Based on **equity**	Based on **public policy**: finality of litigation

Estoppel vs waiver

- **Waiver** is the **intentional relinquishment of a known right** (*Indu Shekhar Singh v. State of U.P.*, 2006). It is contractual and voluntary and needs no detriment to the other party.

- **Estoppel** is a rule of evidence and requires the other party's **detrimental reliance**.
- Waiver involves **abandonment of a right**. Estoppel prevents the **denial of a representation**.

Estoppel vs presumption: a presumption is an inference the court draws (rebuttable or conclusive). Estoppel **prevents a party from proving** the contrary of what they represented. It operates like a conclusive presumption, but **only between the parties**.

Tenant estoppel (s.122, IEA 116): no **tenant** of immovable property, or person claiming through them, shall during the **continuance of the tenancy** be permitted to deny that the **landlord had a title** to the property **at the beginning of the tenancy**. No person who came on the property by the **licence** of the person in possession shall be permitted to deny that such person had a title to possession at the time the licence was given.

s.123 (IEA 117): estoppel of the **acceptor of a bill of exchange** (cannot deny the drawer's authority to draw), of a **bailee** (cannot deny the bailor's authority to bail), and of a **licensee** (cannot deny the licensor's authority).

Q54. Promissory estoppel (ss. 121–123). *(Important)*

Meaning: where one party, by words or conduct, makes a **clear and unequivocal promise** intended to **create legal relations** or affect a legal relationship, **knowing or intending** that it would be **acted upon**, and the other party **acts upon it** (alters their position), the promisor **cannot go back** on the promise if it would be **inequitable** to do so, even without **consideration**.

Origin: **Central London Property Trust Ltd. v. High Trees House Ltd.** (1947, Denning J). A promise to accept reduced rent during the war was binding for that period.

In India

- **Union of India v. Indo-Afghan Agencies Ltd.** (1968): the Government is bound by its promise under an export promotion scheme. The Government is not exempt from equity.
- **Motilal Padampat Sugar Mills v. State of U.P.** (1979, Bhagwati J): the **landmark** case. The Government's promise of a **sales tax exemption** for 3 years induced the setting up of a factory. The Government was **bound** by promissory estoppel. The **plea of executive necessity is not available**. It can be used as a **cause of action** (a sword) in India.
- *Jit Ram v. State of Haryana* (1980): diluted Motilal. This was later disapproved in *Union of India v. Godfrey Philips India* (1985).
- *Union of India v. Godfrey Philips India Ltd.* (1985): **no promissory estoppel against the legislature** in the exercise of its legislative functions, nor to compel the Government to do something **contrary to law**.
- *State of Punjab v. Nestle India Ltd.* (2004): the Government is bound unless overriding public interest requires otherwise.
- *M.P. Mathur v. DTC*; *MRF Ltd. v. Assistant Commissioner* (2006).

Limitations

1. There is no promissory estoppel **against a statute** or the legislature.
2. It is not available where the promise is **ultra vires** or illegal.
3. The Government can resile if there is an **overriding public interest**, with **reasonable notice**.
4. The promise must be clear and unequivocal.
5. The promisee must have **altered their position**.
6. It does not apply where fraud or misrepresentation is involved.

Promissory estoppel vs equitable estoppel (s.121): s.121 relates to a representation of an **existing fact**. Promissory estoppel relates to a **promise about the future**. Promissory estoppel is an equitable doctrine developed by the courts and is not strictly within s.121.

Q55. Effect of improper admission and rejection of evidence in civil and criminal cases (s.169, IEA 167)

s.169: the **improper admission or rejection of evidence** shall **not be a ground of itself for a new trial or reversal** of any decision in any case, if it appears to the court before which the objection is raised that:

- **independently of the evidence objected to and admitted**, there was **sufficient evidence to justify the decision**; or
- if the **rejected evidence had been received**, it **ought not to have varied the decision**.

Principle: it applies to **both civil and criminal cases**. The appellate court asks whether the error **affected the result**. If it did not, the decision stands.

- *Example*: if a confession to police was wrongly admitted, the appellate court **excludes it** and examines whether the rest of the evidence is enough to convict.
- **Objection** to admissibility should be raised **at the time** the evidence is tendered. Objection to the **mode of proof** is lost if not raised at trial, but objection to **inherent inadmissibility** can be raised at any stage (*R.V.E. Venkatachala Gounder v. Arulmigu Viswesaraswami & V.P. Temple*, 2003).
- The rule is similar to BNSS s.511 (CrPC 465) and CPC s.99, which say no reversal unless there is a failure of justice.

Exam tips

1. Always write the **BSA section and the IEA section in brackets**.
2. For **long answers**, write: definition, essentials, illustration, cases, the BSA change, and a conclusion.
3. **Must-know cases**: Pakala Narayana Swami, Pulukuri Kottaya, Palvinder Kaur, Kashmira Singh, Khushal Rao, Laxman, Anvar P.V., Arjun Panditrao Khotkar, Sharad Birdhichand Sarda, Vadivelu Thevar, Woolmington, Shambhu Nath Mehra, Motilal Padampat, Ram Bharosey, Raj Narain, Mirza Akbar, Bedingfield, Ratten.

INTERPRETATION OF STATUTES (LCC 0703) — Exam Answers

> Format: each syllabus topic is written as an exam question, followed by the answer: meaning, explanation, cases and conclusion. GCA means the General Clauses Act, 1897.

MODULE 1 — INTRODUCTION AND THE GENERAL CLAUSES ACT, 1897

Q1. Interpretation: meaning, need and object

Meaning: interpretation is the process by which courts **ascertain the meaning of the legislature** through the words of a statute.

- **Salmond**: "the process by which the courts seek to ascertain the meaning of the legislature through the medium of authoritative forms in which it is expressed."
- The Latin maxim is *"Verba legis non est recedendum"*: the words of the law must not be departed from.

Need

1. **Ambiguity of language**: words have more than one meaning.
2. **Imperfect drafting**: the legislature cannot foresee every situation.
3. **Changing society**: new technology and social conditions (e.g. the internet or AI) arise that the drafters did not contemplate.
4. **General words**: these have to be applied to specific facts.
5. **Conflicting provisions**: provisions within an Act or between Acts must be harmonised.
6. **Complex legislation**: provisions must be read as a whole.

Object

- To find the **true intention of the legislature** (*Ut res magis valeat quam pereat*: it is better for a thing to have effect than to be made void).
- To **give effect to the purpose** of the law.
- To resolve ambiguity and fill gaps (to a limited extent).
- To ensure **certainty and justice**.
- *R.M.D. Chamarbaugwalla v. UOI* (1957): the court must ascertain the intention of the legislature from the words and the context.
- *Union of India v. Elphinstone Spinning & Weaving Co.* (2001): the intention of the legislature is to be found in the language used.

Q2. Difference between interpretation and construction

Interpretation	Construction
Finding the **meaning of words** used in the statute	Drawing **conclusions** about matters **beyond the direct expression** of the text, from its spirit
Concerned with the **language**: **linguistic**	Concerned with the **legal effect**: **legal**
Used when the words are clear	Used when the words are ambiguous, or there is a gap or uncertainty
The literal sense	The spirit and purpose

- **Cooley**: "Interpretation is the art of finding out the true sense of any form of words. Construction is the drawing of conclusions respecting subjects that lie beyond the direct expression of the text."
- **Salmond**: interpretation is **grammatical** or **logical**.
- In practice, the two terms are **used interchangeably** by courts (*G.P. Singh*).

Q3. Concept and classification of statutes

Statute: a written law enacted by a **competent legislature** (an Act of Parliament or a State legislature, an Ordinance, or delegated legislation).

Classification

1. **By duration**: **perpetual** (no fixed period) and **temporary** (for a fixed period).
2. **By method**: **mandatory / imperative** (must be followed; non-compliance invalidates the act) and **directory** (substantial compliance is enough). *State of U.P. v. Manbodhan Lal Srivastava* (1957); *Sharif-ud-Din v. Abdul Gani Lone* (1980): the test is the intention of the legislature, the consequences of non-compliance, and the object of the statute.
3. **By object**:
    - **Codifying**: states the whole law on a subject (e.g. the Indian Contract Act).
    - **Consolidating**: brings together existing statutes (e.g. the CrPC).
    - **Declaratory**: removes doubts and declares the law.
    - **Remedial**: provides a remedy (e.g. the Workmen's Compensation Act).
    - **Amending**: changes an existing law.
    - **Repealing**: ends an existing law.
    - **Penal**: imposes punishment (e.g. the BNS).
    - **Taxing / fiscal**: imposes tax.
    - **Enabling**: confers powers.
    - **Disabling**: restricts rights.
    - **Validating**: cures defects in past acts.
4. **By extent**: **general** (applies to the whole community) and **local, personal or private**.
5. **By operation**: **prospective** and **retrospective**.

Q4. General Clauses Act, 1897: preliminary, definitions, general rules of construction, powers and functionaries, orders and rules

Object: to **avoid repetition** of definitions and general provisions in every statute, to **shorten language**, and to bring **uniformity** in interpretation. It applies to all **Central Acts and Regulations** (made after its commencement), unless there is anything **repugnant in the subject or context**. States have their own General Clauses Acts. It also applies to the interpretation of the **Constitution** (Art. 367).

Preliminary: s.1 (short title and extent); s.2 (repeal).

Definitions (s.3) include:

- s.3(2) “act” includes **illegal omissions**;
- s.3(7) “Central Act”;
- s.3(18) “document”;
- s.3(22) “**good faith**”: done honestly, **whether negligently or not**;
- s.3(23) “Government”;
- s.3(26) “**immovable property**”;
- s.3(35) “month” means a British calendar month;
- s.3(36) “**movable property**”;
- s.3(38) “**offence**”;
- s.3(42) “**person**” includes any **company, association or body of individuals**, whether incorporated or not;
- s.3(51) “**State**”;
- s.3(56) “**sign**”;
- s.3(65) “**writing**”.

General rules of construction

- **s.4 / s.4A**: application of definitions to earlier Acts.
- **s.5**: **coming into operation**. Where no date is specified, a Central Act comes into operation on the **day it receives the assent** of the President (s.5(1)). Unless otherwise provided, it comes into operation **immediately on the expiration of the day preceding** its commencement, i.e. at **midnight** (s.5(3)).
- **s.6**: **effect of repeal** (see Module 7). Repeal does not revive anything not in force, does not affect the previous operation, rights, liabilities, penalties or pending proceedings, unless a different intention appears.
- **s.6A**: repeal of an Act making a textual amendment does not affect the continuance of the amendment.
- **s.7**: **revival** of repealed enactments only if expressly provided.
- **s.8**: construction of references to repealed enactments as references to the re-enacted provisions.
- **s.9**: **commencement and termination of time**. “From” **excludes** the first day, and “to” **includes** the last day.
- **s.10**: if the last day for doing an act falls on a day the **court or office is closed**, the act may be done on the **next working day**.
- **s.11**: measurement of distances (in a straight line on a horizontal plane).

- **s.12**: duty to be taken pro rata.
- **s.13**: **gender and number**. Words in the **masculine include the feminine**, and the **singular includes the plural** and vice versa.
- **s.13A**: references to the Sovereign.

Powers and functionaries

- **s.14**: powers conferred may be **exercised from time to time** as occasion requires.
- **s.15**: power to appoint includes power to appoint ex officio.
- **s.16**: **power to appoint includes the power to suspend or dismiss**.
- **s.17**: substitution of functionaries (a reference to the designation of an office).
- **s.18**: successors.
- **s.19**: official chiefs and subordinates.

Orders, rules etc. made under enactments

- **s.20**: construction of notifications, rules and orders. Expressions have the **same meaning as in the parent Act**.
- **s.21**: **power to issue includes power to add to, amend, vary or rescind** notifications, orders, rules or bye-laws (it does not apply to quasi-judicial orders) (*Indian National Congress (I) v. Institute of Social Welfare*, 2002).
- **s.22**: making of rules or bye-laws and issuing of orders between the passing and commencement of an enactment.
- **s.23**: rules to be made after **previous publication**.
- **s.24**: **continuation of orders, rules etc. issued under repealed enactments**, so far as not inconsistent with the new Act.

Miscellaneous

- **s.26**: where an act constitutes an offence under **two or more enactments**, the offender may be prosecuted under either, but **shall not be punished twice** for the same offence.
- **s.27**: **service by post** is deemed effected by properly addressing, pre-paying and posting by registered post.

MODULE 2 — GENERAL PRINCIPLES AND RULES OF INTERPRETATION

Q5. Mimansa principles of interpretation (Indian Knowledge System). *(Important: newly added)*

Meaning: **Mimansa** (Purva Mimansa), founded by **Jaimini** (Mimansa Sutras, about 4th century BC) and explained by **Shabara, Kumarila Bhatta and Prabhakara**, was developed to **interpret Vedic texts** for the correct performance of rituals (yajnas). It was later used by Hindu jurists (Vijnaneshwara in the **Mitakshara**, Jimutavahana) to interpret

the Smritis. It is a **highly developed and rational** system, in many ways **more sophisticated** than the Maxwell principles.

Revival in modern India: **Justice Markandey Katju**, "The Mimansa Principles of Interpretation" (1993) 1 SCC (Jour) 16. Supreme Court cases include:

- **Udai Shankar Awasthi v. State of U.P.** (2013);
- **Ispat Industries Ltd. v. Commissioner of Customs** (2006): the **Gunapradhan axiom** was applied;
- *Mahavir Prasad v. …*; *Rajasthan State Industrial Development v. Diamond & Gem Development* (2013).

The six principles (shadlinga) to determine the meaning of a text

1. **Upakrama–Upasamhara**: the **beginning and the conclusion** must be harmonised.
2. **Abhyasa**: **repetition** shows emphasis.
3. **Apurvata**: **novelty**, i.e. what is new or unique in the text.
4. **Phala**: the **result or purpose**.
5. **Arthavada**: **praise or explanatory passages**.
6. **Upapatti**: **reasoning / logical consistency**.

Means of interpretation (Shruti, Linga, Vakya, Prakarana, Sthana, Samakhya), in order of decreasing strength:

1. **Shruti**: the **direct statement / express text**. This is the literal rule.
2. **Linga**: the **indicative power of words / suggestion**. This is similar to the purposive approach.
3. **Vakya**: **syntactical connection**, i.e. the sentence as a whole.
4. **Prakarana**: **context**, i.e. the subject matter or chapter.
5. **Sthana**: **position / order** of the words.
6. **Samakhya**: **name / etymology**.

If these conflict, the **earlier prevails over the later** (*Purva-daurbalya*).

Important axioms (nyayas)

1. **Sarthakya axiom**: **every word and sentence must have a meaning**. No word is redundant. This is the same as the modern rule against surplusage.
2. **Laghava axiom**: when there is a choice, the interpretation that is **simpler / more economical** (needing fewer assumptions) is preferred.
3. **Arthaikatva axiom**: a word or sentence must have **one meaning in the same context**. Double meanings are avoided (similar to the rule that the same word has the same meaning throughout).
4. **Gunapradhan axiom**: if a **subordinate (guna)** provision **conflicts** with the **principal (pradhan)** provision, the **subordinate yields** to the principal, or is ignored. *Ispat Industries* (2006): the Customs Valuation Rules (subordinate) gave way to the Customs Act (principal).

5. **Samanjasya principle**: **harmonious construction**. Apparent conflicts must be **reconciled** (similar to harmonious construction).
6. **Vikalpa principle**: where there is a real conflict that cannot be reconciled, an **option** is allowed; it is used **as a last resort**.
7. **Atidesha principle**: **extension by analogy**, i.e. applying the features of one thing to another (similar to a legal fiction).
8. **Badha**: **cancellation**, where one rule is excluded in favour of another.

Vidhi, Nishedha and Arthavada: Mimansa classifies texts into **Vidhi** (positive command), **Nishedha** (prohibition), and **Arthavada** (explanatory or recommendatory text, which is **directory**, not mandatory). Courts have used this to distinguish **mandatory from directory provisions**.

Conclusion: Mimansa shows that India had a sophisticated, **rational interpretive tradition** long before the English rules. Its principles parallel and sometimes exceed the literal, purposive and harmonious rules.

Q6. Literal rule (grammatical / plain meaning rule)

Meaning: the words of a statute must be given their **ordinary, natural and grammatical meaning**. If the words are **clear and unambiguous**, the court must give effect to them **whatever the consequences**, even if harsh or absurd, because the legislature is presumed to mean what it says.

- **Maxim**: *Absoluta sententia expositore non indiget* (when the language is clear, no explanation is needed).
- **Tindal C.J. in the Sussex Peerage Case** (1844): “If the words of the statute are in themselves precise and unambiguous, then no more can be necessary than to expound those words in their natural and ordinary sense.”

Cases

- **Whiteley v. Chappell** (1868): it was an offence to impersonate “any person **entitled to vote**”. The accused impersonated a **dead person**. A dead person is not “entitled to vote”, so the accused was **acquitted**. (This shows the absurd result of the literal rule.)
- *R v. Harris* (1836): “stab, cut or wound”. Biting off a nose was not covered.
- *Fisher v. Bell* (1961): a flick-knife displayed in a shop window was **not an “offer for sale”** (it was an invitation to treat), so the shopkeeper was not liable.
- **India**:
    - *State of U.P. v. Vijay Anand Maharaj* (1963);
    - **Nelson Motis v. Union of India** (1992): the clear words of a rule must be given effect;
    - *Kanai Lal Sur v. Paramnidhi Sadhukhan* (1957): if the words are clear, consequences are irrelevant;
    - *Gurudevdatta VKSSS Maryadit v. State of Maharashtra* (2001);
    - *Raghunath Rai Bareja v. Punjab National Bank* (2007): the literal rule is the **first rule**; a hard case is no ground to depart from it.

    - *Ramavtar Budhaiprasad v. Assistant Sales Tax Officer* (1961): "**vegetables**" in a sales tax Act did not include **betel leaves**. Words are to be given the meaning in **common parlance** (the popular sense).

Merits: certainty, respect for the separation of powers, and it limits judicial legislation. **Demerits**: absurd or unjust results; it ignores the purpose of the law; language is inherently imperfect.

Q7. Golden rule

Meaning: a **modification of the literal rule**. Words are given their ordinary meaning, **unless** that leads to an **absurdity, inconsistency, hardship or repugnancy**, in which case the meaning may be **modified** to the extent necessary to avoid it, but **no further**.

- **Lord Wensleydale in Grey v. Pearson** (1857): "the grammatical and ordinary sense of the words is to be adhered to, unless that would lead to some absurdity, or some repugnance or inconsistency with the rest of the instrument, in which case the grammatical and ordinary sense may be modified so as to avoid that absurdity and inconsistency, but no further."
- **Lord Blackburn in River Wear Commissioners v. Adamson** (1877).

Cases

- **R v. Allen** (1872): bigamy, "whoever being married shall **marry** another". Taken literally, a **second valid marriage is impossible**, so no one could ever commit bigamy. "Marry" was read as "**go through a ceremony of marriage**".
- **Re Sigsworth** (1935): a son murdered his mother and claimed her estate on intestacy. The court applied the golden rule to **prevent the murderer inheriting**.
- **Adler v. George** (1964): "**in the vicinity of**" a prohibited place was read to include "**in**" the prohibited place.
- *Lee v. Knapp* (1967): "stop" after an accident.
- **India**:
    - **Tirath Singh v. Bachittar Singh** (1955): "**notice to persons**" was read narrowly to avoid the absurdity of giving notice to all persons; it meant persons not already parties.
    - *State of Punjab v. Qaisar Jehan Begum* (1963): "**date of the award**" in the Land Acquisition Act meant the date the award was **communicated** to the party, not the date it was signed.
    - *Lee Kun Hee v. State of U.P.* (2012).

Merits: it avoids absurdity while respecting the text. **Demerits**: what counts as "absurd" is **subjective**. Lord Reid described it as a rule "very difficult to apply".

Q8. Mischief rule (Heydon's rule / purposive approach)

Origin: **Heydon's Case** (1584, Barons of the Exchequer). This is the **oldest** rule.

Four questions to be considered:

1. What was the **common law before** the Act was made?
2. What was the **mischief and defect** for which the common law did not provide?
3. What **remedy** has Parliament resolved to provide to cure the disease?
4. What is the **true reason** for the remedy?

Then the judges should **make such construction as shall suppress the mischief and advance the remedy**.

Cases

- **Smith v. Hughes** (1960): the Street Offences Act 1959 made it an offence for prostitutes to **solicit "in a street"**. They solicited from **balconies and windows**. They were held liable, because the mischief was the **harassment of people in the street**.
- *Corkery v. Carpenter* (1951): a bicycle was held to be a "**carriage**" under the Licensing Act.
- *Royal College of Nursing v. DHSS* (1981): nurses carrying out abortions were held covered.
- **India**:
    - **Bengal Immunity Co. v. State of Bihar** (1955): Art. 286 was interpreted using Heydon's rule to prevent multiple taxation of inter-state sales.
    - **Kanwar Singh v. Delhi Administration** (1965): "**owner**" of stray cattle included a person **in possession and control**, to suppress the mischief of stray cattle.
    - *Alamgir v. State of Bihar* (1959): "detains" in IPC s.498 was interpreted using the mischief rule.
    - *Sodra Devi v. Commissioner of Income Tax* (1957): "individual" in the Income Tax Act included **females** as well.
    - *Pyare Lal v. Ram Chandra* (2008).
    - *Badshah v. Urmila Badshah Godse* (2014): social justice adjudication.

Modern version: the **purposive approach**, i.e. reading the statute to further its purpose (*Pepper v. Hart*, 1993; *Workmen of American Express v. Management*, 1985).

Merits: gives effect to the intention and the purpose, and avoids injustice. **Demerits**: it gives judges wide power (a risk of judicial legislation), and it is hard to find the mischief from old records.

Q9. Harmonious construction. *(Very important)*

Meaning: when there is a **conflict between two or more provisions** of the same statute, or between different statutes, the court must **interpret them so as to harmonise them** and **give effect to both**. One provision should not be read to make another **redundant or useless**. The statute must be **read as a whole**.

Basis: the legislature does not intend contradiction; *ut res magis valeat quam pereat*.

Principles (*CIT v. Hindustan Bulk Carriers*, 2003):

1. Courts must **avoid a head-on clash** between two sections and construe them harmoniously.
2. A provision of one section **cannot be used to defeat** another unless reconciliation is impossible.
3. If it is impossible to reconcile them, the courts must interpret them so that **effect is given to both as far as possible**.
4. Harmonious construction must **not render either provision a dead letter** or useless.
5. To harmonise is not to destroy any statutory provision or **render it otiose**.

Cases

- **Venkataramana Devaru v. State of Mysore** (1958): there was a conflict between **Art. 25(2)(b)** (throwing open Hindu temples to all classes) and **Art. 26(b)** (the right of a denomination to manage its affairs in matters of religion). The court harmonised them: the temple was open to all, but the denomination could **exclude the public from certain special ceremonies**.
- **Re Kerala Education Bill** (1957): a conflict between the **Directive Principles** and **Fundamental Rights** was resolved by harmonious construction. Courts should try to give effect to both.
- *Sri Shankari Prasad Singh Deo v. UOI* (1951): Art. 13 and Art. 368 were harmonised; at that time, an amendment was held not to be "law" under Art. 13.
- *M.S.M. Sharma v. Sri Krishna Sinha* (1959): Art. 19(1)(a) and Art. 194(3) (legislative privileges).
- *Calcutta Gujarati Education Society v. Calcutta Municipal Corporation* (2003).
- *Sirsilk Ltd. v. Government of A.P.* (1964).
- *Raj Krishna Bose v. Binod Kanungo* (1954).
- *Commissioner of Sales Tax, M.P. v. Radha Krishan* (1979).

Q10. Rule of last antecedent

Meaning: **relative and qualifying words, phrases or clauses** ordinarily apply only to the **immediately preceding words or phrase (the last antecedent)**, and not to more remote ones, **unless the context or intention requires otherwise**.

- *Example*: in "a dog, a horse or a cat **that is black**", "that is black" applies only to the "cat".
- **Exception**: if a **comma** separates the qualifying phrase from the antecedents, it may apply to all of them. If the sense of the passage requires it, the qualifying words apply to all the antecedents.

Cases

- *Lockhart v. United States* (2016, US Supreme Court): applied the rule.
- *Barnes v. Jarvis* (1953).
- **India**: courts apply the rule as an **aid**, not a **rigid rule**. It yields to context and intention. *Mohan Lal v. State* (various); *Asiatic Steam Navigation Co. v. Arabinda Chakravarti* (1959): context governs. *Union of India v. Pradeep Kumar Dey* (2000).

Q11. Non-obstante clause

Meaning: a clause beginning with "**Notwithstanding anything contained in** …" It gives the provision **overriding effect** over the provisions or Acts mentioned in it, in case of **conflict**.

Principles

1. It is used to **override** a conflicting provision. It does not apply if there is **no conflict**.
2. It must be **interpreted in the light of the enacting part**. It does **not control** the enacting part.
3. When **two statutes both contain non-obstante clauses**, the **later** one generally prevails, but the court looks to the object and purpose of each (*Solidaire India Ltd. v. Fairgrowth Financial Services*, 2001; *Sarwan Kumar v. Madan Lal Aggarwal*, 2003). A **special Act** prevails over a general Act.
4. The scope of the clause is **limited to its intended extent**.

Cases

- **Chandavarkar Sita Ratna Rao v. Ashalata S. Guram** (1986): a non-obstante clause is used to give the enacting part an overriding effect in case of conflict.
- **Aswini Kumar Ghosh v. Arabinda Bose** (1952): a non-obstante clause should be interpreted in light of the enacting part; it does not necessarily cut down the enacting part.
- *R.S. Raghunath v. State of Karnataka* (1992): the non-obstante clause must be read in its context.
- *Union of India v. G.M. Kokil* (1984).
- *Central Bank of India v. State of Kerala* (2009): the RDB Act and SARFAESI Act do not override the State's first charge.
- Examples: IBC s.238; Art. 31C; Art. 258A; BNSS s.4; Arbitration Act s.5.

Q12. Legal fiction (deeming provisions)

Meaning: the legislature **assumes (deems) something to exist** that does not exist in reality, or treats one thing as another, for a specific purpose. Words used are "**deemed**", "**as if**", "**shall be treated as**".

Principles

1. A legal fiction must be **carried to its logical conclusion** within the purpose for which it was created. The court must **imagine as real all the consequences and incidents** that would inevitably flow from it.
2. **Lord Asquith in East End Dwellings Co. Ltd. v. Finsbury Borough Council** (1952): "If you are bidden to treat an imaginary state of affairs as real, you must surely, unless prohibited from doing so, also imagine as real the consequences and incidents which, if the putative state of affairs had in fact existed, must inevitably have flowed from or accompanied it … **The statute says that you must imagine a**

certain state of affairs; it does not say that having done so, you must cause or permit your imagination to boggle when it comes to the inevitable corollaries of that state of affairs."

3. However, a legal fiction is **limited to the purpose** for which it is created. It **should not be extended beyond** that purpose (*Bengal Immunity Co. v. State of Bihar*, 1955; *CIT v. Amarchand Shroff*, 1963).

Cases

- **State of Bombay v. Pandurang Vinayak Chaphalkar** (1953): adopted Lord Asquith's statement.
- *Bengal Immunity Co. v. State of Bihar* (1955): the explanation to Art. 286 created a fiction for a limited purpose only.
- *Hari Ram v. Babu Gokul Prasad*.
- *Sant Lal Gupta v. Modern Co-operative Group Housing Society* (2010).
- *Commissioner of Income Tax v. S. Teja Singh* (1959).
- Examples: a company as a legal person; an adopted child deemed to be a natural child; Hindu Succession Act s.6 (deemed partition).

Q13. Conjunctive and disjunctive words: "and" and "or"

General rule:

- "**Or**" is **disjunctive**: it means **either / alternatives**.
- "**And**" is **conjunctive**: it means **all** the conditions must be satisfied.

Exception: where reading them literally leads to **absurdity, inconsistency or defeats the intention**, "or" may be read as "and", and "and" as "or" (the golden rule).

Cases

- *R v. Oakes* (1959): in the Official Secrets Act, "**and**" was read as "**or**" (aiding *or* abetting) to avoid absurdity.
- *Mazagaon Dock Ltd. v. CIT* (1958).
- **Ishwar Singh Bagga v. State of Rajasthan** (1987): in the Motor Vehicles Act, "or" was read as "and" in the context.
- *Joint Director of Mines Safety v. M/s Tandur and Nayandgi Stone Quarries* (1987): "and" was read as "or".
- *Sanjay Dutt v. State through CBI* (1994): "and" in the TADA Act.
- *Fakir Mohd. v. Sita Ram* (2002).
- *Municipal Corporation of Delhi v. Tek Chand Bhatia* (1980).

Conclusion: reading one as the other is done **only when necessary** to give effect to the legislative intention and avoid absurdity. It is an exception.

Q14. Construction of general words. *(Very important)*

(a) Ejusdem generis ("of the same kind")

- **Meaning**: when **general words follow specific words** of a distinct category (**genus**), the general words are **restricted to things of the same kind** as the specific words.
- *Example*: "**dogs, cats and other animals**" means other **domestic** animals only, not lions or tigers.
- **Conditions** (*Amar Chandra Chakraborty v. Collector of Excise, Tripura*, 1972):
    1. The statute contains an **enumeration of specific words**.
    2. The subjects of the enumeration constitute a **class or category** (genus).
    3. That class or category is **not exhausted** by the enumeration.
    4. **General terms follow** the enumeration.
    5. There is **no indication of a different legislative intent**.
- **Cases**:
    - **Powell v. Kempton Park Racecourse Co.** (1899): "house, office, room or **other place**" for betting. An **open-air enclosure** was **not** covered, since the specific words referred to **indoor places**.
    - *Evans v. Cross* (1938): "**traffic sign**" was read as "lines, signals, notices or **other devices**". White lines painted on the road were not covered.
    - *Lilavati Bai v. State of Bombay* (1957): the rule was **not applied**. The legislature intended a wider meaning (an explanation used "or otherwise").
    - **Kavalappara Kottarathil Kochuni v. State of Madras** (1960): the rule was applied.
    - **U.P. State Electricity Board v. Hari Shankar Jain** (1978): "any other law" was read ejusdem generis.
    - *Siddeshwari Cotton Mills v. Union of India* (1989): the doctrine's limits.
    - *Grasim Industries v. Collector of Customs* (2002).
    - *Maharashtra University of Health Sciences v. Satchikitsa Prasarak Mandal* (2010).
- **Limitations**: not applied if the specific words do not form a single genus, if the general words come first, or if the intention is clearly wider.

(b) Noscitur a sociis ("a word is known by the company it keeps")

- **Meaning**: the meaning of a doubtful word may be ascertained by reference to the **meaning of words associated with it**. When two or more words **susceptible of analogous meaning** are coupled together, they take their colour from each other. This is **broader** than ejusdem generis (ejusdem generis is an application of it).
- **Cases**:
    - *Foster v. Diphwys Casson* (1887): "**explosives**" taken into a mine "in a case or canister". A cloth bag was not a "case".
    - *Pengelly v. Bell Punch Co.* (1964): "floor" in "floors, steps, stairs, passages and gangways" meant floors used for **passage**, not storage.
    - *Inland Revenue v. Frere* (1965): "interest, annuities or other annual payments" meant "**annual** interest".
    - **State of Bombay v. Hospital Mazdoor Sabha** (1960): this applied the rule but **declined to restrict "industry"** to trade-like activities; a **hospital** was held to be an industry.

    - **Rainbow Steels Ltd. v. CST** (1981): "**old, discarded, unserviceable or obsolete** machinery". "Old" was read in the sense of no longer usable.
    - *Ahmedabad Private Primary Teachers' Association v. Administrative Officer* (2004): "skilled, unskilled, manual, clerical" in the definition of "employee". Teachers were held **not** "employees" under the Payment of Gratuity Act (this was later changed by amendment).
    - *Bangalore Water Supply v. A. Rajappa* (1978): the court did not limit "industry".
    - *Godfrey Phillips India v. State of U.P.* (2005): "**luxuries**" in Entry 62 List II was read with "entertainment, amusement, betting and gambling", so it did not cover tobacco.

(c) Reddendo singula singulis ("referring each to each")

- **Meaning**: when a sentence contains several **antecedents and several consequents**, they are to be **read distributively**: each word applies to its appropriate subject.
- *Classic example*: "If anyone shall **draw or load** any **sword or gun**". This is read as "**draw a sword** or **load a gun**", since one does not "load a sword".
- *Another example*: "**Executors and administrators** shall be **appointed and granted**". Executors are appointed; administration is granted.
- *Koteswar Vittal Kamath v. K. Rangappa Baliga & Co.* (1969).
- *Commissioner of Income Tax v. Shahzada Nand & Sons* (1966).

(d) Words of rank

- When general words follow **words of a particular rank** (e.g. "**archbishops, bishops, deans** … **and other clergy**"), the general words are confined to persons **of a rank lower than** the specific ones and **do not include higher ranks**.
- *Example*: in the Statute of Westminster, "**deans, archdeacons, parsons and others having spiritual promotion**" did not include **bishops**, who are of a higher rank.
- *Example*: "**Earls, Barons and other nobles**" did not include **Dukes** (who are of a higher rank).
- This is an application of ejusdem generis, plus the principle that **general words do not include persons of higher rank** than the specific ones.

Other related maxims

- **Expressio unius est exclusio alterius**: the express mention of one thing excludes others. *Union of India v. B.C. Nawn* (1972); *Pokhar Singh v. State of U.P.*.
- **Generalia specialibus non derogant**: a general provision does not derogate from a special one.

MODULE 3 — INTERNAL AND EXTERNAL AIDS TO INTERPRETATION

Q15. Internal aids to interpretation. *(Very important)*

Internal aids are found **within the statute itself**.

1. **Long title**: describes the **purpose and scope** of the Act. It is a legitimate aid where there is ambiguity (*Manohar Lal v. State of Punjab*, 1961; *Aswini Kumar Ghosh v. Arabinda Bose*, 1952). The **short title** is only for identification.

2. **Preamble**: the **introduction** to the Act. It states the **object, purpose and reasons** for enacting it. It is the "**key to open the mind of the legislature**" (*Dyer C.J. in Stowel v. Lord Zouch*, 1569).

    - **Use**: it can be referred to **only when the enacting part is ambiguous**. It cannot **control or restrict** clear words (*A.G. v. Prince Ernest Augustus of Hanover*, 1957).
    - *Re Berubari Union* (1960): the Preamble is **not part of the Constitution**.
    - **Kesavananda Bharati v. State of Kerala** (1973): **overruled Berubari**. The Preamble **is part of the Constitution** and can be used to interpret it; it is part of the basic structure.
    - *LIC v. Consumer Education & Research Centre* (1995).
    - *Burrakur Coal Co. v. UOI* (1961): the preamble cannot override clear words.
    - *A. Thangal Kunju Musaliar v. M. Venkatachalam Potti* (1956): used to resolve ambiguity.

3. **Definitions / interpretation clause**

    - "**means**" is **exhaustive / restrictive**: only what is listed.
    - "**includes**" is **extensive**: it adds to the ordinary meaning.
    - "**means and includes**" is **exhaustive**.
    - Definitions apply "**unless the context otherwise requires**".
    - *Mahalakshmi Oil Mills v. State of A.P.* (1989); *Regional Director, ESIC v. High Land Coffee Works* (1991); *P. Kasilingam v. P.S.G. College of Technology* (1995): "means and includes" is exhaustive. *Bangalore Water Supply v. A. Rajappa* (1978): the definition of "industry".

4. **Headings**: prefixed to a section or group of sections. They are **like a preamble** to those sections. They can be referred to **to resolve doubt**, but **cannot control the plain meaning** of the section.

    - **Bhinka v. Charan Singh** (1959): headings may be relied on to clear up any doubt or ambiguity.
    - *Frick India Ltd. v. Union of India* (1990): headings cannot control the plain words.
    - *Raichurmatham Prabhakar v. Rawatmal Dugar* (2004): headings may be used to resolve doubt.
    - *Durgaprasad More v. Arun* (various).

5. **Marginal notes**: printed at the side of sections. Their value is **limited**, since they are not enacted by the legislature (they are inserted by the draftsman). They may be

used where there is ambiguity, especially in the **Constitution**, where they were enacted by the Constituent Assembly. *Bengal Immunity Co. v. State of Bihar* (1955); *Sakshi v. UOI* (2004); *Western India Theatres v. Cantonment Board* (1959).

6. **Illustrations**: given under sections (e.g. in the IPC and IEA). They **help explain** the section and show its application. **They cannot curtail or expand** its scope, and **cannot control the text**. If an illustration is **repugnant** to the section, the **section prevails**.

    - **Shambhu Nath Mehra v. State of Ajmer** (1956): illustrations cannot curtail the section.
    - *Mahesh Chandra Sharma v. Raj Kumari Sharma* (1996).
    - *Mohammad Syedol Ariffin v. Yeoh Ooi Gark* (1916, Privy Council): illustrations are of relevance and value.

7. **Proviso**: begins with "**Provided that** …". Its function is to **except or qualify** something from the main enactment. Normally, it **does not enlarge** the main provision.

    - **S. Sundaram Pillai v. V.R. Pattabiraman** (1985) gave **four purposes of a proviso**:
        1. to **qualify or except** certain provisions from the main enactment;
        2. it may entirely change the very concept of the main enactment by making certain mandatory conditions necessary;
        3. it may be so embedded in the Act as to become an **integral part** of it and acquire the tenor and colour of the substantive enactment;
        4. it may be used merely to **act as an optional addendum** to the enactment, with the sole object of explaining its real intendment.
    - *Shah Bhojraj Kuverji Oil Mills v. Subhash Chandra Yograj Sinha* (1961): the proviso is to be construed in relation to the main provision.
    - *Kedarnath Jute Mfg. Co. v. CTO* (1965).
    - *Dwarka Prasad v. Dwarka Das Saraf* (1976): a proviso may sometimes be substantive.
    - *CIT v. Indo Mercantile Bank* (1959): a proviso cannot be used to interpret the main section.

8. **Explanation**: added to **explain the meaning** of the main section, clarify ambiguity, or remove doubts. It **does not enlarge** the scope of the section, though some explanations are "**for the removal of doubts**" and can widen it.

    - **S. Sundaram Pillai** (1985) gave the **objects of an explanation**:
        - to explain the meaning and intendment of the Act;
        - where there is obscurity or vagueness, to clarify it consistently with the object;
        - to provide an additional support to the dominant object;
        - to fill a gap;
        - it cannot take away a statutory right.

- *Bihta Co-operative Development Cane Marketing Union v. Bank of Bihar* (1967).
- *Hiralal Rattanlal v. State of U.P.* (1973).

9. **Schedule**: the **appendix** at the end of an Act. It gives details, forms, lists and rules. It is **part of the statute** and is to be read with it. If there is a **conflict** between the Schedule and the main enactment, the **enactment prevails**.
    - *Aphali Pharmaceuticals Ltd. v. State of Maharashtra* (1989): the Schedule is as much part of the statute as the main Act, and may be used to construe it, but in case of conflict the main enactment prevails.
    - *Ramchandra v. Laxmanrao*; the Constitution's Schedules (e.g. the Seventh Schedule lists).
10. **Punctuation**: given **little weight** in older statutes (it was not enacted). In modern statutes, it can be considered if **carefully** placed.
    - *Aswini Kumar Ghosh v. Arabinda Bose* (1952): little weight.
    - *Mohd. Shabbir v. State of Maharashtra* (1979): a comma made a difference ("manufactures for sale, sells, offers for sale").
    - *Jamshed N. Guzdar v. State of Maharashtra* (2005).
11. **Saving clauses, transitional provisions, and the sections themselves (read as a whole)**: *Ex visceribus actus* means **construe from within the Act**, reading the statute as a whole.

Q16. External aids to interpretation. *(Very important)*

External aids are found **outside the statute**.

1. **Parliamentary history: debates and proceedings in the legislature**
    - This covers the speeches of movers, the **Statement of Objects and Reasons**, committee reports and amendments considered.
    - **English position**: originally, under the **exclusionary rule**, debates were **not admissible** (*Millar v. Taylor*, 1769; *Davis v. Johnson*, 1979). It was relaxed in **Pepper v. Hart** (1993, House of Lords): reference to **Hansard** (parliamentary debates) is allowed where (a) the legislation is ambiguous or obscure, or leads to absurdity; (b) the material relied on consists of statements by a **Minister or other promoter** of the Bill; and (c) the statements are **clear**.
    - **Indian position**:
        - Early cases did not admit debates: *Aswini Kumar Ghosh* (1952); *State of Travancore-Cochin v. Bombay Co.* (1952).
        - **Statement of Objects and Reasons** can be used **to understand the background, the antecedent state of affairs and the mischief**, but **not to construe** the words (*State of W.B. v. Subodh Gopal Bose*, 1954; *Central Bank of India v. Workmen*, 1960).
        - **K.P. Varghese v. ITO** (1981): the **Finance Minister's speech** introducing the Bill was used to interpret s.52(2) of the Income Tax Act.

This was a **liberal approach**.
        - **R.S. Nayak v. A.R. Antulay** (1984): **reports of committees** and the **Law Commission** can be referred to, to find the **mischief**, and parliamentary history may be referred to where the words are ambiguous.
        - *Kesavananda Bharati* (1973): Constituent Assembly debates were referred to.
        - *Indra Sawhney v. UOI* (1992): Dr Ambedkar's speech was used for "backward class".
        - *Union of India v. Steel Stock Holders Syndicate* (1976).
    - **Present position**: parliamentary history is **admissible as an aid** to find the context, the mischief and the purpose. It is **not conclusive**, and is used **with caution**.
2. **Socio-economic, technological developments (dynamic / updating construction)**
    - A statute is **always speaking**. It must be interpreted in light of **present conditions** and new technology (e.g. the internet, electronic evidence).
    - **State of Punjab v. Amritsar Beverages Ltd.** (2006): "**books of account**" includes **computer hard discs** (the court applied updating construction).
    - *S.P. Gupta v. UOI* (1981): socio-economic developments.
    - *National Textile Workers' Union v. P.R. Ramakrishnan* (1983): law cannot stand still.
    - *Senior Electric Inspector v. Laxminarayan Chopra* (1962): "telegraph line" included wireless.
    - *Royal College of Nursing v. DHSS* (1981).
    - **Social context adjudication**: *Badshah v. Urmila Badshah Godse* (2014).
3. **Reference to other statutes**
    - **Statutes in pari materia** (on the same subject): to be read **together** as forming one system. *State of Madras v. Vaidyanatha Iyer* (1958): "shall presume" in the Prevention of Corruption Act was read with the Evidence Act. *Ahmedabad Private Primary Teachers' Association* (2004).
    - **Earlier statutes / repealed Acts** may be used to show the mischief and context.
    - **Later statutes**: a later Act may be used as a **parliamentary exposition** of an earlier one if the earlier is ambiguous.
    - **Statutes not in pari materia**: definitions from other Acts should be used cautiously (*MSCO Pvt. Ltd. v. UOI*, 1985).
    - **The General Clauses Act** is always available.
4. **International conventions**
    - Where domestic law is **ambiguous or silent**, courts may refer to **international conventions** that India has ratified (or that are consistent with fundamental rights) to fill gaps, provided they are **not inconsistent** with domestic law. Art. 51(c) and Art. 253 support this.
    - **Vishaka v. State of Rajasthan** (1997): **CEDAW** was used to frame sexual harassment guidelines.
    - **Jolly George Varghese v. Bank of Cochin** (1980): ICCPR Art. 11. The court gave effect to the domestic law (CPC) but used the ICCPR to interpret it.

- *Apparel Export Promotion Council v. A.K. Chopra* (1999).
- *Githa Hariharan v. RBI* (1999).
- *NALSA v. UOI* (2014): Yogyakarta Principles were used to recognise transgender persons.
- *People's Union for Civil Liberties v. UOI* (1997): telephone tapping.
- *Gramophone Co. of India v. Birendra Bahadur Pandey* (1984): international law is to be respected where not in conflict.

5. **Committee reports and Law Commission reports**
   - These are used to understand the **mischief and the purpose**. *R.S. Nayak v. A.R. Antulay* (1984); *Rosy v. State of Kerala* (2000): the Law Commission report on the CrPC was used. *Mithilesh Kumari v. Prem Behari Khare* (1989): the Benami Act and the Law Commission report. *Santa Singh v. State of Punjab* (1976): the 41st Law Commission Report.
6. **Other external aids**
   - **Dictionaries**: used to find the ordinary meaning when a word is not defined. They are **not conclusive**; the context prevails (*Kanwar Singh v. Delhi Administration*, 1965; *State of Orissa v. Titaghur Paper Mills*, 1985).
   - **Text books, foreign decisions, judicial precedents, usage and practice** (*contemporanea expositio est optima et fortissima in lege*: contemporaneous exposition is the best and strongest in law). Also **historical background** and **government notifications**.

MODULE 4 — APPROACHES, RESTRAINTS AND PRESUMPTIONS IN INTERPRETATION

Q17. Theoretical and ideological approaches; judicial restraint, judicial activism, juristic restraint and juristic activism

Theoretical approaches to interpretation

1. **Literal / textual approach**: the text is supreme.
2. **Purposive / teleological approach**: the purpose and object guide meaning.
3. **Intentionalist approach**: the intention of the legislature at the time of enactment.
4. **Dynamic / evolutive approach**: the law adapts to changing times.
5. **Sociological approach** (Roscoe Pound): law as a tool of **social engineering**; interpretation to promote social welfare.
6. **Realist approach**: what judges actually do.
7. **Natural law approach**: interpretation consistent with justice and morality.

Ideological approaches: interpretation shaped by the judge's **values** (liberal, conservative, socialist, rights-based, and so on).

Judicial activism

- **Meaning**: the judiciary takes an **active role** in protecting rights and filling legislative and executive gaps, **going beyond the literal** meaning to secure **social**

justice.
- **Examples in India**:
  - *Golak Nath v. State of Punjab* (1967);
  - **Kesavananda Bharati** (1973): basic structure;
  - **Maneka Gandhi** (1978): expanded Art. 21;
  - **PIL**: *S.P. Gupta* (1981), *Hussainara Khatoon* (1979), *M.C. Mehta v. UOI* (environment);
  - **Vishaka** (1997): guidelines in the absence of a law;
  - *Olga Tellis* (1985): right to livelihood;
  - *K.S. Puttaswamy v. UOI* (2017): privacy;
  - *Navtej Singh Johar v. UOI* (2018);
  - *Shayara Bano v. UOI* (2017).
- **Merits**: protects rights, fills gaps, ensures accountability.
- **Criticism**: "**judicial overreach**" or "**judicial legislation**"; it violates the separation of powers; it is undemocratic because judges are unelected.

Judicial restraint

- **Meaning**: judges **defer to the legislature and executive**. They **do not substitute their own views**, they decide only what is necessary, and they **presume constitutionality**.
- **Cases**:
  - *A.K. Gopalan v. State of Madras* (1950);
  - **Divisional Manager, Aravali Golf Club v. Chander Hass** (2008): Justice Markandey Katju cautioned **against judicial activism** and called for judges to know their limits and not try to run the Government;
  - *State of Rajasthan v. Union of India* (1977);
  - *Almitra H. Patel v. UOI* (2000);
  - *Common Cause v. UOI* (2008).

Juristic activism and juristic restraint: these relate to **jurists, scholars and the academic community**.

- **Juristic activism**: scholars advocate **creative, reformist interpretation** and new theories (e.g. Upendra Baxi on PIL, and Ronald Dworkin's "law as integrity", which treats the judge as Hercules).
- **Juristic restraint**: scholars advocate **strict, positivist interpretation** (e.g. H.L.A. Hart's positivism and Austin's command theory), under which judges declare the law and do not make it.

Conclusion: a balance is needed. Activism should be exercised in **exceptional circumstances** and restraint in normal cases. The judiciary must respect the **separation of powers** while protecting **fundamental rights**.

Q18. Presumptions in interpretation

Presumptions are **assumptions** that courts make about legislative intention **unless the statute clearly indicates otherwise**.

1. Presumption against ousting the established jurisdiction of courts

- The jurisdiction of **civil courts** is not lightly presumed to be **excluded**. Exclusion must be **express or clearly implied** (CPC s.9).
- **Dhulabhai v. State of M.P.** (1969): **seven principles** on the exclusion of civil court jurisdiction:
    1. Where the statute gives **finality** to the orders of special tribunals, civil court jurisdiction is excluded **if there is an adequate remedy** to do what civil courts would normally do. This does not exclude cases where the provisions of the Act have not been complied with or the tribunal has not acted in conformity with fundamental principles of judicial procedure.
    2. Where there is an **express bar**, the scheme of the Act must be examined to see the adequacy of remedies.
    3. A challenge to the provisions of the Act as **ultra vires** can be brought in a civil suit.
    4. When a provision is declared **unconstitutional**, a suit for refund lies.
    5. Where the particular Act contains no machinery for refund, a suit lies.
    6. Questions about the correctness of an assessment, apart from its constitutionality, are for the authorities.
    7. An exclusion of jurisdiction is **not to be readily inferred**.
- *Secretary of State v. Mask & Co.* (1940, Privy Council).
- *Raja Ram Kumar Bhargava v. UOI* (1988).
- *Premier Automobiles v. Kamlekar Shantaram Wadke* (1976).
- **Ouster clauses** such as “shall be final” or “shall not be called in question in any court” **do not exclude** writ jurisdiction under **Arts. 32 and 226** (*L. Chandra Kumar v. UOI*, 1997: judicial review is part of the basic structure).

2. Presumption against creating new jurisdiction or enlarging established jurisdiction

- The legislature is presumed **not to create new jurisdiction** or **enlarge the jurisdiction of existing courts or tribunals** unless it uses clear words. A statute conferring jurisdiction is **strictly construed**.
- *A.R. Antulay v. R.S. Nayak* (1988): the Supreme Court could not create jurisdiction by transferring a case to the High Court contrary to statute. “No court can confer jurisdiction where none exists.”
- *Kiran Singh v. Chaman Paswan* (1954): a decree passed without jurisdiction is a nullity.

3. Presumption about territorial extent of jurisdiction

- The legislature is presumed to legislate for its **own territory**, not beyond. Statutes are presumed **not to have extra-territorial operation**, unless expressly provided.
- **Parliament** may make laws having **extra-territorial operation** (**Art. 245(2)**: no law shall be invalid on the ground of extra-territorial operation).
- **State legislatures** can make laws for the **State only**, but a law is valid if there is a **sufficient territorial nexus** (**State of Bombay v. R.M.D. Chamarbaugwalla**,

1957: a prize competition published in a Bangalore newspaper and circulated in Bombay; a sufficient nexus existed; *Tata Iron & Steel Co. v. State of Bihar*, 1958).
- *GVK Industries v. ITO* (2011): Parliament may legislate for extra-territorial aspects that have a **nexus with India**.
- *A.H. Wadia v. CIT* (1949).

4. Presumption against violation of international law

- A statute is presumed to be **consistent with international law** and with India's **treaty obligations**. Where two interpretations are possible, the one consistent with international law is preferred. If the statute is **clear** and conflicts with international law, the **statute prevails** (municipal courts are bound by municipal law).
- **Gramophone Co. of India Ltd. v. Birendra Bahadur Pandey** (1984): the "**doctrine of incorporation**". Rules of international law are incorporated into national law unless they conflict with an Act of Parliament.
- *Jolly George Varghese v. Bank of Cochin* (1980).
- *Vishaka* (1997).
- *People's Union for Civil Liberties v. UOI* (1997).
- *Art. 51(c)*: foster respect for international law and treaty obligations.

Other presumptions (for completeness)

- Against retrospective operation.
- **Against injustice or absurdity**.
- Against taking away vested rights.
- **Mens rea** is required in criminal statutes.
- The **State is not bound** by a statute unless named or by necessary implication (*Director of Rationing v. Corporation of Calcutta*, 1960; later modified in *Superintendent and Legal Remembrancer v. Corporation of Calcutta*, 1967).
- **Presumption of constitutionality**.
- The legislature does not commit mistakes, and does not use words without meaning.

MODULE 5 — MODES OF INTERPRETATION OF THE CONSTITUTION

Q19. Constitutional interpretation as different from statutory interpretation

Constitutional interpretation	Statutory interpretation
The Constitution is the **supreme law**, the **grundnorm**	Statutes are **subordinate** to the Constitution
It is a **living, organic document** meant to endure for ages; it needs **broad, liberal and dynamic** interpretation	Generally **strict / literal**, depending on the type of statute
Interpreting it involves **political, social and moral** values	Mostly technical and legal
It is hard to amend	It is easy to amend
Basic structure limits apply	No such limits
Purposive, harmonious, rights-based	All rules of construction apply

- *Chief Justice Marshall in McCulloch v. Maryland* (1819): "We must never forget that it is **a constitution** we are expounding." It is "intended to endure for ages to come".
- *Kesavananda Bharati* (1973).
- **Maneka Gandhi** (1978).
- *M. Nagaraj v. UOI* (2006): the Constitution is a **living document**.
- *Ashok Kumar Gupta v. State of U.P.* (1997).

Q20. Approaches to constitutional interpretation

1. **Textualist interpretation**: the **text is supreme**. The meaning is found from the words. *A.K. Gopalan* (1950): Art. 21 was interpreted narrowly ("procedure established by law" meant any procedure enacted by law). This was later rejected in Maneka Gandhi.

2. **Originalist interpretation**: the meaning the provision had **at the time of framing**, i.e. the intention of the founders. It is used in the US by Justice Scalia. In India it has been used **sparingly**.

3. **Harmonious construction**: different provisions are reconciled, e.g. FRs and DPSPs (*Minerva Mills v. UOI*, 1980; *Re Kerala Education Bill*, 1957).

4. **Historical interpretation**: the **historical context**, i.e. the freedom struggle, the Government of India Act 1935, and the Constituent Assembly. *Indra Sawhney* (1992); *Kesavananda*.

5. **Reference to Constituent Assembly Debates (CAD)**

    - **Earlier view**: *A.K. Gopalan* (1950). Debates may not be used to interpret the Constitution, though they may be referred to for the history.
    - **Later view**: CAD are **admissible** to understand the **intention of the framers** and the context. Examples: *Kesavananda Bharati* (1973); *Indra Sawhney* (1992); **Supreme Court Advocates-on-Record Association v. UOI** (1993, Second Judges case); *S.R. Bommai v. UOI* (1994); *Manoj Narula v. UOI* (2014).
    - They are **not conclusive**. They are an aid.

6. **Structuralist interpretation**: interpretation based on the **structure and relationships** created by the Constitution: federalism, separation of powers, democracy. The **basic structure doctrine** is an example (*Kesavananda*).

7. **Pith and substance**: when a law of one legislature **incidentally encroaches** on a field assigned to another (Seventh Schedule), the court looks at the **true nature and character** of the law (its pith and substance). If it falls within the legislature's competence, it is valid, notwithstanding **incidental encroachment**.

    - **Prafulla Kumar Mukherjee v. Bank of Commerce, Khulna** (1947, Privy Council): a State moneylenders Act incidentally affected promissory notes (a Union subject). It was held valid.
    - **State of Bombay v. F.N. Balsara** (1951): the Bombay Prohibition Act incidentally affected imports. It was valid.
    - *Ishwari Khetan Sugar Mills v. State of U.P.* (1980).
    - **Colourable legislation** is related: what cannot be done directly cannot be done indirectly. *K.C. Gajapati Narayan Deo v. State of Orissa* (1953).

8. **Occupied field (Art. 254: repugnancy)**: in the **Concurrent List**, if a State law is **repugnant** to a Union law, the **Union law prevails** to the extent of repugnancy. A State law that received **Presidential assent** prevails in that State (Art. 254(2)).

    - **Tests for repugnancy** (*M. Karunanidhi v. UOI*, 1979; *Deep Chand v. State of U.P.*, 1959):
        - a. a direct conflict;
        - b. Parliament intended to make an **exhaustive code** (occupying the field);
        - c. both laws occupy the same field.
    - *Zaverbhai Amaidas v. State of Bombay* (1954).

9. **Residuary power**: **Art. 248** and **Entry 97 of List I**. The residuary power of legislation is with **Parliament**. *Union of India v. H.S. Dhillon* (1972): wealth tax on agricultural land was upheld under the residuary power. *Second GTO v. D.H. Nazareth* (1970). *Kartar Singh v. State of Punjab* (1994): TADA was upheld partly under the residuary power.

10. **Amending power (Art. 368)**: interpreting the scope of the power to amend.

    - *Shankari Prasad* (1951) and *Sajjan Singh* (1965) held there were **no limits**.
    - **Golak Nath** (1967): **Fundamental Rights cannot be amended**.
    - **Kesavananda Bharati** (1973): Parliament can amend any part, but **cannot alter the basic structure**.
    - *Indira Nehru Gandhi v. Raj Narain* (1975).
    - **Minerva Mills** (1980): limited amending power is itself part of the basic structure.
    - *I.R. Coelho v. State of T.N.* (2007): Ninth Schedule laws are subject to basic structure review.

- *Supreme Court Advocates-on-Record Assn. v. UOI* (2015): the NJAC was struck down.

11. **Moral reasoning and "national ethos"**: interpretation based on **constitutional morality** and the values of the Constitution (dignity, equality, liberty, fraternity).

    - *Naz Foundation v. Govt. of NCT Delhi* (Delhi HC, 2009): constitutional morality.
    - **Navtej Singh Johar** (2018): constitutional morality prevails over **social morality**.
    - *Indian Young Lawyers Association v. State of Kerala* (Sabarimala, 2018).
    - *Joseph Shine v. UOI* (2018).
    - *Manoj Narula v. UOI* (2014).
    - *Government of NCT Delhi v. UOI* (2018).

12. **Directive Principles as a source of constitutional interpretation**

    - DPSPs (Part IV) are **not enforceable** (Art. 37) but are **fundamental in the governance** of the country. They are used **to interpret Fundamental Rights** and to judge the **reasonableness** of restrictions.
    - Earlier, in *State of Madras v. Champakam Dorairajan* (1951), DPSPs were subordinate to FRs.
    - Later cases moved towards **harmonious** reading:
        - *Re Kerala Education Bill* (1957);
        - **Minerva Mills** (1980): balance between FRs and DPSPs is part of the basic structure;
        - **Unni Krishnan v. State of A.P.** (1993): the right to education was read into Art. 21 with Art. 45;
        - *Olga Tellis* (1985): livelihood (Art. 39(a));
        - *Bandhua Mukti Morcha v. UOI* (1984);
        - *State of T.N. v. L. Abu Kavur Bai* (1984);
        - *State of Gujarat v. Mirzapur Moti Kureshi Kassab Jamat* (2005): Art. 48 was used to uphold a cow slaughter ban.

13. **Stare decisis**: courts follow **precedents** for **certainty and consistency**.

    - **Art. 141**: the law declared by the **Supreme Court is binding on all courts** in India.
    - The Supreme Court is **not bound by its own decisions** (*Bengal Immunity Co. v. State of Bihar*, 1955). It can overrule them, but only for compelling reasons.
    - A larger bench binds smaller benches. A coordinate bench must refer a matter it disagrees with to a larger bench (*Central Board of Dawoodi Bohra Community v. State of Maharashtra*, 2005).
    - The **ratio decidendi** binds; **obiter dicta** are persuasive.
    - Exceptions: decisions *per incuriam* and *sub silentio*.

Q21. Pragmatist interpretation; techniques of innovation (subversion) of stare decisis; the Supreme Court's power to overrule; retrospective

overruling in India

Pragmatist interpretation: interpretation guided by the **practical consequences** of the decision, i.e. what works best for society. The judge considers policy, consequences and social needs, not just text and precedent. It is associated with **Holmes and Posner**. In India, decisions on PIL and environmental law (e.g. *M.C. Mehta*) reflect pragmatism.

Techniques of innovation (subversion) of stare decisis: the ways judges **avoid** being bound by precedent:

1. **Distinguishing**: the facts of the present case are materially different.
2. **Overruling**: a higher or larger bench declares the earlier decision wrong.
3. **Per incuriam**: the earlier decision was given in ignorance of a statute or a binding precedent (*Mamleshwar Prasad v. Kanhaiya Lal*, 1975; *State of U.P. v. Synthetics & Chemicals*, 1991).
4. **Sub silentio**: the point was not argued or considered.
5. **Narrowing / reading down** the ratio.
6. **Treating a statement as obiter dicta** rather than ratio.
7. **Changed circumstances**: social or legal change.
8. **Reference to a larger bench**.
9. **Prospective overruling**.

Supreme Court's authority to overrule

- The Supreme Court is **not bound by its own previous decisions** (Art. 141 refers to "all courts within the territory of India", which does not include the SC itself). *Bengal Immunity* (1955).
- It may overrule a previous decision if it is **manifestly wrong**, if circumstances have changed, or if it is contrary to the public good. It is done by a **larger bench**.
- Examples:
  - *Golak Nath* was overruled by *Kesavananda*;
  - *A.K. Gopalan* was overruled in effect by *Maneka Gandhi* (and *R.C. Cooper*);
  - *ADM Jabalpur v. Shivkant Shukla* (1976) was overruled by *K.S. Puttaswamy* (2017);
  - *Suresh Kumar Koushal v. Naz Foundation* (2013) was overruled by *Navtej Singh Johar* (2018).

Prospective overruling

- **Meaning**: the overruling decision **operates only for the future**. Past transactions decided on the old law are **not reopened**.
- **Origin**: American (Cardozo J. and *Great Northern Railway v. Sunburst Oil*, 1932; *Linkletter v. Walker*, 1965).
- **India**: **I.C. Golak Nath v. State of Punjab** (1967, Subba Rao C.J.) **first applied** prospective overruling. Parliament has **no power to amend FRs** in the future, but the earlier amendments (the 1st, 4th and 17th) remained valid.
- **Limits laid down in Golak Nath**:
  - it can be invoked **only in matters arising under the Constitution**;

    - it can be applied **only by the Supreme Court**;
    - its scope of retroactive operation is in the court's discretion.
- **Later cases**:
    - *India Cement Ltd. v. State of T.N.* (1990);
    - *Ashok Kumar Gupta v. State of U.P.* (1997): the doctrine can also be applied to statutes;
    - *Somaiya Organics (India) Ltd. v. State of U.P.* (2001);
    - *Baburam v. C.C. Jacob* (1999): prospective declaration of law;
    - *Union of India v. Mohd. Ramzan Khan* (1991): applied prospectively.

Retrospective overruling

- **Meaning**: under the **traditional (Blackstonian) declaratory theory**, judges **do not make law**; they only **declare** it. So when a precedent is overruled, the new law is deemed **always to have been the law**. The overruling operates **retrospectively** (ab initio), except for cases that have become **final** (*res judicata*).
- In India, overruling is **ordinarily retrospective**, unless the court expressly makes it **prospective** (*M.A. Murthy v. State of Karnataka*, 2003: retrospective is the norm and prospective is the exception, to be expressly stated; *P.V. George v. State of Kerala*, 2007).

Q22. Advisory jurisdiction and its import on precedent

Art. 143: the **President may refer** to the Supreme Court any **question of law or fact** of **public importance** that has arisen or is likely to arise. The Court **may** report its opinion (Art. 143(1)). For disputes arising from pre-constitutional treaties, the Court **shall** report (Art. 143(2)). The opinion is given by at least **5 judges** (Art. 145(3)).

Is the advisory opinion binding?

- The Court may **decline** to answer if the question is not suitable (*Dr. M. Ismail Faruqui v. UOI*, 1994: the Ayodhya reference was declined; *Special Reference No. 1 of 1993*).
- **Re Special Courts Bill** (1978): the opinion is **not binding** on the President, but it is **entitled to great weight**. **Lower courts are bound** by it under Art. 141 as the "law declared".
- **Re Cauvery Water Disputes Tribunal** (1991): an advisory opinion "**deserves due weight and respect**", and it is **binding on all courts** in the same way as the law declared by the Supreme Court.
- **Special Reference No. 1 of 1998 (Re Presidential Reference)**: the Third Judges case on judges' appointments; it was **treated as binding** in practice.
- *Keshav Singh*, i.e. *Special Reference No. 1 of 1964* (legislative privileges).
- *Re Berubari Union* (1960).
- *Re Kerala Education Bill* (1957).
- *Special Reference No. 1 of 2002* (Gujarat elections).
- *Special Reference No. 1 of 2012* (2G and natural resources allocation).
- **Conclusion**: technically the opinion is **advisory**, but it is treated as **binding precedent** under Art. 141 by all courts and is invariably followed by the

Government.

Q23. Objections to judicial review as anti-majoritarian (counter-majoritarian difficulty)

Meaning: **Alexander Bickel** (*The Least Dangerous Branch*, 1962) coined the phrase "**counter-majoritarian difficulty**". When **unelected judges** strike down laws passed by the **elected representatives of the majority**, they **thwart the will of the people**. This is said to be **undemocratic**.

Objections

1. Judges are **unelected and unaccountable** to the people.
2. It violates the **separation of powers**.
3. Judges substitute their **personal values** for those of the legislature.
4. It leads to **judicial supremacy**.
5. It can lead to **judicial overreach** (e.g. the NJAC judgment, 2015, was criticised for striking down a constitutional amendment passed almost unanimously).

Responses (justification of judicial review)

1. **The Constitution itself** is the will of the people, a **higher law**. Judicial review **enforces the people's will** in the Constitution against temporary majorities (Hamilton, **Federalist No. 78**; *Marbury v. Madison*, 1803).
2. **Protection of minorities and fundamental rights** against the "**tyranny of the majority**".
3. **Representation-reinforcement** (John Hart Ely, *Democracy and Distrust*): courts protect the democratic process itself.
4. In India, judicial review is **expressly provided** for in Arts. 13, 32, 226, 131–136 and is part of the **basic structure**:
    - *Kesavananda Bharati* (1973);
    - *Indira Nehru Gandhi v. Raj Narain* (1975);
    - *Minerva Mills* (1980);
    - **L. Chandra Kumar v. UOI** (1997).
5. **Dworkin**: the "**forum of principle**" where rights are decided on principle, not on policy.
6. Courts exercise **self-restraint** and use a **presumption of constitutionality**.

Conclusion: judicial review is not anti-democratic. It is part of **constitutional democracy**, provided judges act with **restraint and principled reasoning**.

MODULE 6 — CONSTRUCTION OF PENAL, TAXING AND REMEDIAL STATUTES

Q24. Rule of strict construction of taxing statutes. *(Important)*

Rule: a **taxing statute must be strictly construed**. There is no room for **intendment**, equity or presumption. Tax can be imposed **only by clear words**. If the words are **ambiguous**, the benefit goes to the **taxpayer (the subject)**. **Art. 265**: no tax shall be levied or collected except by the **authority of law**.

Classic statement: Rowlatt J. in Cape Brandy Syndicate v. IRC (1921): "In a taxing Act one has to look merely at what is clearly said. There is **no room for any intendment**. There is **no equity about a tax**. There is **no presumption as to a tax**. Nothing is to be read in, nothing is to be implied. One can only look fairly at the language used."

Indian cases

- **A.V. Fernandez v. State of Kerala** (1957): if the person sought to be taxed **comes within the letter of the law**, they must be taxed, however great the hardship. If not, they are free, however apparently within the spirit of the law the case may seem. The court cannot extend the meaning by analogy.
- *CIT v. Ajax Products Ltd.* (1965).
- *Mathuram Agrawal v. State of M.P.* (1999): the subject is not to be taxed without clear words. The **charging section** (who is taxed, what is taxed, at what rate) must be clear.
- *Govind Saran Ganga Saran v. CST* (1985): the **four components** of a tax (the taxable event, the person on whom levied, the rate, and the measure or value) must be clear.
- *CIT v. Vatika Township* (2014).

Exemption notifications (special rule)

- **Commissioner of Customs (Import), Mumbai v. Dilip Kumar & Co.** (2018, Constitution Bench):
    1. Exemption notifications must be **interpreted strictly**. The **burden is on the assessee** to prove applicability.
    2. **Ambiguity in an exemption notification must be interpreted in favour of the revenue**.
    3. This overruled *Sun Export Corporation* (1997), which had held that ambiguity in an exemption favours the assessee.
- Once eligibility is established, the exemption is construed **liberally** (*Hansraj Gordhandas v. CCE*, 1970).

Other rules

- **Machinery provisions** (for assessment and collection) are construed **liberally**, so as to make the charge effective (*CIT v. Mahaliram Ramjidas*, 1940; *Gursahai Saigal v. CIT*, 1963).
- Taxing statutes are **not retrospective** unless clearly provided.
- **Substance vs form**: *McDowell & Co. v. CTO* (1985) held that colourable devices are not part of tax planning. *Union of India v. Azadi Bachao Andolan* (2003) and

Vodafone International Holdings v. UOI (2012) held that legitimate tax planning is permissible; one looks at the **form** where the transaction is genuine.

Q25. General principles of strict construction of penal statutes and the limits of the rule

Rule: **penal statutes are construed strictly**. If two reasonable interpretations are possible, the one **favouring the accused** is adopted (the **rule of lenity**). No one should be punished unless the case falls **clearly within the words** of the statute. This is based on Art. 21 and Art. 20(1), and on the maxim **nullum crimen sine lege, nulla poena sine lege** (no crime and no punishment without law).

Reasons: penal statutes affect **life and liberty**; the State has great power; the citizen must have **fair notice**; and it is the legislature's job, not the court's, to define crimes.

Cases

- *Tolaram Relumal v. State of Bombay* (1954): if two possible and reasonable constructions can be put on a penal provision, the court must lean towards the one that **exempts the subject from penalty**. The court cannot stretch the meaning of a penal provision.
- **W.H. King v. Republic of India** (1952): a "**premium**" under the Bombay Rent Act. The court held that payment to a different person was not covered; it was strictly construed.
- *Sakshi v. UOI* (2004): the definition of rape could not be expanded by interpretation. It is for the legislature.
- *Commissioner of Customs v. Dilip Kumar* (2018).
- *London & North Eastern Railway v. Berriman* (1946).
- *Bijaya Kumar Agarwala v. State of Orissa* (1996).

Limits of the rule of strict construction

1. It **does not permit** the court to **defeat the obvious intention** of the legislature, or to adopt an **unnatural or strained** meaning. Strict construction does not mean ignoring the plain meaning.
2. It applies only where there is **genuine ambiguity** after all other aids have been used.
3. Courts may adopt a **purposive interpretation** for **social welfare legislation** that has penal provisions, e.g. food adulteration, economic offences and dowry (*Murlidhar Meghraj Loya v. State of Maharashtra*, 1976: in socio-economic offences, the strict construction rule yields to the purpose; *Alamgir v. State of Bihar*, 1959; *Kanwar Singh v. Delhi Administration*, 1965; *Balram Kumawat v. UOI*, 2003).
4. *M.V. Joshi v. M.U. Shimpi* (1961): **"Butter"** in the Prevention of Food Adulteration Act included butter made from curd, to suppress the mischief.
5. *Kartar Singh v. State of Punjab* (1994): **vague penal laws** may be struck down under Art. 14 or Art. 21.
6. *Shreya Singhal v. UOI* (2015): s.66A of the IT Act was struck down for vagueness.

Q26. Mens rea in statutory offences and under the BNS, 2023

Mens rea: a "guilty mind". The maxim is **actus non facit reum nisi mens sit rea** (the act does not make a person guilty unless the mind is also guilty).

Presumption: **mens rea is an essential ingredient** of every offence **unless** the statute **expressly or by necessary implication excludes it**.

- *Sherras v. De Rutzen* (1895, Wright J.): there is a presumption that mens rea is required. The presumption can be displaced by the words or the subject matter.
- **Sweet v. Parsley** (1970, House of Lords): a landlady was **not liable** for cannabis use on her premises without knowledge. Mens rea is presumed to be required unless clearly excluded.
- *Brend v. Wood* (1946): "It is of the utmost importance for the protection of the liberty of the subject that a court should always bear in mind that, unless the statute either clearly or by necessary implication rules out mens rea as a constituent part of a crime, the court should not find a man guilty of an offence against the criminal law unless he has a guilty mind."

Indian cases

- **Nathulal v. State of M.P.** (1966): a dealer stored foodgrains without a licence while his application was pending, believing it was permissible. The court held mens rea is an essential ingredient unless excluded, and **acquitted** him.
- **State of Maharashtra v. Mayer Hans George** (1965): a passenger in **transit** carried gold through India in breach of an RBI notification that had been published but of which he had no knowledge. He was held **liable**. **Mens rea was excluded by necessary implication** under the FERA and Customs Act, given the object of the statute.
- *Ranjit D. Udeshi v. State of Maharashtra* (1965): knowledge of obscenity is not required under IPC s.292 for selling obscene books. Strict liability applied.
- *Sarjoo Prasad v. State of U.P.* (1961): a servant selling adulterated food was liable without mens rea.
- *Inder Sain v. State of Punjab* (1973).
- *Kalpnath Rai v. State* (1997).

Strict liability offences (mens rea excluded): **public welfare** offences, including food adulteration, drugs, pollution, weights and measures, traffic, and economic offences. Penalties are usually **minor**, and the purpose is **regulatory**.

Mens rea in the BNS, 2023

- The BNS does not use the term "mens rea". It uses words like **"intentionally", "knowingly", "voluntarily" (s.2(33)), "dishonestly" (s.2(7)), "fraudulently" (s.2(9)), "reason to believe" (s.2(29)), "negligently", "rashly"** and "malignantly".
- The **General Exceptions (ss. 14–44)** incorporate the absence of mens rea:
    - mistake of fact (ss.14, 17);

    - accident (s.18);
    - child under 7 (s.20) and immature child of 7–12 (s.21);
    - unsoundness of mind (s.22);
    - involuntary intoxication (s.23).
- Some offences are of **strict liability** (e.g. **s.64, rape of a girl under 18**, where consent is immaterial; **s.137, kidnapping**, where knowledge of age is immaterial: *R v. Prince*, 1875).
- Specific provisions need specific mental states: murder (s.101, **intention or knowledge**), theft (s.303, **dishonest intention**), cheating (s.318, **fraudulently or dishonestly**).

Q27. Vicarious liability in statutory offences

General rule: in criminal law there is **no vicarious liability**. A person is liable only for their **own acts** with their **own mens rea**. The maxim *qui facit per alium facit per se* (one who acts through another acts himself) applies in **civil law (torts)**, not criminal law.

Exceptions: statutory vicarious liability. Where the **statute expressly or impliedly** imposes liability on a master, employer, principal or company director for the acts of servants or the company:

1. **Offences by companies**: most modern statutes provide that **every person in charge of, and responsible to the company for, the conduct of its business** at the time of the offence is deemed guilty, unless they prove it was **without their knowledge** or that they exercised **due diligence**. Examples:
    - Negotiable Instruments Act s.141;
    - Food Safety and Standards Act s.66;
    - Environment (Protection) Act s.16;
    - Drugs and Cosmetics Act s.34;
    - IT Act s.85;
    - Prevention of Food Adulteration Act s.17;
    - BNS s.2(26) (“person” includes a company).
2. **Master and servant**: e.g. licensing offences, where the licensee is liable for the servant’s sale.
3. **Public nuisance** cases.

Cases

- **Mousell Bros. Ltd. v. London & North Western Railway Co.** (1917): a company was held liable for the false invoices of its manager. Whether the master is liable depends on the **object of the statute**, the words used, the nature of the duty, the person on whom it is imposed, and the person by whom it would ordinarily be performed.
- *Allen v. Whitehead* (1930): a café owner was liable for prostitutes gathering, where the manager knew.
- **Sarjoo Prasad v. State of U.P.** (1961): a **servant** selling adulterated oil was held liable. Even if the servant had no knowledge, the statute imposed liability.

- **State of Maharashtra v. Syndicate Transport Co.** (1964): a company can be **criminally liable**.
- **Standard Chartered Bank v. Directorate of Enforcement** (2005, Constitution Bench): a **company can be prosecuted** even for offences carrying **mandatory imprisonment**; a fine can be imposed instead.
- **Iridium India Telecom Ltd. v. Motorola Inc.** (2011): a company can have **mens rea**, through the **doctrine of attribution** (the "alter ego" or directing mind).
- **Aneeta Hada v. Godfather Travels & Tours** (2012): under s.141 NI Act, a director can be prosecuted only if the **company is also arraigned** as an accused.
- **Sunil Bharti Mittal v. CBI** (2015): an individual (the MD) is **not automatically vicariously liable** for the company's offence unless the statute specifically provides for it, or there is evidence of the individual's **active role** and criminal intent.
- *S.M.S. Pharmaceuticals Ltd. v. Neeta Bhalla* (2005): the complaint must specifically aver that the director was in charge of and responsible for the business.

Q28. Distinction between remedial and penal statutes; liberal construction of remedial statutes

Remedial statutes: statutes that **provide a remedy** for a defect or mischief, grant **new benefits**, or improve the condition of a class. They are also called **welfare or beneficial** legislation. Examples: the Workmen's Compensation Act, the Industrial Disputes Act, the Maternity Benefit Act, Rent Control Acts, the Consumer Protection Act, the Payment of Gratuity Act, the Minimum Wages Act, the DV Act 2005, and the RTI Act.

Penal statutes: statutes that **impose penalties or punishment** (fine, imprisonment or forfeiture) for an act or omission. Examples: the BNS, the NDPS Act, and the penal provisions of other Acts.

Remedial statute	Penal statute
Provides a **remedy / benefit**	Imposes **punishment**
Construed **liberally / beneficially** in favour of the beneficiary	Construed **strictly** in favour of the accused
Object: social welfare, advancing the remedy	Object: deterrence and punishment
Doubt is resolved **in favour of the class to be benefited**	Doubt is resolved **in favour of the accused**
May operate **retrospectively** if the intent is clear	**Cannot** be retrospective (Art. 20(1))

Note: one statute may have **both remedial and penal** provisions, and each part is construed accordingly. *Murlidhar Meghraj Loya* (1976): even penal provisions in welfare statutes are construed purposively.

Liberal (beneficial) construction of remedial statutes

- **Rule**: remedial or welfare statutes should be construed **liberally** to **advance the remedy and suppress the mischief**, in favour of those for whose benefit they are

enacted. If two interpretations are possible, the one that **furthers the beneficial purpose** is adopted.

- **Limit**: liberal construction cannot **do violence to the language** or rewrite the statute. Courts cannot extend the benefit to persons clearly excluded.
- **Cases**:
  - **Alembic Chemical Works Co. v. Workmen** (1961): in construing labour welfare legislation, courts should adopt a **beneficent rule of construction**. If a section is capable of two constructions, the one that **furthers the policy** and is more beneficial to the employees should be preferred.
  - *Workmen of American Express International Banking Corp. v. Management* (1985): Sundays were counted as working days for gratuity, giving a liberal reading.
  - **Bharat Singh v. Management of New Delhi Tuberculosis Centre** (1986).
  - *Union of India v. Prabhakaran Vijaya Kumar* (2008): railway accident compensation was interpreted beneficially; an "untoward incident" included accidental falls from trains.
  - *B. Shah v. Presiding Officer, Labour Court* (1977): the Maternity Benefit Act. Sundays were included in the computation of benefits.
  - *Bangalore Water Supply v. A. Rajappa* (1978): "industry" was given a wide meaning.
  - *Kerala Fishermen's Welfare Fund Board v. Fancy Food* (1995).
  - *Hindustan Lever Ltd. v. Ashok Vishnu Kate* (1995).

MODULE 7 — COMMENCEMENT, OPERATION, EXPIRY AND REPEAL OF STATUTES

Q29. Commencement of a statute

- A statute **comes into force on**:
  1. the **date specified** in the Act itself; or
  2. the **date notified** by the Government in the Official Gazette (the Act may give the Government power to bring it into force, and different dates can be appointed for different provisions); or
  3. if no date is specified, the **date of assent** of the President or Governor (GCA s.5(1)).
- It comes into force **at the beginning of the day (midnight)** (GCA s.5(3)), i.e. immediately on the expiry of the day preceding commencement.
- **Courts cannot direct** the Government to bring an Act into force (*A.K. Roy v. UOI*, 1982; *Aeltemesh Rein v. UOI*, 1988: the court can only ask the Government to consider it).
- Ordinances come into force on **promulgation**.
- **Delegated legislation** comes into force on publication in the Gazette, unless otherwise stated (*Harla v. State of Rajasthan*, 1951: **publication is necessary**; a law cannot come into force without being made known).
- Example: the BNS, BNSS and BSA were notified to come into force on **1 July 2024**.

Q30. Prospective, retrospective and retroactive operation of statutes. *(Important)*

Prospective operation: the statute applies **only to future** acts and transactions, **after its commencement**. **General rule: statutes are presumed to be prospective** (*nova constitutio futuris formam imponere debet, non praeteritis*: a new law ought to regulate what is to follow, not the past).

Retrospective operation: the statute applies to **past acts and transactions**. It **takes away or impairs vested rights**, creates new obligations, or attaches new disabilities in respect of **past transactions**. It is **not presumed**. It must be **expressly provided or necessarily implied**.

Retroactive operation: (some writers distinguish this) the statute operates **for the future only**, but **draws on antecedent facts** for its operation. For example, a law providing that persons convicted earlier are disqualified from contesting **future** elections is not retrospective; it is retroactive. *State Bank's Staff Union v. UOI* (2005).

Rules

1. **Substantive laws** (creating or affecting **vested rights** or liabilities) are **prospective**, unless expressly or by necessary implication retrospective (*Garikapati Veeraya v. N. Subbiah Choudhry*, 1957: the right of appeal is a vested right).
2. **Procedural laws** are **retrospective** (applicable to pending proceedings), unless they affect vested rights. *No one has a vested right in procedure.*
    - **Hitendra Vishnu Thakur v. State of Maharashtra** (1994): principles. A procedural statute should not generally be applied retrospectively where the result would be to create new disabilities or obligations, or to impose new duties for transactions already accomplished.
    - *Anant Gopal Sheorey v. State of Bombay* (1958).
    - *Shyam Sundar v. Ram Kumar* (2001): substantive rights are not affected.
3. **Penal laws**: **cannot be retrospective** to the prejudice of the accused under **Art. 20(1)**, i.e. **no ex post facto** criminal law (no conviction for an act not an offence when done, and no greater penalty than was in force at that time).
    - *Kedar Nath Bajoria v. State of W.B.* (1953).
    - **Rattan Lal v. State of Punjab** (1965): a **beneficial** penal law (the Probation of Offenders Act) can apply **retrospectively** in favour of the accused. Art. 20(1) bars only retrospective **prejudicial** laws.
    - *T. Barai v. Henry Ah Hoe* (1983): the reduction of punishment by amendment benefits the accused.
    - *Keshavan Madhava Menon v. State of Bombay* (1951): a prosecution under the Press Act after the Constitution was not saved, since Art. 13 is prospective.
4. **Declaratory and clarificatory Acts** are **retrospective** (they declare what the law always was). *Zile Singh v. State of Haryana* (2004).
5. **Validating Acts** are retrospective by nature. They **remove the basis** of a judgment declaring a law invalid. The legislature **cannot directly overrule** a judgment (*S.R. Bhagwat v. State of Mysore*, 1995; *Madras Bar Association v. UOI*, 2021).

6. **Taxing statutes** may be retrospective if expressly provided, subject to Arts. 14 and 19 (reasonableness). *Vodafone* (2012) led to the retrospective amendment of 2012, which was later withdrawn in 2021.
7. **Remedial and beneficial statutes** may be construed retrospectively if the intention is clear.

Presumption against retrospectivity: rationale: fairness; vested rights; the rule of law; persons should be able to plan their conduct. *Govind Das v. ITO* (1976). *Commissioner of Income Tax v. Vatika Township* (2014, Constitution Bench): the presumption against retrospectivity is based on fairness, and legislation is presumed not to be intended to have retrospective operation.

Q31. Perpetual and temporary statutes; effect of expiry of temporary statutes. *(Important)*

Perpetual statute: one with **no fixed period** of duration. It remains in force **until repealed** (expressly or impliedly). "Perpetual" does not mean it cannot be repealed. Examples: the Indian Contract Act and the Constitution.

Temporary statute: one **for a fixed period** (it contains a sunset clause) and **expires automatically** on the expiry of that period, unless **extended** or made permanent. Examples:

- **Ordinances** under Art. 123 or 213 (valid until 6 weeks after the reassembly of the legislature);
- TADA (1985, lapsed in 1995);
- POTA;
- the Finance Act (annual);
- some emergency laws.
- A temporary Act can be extended by a **fresh enactment** before it expires. A temporary Act cannot be "revived" after expiry except by a fresh enactment.

Effect of expiry of a temporary statute

1. **Section 6 of the GCA does not apply** to the **expiry** of temporary statutes. s.6 applies only to **repeals**, and expiry is not a repeal. So when a temporary Act expires, **pending proceedings lapse** and **no prosecution** can be started or continued for offences committed while it was in force, **unless the Act contains a saving clause**.
    - **State of Orissa v. Bhupendra Kumar Bose** (1962): the general rule is that unless the temporary statute contains a saving provision, legal proceedings under it end on its expiry. **However**, the court said that the question of whether **rights or liabilities** survive depends on the **construction of the statute** and the nature of the right (some rights and liabilities may survive).
    - **Rayala Corporation (P) Ltd. v. Director of Enforcement** (1969): proceedings under FERA Rule 132A (which had lapsed by its omission) could not continue. s.6 of the GCA does not apply to expiry or omission.
    - *S. Krishnan v. State of Madras* (1951): preventive detention.

    - *Kolhapur Canesugar Works Ltd. v. Union of India* (2000): s.6 does not apply to the **omission of rules**.
    - *Fibre Boards (P) Ltd. v. CIT* (2015): **"omission" is a form of repeal**, so s.6 applies. This doubted Kolhapur Canesugar and Rayala. *Shree Bhagwati Steel Rolling Mills v. CCE* (2016) agreed.
2. **Acts done and completed** under the temporary statute before its expiry remain **valid**: past transactions are not undone.
3. **Notifications, orders and rules** made under it **lapse** with it.
4. **Persons in custody** under detention laws must be released.
5. If the temporary Act is **repealed before expiry**, **s.6 GCA applies** (since that is a repeal).
6. If the temporary Act is **re-enacted**, the earlier provisions may be continued (GCA s.24).
7. **Ordinances**: on **lapse**, past acts done under them are **not automatically void**. *Krishna Kumar Singh v. State of Bihar* (2017, 7-judge Constitution Bench): there is **no automatic saving** of rights and liabilities under a lapsed ordinance. The test is **public interest and constitutional necessity**. Re-promulgation of ordinances is a **fraud on the Constitution** (also *D.C. Wadhwa v. State of Bihar*, 1987).

Q32. Express and implied repeal. ***(Important)***

Repeal: the **abrogation / revocation** of an existing law by the legislature. The power to legislate includes the power to repeal (GCA s.6; Art. 245, 246).

Express repeal

- The repealing Act **expressly declares** that the earlier Act or provisions are repealed. Words used are "**is hereby repealed**", "shall cease to have effect", "is omitted", "substituted".
- Examples: BNS s.358 repealed the IPC; BNSS s.531 repealed the CrPC; BSA s.170 repealed the IEA.
- **Repealing and Amending Acts** remove obsolete laws.

Implied repeal

- No express words of repeal are used, but **a later Act is so inconsistent or repugnant with an earlier Act** that **both cannot stand together**. Then the **later Act impliedly repeals** the earlier one to the extent of the inconsistency (*leges posteriores priores contrarias abrogant*: later laws abrogate earlier contrary laws).
- **Presumption against implied repeal**: the legislature is presumed to know the existing law, and if it intended to repeal it, it would have said so. Courts lean **against** implied repeal, and try to harmonise the two first.

Tests for implied repeal (*Municipal Council, Palai v. T.J. Joseph*, 1963; *Zaverbhai Amaidas v. State of Bombay*, 1954; *Ratan Lal Adukia v. UOI*, 1989):

1. Is there a **direct conflict** between the two provisions, so that they cannot stand together?

2. Did the legislature intend to **lay down an exhaustive code** on the subject (occupying the whole field)?
3. Do the two laws occupy the **same field**?

If yes, the earlier is impliedly repealed.

Special vs general: **Generalia specialibus non derogant**. A **later general law** does not repeal an **earlier special law** by implication, unless the intention is clear. The special law is treated as an exception to the general law (*J.K. Cotton Spinning & Weaving Mills v. State of U.P.*, 1961; *Ethiopian Airlines v. Ganesh Narain Saboo*, 2011). But a **later special law** may override an earlier general law.

Repeal by Art. 254 (repugnancy between Union and State laws in the Concurrent List) is a form of implied repeal.

Cases: *Zaverbhai Amaidas v. State of Bombay* (1954); *Municipal Council Palai v. T.J. Joseph* (1963); *State of M.P. v. Kedia Leather & Liquor Ltd.* (2003): implied repeal is not to be readily inferred.

Q33. Consequences of repeal. *(Very important)*

(a) Common law position (before the GCA): the repealed statute is treated **as if it had never existed**, except for **past and closed transactions**. Pending proceedings fall and no prosecution can be started for past offences. This was **harsh**, so the **GCA s.6** was enacted.

(b) Section 6 GCA: effect of repeal: where any Central Act or Regulation **repeals** any enactment, **unless a different intention appears**, the repeal **shall not**:

- a. **revive** anything **not in force or existing** at the time the repeal takes effect;
- b. affect the **previous operation** of the repealed enactment, or anything duly done or suffered under it;
- c. affect any **right, privilege, obligation or liability** acquired, accrued or incurred under the repealed enactment;
- d. affect any **penalty, forfeiture or punishment** incurred in respect of any offence committed against the repealed enactment;
- e. affect any **investigation, legal proceeding or remedy** in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment. Any such investigation, legal proceeding or remedy **may be instituted, continued or enforced**, and any such penalty may be imposed, **as if the repealing Act had not been passed**.

Principles from s.6

1. **No revival**: s.6(a) and s.7. If Act A repealed Act B, and later Act A is itself repealed, Act B **does not revive** unless expressly provided.
2. **Past transactions are saved**.
3. **Accrued rights and liabilities are saved**, but **not a mere hope or expectation** or an inchoate right. *Abbott v. Minister for Lands* (1895): the mere right to take

advantage of a repealed statute is not an accrued right. *Lalji Raja & Sons v. Hansraj Nathuram* (1971). *M.S. Shivananda v. Karnataka SRTC* (1980).
4. **Pending proceedings continue** under the old law (*State of Punjab v. Mohar Singh*, 1955: prosecution under a repealed ordinance could continue after repeal and re-enactment).
5. **Offences committed before the repeal** can be **prosecuted** after the repeal.
6. **"Unless a different intention appears"**: the repealing Act may indicate a different intention, either by an express saving or by necessary implication from its scheme. *State of Punjab v. Mohar Singh* (1955): when there is a **repeal and re-enactment**, the court looks to see whether the new law **manifests an intention incompatible with or contrary to** s.6. The mere absence of a saving clause is not enough to exclude s.6.

(c) Repeal and re-enactment (GCA s.8): where an Act is **repealed and re-enacted** with or without modification, **references** in other enactments to the repealed provision are construed as references to the **re-enacted provision**. **GCA s.24**: notifications, orders, rules and bye-laws under the repealed Act **continue** so far as **not inconsistent** with the re-enacted provisions, until superseded. Examples: BNSS s.531(2) saves pending proceedings under the CrPC; BNS s.358 and BSA s.170 contain savings.

(d) Repeal of an amending Act: s.6A of the GCA. Once an amending Act has done its job (by inserting or omitting provisions in the principal Act), its **repeal does not affect** the amendments made. *Jethanand Betab v. State of Delhi* (1960).

(e) Omission vs repeal: is "omission" a repeal that attracts s.6?

- *Rayala Corporation* (1969) and *Kolhapur Canesugar* (2000) held that s.6 does **not** apply to omission.
- **Fibre Boards (P) Ltd. v. CIT** (2015) held that **omission is a species of repeal**, so s.6 applies. *Shree Bhagwati Steel Rolling Mills v. CCE* (2016) agreed.

(f) Repeal of a temporary statute before expiry: s.6 applies. **Expiry** of a temporary statute: s.6 does **not** apply (see Q31).

(g) Effect of a repeal on delegated legislation: rules made under the repealed Act **fall**, unless saved by the GCA s.24 or by a saving clause.

(h) Unconstitutional statutes: a law declared void under **Art. 13** is "**still-born**" (void ab initio) if it was enacted after the Constitution in violation of FRs (*Deep Chand v. State of U.P.*, 1959). It is **eclipsed** (the **doctrine of eclipse**) if it is a pre-constitutional law and revives when the inconsistency is removed (*Bhikaji Narain Dhakras v. State of M.P.*, 1955).

Exam tips

1. For **rules of interpretation** (literal, golden, mischief, harmonious), always write: the meaning, the statement of the rule (Tindal / Wensleydale / Heydon), English cases, **Indian cases**, merits and demerits, and a conclusion.

2. Draw a **comparison table** wherever possible (literal vs golden vs mischief; internal vs external aids; penal vs remedial).
3. **Must-know cases**:
    - English: Heydon’s Case, Grey v. Pearson, Whiteley v. Chappell, R v. Allen, Smith v. Hughes, Powell v. Kempton Park, Pepper v. Hart, Cape Brandy Syndicate.
    - Indian: Venkataramana Devaru, Kesavananda, Golak Nath, Bengal Immunity, K.P. Varghese, A.V. Fernandez, Dilip Kumar (2018), Nathulal, Mayer Hans George, Alembic Chemical, Dhulabhai, Mohar Singh, Bhupendra Kumar Bose.
    - Mimansa: Ispat Industries and Udai Shankar Awasthi.